

FORTY YEARS
⌚ OF IT ⌚



BRAND WHITLOCK

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OF IT ***

FORTY YEARS OF IT

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Four Afoot.
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The Arrival of Jimpson.
Behind the Line.
Captain of the Crew.
For the Honor of the School.
The Half-Back.
On Your Mark.
Weatherby's Inning.

D. APPLETON & COMPANY, NEW YORK.

**FORTY
YEARS OF IT**

**BY
BRAND WHITLOCK**



**NEW YORK AND LONDON
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MCMXIV**

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TO THE MEMORY OF
MY FATHER

ELIAS D. WHITLOCK

WHO DIED DECEMBER 23, 1913

A MINISTER OF THE SANCTUARY, AND
OF THE TRUE TABERNACLE, WHICH
THE LORD PITCHED, AND NOT MAN

INTRODUCTION

The history of democracy's progress in a mid-Western city—so, to introduce this book in specific terms, one perhaps inevitably must call it. Yet in using the word *democracy*, one must plead for a distinction, or, better, a reversion, indicated by the curious ankylosis that, at a certain point in their maturity, usually sets in upon words newly put in use to express some august and large spiritual reality. We all know how this materializing tendency, if one may call it that, has affected our notion and our use of the commonest religious terms like *faith*, *grace*, *salvation*, for instance. Their connotation, originally fluid, spiritual and subjective, has become concrete, limited, partial, ignoble. So, too, in our common speech, even above the catchpenny vocabulary of the demagogue or politician, the word *democracy* has taken on the limited, partial and ignoble connotation of more or less incidental and provisional forms of democracy's practical outcome; or even of by-products not directly traceable to the action of democracy itself. How often, for example, do we see direct primaries, the single tax, the initiative and referendum posed in a kind of sacramental relation to “fundamental democracy”; or the “essential movement of democracy” measured, say, by the increased returns on the Socialist ticket at some local election!

The permanent value of this book is that it proceeds out of a truly adequate and philosophical conception of democracy. That the collective human spirit should know itself, καταμαθεῖν τὴν φύσιν καὶ ταύτη ἔπεσθαι, that the state, the communal unit, should be, in Mr. Arnold's phrase, “the expression of our best self, which is not manifold and vulgar and unstable and contentious and ever varying, but one and noble and secure and peaceful and the same for all mankind”; here we have in outline the operation of democracy. One could not give this volume higher praise than to say, as in justice one must say, that it clearly discerns and abundantly conveys the spirit which works in human nature toward this end.

How important it is to maintain this fluid, philosophical and spiritual view of democracy may be seen when we look about us and consider the plight

of those—especially the many now concerned in politics, whether professionally or as eager amateurs—who for lack of it confuse various aspects of the political problem of liberty with the social problem of equality. With political liberty or with self-expression of the individual in politics, democracy has, and ever has had, very little to do. It is our turbid thought about democracy that prevents our seeing this. The aristocratic and truculent barons did more for the political freedom of Englishmen than was ever done by democracy; a selfish and sensual king did more to gain the individual Englishman his freedom of self-expression in politics. In our own country it is matter of open and notorious fact that a political party whose every sentiment and tendency is aristocratic has been the one to bring about the largest measures of political enfranchisement. Now, surely, one may heartily welcome every enlargement of political liberty, but if one attributes them to a parentage which is not theirs, if one relates them under *democracy*, the penalty which nature inexorably imposes upon error is sure to follow. If, therefore, in the following pages the author seems occasionally lukewarm toward certain enfranchising measures, I do not understand that he disparages them, but only that he sees—as their advocates, firmly set in the confusion we speak of, cannot see—that their connection with democracy is extremely indistinct and remote. *Equality*—a social problem, not to be worked out by the mechanics of politics, but appealing wholly to the best self, the best reason and spirit of man,—this is democracy's concern, democracy's chief interest. It is to our author's praise, again, that he sees this clearly and expresses it convincingly.

By far the most admirable and impressive picture in this book appears to me to be that which the author has all unconsciously drawn of himself. It reveals once more that tragedy—the most profound, most common and most neglected of all the multitude of useless tragedies that our weak and wasteful civilization by sheer indifference permits—the tragedy of a richly gifted nature denied the opportunity of congenial self-expression. What by comparison is the tragedy of starvation, since so very many willingly starve, if haply they may find this opportunity? The author is an artist, a born artist. His natural place is in a world unknown and undreamed of by us children of an age commissioned to carry out the great idea of industrial and political development. He belongs by birthright in the eternal realm of divine impossibilities, of sublime and delightful inconsistencies. Greatly might he have fulfilled his destiny in music, in poetry, in painting had he been born at

one of those periods when spiritual activity was all but universal, when spiritual ideas were popular and dominant, *volitantes per ora virum*, part of the very air one breathed—in the Greece of Pericles, the England of Elizabeth, or on the Tuscan hills at the time of the Florentine Renaissance! But this was not to be. An admirer, jealous of every possible qualification, reminds me that I should call him at least a philosophical artist; yes, but not by nature even that. The toga did not drop upon him readymade from a celestial loom. It was woven and fitted laboriously by his own hands. He sought philosophical consistency and found it and established himself in it; but only as part of the difficult general discipline of an alien life.

What an iron discipline, and how thoroughly alien a life, stands revealed to the eye of poetic insight and the spirit of sympathetic delicacy, on every page of these memoirs. For the over-refined (as we say), the oversensitive soul of a born artist—think of the experience, think of the achievement! The very opposite of all that makes a politician, appraising politics always at their precise value, yet patiently spending all the formative years of his life in the debilitating air of politics for the sake of what he might indirectly accomplish. Not an executive, yet incessantly occupied with tedious details of administrative work, for the satisfaction of knowing them well done. Not a philosopher, yet laboriously making himself what Glanvil quaintly calls “one of those larger souls who have traveled the divers climates of opinion” until he acquired a social philosophy that should meet his own exacting demands.

Is it too much, then, that I invite the reader’s forbearance with these paragraphs to show why our author should himself take rank and estimation with the great men whom he reverently pictures? He tells the story of Altgeld and of Johnson, energetic champions of the newer political freedom. He tells the story of Jones, the incomparable true democrat, one of the children of light and sons of the Resurrection, such as appear but once in an era. And in the telling of these men and of himself as the alien and, in his own view, largely accidental continuator of their work, it seems to me that he indicates the process by which he too has worked out his own position among them as “one of those consoling and hope-inspiring marks which stand forever to remind our weak and easily discouraged race how high human goodness and perseverance have once been carried and may be carried again.”

ALBERT JAY NOCK.

THE AMERICAN MAGAZINE,
NEW YORK.

FORTY YEARS OF IT

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I

One hot afternoon in the summer of my tenth year, my grandfather, having finished the nap he was accustomed to take after the heavy dinner which, in those days, was served at noon in his house, told me that I might go up town with him. This was not only a relief, but a prospect of adventure. It was a relief to have him finish his nap, because while he was taking his nap, my grandmother drew down at all the windows the heavy green shades, which, brought home by the family after a residence in Nuremberg, were decorated at the bottom with a frieze depicting scenes along the Rhine, and a heavy and somnolent silence was imposed on all the house. When my grandfather took his nap, life seemed to pause, all activities were held in suspense.

And the prospect was as a pleasant adventure, because whenever my grandfather let me go up town with him he always made me a present, which was sure to be more valuable, more expensive, than those little gifts at home, bestowed as rewards of various merits and sacrifices related to that institution of the afternoon nap, and forthcoming if he got through the nap satisfactorily, that is, without being awakened. They consisted of mere money, the little five or ten cent notes of green scrip; "shin-plasters" they were called, I believe, in those days.

When my grandfather had rearranged his toilet, combing his thick white hair and then immediately running his fingers through it to rumple it up and give him a savage aspect, we set forth.

He wore broad polished shoes, low, and fastened with buckles, and against the black of his attire his stiffly starched, immaculate white waistcoat was conspicuous. Only a few of its lower buttons of pearl were fastened; above that it was open, and from one of the buttonholes, the second from the top, his long gold watch-chain hung from its large gold hook. The black cravat was not hidden by his white beard, which he did not wear as long as many Ohio gentlemen of that day, and he was crowned by a large Panama hat,

yellowed by years of summer service, and bisected by a ridge that began at the middle of the broad brim directly in front, ran back, climbed and surmounted the large high crown, and then, descending, ended its impressive career at the middle of the broad brim behind.

I was walking on his left hand, near the fence, but as we entered the shade of the elms and shrubbery of the Swedenborgian churchyard, I went around to his other side, because a ghost dwelt in the Swedenborgian churchyard. My cousin had pointed it out to me, and once I had seen it distinctly.

The precaution was unnecessary, for I had long known my grandfather for a brave man. He had been a soldier, and many persons in Urbana still saluted him as major, though at that time he was mayor; going up town, in fact, meant to go to the town hall before going anywhere else. In the shade he removed his hat, and taking out a large silk handkerchief, passed it several times over his red, perspiring face.

It was, as I have said, a hot afternoon, even for an August afternoon in Ohio, and it was the hottest hour of the afternoon. Main Street, when we turned into it presently, was deserted, and wore an unreal appearance, like the street of the dead town that was painted on the scene at the “opera-house.” Far to the south it stretched its interminable length in white dust, until its trees came together in that mysterious distance where the fairgrounds were, and to the north its vista was closed by the bronze figure of the cavalryman standing on his pedestal in the Square, his head bowed in sad meditation, one gauntleted hand resting on his hip, the other on his saber-hilt. Out over the thick dust of the street the heat quivered and vibrated, and if you squinted in the sun at the cavalryman, he seemed to move, to tremble, in the shimmer of that choking atmosphere.

The town hall stood in Market Square; for, in addition to *the* Square, where the bronze cavalryman stood on his pedestal, there was Market Square, the day of civic centers not having dawned on Urbana in that time, nor, doubtless, in this.

Market Square was not a square, however, but a parallelogram, and on one side of it, fronting Main Street, was the town hall, a low building of brick, representing in itself an amazing unity of municipal functions—the germ of the group plan, no doubt, and, after all, in its little way, a civic center indeed. For there, in an auditorium, plays were staged before a populace

innocent of the fact that it had a municipal theater, and in another room the city council sat, with representatives from Lighttown, and Gooseville, and Guinea, and the other *faubourgs* of our little municipality. Under that long low roof, too, were the “calaboose” and the headquarters of the fire department. Back of these the structure sloped away into a market-house of some sort, with a public scales, and broad, low, overhanging eaves, in the shade of which firemen, and the city marshal, and other officials, in the dim retrospect, seem to have devoted their leisure to the game of checkers.

On the opposite side of Market Square there was a line of brick buildings, painted once, perhaps, and now of a faint pink or cerise which certain of the higher and more artistic grades of calcimining assume, and there seems to have been a series, almost interminable, of small saloons—declining and fading away somewhere to the east, in the dark purlieu of Guinea.

Here, along this line of saloons, if it was a line of saloons, or, if it was not, along the side of the principal saloon which in those wet days commanded that corner, there were always several carts, driven by Irishmen from Lighttown, smoking short clay pipes, and two-wheeled drays driven by negroes from Guinea or Gooseville. These negro drivers were burly men with shining black skins and gleaming eyes and teeth, whose merry laughter was almost belied by the ferocious, brutal whips they carried—whips precisely like that *Simon Legree* had wielded in the play in the theater just across the Square, now, by a stroke of poetic justice, in the hands of *Uncle Tom* himself. But on this day the firemen were not to be seen under the eaves of the market-house; their checker-boards were quite abandoned. The mules between the shafts of these two-wheeled drays hung their heads and their long ears drooped under the heat, and their black masters were curled up on the sidewalk against the wall of the saloon, asleep. The Irishmen were nowhere to be seen, and Market Square was empty, deserted, and sprawled there reflecting the light in a blinding way, while from the yellow, dusty level of its cobbled surface rose, wave on wave, palpably, that trembling, shimmering, vibrating heat. And yet, there was one waking, living thing in sight. There, out in the middle of the Square he stood, a dusty, drab figure, with an old felt hat on a head that must have ached and throbbed in that implacable heat, with a mass of rags upon him, his frayed trousers gathered at his ankles and bound about by irons, and a ball and chain to bind him to that spot. He had a broom in his hands, and was aimlessly making a little

smudge of dust, doing his part in the observance of an old, cruel, and hideous superstition.

I knew, of course, that he was a prisoner. Usually there were three or four, sometimes half a dozen, such as he. They were the chain-gang, and they were Bad—made so by Rum. I knew that they were brought out of the calaboose, that damp, dark place under the roof of the market-house, somewhere between the office of the mayor and the headquarters of the fire department; and glimpses were to be caught now and then of their faces pressed against those bars.

When, under the shade of the broad eaves, we were about to enter the mayor's office, my grandfather motioned to the prisoner out there in the center of the Square, who with a new alacrity dropped his broom, picked up his ball, and lugging it in his arms, came up close to us, so very close that I could see the sweat that drenched his forehead, stood in great beads on his upper lip, matted the hair on his forearms, stained with dark splashes his old shirt, and glistened on his throat and breast, burned red by the sun. He dropped his ball, took off that rag of a hat, raised eyelids that were powdered with dust, and looked at my grandfather.

"How many days did I give you?" my grandfather asked him.

"Fifteen, your honor," he said.

"How long have you been in?"

"Three days, your honor."

"Are you the only one in there?"

"Yes, your honor."

My grandfather paused and looked at him.

"Pretty hot out there, isn't it?" asked my grandfather.

The prisoner smiled, a smile exactly like that anyone would have for such a question, but the smile flickered from his face, as he said:

"Yes, your honor."

My grandfather looked out over the Square and up and down. There was no one anywhere to be seen.

“Well, come on into the office.”

The prisoner picked up his ball, and followed my grandfather into the mayor’s office. My grandfather went to a desk, drew out a drawer, fumbled in it, found a key, and with this he stooped and unlocked the irons on the prisoner’s ankles. But he did not remove the irons—he seated himself in the large chair, and leaned comfortably against its squeaking cane back.

“Now,” my grandfather said, “you go out there in the Square—be careful not to knock the leg irons off as you go,—and you sweep around for a little while, and when the coast is clear you kick them off and light out.”

The creature in the drab rags looked at my grandfather a moment, opened his lips, closed them, swallowed, and then....

“You’d better hurry,” said my grandfather, “I don’t know what minute the marshal——”

The prisoner gathered up his ball, hugged it carefully, almost tenderly, in his arms, and, with infinity delicacy as to the irons on his feet, he shuffled carefully, yet somehow swiftly out. I saw him an instant in the brilliant glittering sunlight framed by the door; he looked back, and then he disappeared, leaving only the blank surface of the cobblestones with the heat trembling over them.

My grandfather put on his glasses, turned to his desk, and took up some papers there. And I waited, in the still, hot room. The minutes were ticked off by the clock. I wondered at each loud tick if it was the minute in which it would be proper for the prisoner to kick off those irons from his ankles and start to run. And then, after a few minutes, a man appeared in the doorway, and said breathlessly:

“Joe, he has escaped!”

It was Uncle John, a brother of my grandfather, one of the Brands of Kentucky, then on a visit—one of those long visits by which he and my grandfather sought to make up the large arrears of the differences, the divisions, and the separations of the great war. He was nearly of my grandfather’s age, and like him a large man, with a white though longer beard. At his entrance my grandfather did not turn, nor speak, and Uncle John Brand cried again:

“Joe, he’s gone, I tell you; he’s getting away!”

My grandfather looked up then from his papers and said:

“John, you’d better come in out of that heat and sit down. You’re excited.”

“But he’s getting away, I tell you! Don’t you understand?”

“Who is getting away?”

“Why, that prisoner.”

“What prisoner?”

“The prisoner out there in the Square. He has escaped! He’s gone!”

“But how do you know?”

“I just saw him running down Main Street like a streak of lightning.”

My grandfather took out his silk handkerchief, passed it over his brow, and said:

“To think of anyone running on a day like this!”

And Uncle John Brand stood there and gazed at his brother with an expression of despair.

“Can’t you understand,” he said, speaking in an intense tone, as if somehow to impress my grandfather with the importance of this event in society, “can’t you understand that the prisoner out there in the Square has broken away, has escaped, and at this minute is running down Main Street, and that he’s getting farther and farther away with each moment that you sit there?”

I had a vivid picture of the man running with long strides, in the soft dust of Main Street; he must even then, I fancied, be far down the street; he must indeed be down by Bailey’s, and perhaps Bailey’s dog was rushing out at him, barking. And I hoped he would run faster, and faster, and get away, though I felt it was wrong to hope this. Uncle John Brand seemed to be right; though I did not like him as I liked my grandfather.

“But how could he get away?” my grandfather was asking. “He was in irons.”

“He got the irons off somehow,” Uncle John Brand said, exasperated; “I don’t know how. He didn’t stop to explain!” He found a relief in this fine

sarcasm, and then said:

“Aren’t you going to do anything?”

“Well,” said my grandfather, with an irresolution quite uncommon in him, “I suppose I really ought to do something. But I don’t know just what to do.” He sat up, and looked about all over the room. “You don’t see the marshal, do you?”

Uncle John Brand was looking at him now in disgust.

“Just look outside there, will you, John,” my grandfather went on, “and see if you can find him? If you do, send him in, and I’ll speak to him and have him go after the prisoner.”

Uncle John Brand of Kentucky stood a moment in the doorway, finding no words with which to express himself, and then went out. And when he had gone my grandfather leaned back in his chair and laughed and laughed; laughed until his ruddy face became much redder than it was even from the heat of that day.

II

Now that I have set down, with such particularity, an incident which I could not wholly understand nor reconcile with the established order of things until many years after, I am not so sure after all that I witnessed it in that Urbana of reality; it may have been in that Urbana of the memory, wherein related scenes and incidents have coalesced with the witnessed event, or in that Macochee of certain of my attempts in fiction, though I have always hoped that the fiction was the essential reality of life, and have tried to make it so.

I am certain, however, that the incident as related is entirely authentic, for I have recently made inquiries and established it beyond a reasonable doubt, as the lawyers say, in all its details as here given. I say in all its details, save possibly as to that of my own corporeal presence on the scene, at the actual moment of the occurrence. Only the other day I asked a favorite aunt of mine, and she remembered the incident perfectly, and many another similar to it. "It was just like him," she added, with a dubious, though tolerant fondness. But when, like the insistent, questioning child in one of Riley's Hoosier poems, I asked her if I had been there, she said she could not remember.

But whether I was there in the flesh or not, or whether the whole reality of that scene, so poignant, and insistent, and indelible, with its denial of the grounds of authority, its challenge to the bases of society, its shock to the orthodox mind (like that of John Brand of Kentucky, a strict constructionist, who believed in the old Constitution, and even then, in slavery), remains in my memory as the result of one of those tricks of a mind that has always dramatized scenes for its own amusement, I was there in spirit, and, indeed, at many another scene in the life of Joseph Carter Brand, whose name my mother gave me as a good heritage. Whatever the bald and banal physical fact may have been, I was either present at the actual or in imagination at the described scene to such purpose that from it I derived an impression never to be erased from my mind.

It is not given to all of us to say with such particularity and emphasis, just what we learned from each person who has touched our existences and affected the trend of our lives, as it was given to Marcus Aurelius, for instance, so that one may say that from Rusticus one received this impression, or that from Apollonius one learned this and from Alexander the Platonic that; we must rather ascribe our little store of knowledge generally to the gods. But I am sure that no one was ever long with Joseph Carter Brand, or came to know him well, without learning that rarest and most beautiful of all the graces or of all the virtues—Pity.

He, too, had tears for all souls in trouble
Here, and in hell.

Perhaps it is not so much pity as sympathy that I mean, but whether it was pity or sympathy, it was that divine quality in man which enables him to imagine the sorrows of others, to understand what they feel, to suffer with them; in a word, the ability to put himself in the other fellow's place—the hallmark, I believe, of true culture, far more than any degree or doctor's hood could possibly be.

It may have been some such feeling as this for the negroes that led him, when a young man in Kentucky, to renounce a patrimony of slaves and come north. It was not, to be sure, a very large patrimony, for his father was a farmer in a rather small way in Bourbon County, and owned a few slaves, but whatever the motive, he refused to own human chattels and left Bourbon County, where his branch of the Brands had lived since their emigration from Virginia, to which colony, so long before, their original had come as a Jacobite exile from Forfarshire in Scotland.

My grandfather came north into Ohio and Champaign County, and he had not been there very long before he went back to Virginia and married Lavina Talbott, and when they went to live on the farm he called "Pretty Prairie," he soon found himself deep in Ohio politics, as it seems the fate of most Ohioans to be, and continued in that element all his life. He had his political principles from Henry Clay,—he had been to Ashland and had known the family,—and he was elected as a Whig to the legislature in 1842 and to the State Senate of Ohio in 1854. There he learned to know and to admire Salmon P. Chase, then governor of Ohio, and it was not long until he was in the Abolitionist movement, and he got into it so deeply that nothing

less than the Civil War could ever have got him out, for he was in open defiance, most of the time, to the Fugitive Slave Law.

One of the accomplishments in which he took pride, perhaps next to his ability as a horseman, was his skill with the rifle, acquired in Kentucky at the expense of squirrels in the tops of tall trees (he could snuff a candle with a rifle), and this ability he placed at the service of a negro named Ad White, who had run away from his master in the South, and was hidden in a corn-crib near Urbana when overtaken by United States marshals from Cincinnati. The negro was armed, and was defending himself, when my grandfather and his friend Ichabod Corwin, of a name tolerably well known in Ohio history, went to his assistance, and drove the marshals off by the hot fire of their rifles. The marshals retreated, and came up later with reinforcements, strong enough to overpower Judge Corwin and my grandfather, but the negro had escaped.

The scrape was an expensive one; there were proceedings against them in the United States court in Cincinnati, and they only got out of it years after when the Fugitive Slave Law was rapidly becoming no law, and Ad White could live near Urbana in peace during a long life, and be pointed out as an interesting relic of the great conflict.

This adventure befell my grandfather in 1858, when he had been a Republican for two years, having been a delegate to the first convention of the party in 1856, the one that met in Pittsburgh, before the nominating convention which named Frémont had met in Philadelphia. He had attended that convention with Cassius M. Clay of Kentucky, and shared quarters with him at the hotel.

In 1908, in the Coliseum at Chicago, when the Republican National Convention was in session, there were conducted to the stage one morning, and introduced to the delegates, two old gentlemen who had been delegates to that first convention of the party, and after they had been presented and duly celebrated by the chairman and cheered by the delegates they were assiduously given seats in large chairs, and there, throughout the session, side by side they sat, their hands clasped over the crooks of their heavy canes, their white old heads unsteady, peering out in a certain purblind, bewildered, aged way over that mighty assembly of the power and the

wealth, the respectability and the authority, of the nation—far other than that revolutionary gathering they had attended half a century before!

All through the session, now and then, I would look at them; there was a certain indefinable pathos in them, they sat so still, they were so old, there was in their attitude the acquiescence of age—and I would recall my grandfather's stories of the days when they were the force in the Republic, and the runaway "niggers," and the rifles, and the great blazing up of liberty in the land, and it seemed to me that Time, or what Thomas Hardy calls the Ironic Spirit, or perhaps it was only the politicians who were managing the convention, had played some grotesque, stupendous joke on those patriarchs. Did their old eyes, gazing so strangely on that scene, behold its implications? Did they descry the guide-post that told them how far away they really were from that first convention and its ideals?

But whatever the reflections of those two aboriginal Republicans, or whatever emotions or speculations they may have inspired in those who saw them,—the torch of liberty being ever brandished somewhere in this world and tossed from hand to hand,—they had done their part in their day, and might presumably be allowed to look on at the antics of men wherever they chose, in peace. They had known Lincoln, no inconsiderable distinction in itself!

Out of that first convention my grandfather, like them, had gone, and he had done his part to help elect Lincoln after Lincoln had defeated Chase in the Chicago convention of 1860, and had been nominated for the presidency. And then, with his man elected, my grandfather had gone into the war that broke upon the land.

He went in with the 66th Ohio Volunteer Infantry, a regiment which he was commissioned by Governor Dennison to recruit at Urbana, and when it was marshaled in camp near Urbana its command was offered him, an honor and a responsibility he declined because, he said, he knew nothing of the art of war, if it is an art, or of its science, if it is a science, and so was content with the shoulder-straps of a captain. One of his sons, a lieutenant in the regular army, was already at the front with his regiment, and another son was a captain in the 66th, and later on, when my grandfather had been transferred to the Department of Subsistence, he took his youngest son with him in the capacity of a clerk, so that the men of his family were away to

the war for those four years, and the women remained behind, making housewives and scraping lint, and watching, and waiting, and praying, and enduring all those hardships and making all those sacrifices which are so lauded by the poetic and the sentimental and yet are not enough to entitle them to a voice in that government in whose cause they are made.

The situation was made all the more poignant because the great issue had separated the family, and there were brothers and cousins on the other side, though one of these, in the person of Aunt Lucretia, chose that inauspicious time to come over from the other side all the way from Virginia, to pay a visit, and celebrated the report of a Confederate victory by parading up town with a butternut badge on her bosom. She sailed several times about the Square, with her head held high and her crinolines rustling and standing out, and her butternut badge in evidence, and was rescued by my grandmother, who, hearing of her temerity, went up town in desperation and in fear that she might arrive too late. It was a story I was fond of hearing, and as I pictured the lively scene I always had the statue of the cavalryman as a figure in the picture—though of course the statue could not have been in existence during the war, since it was erected as a memorial to the 66th and a monument to its fallen heroes and their deeds. The cavalryman, an officer wearing a romantic cloak and the old plumed hat of the military fashion of that date, and leaning on his saber in a gloomy way, I always thought was a figure of my uncle, that Captain Brand who went out with the 66th, just as I thought for a long time that the Civil War was practically fought out on the northern side by the 66th, which was not so strange perhaps, since nearly every family in Urbana had been represented in the regiment, and they all talked of little else than the war for many years. They called the 66th the “Bloody Sixty-sixth,” a name I have since heard applied to other regiments, but the honorable epithet was not undeserved by that legion, for it had a long and most gallant record, beginning with the Army of the Potomac and fighting in all that army’s battles until after Gettysburg, and then with the 11th and 12th corps it was transferred, under Hooker, to the Army of the Tennessee, at Chattanooga, in time for Lookout Mountain and Missionary Ridge, after which it went with Sherman to the sea, and thus completed the circuit of the Confederacy.

III

My grandfather, however, did not go with his regiment to the West. He had been transferred to the Commissary Department, and he remained with the Army of the Potomac until the close of the war, and it was on some detail connected with his duties in that department that, in 1865, he went into Washington and had the interview with President Lincoln I so much liked to hear him tell about. It was not in the course of his military duty that he went to see the Commander-in-Chief; whatever those duties were they were quickly discharged at the War Department, so that, in the hours of freedom remaining to him before he went back to the front, he did what everyone likes to do in Washington,—he went to see the President. But he went in no military capacity; he went rather in that political capacity he so much preferred to the military, and he went as to the chief he had so long known and loved and followed.

It would be his old friend Chase who presented him to the President, but their conversation was soon interrupted by the entrance of an aide who announced the arrival in the White House grounds of an Indiana regiment passing through Washington, which, as seems to have been the case with most regiments passing through the Capital, demanded a speech from the President. And Lincoln complied, and as he arose to go out he asked my grandfather to accompany him, and they continued their talk on the way. But when they stood in the White House portico, and the regiment beheld the President and saluted him with its lifted cheer, the aide stepped to my grandfather's side, and much to his chagrin—for he had been held by the President while he finished a story—told him that it would be necessary for him to drop a few paces to the rear. It was a little *contretemps* that embarrassed my grandfather, but Lincoln, with his fine and delicate perceptions, divined the whole situation, and met it with that kindness which was so great a part of the humor and humanness in him, by saying:

“You see, Mr. Brand, they might not know which was the President.”

It was not long after that he was at Appomattox and the first to issue rations to the hungry Confederates who had just surrendered, and no act of his life

gave him quite as much satisfaction as to have been the first to pour his whole supply of hardtack into the blankets of those whom still and always he remembered as of his own blood. And that done, after they had ridden into Richmond, he was relieved and was soon back in Washington calling on Chase again. Chase asked him what he could do for him, and my grandfather said there was but one thing in the world he wanted: namely, to go home; and a request so simple was granted with that alacrity with which politicians grant requests that, in their scope, fall so short of what might have been expected. But it was not long until Chase's influence was requested in a more substantial matter, and in 1870 my grandfather, with his wife and two younger daughters, was on his way across the Atlantic to Nuremberg, where President Grant had appointed him consul.

It was not, of course, until after his return from the foreign experience that my conscious acquaintance with him began. But when they returned and opened the old house, and filled it with the spoil of their European travel,—some wonderful mahogany furniture and Dresden china, and other objects of far more delight to us children,—he and I began a friendship which lasted until his death, and was marred by no misunderstanding, except, perhaps, as to the number of hours his saddle-horse should be ridden on the gallop, and the German he wished me to read to him out of the little black-bound volumes of Schiller and Goethe, which for years were his companions. He held, no doubt with some show of reason on his side, that if he could master the language after he was sixty, I might learn at least to read it before I was sixteen. The task had its discouragements, not lightened, even in after years, when I read in their famous and delightful correspondence Carlyle's advice to Emerson to possess himself of the German language; it could be done, wrote Carlyle, in six weeks! But, like Emerson, I was afflicted with the postponement and debility of the blond constitution, and I observed that, except in great moments of unappreciated sacrifice, my grandfather preferred to read his German himself rather than to listen to my renditions.

I have spoken of the house as the old house, and I do that as viewing it from the point of disadvantage of the years that have gone since it grew out of that haze and mist and darkness of early recollections into a place that was ablaze with light at evening and full of the constant wonder and delight of the company of a large family. It was, indeed, an old house then, with a

high-gabled roof at one wing, that made an attic which we called, with a sense of its mystery, the “dark room,”—a room, however, not so dark that I could not see to read the old bound volumes of a newspaper an uncle had once edited;—one could lie under the little gable windows and pore over the immense quartos, or more than quartos, and exercise the imagination by reading of some long dead event, and, with a great effort, project one’s self back to that time, and pretend to read with none other than its contemporary impressions.

The cellar of the house was not so interesting, though it was mysterious, and far more terrifying. There was a vast fireplace in the cellar, in which, as Jane, the old colored woman who was sometimes a cook and sometimes a nurse, once solemnly told my cousin and me, the devil dwelt, so that I visited it only once, and there so plainly saw the ugly horns of that dark deity that we fled upstairs and into the sunlight again. It may have been that the crane and the andirons of the old fireplace helped out the impression, though after the original suggestion little was required to strengthen it, and we never went down there again, except to lure a younger cousin as far as the door to shudder in the awful pleasure of witnessing her fear.

This gabled wing had been the original house, and additions had been built to it in two directions, with a wide hall, somewhat after the southern fashion in which so many houses in that part of Ohio were built in those days.

It seems larger in the retrospect than it is in the reality, and I am not endowing it with the spaciousness of a mansion; it was, in fact, a modest dwelling of a dozen rooms, with an atmosphere that was imparted to it by the furniture that had been brought back from Europe, and the personality that filled it.

My grandfather conducted his establishment on a scale of prodigality that had a certain patriarchal air; he had a large family, and he loved to have them all about him, and in the evenings they gathered there at the piano they had bought in Berlin, and when the candles in their curious brass sconces had been lighted, there was music, for the whole family possessed some of that talent which, as President Eliot rightly declares in his lecture on “The Happy Life,” contributes so much real pleasure. My grandfather did not himself sing; or, at least, he sang rarely, and then only one or two

Scotch songs, but when he could be induced to do this, the event took on the festal air of a celebration.

His two younger daughters had been educated in music in Germany, and there was something more of music in the house than the mere classic portraits of Mozart and Beethoven which hung on the wall near the painting of the old castle at Nuremberg. They played duets, and once, at least, at a recital given in the town, we achieved the distinction of a number played on two pianos by my mother and her three sisters.

The May festivals in “the City,” as we called Cincinnati in those days, were a part of existence, and my first excursion into the larger world was when my father took me to Cincinnati to hear Theodore Thomas’s Orchestra, which proved to be an excursion not only into a larger world, but eventually into a larger life,—that life of music, that life of a love of all the arts, which provides a consolation that would be complete could I but express myself in any one of them. I did, indeed, attempt some expression of the joys of that experience, for with more pretension than I could dare to-day, I wrote a composition, or paper, on Music which was printed in a child’s publication, and won for me a little prize. It was twenty-two years before I was able again to have any writing of mine accepted and published by a magazine.

IV

Urbana in those days was not without its atmosphere of culture, influenced in a degree by the presence of the Urbana University, a Swedenborgian college which in the days before the war had flourished, because so many of its students came from the southern states. It declined after the war, but even after that event, the presence of so many persons of the Swedenborgian persuasion, with their gentle manners and intellectual appreciation, kept the traditions alive, and the college itself continued, though not so flourishingly, on its endowed foundation.

One of the tutors in it was a young, brown-haired man who several times a day passed by my grandfather's home on his way to and from his classes, whom afterwards I came to admire for those writings to which was signed the name of Hjalmar Hjorth Boyesen. He did not remain long in Urbana, not longer it seems than he could help, and to judge from some of his pictures of various phases of its life, he did not like the town as well as the Urbana folk themselves liked it. It was a rather self-sufficient town, I fancy, and it cared so little for change that it has scarcely changed at all, save as one misses the faces and the forms one used to see there in other days. It was the home of the distinguished family, and the birthplace, too, of John Quincy Adams Ward, the sculptor, and the possession of a personality in itself distinguishes a town.

I was walking with my father across Market Square not long ago; it had shrunk in size and seemed little and mean and sordid, despite the new city hall that has replaced the old, and there was no miserable prisoner idly sweeping the cobblestones, though the negro drivers with their bull whips were snoozing there as formerly.

"They have been there ever since eighteen sixty-six," said my father, who had gone there in the year he had mentioned on his coming out of college.

His home was in Piqua, a town not far away, where his father had retired to rest after his lifelong labors on a farm he had himself "cleared" in Montgomery County many years before. This paternal grandfather was a large, gaunt, silent man, who spoke little, and then mostly in a sardonic

humor, as when, during that awful pioneer work of felling a forest to make a little plantation, he said to his grown sons who were helping to clear away the underbrush of a walnut wood:

“Boys, what little you cut, pile here.”

Few other of his sayings have been preserved, and it may be that he has left behind an impression that he never talked at all because he never talked politics, and not to do that in Ohio dooms one to a silence almost perpetual. He had once been a Democrat, and had participated with such enthusiasm in the campaign of 1856 that he had kept his horses' tails and manes braided for a month that they might roll forth in noble curls when they were loosened, and the horses harnessed to a carriage containing four veterans of the Revolution, who were to be thus splendidly drawn to the raising of a tall hickory pole in honor of James Buchanan, that year a candidate for president. But the old diplomatist made such a miserable weakling failure of his administration that his Piqua partizan became disgusted and renounced forever his interest in political affairs, and, like Henry I., never smiled again.

But my Grandfather Brand, when he was not talking about poetry or the war, was talking about politics; sometimes world politics, for he was interested in that; sometimes European politics, which he had followed ever since in Paris he had witnessed the outbreak of the Franco-Prussian War, or national politics, or state politics, or, in default of a larger interest, local politics, which in Ohio, as no doubt elsewhere, sometimes looms largest and most important of all, because, perhaps, as De Tocqueville says, local assemblies constitute the strength of free institutions.

My grandfather was then, at the time of which I am thinking even if I am not very specifically writing about it, mayor—and continued to be mayor for four terms. It was an office that was suited, no doubt, to the leisure of his retirement, and while it gave him the feeling of being occupied in public affairs, it nevertheless left him opportunities enough for his German poets, and for his horses and his farm out at Cable, and the strawberries he was beginning to cultivate with the enthusiasm of an amateur.

In such an atmosphere as that in the Ohio of those days it was natural to be a Republican; it was more than that, it was inevitable that one should be a Republican; it was not a matter of intellectual choice, it was a process of

biological selection. The Republican party was not a faction, not a group, not a wing, it was an institution like those Emerson speaks of in his essay on Politics, rooted like oak-trees in the center around which men group themselves as best they can. It was a fundamental and self-evident thing, like life, and liberty, and the pursuit of happiness, or like the flag, or the federal judiciary. It was elemental, like gravity, the sun, the stars, the ocean. It was merely a synonym for patriotism, another name for the nation. One became, in Urbana and in Ohio for many years, a Republican just as the Eskimo dons fur clothes. It was inconceivable that any self-respecting person should be a Democrat. There were, perhaps, Democrats in Lighttown; but then there were rebels in Alabama, and in the Ku-klux Klan, about which we read in the evening, in the Cincinnati *Gazette*.

One of the perplexing and confounding anomalies of existence was the fact that our neighbor, Mr. L——, was a Democrat. That fact perhaps explained to me why he walked so modestly, so unobtrusively, in the shade, so close to the picket fences of Reynolds Street, with his head bowed. I supposed that, being a Democrat, it was only natural for him to slink along. He was a lawyer and a gentleman; my grandfather spoke with him, but from my mind I could never banish the fact that he was a Democrat, and to explain his bent, thoughtful attitude I imagined another reason than the fact that he was a meditative, studious man.

Lawyers, of course, were Republicans, else how could they deliver patriotic addresses on Decoration Day and at the reunions of the 66th regiment? It was natural for a young man to be a lawyer, then to be elected prosecuting attorney, then to go to the legislature, then to congress, then—governor, senator, president. They could not, of course, go any more to war and fight for liberty; that distinction was no longer, unhappily, possible, but they could be Republicans. The Republican party had saved the Union, won liberty for all men, and there was nothing left for the patriotic to do but to extol that party, and to see to it that its members held office under the government.

In those days the party had many leaders in Ohio who had served the nation in military or civil capacity during the great crisis; scarcely a county that had not some colonel or general whose personality impressed the popular imagination; they were looked up to, and revered, and in the political campaigns their faces, pale or red in the flare of the torches of those vast

and tumultuous processions that still staged the political contest in the terms of war, looked down from the festooned platforms in every public square. And yet they were already remote, statuesque, oracular, and there was the reverent sense that somehow placed them in the ideal past, whose problems had all been happily solved, rather than in the real present.

V

But up in the northwestern part of the state, still referred to, even in days so late as those, with something of the humorous contempt that attached to the term, as the Black Swamp, there had risen a young, fiery, and romantic figure who ignored the past and flung himself with fierce ardor into a new campaign for liberty. His words fell strangely on ears that were accustomed to the reassurance that liberty was at last conquered, and his doctrines perplexed and irritated minds that had sunk into the shallow optimism of a belief that there were no more liberations needed in the world. It was not a new cry, indeed, that he raised, but an old one thought to have been stilled, and the standard he lifted in the Black Swamp was looked upon by many Ohioans as much askance as though it were another secession flag of stars and bars. Indeed, it had long been associated with the cause of the conquered South, because that section, by reason of its economic conditions, had long espoused the principle of Free Trade.

This young man was Frank Hunt Hurd, then the congressman from the Toledo district, and in that city, where my father was the pastor of a church, he had won many followers and adherents, though not enough to keep him continually in his seat in the House of Representatives.

He served for several alternate terms, the interims being filled by some orthodox nonentity, who was so speedily forgotten that there must have been an impression that for years our district was represented by this one man.

I had heard of him with that dim sense of his position which a boy has of any public character, but I had a real vivid conception of him after that Fourth of July when, during a citizens' celebration which must have been so far patriotic as to forget, for a time, partizanism, and to remember patriotism sufficiently to include the Democrats, I saw him conducted to the platform by our distinguished citizen, David R. Locke, whom the world knew as "Petroleum V. Nasby."

He delivered a patriotic oration, and anyone,—even though he were but a wondering boy quite by chance in attendance, standing on the outskirts of

the crowd, following some whim which for a while kept him from his sports,—anyone who ever heard Frank Hurd deliver an oration never forgot it afterward.

I have no idea now what it was he said, perhaps I had as little then, but his black hair, his handsome face, his beautiful voice, and the majestic music of his rolling phrases were wholly and completely charming. He was explicitly an orator, a student of the great art, and he formed his orations on the ancient Greek models, writing them out with exordium, proposition, and peroration, and while he did not perhaps exactly commit them to memory, he, nevertheless, in the process of preparing them, so completely possessed himself of them that he poured forth his polished sentences without a flaw.

His speech on Free Trade, delivered in the House of Representatives, February 18, 1881, remains the classic on that subject, ranking with Henry Clay's speech on "The American System," delivered in the Senate in 1832. In that address Frank Hurd began with the phrase, "The tariff is a tax," which acquired much currency years after when Grover Cleveland used it.

Everyone, or nearly everyone, told me of course that Frank Hurd was wrong, if he was not, indeed, wicked, and the subject possessed a kind of fascination for me. In thinking of it, or in trying to think of it, I only perplexed myself more deeply, until at last I reached the formidable, the momentous decision of taking my perplexities to Frank Hurd himself, and of laying them before him.

I was by this time a youth of eighteen, and in the summer when he had come home from Washington I somehow found courage enough to go to the hotel where he lived, and to inquire for him. He was there in the lobby, standing by the cigar-stand, talking to some men, and I hung on the outskirts of the little group until it broke up, and then the fear I had felt vanished when he turned and smiled upon me. I told him that I wished to know about Free Trade, and since there was nothing he liked better to talk about, and too, since there were few who could talk better about anything than he could talk about the tariff, we sat in the big leather chairs while he discoursed simply on the subject. It was the first at several of these conversations, or lessons, which we had in the big leather chairs in the lobby of the old Boody House, and it was not long until I was able, with a

solemn pride, to announce at home that I was a Free-Trader and a Democrat.

It could hardly have been worse had I announced that I had been visiting Ingersoll, and was an atheist. Cleveland was president, and in time he sent his famous tariff reform message to Congress, and though I could not vote, I was preparing to give him my moral support, to wear his badge, and even, if I could do no more, to refuse to march in the Republican processions with the club of young men and boys organized in our neighborhood.

For the first time in my life I went on my vacation trip to Urbana that summer with reluctance, for the first time in my life I shrank from seeing my grandfather. The wide front door opened, and from the heat without to the dark and cool interior of the hall I stepped; I prolonged the preliminaries, I went through the familiar apartments, and out into the garden to see how it grew that summer, and down to the stable to see the horses; but the inevitable hour drew on, and at last, with all the trivial things said, all the personal questions asked, we sat in the living-room, cool in the half-light produced by its drawn shades, the soft air of summer blowing through it, the odd old Nuremberg furniture, the painting of the Nuremberg castle presented to my grandfather by the American artist whom he had rescued from a scrape, the tall pier glass, with the little vase of flowers on its marble base, and my grandfather in his large chair, his white waistcoat half unbuttoned and one side sagging with the weight of the heavy watch-chain that descended from its large hook, his white beard trimmed a little more closely, his white hair bristling as aggressively as ever—all the same, all as of old, like the reminders of the old life and all its traditions now to be broken and rendered forever and tragically different from all it had been and meant. He sat there looking at me, the blue eyes twinkling under their shaggy brows, and stretched forth his long white hand in the odd gesture with which he began his conversations. Conversations with him, it suddenly developed, were not easy to sustain; he pursued the Socratic method. If you disagreed with him, he lifted three fingers toward you, whether in menace or in benediction it was difficult at times to determine, and said:

“Let me instruct you.”

For instance:

“Do you know why Napoleon III. lost the battle of Sedan?” he might abruptly inquire.

“No, sir,” you were expected to say. (You always addressed him as “sir.”)

“Let me instruct you.”

Or:

“Do you know who was the greatest English poet?”

“No, sir,” you would say, or, perhaps, in those days you might venture, “Was it Shakespeare, sir?”

Then he would look at you and say:

“Let me instruct you.”

This afternoon then, after I had inspected the premises, noticed how much taller my cousin’s fir-tree was than the one I called mine (we had planted them one day, as little boys, years before), and after I had had a drink at the old pump, which in those days, before germs, brought up such cold, clear water, and after I had ascended to my cool room upstairs, and come downstairs again, and we had idly talked for a little while, as I said, he sat and looked at me a moment, and then said:

“Do you understand this tariff question?”

In those days I might have made the due, what I might term with reference to that situation, the conventional reply, and so have said:

“No, sir.”

In these days I am sure I should. But I hesitated. He had already stretched forth his hand.

“Yes, sir,” I said.

He drew in his hand, and for an instant touched with his long fingers the end of his large nose. I plunged ahead.

“I am in favor of Free Trade, sir.”

He did not extend his hand. He looked at me a moment, and then he said:

“You are quite right; we must support Mr. Cleveland in the coming contest.”

And then he sank back in his chair and laughed.

He was always like that, following the truth as he saw it, wherever it led him. But his active days were not many after that; ere long he was kicked by one of his horses, a vicious animal, half bronco, which he insisted on riding, and he was invalided for the rest of his days. He spent them in a wheel-chair, pushed about by a negro boy. It was a cross he bore bravely enough, without complaint, spending his hours in reading of politics, now that he could no longer participate in them, and more and more in reading verse, and even in committing it to memory, so that to the surprise of his family he soon replaced the grace he had always said at table with some recited stanza of poetry, and he took to cultivating, or to sitting in his chair while there was cultivated, under his direction, a little rose garden. He knew all those roses as though they were living persons: when a lady called,—if the roses were in bloom,—he would say to his colored house-boy:

“Go cut off Madame Maintenon, and bring her here.”

Then he would present Madame Maintenon to the caller with such a bow as he could make in his chair, and an apology for not rising. He was patient and brave, yet he did not like to feel the scepter passing from him, and he resented what he considered interferences with his liberties. One day when he had returned from a visit to an old friend, to whose home his colored boy had wheeled him, one of his daughters asked, in a somewhat exaggerated tone of propitiation:

“Well, Father, how did you find Mr. Hovey?”

“I found him master of his own house!” he blazed.

In 1896 he supported Mr. Bryan, and his Republican neighbors said:

“Poor old Major Brand! His mind must be affected!”

It was an effort for him to get out to the polls, but he went, beholding in that conflict, as he could in any conflict however confused and clouded, the issue of free men above any other issue. He did not get out much after that, even when that last summer the few remnants of the 66th regiment gathered in Urbana to hold the annual reunion. He could not so much as get up town to greet his old comrades, and they sent word that in the afternoon they would march in review before his home. He was wheeled out on the veranda, and there he sat while his old regiment, the fifty or sixty gray,

broken men, marched past. They saluted as they went by, and he returned the salutes with tears streaming down the cheeks where I had never seen tears before. And he said with a little choking laugh:

“Why, look at the boys!”

It was not long after, that six of us, his grandsons, bore him out of the old home forever. And on his coffin were the two things that expressed him best, I think—his roses and his flag.

VI

The incalculable influence of the spoken word and the consequent responsibility that weighs upon the lightest phrase have so long been urged that men might well go about with their fingers on their lips, oracular as presidential candidates, deliberating each thought before giving it wing. And yet, as Carlyle said of French speech, the immeasurable tide flows on and ebbs only toward the small hours of the morning. Though even then in certain quarters, the tide does not ebb, and in those hours truths are sometimes spoken—for instance, by newspaper reporters, who, their night's work done, turn to each other for relaxation and speak those thoughts they have not dared to write in their chronicles of the day that is done. The thought itself is only a vagrant, encountered along the way back to such an evening, when a reporter uttered two little words that acquired for me a profound significance.

“Oh, nothing.” Those were the exact words, just those two, and yet a negative so simple contained within itself such an affirmation of an awful truth, that I have never been able to forget them, though for a time I tried. Charlie R—— and I had gone one night, after the paper had gone to press, into a little restaurant in Chicago to get some supper. It was sometime in the year 1891, and, in our idle gossip, the hanging of the anarchists, then an event so recent that the reporters now and then spoke of it, had come up in our talk.

“Where were you when that occurred?” he asked.

“In Toledo,” I answered.

“What did people think of it there?”

“Of the hanging?”

“Yes.”

I looked at him, I suppose, in some astonishment. What did people in Toledo think of the hanging of the Chicago anarchists! Could any question have been more stupid, more banal? What did any people, anywhere, think

of it? What was customary, what was proper and appropriate and indispensable under such circumstances? In a word, what was there to do with anarchists except to hang them? Really, I was quite at a loss what to say. It seemed so superfluous, so ridiculous, as though he had asked what the people in Toledo thought of the world's being round, or of the force of gravity. More than superfluous, it was callous; he might as well have asked what Toledo people thought of the hanging of Haman, the son of Hammedatha the Agagite, or of the suicide of Judas Iscariot. And I answered promptly in their defense:

“Why, they thought it was right, of course.”

He had his elbows on the table and was lighting a cigarette, and as he raised the match, his dark face, with its closely trimmed pointed beard, was suddenly and vividly illuminated by the yellow flame. His eyes were lowered, their vision fixed just then on the interesting process of igniting the end of the cigarette. But about his puckered lips, about his narrowed eyes there played a little smile, faint, elusive, and yet of a meaning so indubitable that it was altogether disconcerting. And in that instant I wondered—it could not be! It was preposterous, absurd!

“Why?” I asked.

“Oh, nothing,” he said.

The end of the cigarette was glowing, little coils of fire in the tiny particles of tobacco; he blew out the match and the smile disappeared from his face with its ruddy illumination, and he tossed the charred stick into his coffee cup.

Were there, then, two opinions? Was it possible that anyone doubted? When *anarchists* were in question! Still, on that kindly face before me there lingered the shadow of that strange expression, inscrutable, perplexing, piquing curiosity. And yet by some strange, almost clairvoyant process, it had gradually acquired the effect of a persistent, irresistible and implacable authority, in the presence of which one felt—well, cheap, as though there were secrets from which one had been excluded, as though there were somewhere in this universe a stupendous joke which alone of all others one lacked the wit to see. It gave one a disturbed, uneasy sensation, a *mauvaise honte*.

The innate sense of personal dignity, the instinct to retire into one's self, the affectation of repose and self-sufficiency which leads one lightly to wave aside a subject one does not understand, to pass it over for other and more familiar topics—these were ineffectual. Curiosity perhaps in a sense much less refined than that in which Matthew Arnold considered it when he exalted it to the plane of the higher virtues, broke down reticence, and, at last I asked, and even begged my companion to tell me what he meant. But he was implacable; he had reached, it appeared, a stage of development in which the opinions of others were of no consequence; an altitude from which he could regard the race of men impersonally, and permit them to stumble on in error, without the desire to set them right. It was quite useless to question him, and in the end the only satisfaction he would give me was to say, with an effort of dismissing the subject:

“Ask some of the boys.”

For a young citizen to whom society is yet an illusion, lying, in Emerson's figure, before him in rigid repose, with certain names, men and institutions rooted like oak-trees to the center, round which all arrange themselves the best they can, to have one of those oak-trees torn violently up by the roots, is to experience a distinct shock. And by two words, and an expression that played for an instant in lowered eyes, and about lips that were more concerned just then with the flattened end of a fresh cigarette than the divulgence of great truths! Yes, decidedly a shock, to leave one shaken for days. If there were any doubt as to what to do with anarchists, what was the use of going on with the study of the law? I went out from that cheap little restaurant in Fifth Avenue, into Chicago's depressing midnight streets—and the oak tree never took root again. For, as Charlie R—— had lightly suggested, I asked the boys, and by the boys he meant, of course, the reporters.

They were boys in spirit, though in the knowledge of this world they were as aged men, some of whom had seen so much of life that they were able to dwell with it only by refusing any longer to accept it seriously. They formed in that day an unusual group, gathered in the old Whitechapel Club, and many of their names have since become known to literature. They, or most of them, had worked on the anarchist cases, from the days of the strike in McCormick's reaper works, down to the night when the vivid pen of Charlie Seymour could describe the spark that soared in a parabolic curve

from the alley into Haymarket Square, and then to the black morning of the hanging; and they knew.

It was all very simple, too. If it were not for the tragedy, and the wrong that is so much worse than any tragedy, one might almost laugh at the simplicity. It shows the power of words, the force of phrases, the obdurate and terrible tyranny of a term. The men who had been hanged were called anarchists, when, as it happens, they were men, just men. And out of that original error in terminology there was evolved that overmastering fear which raved and slew in a frenzy of passion that decades hence will puzzle the psychologist who studies the mind of the crowd. And the student of ethics will find in the event another proof of the inerrancy and power of that old law of moral action and reaction, according to which hatred ceaseth not by hatred, but by love alone. It may be found stated accurately and simply in the Sermon on the Mount, and there is still hope that Christendom, after another thousand years or so, may discover it, and drawing therefrom the law of social relations, apply it to human affairs, and so solve the problems that trouble and perplex mankind.

VII

In speaking of the group of newspaper writers who formed the Whitechapel Club, augmented as they were by artists, and musicians and physicians and lawyers, I would not give the impression that they were in any sense reformers, or actuated by the smug and forbidding spirit which too often inspires that species. They were, indeed, wisely otherwise, and they were, I think, wholly right minded in their attitude toward what are called public questions, and of these they had a deep and perspicacious understanding, and it will be easy to imagine that the cursory comments on passing phases of the human spectacle of such minds as those of Charles Goodyear Seymour, Finley Peter Dunne, George Ade, Ben King, Opie Reed, Alfred Henry Lewis, and his brother William E. Lewis, Frederick Upham Adams, Thomas E. Powers, Horace Taylor, Wallace Rice, Arthur Henry, and a score of others were apt to be entertaining and instructive, though they were uttered with such wit and humor that they were never intended to be instructive.

The club had been founded late in the eighties, and although it endured less than ten years, it still lives in the minds of newspaper and literary men as one of the most remarkable of Bohemian clubs. It had its rooms in the rear of a little saloon, conducted by Henry Koster in "newspaper alley," as Calhoun Place was more generally called, near the buildings of the *Chicago News* and the *Chicago Herald*, and it somehow gathered to itself many of the clever men of Chicago who were writing for the press, and a few intimate spirits in other lines of work, but of sympathetic spirit. For a while the club was nameless, but one afternoon a group were sitting in one of the rooms when a newsboy passed through the alley and cried: "All about the latest Whitechapel murder!" Seymour paused with a stein of beer half lifted, and said: "We'll call the new club the 'Whitechapel Club.'"

I suppose the grewsome connotations of the name led to our practice of collecting relics of the tragedies we were constantly reporting. When he came back from the Dakotas, where he had been reporting the Sioux War, Seymour brought back from the battles a number of skulls of Indians, and

blankets drenched in blood, which were hung on the walls of the club. From that time on it became the practice of sheriffs and newspaper men everywhere to send anything of that kind to the Whitechapel Club. The result was that within a few years it had a large collection of skulls of criminals, and some physicians discovered, or thought they discovered, differences between these skulls and the skulls of those who were not criminals, or, if they were, had not been caught at it.

These and the ropes of hangmen and the various mementos of crimes were the decorations of the club rooms, and on Saturday nights the hollow eyes of those skulls looked down on many a lively scene.

Admission to the club was obtained in a peculiar way. An applicant for membership had his name proposed, and it was then posted on a bulletin-board. He was on probation for thirty days, during which he had to be at the club at least five days in the week, in order to become acquainted with the members. Within that time any member could tear his name down, and that ended his candidacy. When his name finally came up for voting it required the full vote of the club to get him in.

And then we grew prosperous, and acquiring a building farther down the alley, we had it decorated in a somber manner, with a notable table, shaped like a coffin, around which we gathered. But the prosperity and the fame of the club led to its end. Rich and important men of Chicago sought membership. Some were admitted, then more, and as a result the club lost its Bohemian character, and finally disbanded.

VIII

Those who are able to recall the symposium of these minds will no doubt always see the humorous face of Charlie Seymour as the center of the coterie, a young man with such a *flair* for what was news, with such an instinct for word values, such real ability as a writer, and such a quaint and original strain of humor as to make him the peer of any, a young man who would have gone far and high could he have lived. An early fate overtook him, as it overtook Charlie Perkins and Charlie Almy and Ben King, but their fate had the mellowing kindness of the fact that all who knew them can never think of them, with however much regret, without a smile at some remembered instance of their unfailing humor.

When I mentioned them, I had fully intended to give some instances of that humor, but when it was not of a raciness, it was of such a rare and delicate charm, such a fleeting, evanescent quality, that it is impossible to separate it from all that was going on about it. It is easy enough to recall if not to evoke again the scene in which Ben King and Charlie Almy, sitting for three hours at a stretch, gave a wholly impromptu impersonation of two solemn missionaries just returned from some unmapped wilderness and recounting their deeds in order to inspire contributions; it is not difficult either to recall the slight figure of Charlie Seymour, with his red hair, his comedian's droll face, and to listen to him recounting those adventures which life was ever offering him, whether on one of his many journeys as a war correspondent to the region of the Dakotas when his friends among the Ogallalla and Brûlé Sioux were on the war-path again, or in some less picturesque tragedy he had been reporting nearer home—say a murder in South Clark Street; but, like so many of the keener joys of life, the charm of his stories was fleeting and gone with the moment that gave them.

His humor colored everything he wrote, as the humor of Finley Peter Dunne colored everything he wrote; and both were skilled in the art of the news story. We were all reading Kipling in those days, and Mr. Dunne was so clever in adapting his terse style to the needs of the daily reportorial life that when one night a private shot a comrade in the barracks at Fort Sheridan,

and Mr. Dunne was detailed to report the tragedy, he found it in every detail so exactly like Kipling's story "In the Matter of a Private," that he was overcome by the despair of having to write a tale that had already been told. He resisted the temptation, if there was any temptation, nobly and wrote the tale with a bald simplicity that no doubt enhanced its effect. He had not then begun to report the Philosophy of Mr. Dooley, though there was a certain Irishman in Chicago responsive to the name of Colonel Thomas Jefferson Dolan, whom, in his capacity of First Ward Democrat, Mr. Dunne frequently interviewed for his paper without the cramping influences of a previous visitation on the Colonel, and these interviews showed much of the color and spirit of those Dooley articles which later were to make him famous. He already knew, of course, and frequently enjoyed communion with the prototype of Mr. Dooley, Mr. James McGarry, who had a quaint philosophy of his own which Mr. Dunne one day rendered in a little article entitled "Mr. McGarry's Philosophy." The familiarity so wounded Mr. McGarry, however (he was a man of simple dignity and some sensitiveness), that Mr. Dunne thereafter adopted another name for the personage through which he was so long and so brilliantly to express himself, though it was not until after the Spanish War that the wide public was to recognize the talent which was already so abundantly recognized by Mr. Dunne's friends.

Charlie Seymour did not read as much as some of his companions; perhaps it was that fact that gave such an original flavor to what he wrote. His elder brother, Mr. Horatio W. Seymour, was the editor of the *Herald*, a newspaper famed for the taste and even beauty of its typographical appearance. It looked somewhat like the New York *Sun*, and under Mr. Seymour was as carefully edited. It was the organ of the Democracy in the northwest, and I suppose no direct or immediate influence was more potent in bringing on the wide Democratic victory in the congressional election of 1890 than the brilliant editorials on the tariff which Mr. Horatio Seymour wrote. They were, I remember, one of the delights of Frank Hurd, and it was through Hurd's influence that I was on the staff of that paper, reporting political events.

We were all more or less employed in reporting political events in that stirring year, and were kept busy in following and recording the sayings of the orators of both parties. It was characteristic of Mr. Dunne that after a

sober column giving the gist of a speech by Joseph B. Foraker, then lately governor, and afterward senator of Ohio, in which he waved the bloody shirt in the fiery manner which in those days characterized him, Mr. Dunne should have concluded his article sententiously: "Then the audience went out to get the latest news of the battle of Gettysburg."

But it was typical of Charlie Seymour that when he was detailed to accompany Thomas B. Reed, Speaker of the Billion Dollar Congress, he should have been so fascinated by the whiskers of the Illinois farmers who crowded about the rear platform of the Speaker's train, that he devoted half a column to a description of those adornments which long was celebrated as a classic in the traditions of Chicago reporters, to be recalled by them as they would recall, for instance, certain of the sayings of the late Joseph Medill.

Mr. Medill, of course, moved in an element far above that which was natural to the reporters, and the figure of the great editor of the *Tribune* filled the imagination completely. I used to like his low-tariff editorials, though they became high-tariff editorials during national campaigns, the rate of percentage of protection rising like a thermometer in the heat of political excitement,—a tendency the rate invariably reveals the nearer its objective is approached.

Mr. Medill, as was well known, was not an admirer of President Harrison, and there came down into our world an evidence of the fact in a story which Mr. Frank Brooks, a political writer on the *Tribune*, told us. It was at the time that President Harrison made one of those speaking tours which, beginning with President Johnson's "swing around the circle," have grown increasingly familiar to those of the electorate who observe their presidents and rush to the railway station to hear them speaking as they flash by. His managing editor had assigned Mr. Brooks to go to Galesburg, catch the President's special and make the journey with him, and just as he was giving directions as to the column or two which Mr. Brooks was to send in daily, Mr. Medill went shuffling through the editorial room, bearing a great pile of those foreign exchanges he was so fond of reading. The managing editor explained to Mr. Medill the mission he was committing to Mr. Brooks, and the old editor stood a moment looking at them, then raised his ear-trumpet and said in his queer voice:

“What did you say?”

“I said, I’d just been telling Mr. Brooks to go down to Galesburg to-night, catch the President’s special, and send us a column or so each night of his speeches.”

“Uh-huh,” said Mr. Medill, and then he drily added: “*What for?*”

IX

It was, of course, for a young correspondent who had an eager curiosity about life, an interesting experience to go on a journey like that, and it was with delight that, one snowy morning in the late autumn of that year, I left Chicago to go on a little trip down through Indiana with James G. Blaine. He was the secretary of state in President Harrison's cabinet, a position in which, as it turned out, he was unhappy, as most men are apt to be in public positions, though a sort of cruel and evil fascination will not let them give up the vain pursuit of them, vainest perhaps when they are won. When I reached the station that morning, Mr. Blaine was already there, walking up and down the platform arm in arm with his son Emmons. He was a gray man, dressed in gray clothes, with spats made of the cloth of his habit, and there was about him an air of vague sadness, which in his high countenance became almost a pain, though just then, in the companionship of the son he loved, there was, for a little while, the expression of a mild happiness, maybe a solace. His face was of a grayish, almost luminous pallor, and his silver hair and beard were in the same key. William Walter Phelps, then our minister to Germany, was traveling with him, and on our way down to South Bend the constant entrance of plain citizens from the other coaches into our car filled Mr. Phelps with a kind of wonder. Commercial travelers, farmers, all sorts and conditions of men, entered and introduced themselves to Mr. Blaine, and he sat and talked with them all in that simplicity which marks the manners, even if it has departed the spirit of the republic.

"It is a remarkable sight you are witnessing," said Mr. Phelps to us reporters, "a sight you could witness in no other country in the world. There is the premier of a great government, and yet the commonest man may approach him without ceremony, and talk to him as though he were nobody."

Fresh from his life at a foreign court, he was viewing events from that foreign point of view, perhaps thinking just then in European sequences, and since there was such simplicity, it was not hard for any of us to have conversation with our premier. Mr. Blaine had just come from Ohio where

he had been speaking in McKinley's district, and he understood the political situation so perfectly that he said, in the frankness of a conversation that was not to be reported, that McKinley was certain to be defeated; indeed he foresaw, though it required no very great vision to do that, the reverse that was to overtake his party in the congressional elections.

With my interest in the tariff question, which then seemed to me so fundamental, I did not lose the opportunity to ask Mr. Blaine about his reciprocity project: but after a while the conversation turned to more personal subjects. When he learned that I was from Ohio, he asked me suddenly if I could name the counties that formed the several congressional districts of the state. I could not, of course, do that, and I supposed no one in the world could do it or ever wish to do it; but he could, and with a naïve pride in the accomplishment he did, and then astounded me by saying that he could almost match the feat with any state in the Union.

It was the only enthusiasm the poor man showed all that day, and when we reached South Bend, there was a *contretemps* that might have afforded Mr. Phelps further food for reflection on the lack of ceremony in America. When the premier stepped off the train into the wet mass of snow that covered the dirty platform of the ugly little station, there was nowhere to be seen any evidence of a reception for the distinguished guest. There was an old hack, or 'bus, one of those rattling, shambling, moth-eaten vehicles that await the incoming train at every small town in our land, with a team of forlorn horses depressed by the weather or by life, but there was no committee of eminent citizens, no band, nothing. The scene was bare and bleak and cold, and the premier was plainly disgusted.

He stood there a moment and looked about him undecided, while Mr. Phelps with sympathetic concern displayed great willingness to serve, but was as helpless as his chief. The American sovereigns who were loafing by the station shed looked on with the reticent detachment which characterizes the rural American. And then the train slowly pulled out and left us, and Mr. Blaine cast at it a glance of longing and of reproach, as though in its sundering of the last tie with the world of comfort, he had suffered the final indignity. There seemed to be no course other than to take the 'bus, when suddenly a committee rushed up, out of breath and out of countenance, and with a chorus of apologies explained that they had met the wrong train, or

gone to another station, and so bore the premier off in triumph to dine at some rich man's house.

The day seemed to grow worse as it progressed, as days ill begun have a way of doing, and when the premier in the afternoon appeared at the meeting he was to address, his spirits had not improved, and even if they had, the meeting was one to depress the spirits of any man. It assembled in a barren hall, a kind of skating rink, or something of the sort, that would have served better for a boxing match. The audience was small, and standing about in the mud and slush they had "tramped in," to use our midwestern phrase, they displayed that bucolic indifference which can daunt the most exuberant speaker. It was in no way worthy of the man, and Mr. Blaine spoke with evident difficulty, and so wholly lacked spirit and enthusiasm that it was impossible for him to warm up to his subject. The speech was of that perfunctory sort which such an atmosphere compels, one of those speeches the speaker drags out, a word at a time, and is glad to be done with, and Mr. Blaine bore with his fates a little while, and then almost abruptly closed. He spoke on the tariff issue, and in defense of the McKinley Bill, and in marshaling the evidences of our glory and prosperity, all of which he attributed to the direct influence of the protective tariff system, he mentioned the number of miles of railroad that had been built, and even the increase in the nation's population! The speech and the occasion afforded an opportunity to a newspaper of the opposition, which in those days of silly partizanship, was not to be overlooked. I went back to the little hotel and wrote my story, and since I had all the while in my mind not only partizan advantage, but the smiles that would break out on the countenances of Charlie Seymour and Peter Dunne and the other boys gathered in the Whitechapel Club I did not minimise the effect of all those babies who had come to life as a result of the protective tariff, nor all those ironical difficulties the day had heaped upon the great man. It was not, perhaps, quite fair, nor quite nice, but it was as fair and as nice as newspaper ethics and political etiquette—if there are such things—require, and Mr. Blaine himself most have had some consciousness of his partial failure, some dissatisfaction with his effort, for I was just about to put my story on the wire at six o'clock when he appeared, with his rich host, and asked for me. I talked to him through the little wicket of the telegraph office, and the conversation began inauspiciously by the rich man's peremptorily commanding me to let him see my stuff; he wished, he said, to

“look it over”! I was not as patient with his presumption then as I think I could be now, for I had not learned that it was the factory system that produces such types, men who bully the women at home and the women and clerks and operatives in their shops, and I denied him the right, of course. He became very angry, and blustered through the little window, while the operator, an old telegrapher I had known in Toledo, sat behind me waiting to send the story clicking into Chicago on *The Herald’s* wire. After the rich man had exhausted himself, Mr. Blaine took his place at the window and in a mild and calm manner, asked me for my copy, saying that he was not well, and that he had made some slips in his speech which he did not care to have go to the country. It was those unfortunate or fortunate babies of the protective tariff system, and he said that the correspondent of a press association had agreed to make the excisions if I would do so, and he would consider it a favor if I would oblige him.

The charm of his manner had been on me all that day, and I had been feeling sorry for him all day, too, and I was sorrier for him then than ever, and half ashamed of some of the things I had written, but I explained to him that I had been sent by my paper in the hope that he might say something to the disadvantage of his own cause, and that my duty was to report, at least, what he had said. It was one of the hardest “noes” I ever had to say, and at last as he turned away, I regretted, perhaps more than he, and certainly more than he ever knew, that I could not let him revise his speech—since that is what most of us desire to do with most of our speeches.

When that campaign ended in the overthrow of the Republican majority in Congress, and I was sent to interview Ben Butterworth on the result, he said, in his humorous way: “The Lord gave, and the Lord hath taken away; blessed be the name of the Lord.” He was not altogether cast down by the result; in his place in Congress as a representative from a Cincinnati district he had risen to denounce the tariff, and so had his consolation. To me it seemed as if the people had at last entered the promised land, that that was the day the Lord had made for his people, but Mr. Butterworth could point out that our government was not so democratic as the British government, for instance, since it was not so responsive to the people’s will. Over there, of course, after such a reverse the government would have retired, and a new one would have been formed, but here the existing administration would remain in power two years longer, and then, even if it lost in the

presidential election over a year must elapse before a new Congress would convene, so that the millennium was postponed a good three years at least.

X

However, there were other interests and other delights with which to occupy one's self meanwhile, not the least of which was Mr. Butterworth himself. He was then out of Congress and in Chicago as Solicitor General of the World's Columbian Exposition, for which Chicago was preparing. For a while I was relieved from writing about politics, and assigned to the World's Fair, and there were so many distinguished men from all over the nation associated in that enterprise that it was very much like politics in its superficial aspects. There was, for instance, the World's Columbian Commission, a body created under the authority of Congress, composed of two commissioners from each state, appointed by its governor, and that body exactly the size of the senate was like it in personnel and character. The witty Thomas E. Palmer of Michigan was its president, and there were among its membership such men as Judge Lindsay, later senator from Kentucky, Judge Harris of Virginia, who looked like George Washington, and many other delightful and pungent characters. But no personality among them all was more interesting than Colonel James A. McKenzie, Judge Lindsay's colleague from Kentucky. He was tall and spare of frame, and his long moustache and goatee, and the great black slouch hat he wore made him in appearance the typical southerner of the popular imagination. He was indeed the typical southerner by every right and tradition, by birth, by his services in the Confederate army, by his stately courtesy, by his love of sentiment and the picturesque, by his wit and humor and eloquence, and his fondness for phrases. His humor sparkled in his kind blue eyes, and it overflowed in that brilliant conversation with which he delighted everyone about him; he could entertain you by the hour with his comments on all phases of that life in which he found such zest. He had been known as "Quinine Jim," because as congressman he had secured the reduction or the abolition of the duty on that drug, so indispensable in malarial lands. He was fond of striking phrases; he it was who had referred to Blaine as a Florentine mosaic; and his reference to Mrs. Cleveland as "the uncrowned queen of America" had delighted the Democratic convention at St. Louis which renominated her husband for the presidency. And again at Chicago,

on that memorable night of oratory in 1892 in seconding the nomination of Cleveland on behalf of Kentucky he stood on a chair and referred to his state as the commonwealth “in which, thank God, the damned lie is the first lick, where the women are so beautiful that the aurora borealis blushes with shame, where the whiskey is so good as to make intoxication a virtue, and the horses so fleet that lightning in comparison is but a puling paralytic.”

During one of many pleasant afternoons in the old Grand Pacific Hotel he began to tell us something about the chronic office holders to be found in the capital of his state, as in most states, and said: “If God in a moment of enthusiasm should see fit to snatch them to His bosom I should regard it as a dispensation of divine providence in which I could acquiesce with a fervor that would be turbulent and even riotous.” It was in this stream of exaggeration and hyperbole that he talked all the time, but with the coming of the winter of that year my opportunities of listening to him were cut off. I was sent to Springfield to report the sessions of the legislature. In the spring a bill was under discussion for the appropriation of a large sum in aid of the World’s Fair, and when the usual opposition developed among those country members who have so long governed our cities in dislike and distrust of the people in them, a delegation came down from Chicago to lobby for the measure. It was not long until it was evident that they were not making much headway; the difference, the distinction in their dress and manner, their somewhat too lofty style were only making matters worse. I took it upon myself to telegraph to James W. Scott, the publisher of *The Herald*, apprising him of the situation, and suggesting that Colonel McKenzie be sent down to reënforce them. I felt that he would perhaps understand the country members better because he understood humanity better, and besides, I wished to see him again and hear his stories and funny sayings. He came, and after he had associated with the members a day or so, and they had seen him draw Kentucky “twist” from the deep pocket of the long tails of his coat, and on one or two occasions had watched him gently pinch into a julep the tender sprigs of mint the spring had brought to Springfield, the appropriation for some reason was made. While he was there he said he wished to visit the tomb of Lincoln, and it was with pride that I got an open carriage and drove him, on an incomparable morning in June, out to Oak Ridge cemetery. He was in a solemn mood that morning; the visit had a meaning for him; he had fought on the other side in the great war, but he had a better conception of the character of the noble martyr than

many a northerner, especially of the day when that tomb was built, certainly a nobler conception of that lofty character than is expressed in Mead's cruel war groups—as though Lincoln had been merely some shoulder-strapped murderer of his fellow men! The Colonel had never been there before, and it was an occasion for him, and for me, too, though every time I went there it was for me an occasion, as my sojourn in Springfield was an opportunity, to induce those who had known Lincoln to talk about him.

The tomb has a chamber in its base where there were stored a number of things; the place, indeed, was a sort of cheap museum, and you paid to enter there and listen to an aged custodian lecture on the “relics,” and thrill the gaping onlooker with the details of the attempt to steal the body, and buy a book about it, if you were morbid and silly enough. The custodian began his lecture in that chamber, and then led you out into the sunlight again, and up on the base of the monument, and showed you the bronze fighters, and at last, took you down into the crypt, on the brow of the little down that overlooks the cemetery.

There at last Colonel McKenzie stood beside the sarcophagus and after a while the custodian came to the end of his rigmarole, and, by some mercy, was still. And I stood aside and looked at the old Confederate officer, standing there in that cool entrance, beside the very tomb of Lincoln. He stood with his arms folded on his breast, his tall form slightly bent, his big hat in his hand, and his white head bowed; he stood there a long time, in the perfect silence of that June morning, with thoughts, I suppose, that might have made an epic.

When at last he turned away and went around to the front of the monument, and we were about to enter our carriage, he turned, and still uncovered, over the little gate in the low fence that enclosed the spot, he paused and gave his hand to the old custodian, and said:

“Colonel, I wish to express to you my appreciation of the privilege I have had this morning of paying my respects at the shrine of the greatest American that ever lived.”

He said it solemnly and sincerely, and then, still holding the delighted old fellow's hand, he went on in profound gravity:

“And I cannot go away without expressing my sense of satisfaction in the eloquent oration you have delivered on this occasion. I was particularly impressed, sir, by its evident lack of previous thought and preparation.”

XI

That was the legislature which elected John M. Palmer to the United States Senate from Illinois. The election was accomplished only after a memorable deadlock of two months in which the Democrats of the general assembly stood so nobly, shoulder to shoulder, that they were called "The Immortal 101." When they were finally reënforced by the votes of two members elected as representatives of the Farmers' Alliance, and elected their man, they had a gold medal struck to commemorate their own heroism. They were not, perhaps, exactly immortal, but they did stand for their principles so stanchly that when they came to celebrate their victory, some of their orators compared them to those other immortals who held Thermopylæ.

Their principle was the popular election of United States senators, and they had a fine exemplar of democracy in their candidate. He had been nominated by a state convention, as had Lincoln, whom General Palmer had known intimately and had supported both for senator and president. He was the last of those great figures of Illinois whom the times immediately preceding the Civil War had so abundantly brought forth. He had commanded an army corps, he had been governor of his state, and in 1872 a presidential possibility in the Republican party. But he had turned to the Democrats, and after he became their senator, the first Illinois had known since Douglas, he became a presidential possibility in the Democratic party; that was in 1892, and whatever chances he had he destroyed himself by coming on from Washington and declaring for Grover Cleveland.

Four years later he was nominated for the presidency by the conservative faction of his party. He told me, when I was finishing my law studies under him, that he had never lost anything politically by bolting any of the several parties he had been in, but had usually gained in self respect by doing so; and if to the politician his whole career presented inconsistencies, to the man of principle he must seem wholly consistent and sincere. Certain it is that he followed that inward spirit which alone can guide a man through the perplexities of life, and so the principle with him came ever before the party.

He was a simple man with simple tastes, and his very simplicity was an element of that dignity which seemed to belong to other times than ours. The familiar figure of him along the quiet streets of Springfield was pleasing to men and to children alike; he would go along erectly and slowly under his great broad hat, a striking figure with his plentiful white hair, his closely trimmed chin whiskers, the broad, smoothly shaven upper lip distinguishing a countenance that was of a type associated with the earlier ideals of the republic, and the market basket he carried on his arm helped this effect. At home he was delightful; he had a viol, and used to play it, if there were not too many about to hear him, and if he were alone, sing a few staves of old songs, like "Darling Nelly Gray," and "Rosie Lee, Courting Down in Tennessee," and some of the old tunes he had learned in Kentucky as a boy. He liked poetry, if it were not of the introspective modern mood, and while I have heard of such extraordinary characters, I never believed the stories of their endurance, until I was able to discover in him one man who actually did read Sir Walter Scott's novels through every year. For the most part he had some member of his family read them to him, and he found in them the naïve pleasure of a child. I used to think I would remember the things he was always saying, and the stories he was always telling about Lincoln or Douglas or Grant, but I never could keep notebooks and the more imposing sayings have departed. Yet there flashes before the memory with the detail of a cinematograph that scene of a winter's evening when I entered the big living-room in his home and there found him with his wife before the great open fire. She was reading aloud to him from "Ivanhoe."

"Come in, Mr. Brand," he always addressed me by prefixing "Mr." to my Christian name. "Come in," he called in his hearty voice. "We are just storming a castle."

He lived on to the century's end, with a sort of gusto in life that never failed, I think, until that day when he attended the funeral of the last of his old contemporaries, General John M. McClernand, that fierce old warrior who had quarreled with Grant and lived on in Springfield until he could fight no more with anyone. Senator Palmer came home from his funeral amused by the fact that McClernand had been buried in the full uniform of a major-general, which he had not worn, I suppose, since Vicksburg. When

some member of Senator Palmer's household asked him if he should like to be buried in his uniform, he shook his head against it, but added:

"It was all right for Mac; it was like him."

But the end was in his thoughts; Oglesby was gone, and now McClernand as the last of the men with whom he had fought in the great crisis, and he went, pretty soon after that, himself. He had participated in two great revolutionary epochs of his nation, going through the one and penetrating though not so far into the second, a long span of life and experience.

It was perhaps natural that he should not have divined the implications of the second phase as clearly as he did those of the first; and though he had helped to inaugurate the new movement, the latest urge toward democracy in this land, he could not go so far. He was young in '56 and old in '96, and as we grow old we grow conservative, whether we would or not, and much, I suppose, in the same way.

XII

Senator Palmer's victory in 1891, however, had raised the hopes of the Illinois Democracy for 1892, and it was early in that year that I came to know one of the most daring pioneers of the neo-democratic movement in America, and the most courageous spirit of our times.

It was on a cold raw morning that I met Joseph P. Mahony, then a Democratic member of the State Senate, who said:

"Come with me and I'll introduce you to the next governor of Illinois."

It was the time of year when one was meeting the next governor of Illinois in most of the hotel corridors, or men who were trying to look like potential governors of Illinois, so that such a remark was not to be taken too literally; but I went, and after ascending to an upper floor of a narrow little building in Adams Street, we entered a suite of law offices, and there in a very much crowded, a very much littered and a rather dingy little private room, at an odd little walnut desk, sat John P. Altgeld.

The figure was not prepossessing; he wore his hair close-clipped in ultimate surrender to an obstinate cowlick; his beard was closely trimmed, too, and altogether the countenance was one made for the hands of the cartoonists, who in the brutal fury that was so soon to blaze upon him and to continue to blaze until it had consumed him quite, could easily contort the features to the various purposes of an ugly partizanship; they gave it a peculiarly sinister quality, and it is one of the countless ironies of life that a face, sad with all the utter woe of humanity, should have become for a season, and in some minds remained forever, the type and symbol of all that is most abhorrent. There was a peculiar pallor in the countenance, and the face was such a blank mask of suffering and despair that, had it not been for the high intelligence that shone from his eyes, it must have impressed many as altogether lacking in expression. Certainly it seldom or never expressed enthusiasm, or joy, or humor, though he had humor of a certain mordant kind, as many a political opponent was to know.

He had been a judge of the Circuit Court, and was known by his occasional addresses, his interviews and articles, as a publicist of radical and humanitarian tendencies. He was known especially to the laboring classes and to the poor, who, by that acute sympathy they possess, divined in him a friend, and in the circles of sociological workers and students, then so small and obscure as to make their views esoteric, he was recognized as one who understood and sympathized with their tendencies and ideals. He was accounted in those days a wealthy man,—he was just then building one of those tall and ugly structures of steel called “sky-scrapers,”—and now that he was spoken of for governor this fact made him seem “available” to the politicians. Also he had a German name, another asset in Illinois just then, when Germans all over the state felt themselves outraged by legislation concerning the “little red school-house,” which the Republicans had enacted when they were in full power in the state.

But my paper did not share this enthusiasm about him; it happened to be owned by John R. Walsh, and between Walsh and Altgeld there was a feud, a feud that cost Altgeld his fortune, and lasted until the day that death found him poor and crushed by all the tragedy which a closer observer, one with a keener prescience of destiny than I, might have read in his face from the first.

The feeling of the paper, if one may so personalize a corporation as to endow it with emotion, was not corrected by his nomination, and *The Herald* had little to say of him, and what it did say was given out in the perfunctory tone of a party organ. But as the summer wore on, and I was able to report to my editors that all the signs pointed to Altgeld’s election, I was permitted to write an article in which I tried to describe his personality and to give some impression of the able campaign he was making. Horace Taylor drew some pictures to illustrate it, and I had the satisfaction of knowing that it gave Altgeld pleasure, while at the same time to me at least it revealed for an instant the humanness of the man.

He sent for me—he was then in offices in his new sky-scraper—and asked if I could procure for him Horace Taylor’s pictures; he hesitated a moment, and then, as though it were a weakness his Spartan nature was reluctant to reveal, he told me that he intended to have my article republished in a newspaper in Mansfield, Ohio, the town whence he had come, where he had taught school, and where he had met the gracious lady who was his wife.

He talked for a while that afternoon about his youth, about his poverty and his struggles, and then suddenly lapsed into a silence, with his eyes fastened on me. I wondered what he was looking at; his gaze was disconcerting, and it made me self-conscious and uneasy, till he said:

“Where could one get a cravat like the one you have on?”

It was, I remember—because of the odd incident—an English scarf of blue, quite new. I had tried to knot it as Ben Cable of the Democratic National Committee knotted his, and it seemed that such a little thing should not be wanting to the happiness of a man who, by all the outward standards, had so much to gratify him as Altgeld had, and I said—with some embarrassment, and some doubt as to the taste I was exhibiting—“Why, you may have this one.”

In a moment his face changed, the mask fell, and he shook his head and said: “No, it would not look like that on me.”

After his election it was suggested to me that I might become his secretary, but I declined; in my travels over the state as a political correspondent I was always meeting aged men, seemingly quite respectable and worthy and entirely well meaning, who were introduced not so much by name as such and such a former governor’s private secretary; though like the moor which Browning crossed, they had

... names of their own,

And a certain use in the world, no doubt.

But I did take a position in the office of the secretary of state that offered the opportunity I had been longing for; I wished to finish my law studies, and, deeper down than any ambition for the bar, I was nourishing a desire to write, or if it does not seem too pretentious, an ambition in literature; and neither of these aims could well be accomplished, say from midnight on, after working all day on a morning newspaper.

It was a pleasant change. Springfield was lovely in the spring, which came to it earlier than it visited Chicago, and it was a relief to escape the horrid atmosphere of a great brutal city which as a reporter it had seemed my fate to behold for the most part at night. There was a sense of spaciousness in the green avenues of the quiet town, and there was pleasant society, and better perhaps than all there were two big libraries in the Capitol, the law

library of the Supreme Court and the state library; and after the noisy legislature had adjourned a peace fell on the great, cool stone pile that was almost academic.

Twice or thrice a day Governor Altgeld was to be seen passing through its vast corridors, his head bent thoughtfully, rapt afar from the things about him in those dreams of social amelioration which had visited him so much earlier than they came to most of his contemporaries. He had read much, and during his residence there the executive mansion had the atmosphere of intellectual culture. Whenever I went over there, which I did now and then with his secretary for luncheon or for an evening at cards, our talk was almost always of books.

We were all reading George Meredith in those days, and Meredith's greater contemporary, Thomas Hardy. "Tess" had just appeared, and it would be about that time that "Jude" was running as a serial in *Harper's Magazine*, though with many elisions and under its tentative titles of "The Simpleton" and "Hearts Insurgent"; and we all fell completely under a fascination which has never failed of its weird and mysterious charm, so that I have read all his works, down to his latest poems, over and over again. Hardy is, perhaps, the greatest intelligence on our planet now that Tolstoy, from whom he so vastly differed, is gone, and Altgeld's whole career might have served him, had he ever chosen to write of those experiences that are less implicit in human nature, and more explicit in the superficial aspects of public careers, as an example of his own pagan theory of the contrariety of human affairs and the spite of the Ironic Spirits.

I was reading, too, the novels of Mr. William Dean Howells, as I always have been whenever there was a moment to spare, and it was with a shock of peculiar delight and a sense of corroboration almost authoritative that I learned that Mr. Howells also had given voice to those very same profound and troubling convictions which Charlie R—— had set me on the track of two years before.

XIII

It was not in any one of Mr. Howells's novels or essays, except inferentially, that I learned this, but among some musty documents the worms were eating up away down in the foundations of the State House.

My work in the office of the secretary of state involved the care of the state's archives. The oldest of these were stored in a vault in the cellar of the huge pile, and the discovery had just been made that some kind of insect, which the state entomologist knew all about, was riddling those records with little holes,—piercing them through and through. In consequence a new vault was prepared, and steel filing cases were set up in it, and the records removed to this safer sanctuary.

It was a tedious and stupid task, until we came one day to file what were called the papers in the anarchist case. Officially they related to the application for the commutation of the sentences of the four men, Spies, Engel, Fischer, and Parsons, who had been hanged, and for the pardon of the three who were then confined in the penitentiary at Joliet, Fielden and Schwab for life, and old Oscar Neebe for fifteen years. Fielden and Schwab had been sentenced to death with the four who had been killed, but Governor Oglesby had commuted their sentences to imprisonment for life; Neebe's original sentence had been for the fifteen years he was then serving. The papers consisted of communications to the governor, great petitions, and letters and telegrams, many sent in mercy, and some in the spirit of reason, asking for clemency, many in a wild hysteria of fear, and the hideous hate that is born of fear, begging the governor to let "justice" take its course.

There were the names of many prominent men and women signed to these communications; among them was a request signed by many authors in England requesting clemency, but there was no appeal stronger, and no protest braver, than that in the letter which Mr. Howells had written to a New York newspaper analyzing the case and showing the amazing injustice of the whole proceeding. Mr. Howells had first gone, so he told me in after years, to the aged poet Whittier, whose gentle philosophy might have

moved him to a mood against that public wrong, and then to George William Curtis, but they had advised him to write the protest himself, and he had done so, and he had done it better and more bravely than either of them could have done out of the great conscience and the great heart that have always been on the side of the weak and the oppressed, with a mercy which when it is practised by mankind is always so much nearer the right and the divine than our crude and generally cruel attempts at justice can ever be.

But all these prayers had fallen on official ears that—to use a grotesque figure—were so closely pressed to the ground that they could not hear; and there was nothing to do, since they were so many and so bulky that no latest-improved and patented steel filing-case could hold them, but to have a big box made and lock them up in that for all time, forgotten, like so many other records of injustice, out of the minds of men.

But not entirely; injustice was never for long out of the mind of John P. Altgeld, and during all those first months of his administration he had been brooding over this notable instance of injustice, and he had come to his decision. He knew the cost to him; he had just come to the governorship of his state, and to the leadership of his party, after its thirty years of defeat, and he realized what powerful interests would be frightened and offended if he were to turn three forgotten men out of prison; he understood how partizanship would turn the action to its advantage.

It mattered not that most of the thoughtful men in Illinois would tell you that the “anarchists” had been improperly convicted, that they were not only entirely innocent of the murder of which they had been accused, but were not even anarchists; it was simply that the mob had convicted them in one of the strangest frenzies of fear that ever distracted a whole community, a case which all the psychologists of all the universities in the world might have tried, without getting at the truth of it—much less a jury in a criminal court.

And so, one morning in June, very early, I was called to the governor’s office, and told to make out pardons for Fielden, Neebe, and Schwab. “And do it yourself,” said the governor’s secretary, “and don’t say anything about it to anybody.”

I cannot tell in what surprise, in what a haze, or with what emotions I went about that task. I got the blanks and the records, and, before the executive clerk, whose work it was, had come down, I made out those three pardons, in the largest, roundest hand I could command, impressed them with the Great Seal of State, had the secretary of state sign them, and took them over to the governor's office. I was admitted to his private room, and there he sat, at his great flat desk. The only other person in the room was Dreier, a Chicago banker, who had never wearied, it seems, in his efforts to have those men pardoned. He was standing, and was very nervous; the moment evidently meant much to him. The Governor took the big sheets of imitation parchment, glanced over them, signed his name to each, laid down the pen, and handed the papers across the table to Dreier. The banker took them, and began to say something. But he only got as far as——

“Governor, I hardly”—when he broke down and wept. Altgeld made an impatient gesture; he was gazing out of the window in silence, on the elm-trees in the yard. He took out his watch, told Dreier he would miss his train—Dreier was to take the Alton to Joliet, deliver the pardons to the men in person, and go on into Chicago with them that night—and Dreier nervously rolled up the pardons, took up a little valise, shook hands, and was gone.

On the table was a high pile of proofs of the document in which Governor Altgeld gave the reasons for his action. It was an able paper; one might well rank it among state papers, and I suppose no one now, in these days, when so many of Altgeld's democratic theories are popular, would deny that his grounds were just and reasonable, or that he had done what he could to right a great wrong; though he would regret that so great a soul should have permitted itself to mar the document by expressions of hatred of the judge who tried the case. But perhaps it is not so easy to be calm and impersonal in the midst of the moving event, as it is given to others to be long afterward.

But whatever feelings he may have had, he was calm and serene ever after. I saw him as I was walking down to the Capitol the next morning. It was another of those June days which now and then are so perfect on the prairies. The Governor was riding his horse—he was a gallant horseman—and he bowed and smiled that faint, wan smile of his, and drew up to the curb a moment. There was, of course, but one subject then, and I said:

“Well, the storm will break now.”

“Oh, yes,” he replied, with a not wholly convincing air of throwing off a care, “I was prepared for that. It was merely doing right.”

I said something to him then to express my satisfaction in the great deed that was to be so wilfully, recklessly, and cruelly misunderstood. I did not say all I might have said, for I felt that my opinions could mean so little to him. I have wished since that I had said more,—said something, if that might have been my good fortune, that could perhaps have made a great burden a little easier for that brave and tortured soul. But he rode away with that wan, persistent smile. And the storm did break, and the abuse it rained upon him broke his heart; but I never again heard him mention the anarchist case.

XIV

The newspapers were so extravagant in their abuse of Governor Altgeld for his pardon of the anarchists that one not knowing the facts might have received the impression that the Governor had already pardoned most of the prisoners in the penitentiary, and would presently pardon those that remained, provided the crimes they had committed, or were said to have committed, had been heinous enough. The fact was that he issued no more pardons, proportionately at least, than the governors who preceded him, since notwithstanding the incessant grinding of society's machinery of vengeance the populations of prisons grow with the populations outside of them.

But partizanship was intense in those days; and the fact that Governor Altgeld was responsible for such a hegira from the Capitol at Springfield as Colonel McKenzie had longed to behold in the Capitol at Frankfort exacerbated the bitter feeling. The sentiment thus created, however, did increase the hopes of convicts, and the Governor was continually importuned by their friends—those of them that had friends, which was apt to be a pitifully small percentage of the whole number—to give them back their liberty. A few weeks after the pardons had been issued to the anarchists, George Brennan of Braidwood, then a clerk in the State House, told me a moving story of a young man of his acquaintance, who was then confined in the penitentiary at Joliet. The young man was dying of tuberculosis, and his mother, having no other hope than that he might be released to die at home, had made her appeal to Brennan, and he had seen to the filing of an application in due form, and now he asked me if I would not call the Governor's attention to it. I got out the great blue envelope containing the thin papers in the case—they were as few as the young man's friends—and took them over to the Governor, but no sooner had I laid them on his desk and made the first hesitating and tentative approach to the subject, than I divined the moment to be wholly inauspicious. The Governor did not even look at the papers, he did not even touch the big blue linen envelope, but shook his head and said:

“No, no, I will not pardon any more. The people are opposed to it; they do not believe in mercy; they love revenge; they want the prisoners punished to the bitterest extremity.”

I did not then know how right he was in his cynical generalization, though I did know that his decision was so far from his own heart that it was no decision at all, but merely the natural human reaction against all the venom that had been voided upon him, and I went away then, and told Brennan that we must wait until the Governor was in another mood.

Three or four days afterward I met the Governor one morning as he was passing through the rotunda of the State House, his head bent in habitual abstraction, and seeing me in what seemed always some subconscious way he stopped and said:

“Oh, by the way: that pardon case you spoke of the other morning—I was somewhat hasty I fear, and out of humor. If you’ll get the papers I’ll see what can be done.”

I knew of course what could be done, and knew then that it would be done, and I made haste to get the papers, which had been kept on my desk awaiting that propitious season which I had the faith to feel would come sooner or later, though I had not expected it to come quite so soon as that. I already anticipated the gladness that would light up Brennan’s good Irish face when I handed him the pardon for his friend, and I could dramatize the scene in that miner’s cottage in Braidwood when the pardoned boy flew to his mother’s arms. I intended to say nothing then to Brennan, however, but to wait until the pardon, signed and sealed, could be delivered into his hands, but as I was going across the hall to the Governor’s chambers I encountered Brennan, and then of course could not hold back the good news. And so I told him, looking into his blue eyes to behold the first ripple of the smile I expected to see spread over his face; but there was no smile. He regarded me quite soberly, shook his head, and said:

“It’s too late now.”

And he drew from his pocket a telegram, and, without any need to read it, said:

“He died last night.”

I took the papers back and had them filed away among those cases that had been finally disposed of, though that formality could not dispose of the case for me. The Governor was waiting for the papers, and at last when the morning had almost worn away I went over to his chambers to add another fardel to that heavy load which I had thought it was to be my lot that day to see lightened in the doing of an act of grace and pity. I told him as he sat alone at his desk, and the shade of sorrow deepened a moment on his pale face; but he said nothing, and I was glad to go.

The poor little tragedy had its impressions for me, and it was not long until I thought I saw in it the motive of a story, which at once I began to write. The theme was the embarrassment which a governor's conscience created for him because during a critical campaign he knew it to be his duty to pardon a notorious convict,—and I invented the situations and expedients to bear the tale along to that thrilling climax in which the governor was delivered out of his difficulty by the most opportune death of the convict, whom a higher hand could dramatically be said to have pardoned. I worked very hard on the story, and thought it pretty fine, and I sent it away at last to an eastern magazine. And then I waited, and at length a letter came saying that the story was well enough thought of in that editorial room to hold it until the editor-in-chief should return from Europe and hand down a final decision. I waited for weeks, and then one morning there on my desk was an envelope, ominous in its bigness; it was one of those letters you do not have to open in order to read them, because you know what they say; I knew my manuscript had come back. But when I opened the package, instead of the familiar slip of rejection, there was a letter; the editor liked the story, saw much in it, he said, but felt—and quite rightly I am sure—that its ending, with the convict dying in the very nick of time to save the governor from his embarrassment, was an evasion of the whole moral issue; besides, the conclusion was too melodramatic,—that was the word he used,—and would I change it?

The day after all was bright and cheerful; I remember it well, the sun lying on the State House lawns, their green dotted with the gold of dandelions, and the trees twisting their leaves almost rapturously in a sparkling air we did not often breathe on those humid prairies. And—though this has nothing whatever to do with the case, and enters it only as one of those incidents that linger in the memory—William Jennings Bryan was there that day,

calling on the Governor and the Secretary of State. He was then a young congressman from Nebraska, and he made a speech; but I was interested in the story far more than in politics or any speech about it, even the brilliant speech of a man who so soon, and with such remarkable *élan*, was to charge across the country on the hosts of privilege.

And I changed the story; I made that poor harried governor drain his bitter cup of duty to the lees, and gave the story an ending so remorselessly logical, so true to the facts and fates of human experience, that it might have been as depressing as one of Hardy's "Little Ironies"—could it have resembled them in any other way, which of course it could not, unless it were in that imitation with which the last author I had been reading was pretty sure though all unconsciously to be flattered. I changed the story, and sent the MS. back to the waiting editor; and it was returned as the string snaps back to the bow, with a letter that showed plainly that his interest in the tale had all evaporated. He had no regrets, it appeared, save one perhaps, since he concluded his letter by saying:

"Besides, you have destroyed the fine dramatic ending which the story possessed in its first draft."

The experience uprooted another of society's oak-trees for me, and it has continued to lie there, with the roots of its infallibility withering whitely in the air, though humanity still somehow continues to arrange itself about the institution as best it can. This process of uprooting, I suppose, goes on in life to the very end; but it is wholesome after all, since life grows somehow easier after one has learned that human beings are all pretty human and pretty much alike in their humanness, and the great service of literature to mankind has been, and more and more will be, I hope, to teach human beings this salutary and consoling lesson.

But, in no way despairing, I kept the manuscript by me, and when I was not trying to write other stories I was retouching it, until in the end its fate was almost that of the portrait which the artist in one of Balzac's stories kept on trying to improve until it was but a meaningless scumble of gray, with no likeness to anything in this universe. Its fate was not quite that bad, however, since it made for me a friend.

XV

The incident, like that on which the story itself was founded, occurred in the course of another effort to induce the Governor to save a poor wretch from the gallows. The autumn preceding, just when the World's Fair at Chicago was at its apogee, a half-crazed boy had assassinated Carter Harrison, the old mayor of that city, and had been promptly tried and condemned to death. The time for the execution of the sentence drew on, and two or three days before the black event I had a telegram from Peter Dunne and other newspaper friends in Chicago asking me to urge the governor, or the acting governor as it happened at that time to be, to commute the sentence to one of imprisonment for life. The boy, so the telegrams said, was clearly insane, and had been at the time of his crazy and desperate deed; his case had not been presented with the skill that might have saved him, or at least might have saved another in such a plight; there had been the customary hue and cry, the most cherished process of the English law, "and," Dunne concluded, "do get Joe Gill to let him off."

Joe Gill was Joseph B. Gill, the young Lieutenant-Governor of the state, and because Governor Altgeld was just then out of the state he was on the bridge as acting governor. Gill had been one of the Immortal 101, and as a representative had made a record in support of certain humane measures in behalf of the miners of the state. The newspaper correspondents had had pleasure in celebrating him and his work in their despatches, and because of his popularity among the miners, to say nothing of his popularity among the newspaper men, he had been nominated for lieutenant-governor on the ticket with Altgeld. There was in our relations a *camaraderie* which put any thought of presumption out of the question; besides, I was always so much opposed to the killing of human beings, especially to that peculiarly horrible form of killing which the state deliberately and in cold blood commits under the euphemism of "capital punishment," that I was always ready to ask any governor to commute a sentence of death that had been pronounced against anybody; so that it seemed a simple matter to ask Joe Gill, himself the heart of kindness, to save the life of this boy whose soul had wandered so desperately astray in the clouds which darkened it.

Early the next morning—the telegrams had come at night—I went over to the governor’s office, and the governor’s private secretary told me that Lieutenant-Governor Gill had not yet appeared, and as a good secretary, anxious to protect his chief, he asked:

“What do you want to see him about?”

“This Prendergast they’re going to hang in Chicago next Friday.”

At this a man sitting in the room near the secretary’s desk looked up with a sudden access of intense interest; and, starting from his chair and transfixing me with a sharp glance, he asked:

“What interest have you in the Prendergast case?”

“None,” I said, “except that I don’t want to have him, or anybody, hanged.”

On the man’s face, tired, with the expression of world-weariness life gives to the countenance behind which there has been too much serious contemplation of life, a face that seemed prematurely wrinkled, there suddenly appeared a smile as winning as a woman’s, and he said in a voice that had the timbre of human sympathy and the humor of a peculiar drawl:

“Well, you’re all right, then.”

It thereupon occurred to the governor’s secretary to introduce us, and so I made the acquaintance of Clarence Darrow. He had taken it upon himself to neglect his duties as the attorney of some of the railroads and other large corporations in Chicago long enough to come down to Springfield on his own initiative and responsibility to plead with the Governor for this lad’s life (he was always going on some such Quixotic errand of mercy for the poor and the friendless), and we retired to the governor’s ante-chamber to await the coming of Gill. We talked for a while about the Prendergast case, which might have had more sympathetic consideration had it not persisted as the Carter Harrison case in the mind of that public, which when its latent spirit of vengeance is aroused can so easily become the mob, but it was not long until I discovered that Darrow had read books other than those of the law, and for an hour we talked of Tolstoy and the other great Russians, and of Thomas Hardy and of Mr. Howells, to enumerate no more of the long catalogue of those realists whom we liked in common, and when I discovered that he actually knew Mr. Howells, knew him personally, as the saying is, I could feel that poor Prendergast, though I had never seen him in

my life, or scarcely ever thought of him until the night before, had done me one service at least, and it made me all the more anxious to save him.

When Joe Gill's tall Egyptian form came swinging into the room our talk of books was interrupted long enough to arrange for a hearing that afternoon, and then we resumed our talk, and it endured through luncheon and after, and I left him only long enough to have a conversation with Gill and to ask him as a sort of personal favor to an old friend to spare the boy's life.

At two o'clock the hearing was called. The reporters and the governor's secretary and George Brennan and I made the audience, and Gill sat up erectly in the governor's chair to hear the appeal. Darrow asked me the proper address for a governor, and I said since this was the lieutenant-governor I thought "Your Excellency" would be propitiative, and Darrow made one of those eloquent appeals for mercy of which he is the complete master. It moved us all, but the Lieutenant-Governor gathered himself together and refused it, and Darrow went back to Chicago to unfold those legal technicalities which make our law so superior to other forms in that they can stay the hand of its vengeance. He did not succeed in the end, and the boy was hanged, and murder has gone on in Chicago since, I understand, the same as before. But Darrow could not leave Springfield until midnight of that day, and we talked about books all the evening, and when he boarded his train he had in his valise the MS. of my story about another governor and another pardon, concerning which he was charged to answer a certain question to which all my doubts and perplexities could be reduced, namely: "Is it worth while, and if not, is there any use in going on and trying to write one that is?"

I had to wait almost as long for his decision as though he had been an editor himself, but when I called at his office in Chicago one morning in the autumn to get the MS., and he told me that his answer to my question was "yes," and that he would, if I agreed, send the story to Mr. Howells, I was as happy as though he had been an editor and had accepted it for publication. I could not agree to its being sent on to weary Mr. Howells, but took it back with me to Springfield, in hope, if not in confidence.

XVI

However, it has seemed to be my fate, or my weakness, which we too often confuse with fate, to vacillate between an interest in letters and an interest in politics, and after that year, whose days and nights were almost wholly given to studying law, I was admitted to the bar, and thereupon felt qualified to go out on the stump in the campaign that autumn and speak in behalf of the Democratic ticket. It was fun to drive out over Sangamon County in those soft autumn evenings, over the soft roads,—though if it rained they became too soft,—and to speak in schoolhouses to the little audiences of farmers, or of miners, on the iniquities of the tariff. If we had been a little more devoted to principle, perhaps, than we were to party, we might better have spoken of the iniquities of that Democratic minority in the Senate which had just completed its betrayal of us all and helped to perpetrate those iniquities, but when you belong to a party you are presumed to adjust yourself to what your representatives do, and to make the best of what generally is a pretty bad bargain. The bargain of those senators had been particularly bad, and so, instead of speaking in the tones of righteous indignation, we had to adopt the milder accents of apology and explanation, and it was difficult to explain to some of those audiences. There was more or less heckling, and now and then impromptu little debates, and sometimes when the meeting was done, and we started on the long ride back to town, we would find that the nuts had been removed from the axles of our carriage-wheels. Perhaps that argument was as good as any we had made, and it could not matter much anyway, since partizan speeches never convince anybody, and if they could, if they could do anything but deepen and intensify prejudice, whole batteries of the world's best orators in that year could not have overcome the vicious effects of that high betrayal, even though they had been led to the charge by Phocion and Demosthenes.

I suppose no greater moral wrong was ever committed in America. It had been bad enough that a policy of favoritism and advantage which appealed to so many because of the good luck of its reassuring name, had endured so long, as a sort of necessity in the development of a new continent; it had been bad enough that labor had first been lied to and then subjugated by the

lie, that women had been driven into mills, and children had been fed to the Moloch of the machines, and that on these sacrifices there had been reared in America an insolent plutocracy with the ideals of a gambler and the manners of a wine-agent. But when the workingmen had learned at last that the system did not “protect” them, and when thousands of young men in the land, filled with the idealism of youth, had recognized the lie and the hypocrisy, and hated them with a fine moral abhorrence, and had turned to the Democratic party and trusted it to redeem its promise to reform this evil, and had put it in power in the nation, only to have its leaders in the Senate betray them with the brutal cynicism such a cause as theirs demands, then there was committed a deed little short of dastardly. If that seems too strong a word, the deed was surely contemptible, and base enough to fill anyone with despair of the party and of the party system as it had been developed in America, though it has been understood by only two men so far as I know—M. Ostrogorski and Golden Rule Jones. It was enough to disgust anyone with politics altogether, and to forswear them and parties, too, although I never quite understood the philosophy of the attitude until, a few years later, Golden Rule Jones made it clear. He made many things clear, for he dropped the plummet of his original mind down, down, down, more profoundly into fundamental life than anyone I can think of.

To me, in those days, the tariff question had seemed entirely fundamental. I used to think that if we could but have civil-service reform, and tariff for revenue only, the world would go very well. The tariff question is not considered fundamental in these days, of course, so fast and so far past the Mugwumps has the world run, though everybody realizes its evil, and knows, or should know, that the notion of privilege on which tariffs are founded is quite fundamentally wrong, and every political party promises to reduce its rates, or revise them, or at least to take some measures against the lie.

The Democratic party, to be sure, redeemed itself later under the splendid leadership of President Wilson, but at that time, while we recognized the evil of the theory, we seemed to have sunk into a sordid acquiescence in the fact; everybody thought the tariff wrong, but nobody wished to have it done away with so long as there was a chance, to speak in modern American, for him to get in on the graft. The word “graft” was unknown in those days, by all save those thieves in whose argot it was found and devoted to its present

general use in the vocabulary. I suppose it is in the dictionary by this time. In any event, it is not strange that the word should have become so current, since for a while we made a national institution of the very thing it connotes.

There was, however, then and always, the labor question, and we were beginning to discover that that is fundamental, perhaps the one great fundamental,—aside from the complication of evil and good that is inherent and implicit in humanity itself,—since the burning question is and always will be how the work of the world is to be got done, and, what is a much more embarrassing problem, who is to do it. Many of the men who had been doing that work, or the heaviest of it, were striking in Illinois in those years.

The shots the Pinkertons had fired at Homestead echoed in the state; Senator Palmer had made a great speech about it in the Senate; and perhaps the tariff had something to do with that, since tariffs on steel have not been unknown. But there were shots fired nearer home, first in the strike among the men who were digging the drainage canal, then among the miners in the soft coal fields of the state, then the strike in the model town of Pullman, and the great railroad strike that grew out of it.

They called it the Debs Rebellion, and for a while it assumed some of the proportions of a rebellion, or at least it frightened many people in Illinois as much as a rebellion might have done. We were in the midst of all its alarms during that whole spring and summer, and down in the adjutant-general's office at the State House there was the stir almost of war itself, with troops being ordered here and there about the state, and the Governor harried and worried by a situation that presented to him the abhorrent necessity of using armed force. I was reading over the other day the report made to the War Department by my friend Major Jewett Baker, then a lieutenant in the Twelfth U. S. Infantry, detailed with the National Guard of Illinois; and in his clear and excellent account of all those confused events the scenes of those times came back: the long lines of idle freight cars, charred by incendiary flames; the little groups of men standing about wearing the white ribbons of the strike sympathizers, and the colonel of the regular army, in his cups at his club, who wished he might order a whole regiment to shoot them, "each man to take aim at a dirty white ribbon"; the regulars encamped on the lake front, their sentinels pacing their posts at the

quickstep in the rain; and then that morning conference in the mayor's office in Chicago, at which I was permitted to look on—what an interesting life it is to look on at!—when there appeared Eugene V. Debs, tall, lithe, nervous, leader of the strikers, his hair, what there was of it, sandy, but his head mostly bald, his eyes flashing, his mouth ready to smile, soon to go to Woodstock Jail, to emerge a Socialist, and become the leader of that party.

Major Baker's report shows, indirectly and by inference, that much of the criticism which the Governor endured was not justified, since he turned out all his troops as fast as local authorities asked for them. At any rate, he acted according to his democratic principles and to his conception of his duty. His principles were in a sense different from those of President Cleveland, with whom he disagreed in that notable instance when the President in his vigorous, practical way sent federal troops into Chicago; the Governor protested, as one of his predecessors in the governor's office, Senator Palmer, had protested when President Grant sent federal troops under Phil Sheridan into Chicago at the time of the great fire. Almost everybody who had any way of making his voice heard sided with President Cleveland, and the end of the strike was accredited to him. Doubtless the grim presence of those regular troops did overawe the hoodlums who had taken advantage of the strike to create disorder, but if the credit must go to armed force, the report by Major, or, as he was in those days, Lieutenant, Baker shows that that little company of the Illinois National Guard which ruthlessly fired into the mob at Loomis Street one night virtually ended the disorder.

Perhaps Governor Altgeld was willing to forego any "credit" for an act, which, however necessary to the preservation of order, demanded so many lives. I do not know as to that, but I do recall the expression which clouded his face that afternoon we arrived at Lemont, during the strike at the drainage canal. It occurred a year before the railway strike, and the Governor had gone to Lemont himself to make an investigation. He had asked Lieutenant Baker and me to go with him, and when we got off the train at Lemont, on the afternoon of a cheerless day, the crowds were standing aimlessly about, watching with a sullen curiosity the arrival of the militia. The soldiers were just then going into camp on the level rocks by a bridge across the canal and the Desplaines River—the bridge, according to

the military scientists, was, I believe, considered, for some mysterious reason, to be a strategic point.

The picture was one for the brush of Remington—those young blue-clad soldiers (it was before the days of our imperialism, and of the khaki our soldiers now imitate the British in wearing)—and Baker and I stood and gazed at it a moment, affected by the fascination there always is in the superficial military spectacle; and then, suddenly, we were aware that there was another and more dramatic point of interest, where a group stood about the body of a workman who had been shot in the riots of that morning. He was a foreigner, the clothes he wore doubtless those he had had on when he passed under the Statue of Liberty, coming to this land with what hopes of freedom in his breast no one can ever know. The wife who had come with him was on her knees beside him, rocking back and forth in her grief, dumb as to any words in a strange land whose tongue she could not speak or understand.

The reporters from the Chicago newspapers were there, and among them Eddie Bernard, an old Whitechapeler, who told us that the man had reached Lemont only a few days before, and had been happy in the job he had so promptly found in the new land of promise. And now, there he lay, shot dead. Bernard looked a moment, and then in the irony of a single phrase he expressed the whole drama as he said:

“The land of the free and the home of the brave!”

That was fundamental, anyhow, and politics were not going deeply into the question, except as such men as Altgeld did so, and even they were criticized sharply for attempting it. And one might well be disgusted with politics, then and always, and think of something that has the consolation of literature. The traffic of politicians, as Mr. George Moore somewhere says, is with the things of this world, while art is concerned with the dreams, the visions and the aspirations of a world beyond this. Though literature must some day in this land concern itself with that very question of labor, since it is with fundamental life that art must deal, and be true in its dealing.

XVII

Politics in those days—and not alone in those days either—were mean, and while I do not intend to say that this meanness bowed me with despair, it did fill me with disgust, and made the whole business utterly distasteful. Politics were almost wholly personal, there was then no conception of them as related to social life. An awakening was coming, to be sure, and the signs were then apparent, even if but few saw them. They were to most quite dim; but there were here and there in the land dreamers of a sort, who had caught a new vision. The feeling of it, the emotion, was to find expression in Mr. Bryan's great campaign in 1896; but there was then in Chicago a little group, men who had read Henry George, or, without reading him, had looked out on life intelligently and gained a concept of it, or perhaps had merely felt in themselves the stirrings of a new social instinct, and these saw, or thought they saw, the way to a better social order. They could not in those days gain so patient a hearing for their views as they have since, if any hearing they have had may after all be called patient; they were not so very patient themselves, perhaps, as men are quite apt not to be when they think they see as clearly as though a perpetual lightning blazed in the sky exactly what is the matter with the world, and have a simple formula, which, were it but tried, would instantly and infallibly make everything all right.

But these men were not in politics; some of them were too impractical ever to be, and the only man in politics who understood them at all was Altgeld. Generally, the moral atmosphere of politics was foul and heavy with the feculence of all the debauchery that is inseparable from privilege. The personnel of politics was generally low; and in city councils and state legislatures there was a cynical contempt of all the finer sentiments. It was not alone that provincialism and philistinism which stand so obdurately and with such bovine stupidity in the way of progress; there was a positive scorn of the virtues, and the alliance between the lobbyists and the lawyers of the great corporation interests on the one hand, and the managers of both the great political parties on the other, was a fact, the worst feature of which was that no one seemed to care, or if a few did care, they did not know what

to do about it. It was a joke among the newspaper men, who had little respect for the men who filled the positions of power and responsibility; the wonder was, indeed, after such association, that they had any respect left for anything in the world. Only the other day, reading Walt Whitman's terrific arraignment of the powers that were in control of the government of the nation in Buchanan's time, his awful catalogue of the sorts of men who composed the directorate of affairs,—it may be read in his prose works by those who wish,—I was struck by the similarity in this respect of that time with that which immediately preceded the newer and better time of the moral awakening in America. Altgeld was one of the forerunners of this time; and, in accordance with the universal law of human nature, it was his fate to be misunderstood and ridiculed and hated, even by many in his own party. He was far in the van in most ways, so far that it was impossible for his own party to follow him. It did not follow him in his opposition to a bill which was passed in the General Assembly to permit of the consolidation of gas companies in Chicago; the machines of the two parties were working well together in the legislature—in one of those bipartizan alliances which were not to be understood until many years later, and even then not to be understood so very clearly, since most of our cities have been governed since by such alliances, in the interest of similar gas companies and other public utility corporations—and when the Governor vetoed their evil measure, this same bipartizan machine sought to pass it over his veto, and none was more active in the effort than were the leaders of his own party in the House.

The supreme effort was made on the last night of the session, amidst one of those riots which mark the dissolution of our deliberative legislative bodies. The lobbyists for the measure were quite shameless that night, as they were on most nights, no doubt; almost as shameless as the legislators themselves. The House was in its shirt-sleeves; and there was the rude horse-play of country bumpkins; paper wads were flying, now and then some member sent hurtling through the hot air his file of printed legislative bills, and all the while there was that confusion of sound, laughter, and oaths and snatches of song, a sort of bedlam, in which laws were being enacted—laws that must be respected and even revered, because of their sacred origin. The leaders were serious, but worried; the expressions of their drawn, tense, nervous faces were unhappy in suspicion and fear, and, perhaps, because of uneasy consciences. The speaker sat above them, pale and haggard, rapping

his splintered sounding-board with a broken gavel, rapping persistently and futilely. And as the time drew near when the gas bill was to come on for consideration, the nervous tension was intensified, and evil hung almost palpably in the hot, close air of that chamber. Those who have had experience of legislative bodies, and have by practice learned something of political aëroscopy, can always tell when “something is coming off”; political correspondents have cultivated the sense, and that night they could have divined nothing good or pure or beautiful in that chamber (where the portraits of Lincoln and of Douglas hung), unless it were the mellow music, now and then, of the glass prisms of the chandeliers hanging high from the garish ceiling, as they tinkled and chimed whenever some little breeze wandered in from the June night.

And yet there was beauty there, moral beauty, as there ever is somewhere in man. Out on the edge of that bedlam, standing under the gallery on the Democratic side, near the cloak-room, stood a tall, lank man. You would have known him at once, anywhere, as an Egyptian, as we called those who had come from the Illinois land south of the old O. & M. railroad. He was uncouth in appearance; he wore drab, ill-fitting clothes, and at his wrinkled throat there was no collar. He was a member, sent there from some rural district far down in the southern end of the state; and all through the session he had been silent, taking no part, except to vote, and to vote, on most occasions, with his party, which, in those days, was the whole duty of man. This night would see the end of his political career, if his brief experience in an obscure position could be called a career, and he stood there, silently looking on, plucking now and then at his chin, his long, wrinkled face brown and solemn and inscrutable.

The old Egyptian stood there while the long roll was being called, and the crisis approached, and the nervous tension was a keen pain. And suddenly one of the gas lobbyists went up to him, there on the verge of the House, and began to talk with him. I had the story a good while afterwards from one of the whips, who, it seemed, knew all that had gone on that night. The lobbyist of course knew about the man, knew especially about his necessities, as lobbyists do; and he began to talk to the old fellow about them—about his poverty and his children, and he used the old argument which has been employed so long and so successfully with the rural members of all our legislatures, and has been the source of so much evil in

our city governments, that is, the argument that the bill concerned only Chicago, and that the folks down home would neither know nor care how he voted on it, and then—how much two thousand dollars would mean to him. As the lobbyist talked, there were various eyes that looked at him, waiting for a sign; they needed only a few votes then, and the roll-call was being delayed by one pretense and another, and the clock on the wall, inexorably ticking toward the hour of that legislature's dissolution, was turned back. The old fellow listened and stroked his chin, and then presently, when the lobbyist had done, he turned his old blue eyes on him and said:

“I reckon you’re right: I’m poor, and I’ve got a big family. And you’re right, too, when you say my people won’t know nor care: they won’t; they don’t know nor care a damn; they won’t send me back here, of course. And God knows what’s to come of my wife and my children; I am going home to them to-morrow and on Monday I’m going to hunt me a job in the harvest-field; I reckon I’ll die in the poorhouse. Yes, I’m going home—but”—he stopped and looked the lobbyist in the eye—“I’m going home an honest man.”

My friend the whip told me the story as a curious and somewhat confusing flaw in his theory that every man is for sale,—“most of them damned cheap,” he said,—and he thought it might make a plot for a story; like many men I have known he was incorrigibly romantic, and was always giving me plots for stories. Well, they failed to pass the bill over the Governor’s veto, and it was not long until another story was pretty well known in Illinois, about that Governor who that night was sitting up over in the executive mansion, awaiting the action of the general assembly. The story was that a large quantity of the bonds of the gas company had been placed at his disposal in a security vault in Chicago, in a box to which a man was to deliver him the key; all he had to do was to go take the bonds—and permit the bill to become a law. His answer, of course, was the veto—an offense as unpardonable as the pardoning of the anarchists; and no doubt many such offenses against the invisible power in the land were more potent in bringing down on his head that awful hatred than his mercy had been—though this was made to serve as reason for the hatred. Privilege, of course, hates mercy, too.

The old Egyptian went back home, and I have always hoped that he found a better job than he went to seek in the harvest-fields, and that he did not die at last to the poorhouse; but he was never heard of more, and it was not long until the Governor was driven from his office amid the hoots and jeers and the hissing of a venomous hatred such as nothing but political rancor knows, unless it be religious rancor. Yes, politics had got pretty low in those days, and its utter meanness, gradually revealed, was enough to cause one to despair of his country and his kind. Perhaps the old Egyptian in the legislature and the idealist in the governor's chair should have been enough to keep one from despairing altogether, though one honest old peasant cannot save a legislature any more than one swallow can make a summer. I do not mean to say that he was the only honest man in the legislature: there were many others, of course, but partizan politics prevented their honesty from being of much avail; or, at any rate, they did not control events. With the measurable advance in thought since that time, and the general progress of the species, we know now that men do not control events half so much as events control men; we do not know exactly what it is that does control men—that is, those of us who are not Socialists do not know.

Altgeld, at any rate, was disgusted with politics, as well he might have been, since they wrecked his fortune and broke his heart. And it was with relief, I know, that he said that morning,—almost the last he passed in the governor's chair,—as he and I were going up the long walk to the State House steps:

“Well, we're rid of this, anyway.”

XVIII

That peculiar form of human activity, or inactivity, known as getting a law practice, has been so abundantly treated on the printed page that I have not the temerity to add to the literature on the interesting subject. The experience is never dramatic, even if it is sometimes tragic, and it is so often tragic that there has seemed no other recourse for mankind than, by one of those tacit understandings on which our race gets through life, to view it as a comedy. It is no comedy, of course, to the chief actor, who is sustained only by his dreams, his illusions, and his ideals, and he may count himself successful perhaps, if, when he has lost his illusions, he can retain at least some of his ideals, though the law is too apt to strip him of both. However that may be, in my own experience in that sort there was an incident which made its peculiar impressions; indeed, there were several such incidents, but the one which I have in mind involves the perhaps commonplace story of Maria R——, which ran like a serial during those trying years.

I had intended to take up the practice of law in Chicago; I was quite certain that there I should set up my little enterprise, and this self-same certainty is perhaps the reason why I found myself back in Toledo, in a lonely little office in one of the new office buildings; sky-scrapers they were called in the new sense of metropolitan life that then began to pervade the town; they were not so very high, but they seemed high enough to scrape the low skies which arch so many of the grey days in the lake region. It was as long ago, I believe, as the time of Pythagoras that the law of the certain uncertainty of certainty was deduced for the humbling of human pride, and when my certainties with regard to Chicago proved all to be broken reeds, there were more gray days in that region of the intemperate zone than the meteorological records show. The little law office had a portrait of William Dean Howells on its walls, and in time the portraits of other writers, differing from those other law offices which prefer to be adorned with pictures of Chief Justice Marshall—a strong man, of course, who wrote some strong fiction, too, in his day—and of Hamilton and of Jefferson, indicating either a catholicity or a confusion of principle on the part of the

occupying proprietor, of which usually he is not himself aware. There were a few law-books, too, and on the desk a little digest of the law of evidence as affected by the decisions of the Ohio courts. I had the noble intention of mastering it, but I did not read in it very much, since for a long while there was no one to pay me for doing so, and I spent most of my hours at my desk over a manuscript of "The 13th District," a novel of politics I was then writing, looking up now and then and gazing out of the window at the blank rear walls of certain brick buildings which made a dreary prospect, even if one of them did bear, as I well remember, the bright and reassuring legend, "Money to Loan at 6 per cent."

There were not many interruptions at first, but after a while, when I had been appointed as attorney to a humane society, there were times when I had to lay my manuscripts aside. I felt it to be, in a way, my duty to long for such interruptions, but they usually came just at those times when I was most absorbed in my manuscript, so that their welcome, while affectedly polite, was not wholly from the heart. One of these intrusions resulted in a long trial before a justice of the peace; it was a case that grew out of a neighborhood quarrel, and all the inhabitants of the *locus in quo* were subpoenaed as witnesses. Such a case of course always affords an opportunity to study human nature; but this one, too, had the effect ultimately of bringing in many clients—and, as Altgeld had said, by way of advice to me, got people in the habit of coming to my office. Those witnesses acquired that habit, and since human nature seemed to run pretty high in that neighborhood most of the time, they got into a good deal of trouble; they were most of them so poor that they seldom got into anything else, unless it were the jail or the workhouse, and some of them were always ready to help send others of them to those places. Out of the long file of poor miserable creatures there emerged one day that Maria R—— of whom I spoke. She was a buxom young German emigrant, not long over from Pomerania, and her fair skin and yellow hair, and a certain manner she had, marked her out from all the rest. She came with her children one morning to complain of her husband's neglect of them; and to her, as to the whole body of society which thinks no more deeply than she did, it seemed the necessary, proper, and even indispensable thing to put Rheinhold—that was her husband's name—in jail (You should have heard her speak the name Rheinhold, with that delicious note in which she *grasséyé*d her r's.) There she sat, on the little chair by the window, with her stupidly staring

boy and girl at her knees, but in her arms the brightest, prettiest, flaxen-haired baby in the world, a little elf who was always smiling, and picking at her mother's nose or cheeks with her fat little fingers, and when she smiled, her mother smiled, too; it was the only time she ever did.

Rheinhold of course drank; he "mistreated" his children—that is, he did not buy them food. And since the Humane Society was organized and maintained for the explicit purpose of forcing people to be humane, even though it had to be inhumane to accomplish its purpose, the duty of its attorney was clear.

Its attorney just then felt in himself a rising indignation, moral of course, yet very much like a vulgar anger. To look at those children, especially at that baby of which Maria was so fond, much fonder it was plain to be seen than of the other two, and to think of a man not providing for them, was to have a rage against him, the rage which society, so remorselessly moral in the mass, bears against all offenders—the rage a good prosecutor must keep alive and flaming in his breast if he would nerve himself to his task and earn his fees and society's gratitude. And whom does society reward so lavishly as her prosecutors?

However, that is not the strain I would adopt just now. I felt that very rage in myself at that moment, and straightway went and had Rheinhold arrested and haled before a judge in the Municipal Court, charged with the crime of neglecting his children. I can remember his wild and bewildered look as he was arraigned that morning. The information was read to him, and he moved his head in such instant acquiescence that the judge, looking down from his bench, asked him if he wished to plead guilty, and he said "Yes." It seemed then that the case was to be quite easily disposed of, and the prosecutor might feel gratified by this instant success of his work; and yet Rheinhold stood there so confused, so frightened, with the court-room loungers looking on, that I said:

"He doesn't understand a word of all you are saying."

And so the judge entered a plea of "not guilty."

I knew a young lawyer with rather large leisure, and I asked him to defend Rheinhold. He was glad to do so, and we empaneled a jury and went at what Professor Wigmore calls the "high-class sport." We became

desperately interested of course, and for days wrangled according to the rules of the game over the liberty of the bewildered little German who scarcely knew what it was all about. Now and then he made some wild, inarticulate protest, but was of course promptly silenced by his own lawyer, or by the judge, or by the rules of evidence, which could be invoked—with a deep sense of satisfaction when the court ruled your way—to prevent him from telling something he had on his mind, something that to him seemed entirely exculpatory, something that would make the whole clouded situation clear if it could only find its way to the light and to the knowledge of mankind.

There was a witness against him, a tall, slender young German shoemaker, and it was against him that Rheinhold's outcries were directed. It was not clear just what he was trying to say, and there was small disposition to help him make it clear. His lawyer indeed seemed embarrassed, as though in making his incoherent interruptions Rheinhold were committing a *contretemps*; he must wait for his turn to testify, that all might be done in order and according to the ancient rules and precedents, and, in a word, as it should be done. Under the rules of evidence, of course, Rheinhold could not be allowed to express his opinion of the shoemaker; that was not permissible. The court could not be concerned with the passions of the human heart; this man before the court had a family, and he had neglected to provide food for it, and for such a condition it was written and printed in a book that the appropriate remedy was a certain number of days or months in the workhouse.

And so while Rheinhold silently and philosophically acquiesced, we tried him during one whole day, we argued nearly all the next day to the jury, and the jury stayed out all that night and in the morning returned a verdict of guilty. And Rheinhold was sent to the workhouse for nine months.

XIX

It was regarded as a triumph for the Humane Society,—the newspapers had printed accounts of the trial,—but it was a victory of which I felt pretty much ashamed; it all seemed so useless, so absurd, so barbarous, when you came to think of it, and what good it had done Maria, or anyone, it was difficult to determine. And so, before very long, I went to the workhouse board and had Rheinhold paroled, and he disappeared, vanished toward the West, and was never heard of more.

Meanwhile Maria lived on in her little house as best she could, and with what assistance we could provide her. The Humane Society helped a little, and my wife made some clothes for the baby, and a good-natured doctor in the neighborhood attended them when they were sick, which was a good deal of the time; and Maria seemed happy enough and contented, relying with such entire confidence on her friends that one cold night she sent for me in great urgency, and when I arrived she pointed to the stove, which was smoking and not doing its work in a satisfactory manner at all. I mended it and got the fire going, and they managed to survive the winter; and when spring came Maria appeared at the office and wished to apply to the courts for a divorce. It seemed as good a thing to do as any, and the evidence of Rheinhold's cruel neglect was by this time so conclusive that it was not much trouble to obtain a decree, especially as the case came before a delightful old bachelor judge who felt that if people were not divorced they ought to be; and after listening to two of the five or six witnesses I had subpœnaed he granted Maria her freedom.

And the next day she got married again. The bridegroom was that very shoemaker who had testified in Rheinhold's trial; he lived not far from Maria's late residence, and the happy event, as I learned then, was the culmination of a romance which had disturbed Rheinhold to such a degree that he had preferred to be anywhere rather than at home; and it seemed now—it was now indeed quite clear—that what he had been trying to explain at the time of the trial was that his fate was involved in the eternal triangle.

I do not know where Rheinhold is now; as I said, he was never heard of more, but I should like to present my apologies to him and to inform him that as a result of that expedition into the jungle of the law in search of justice I discovered that whatever other men might do, I could never again prosecute anyone for anything; and I never did. And I think that most of the attempts men make to do justice in their criminal courts are about as mistaken, about as absurd, about as ridiculous, as that solemn and supremely silly effort we made to deal with such a human complication by means of calf-bound law-books, and wrangling lawyers, and twelve stupid jurors ranged behind twelve spittoons. The whole experience revealed to me the beauty and the truth in that wise passage in Mr. Howells's charming book, "A Boy's Town":

"In fact, it seems best to be very careful how we try to do justice in this world, and mostly to leave retribution of all kinds to God, who really knows about things; and content ourselves as much as possible with mercy, whose mistakes are not so irreparable."

That passage, I think, contains a whole and entirely adequate philosophy of life; but I suppose that those who shake their heads at such heresies will be equally shocked to learn that Maria's second venture proved to be a remarkable success.

The shoemaker was a frugal chap,—the evidence discloses, I think, that he had been an unusually frugal lover,—and he had saved some money, which, it seems, he was determined not to spend on his fair one until he could develop some legal claim to her, but he treated her handsomely then, according to his taste and ability. He bought a house in another and better part of town, and he furnished it in a way that dazzled the eyes of those children who had been accustomed to bare floors and had never known the glories of golden oak and blue and yellow and red plush, ingrain carpets, and chenille hangings; and he clothed them all and sent them to school, and finally they all took his name, and, I think, forgot poor Rheinhold altogether. And so, in their new-found prosperity, they vanished out of my sight, and I heard of them no more for years. Then one day Maria's little daughter, grown into a tall young girl by that time, came to tell me that her mother was dead. Maria had started down town with her husband, on Christmas Eve, to buy the gifts for her children, and in the heavy snow that was falling a defective sidewalk was hidden, and Maria was thrown to the

ground and so hurt that she died. Her last words to her daughter had been, so the girl said, "See Mr. Whitlock; he'll do what should be done." Her heirs had a clear case against the city, but I had just been elected mayor that autumn and could not prosecute such a claim. Another lawyer did so, and got damages for the children, and even for the husband, and with these funds in a trust company's keeping the shoemaker educated all the children. And he wore about his hat the thickest hand of heavy crêpe that I ever saw.

It seemed to annoy, and in some cases even to anger, those whom I told of my resolution not to prosecute anyone any more. They would argue about it with me as if it made some real difference to them; if every lawyer and every man were so to decide, they said, who was to proceed against the criminals, who was to do the work of purifying and regenerating society? It has always been, of course, a most interesting and vital question as to who is to do the dirty work of all kinds in this world; but their apprehensions, as I could assure them, were all unfounded, since there are always plenty of lawyers, and always plenty of them who are not only willing but anxious to act as prosecutors, and to put into their work that energy and enthusiasm which the schools of efficiency urge upon the youth of the land, and to prosecute with a ferocity that could be no more intense if they had suffered some injury in their own persons from the accused. And there are even men who are willing, for the most meager salaries, to act as guards and wardens in prisons, and to do all manner of things, even to commit crimes, or at least moral wrongs, in order to put men into prison and keep them there, unless they can kill them, and there are plenty who are willing to do that, if only society provides them with a rope or a wire to do it with.

XX

There was, however, in Toledo one man who could sympathize with my attitude; and that was a man whose determination to accept literally and to try to practice the fundamental philosophy of Christianity had so startled and confounded the Christians everywhere that he at once became famous throughout Christendom as "Golden Rule Jones." I had known of him only as the eccentric mayor of our city, and nearly everyone whom I had met since my advent in Toledo spoke of him only to say something disparaging of him. The most charitable thing they said was that he was crazy. All the newspapers were against him, and all the preachers. My own opinion, of course, could have been of no consequence, but I had learned in the case of Altgeld that almost universal condemnation of a man is to be examined before it is given entire credit. I do not mean to say that there was universal condemnation of Golden Rule Jones in Toledo in those days: it was simply that the institutional voices of society, the press and the pulpit, were thundering in condemnation of him. When the people came to vote for his reelection his majorities were overwhelming, so that he used to say that everybody was against him but the people. But that is another story.

In those days I had not met him. I might have called at his office, to be sure, but I did not care to add to his burdens. One day, suddenly, as I was working on a story in my office, in he stepped with a startling, abrupt manner, wheeled a chair up to my desk, and sat down. He was a big Welshman with a sandy complexion and great hands that had worked hard in their time, and he had an eye that looked right into the center of your skull. He wore, and all the time he was in the room continued to wear, a large cream-colored slouch hat, and he had on the flowing cravat which for some inexplicable reason artists and social reformers wear; their affinity being due, no doubt, to the fact that the reformer must be an artist of a sort, else he could not dream his dreams. I was relieved, however, to find that Jones wore his hair clipped short, and there was still about him that practical air of the very practical business man he had been before he became mayor. He had been such a practical business man that he was worth half a million, a fairly good fortune for our town; but he had not been

in office very long before all the business men were down on him, and saying that what the town needed was a business man for mayor, a statement that was destined to ring in my ears for a good many years. They disliked him of course because he would not do just what they told him to,—that being the meaning and purpose of a business man for mayor,—but insisted that there were certain other people in the city who were entitled to some of his service and consideration—namely, the working people and the poor. The politicians and the preachers objected to him on the same grounds: the unpardonable sin being to express in any but a purely ideal and sentimental form sympathy for the workers or the poor. It seemed to be particularly exasperating that he was doing all this in the name of the Golden Rule, which was for the Sunday-school; and they even went so far as to bring to town another Sam Jones, the Reverend Sam Jones, to conduct a “revival” and to defeat the Honorable Sam Jones. The Reverend Sam Jones had big meetings, and said many clever things, and many true ones, the truest among them being his epigram, “I am for the Golden Rule myself, up to a certain point, and then I want to take the shotgun and the club.” I think that expression marked the difference between him and our Sam Jones, in whose philosophy there was no place at all for the shotgun or the club. The preachers were complaining that Mayor Jones was not using shotguns, or at least clubs, on the “bad” people in the town; I suppose that since their own persuasions had in a measure failed, they felt that the Mayor with such instruments might have made the “bad” people look as if they had been converted anyway.

It was when he was undergoing such criticism as this that he came to see me, to ask me to speak at Golden Rule Park. This was a bit of green grass next to his factory; he had dedicated it to the people’s use, and there under a large willow-tree, on Sunday afternoons, he used to speak to hundreds. There was a little piano which two men could carry, and with that on the platform to play the accompaniments the people used to sing songs that Jones had written—some of them of real beauty, and breathing the spirit of poetry, if they were not always quite in its form. In the winter these meetings were held in Golden Rule Hall, a large room that served very well as an auditorium, in his factory hard by. On the walls of Golden Rule Hall was the original tin sign he had hung up in his factory as the only rule to be known there, “Therefore whatsoever things ye would that men should do to you, do ye even so to them.” In the course of time every reformer, every

radical, in the country had spoken in that hall or under that willow-tree, and the place developed an atmosphere that was immensely impressive. The hall had the portraits of many liberal leaders and humanitarians on its walls, and a number of paintings; and in connection with the settlement which Jones established across the street the institution came to be, as a reporter wrote one day in his newspaper, the center of intelligence in Toledo.

Well then, on that morning when first he called, Jones said to me:

“I want you to come out and speak.”

“On what subject?” I asked.

“There’s only one subject,” he said,—“life.” And his face was radiant with a really beautiful smile, warmed with his rich humor. I began to say that I would prepare something, but he would not let me finish my sentence.

“Prepare!” he exclaimed. “Why prepare? Just speak what’s in your heart.”

He was always like that. Once, a good while after, in one of his campaigns, he called me on the telephone one evening just at dinner time, and said:

“I want you to go to Ironville and speak to-night.”

I was tired, and, as I dislike to confess, somewhat reluctant,—I had always to battle so for a little time to write,—so that I hesitated, asked questions, told him, as usual, that I had no speech prepared.

“But you know it is written,” he said, “that ‘in that hour it shall be given you what ye shall say.’”

I could assure him that the prophecy had somewhat failed in my case, and that what was given me to say was not always worth listening to when it was said; and then I inquired:

“What kind of crowd will be there?”

“Oh, a good crowd!” he said.

“But what kind of people?”

“What kind of people?” he asked in a tone of great and genuine surprise. “What kind of people? Why, there’s only one kind of people—just people, just folks.”

I went of course, and I went as well to Golden Rule Park and to Golden Rule Hall, and there was never such a school for public speaking as that crowded park afforded, with street cars grinding and scraping by one side of it and children laughing at their play on the swings and poles which Jones had put there for them; or else standing below the speaker and looking curiously up into his face, and filling him with the fear of treading any moment on their little fingers which, as they clung to the edge, made a border all along the front of the platform. And for a year or so after his death I spoke there every Sunday: we were trying so hard to keep his great work alive.

XXI

It was our interest in the disowned, the outcast, the poor, and the criminal that drew us first together; that and the fact that we are gradually assuming the same attitude toward life. He was full of Tolstoy at that time, and we could talk of the great Russian, and I could introduce him to the other great Russians. He was then a little past fifty, and had just made the astounding discovery that there was such a thing as literature in the world: he had been so busy working all his life that he had never had time to read, and the whole world of letters burst upon his vision all suddenly, and the glorious prospect fairly intoxicated him, so that he stood like stout Cortez, though not so silent, upon a peak in Darien.

He was reading Mazzini also, and William Morris and Emerson, who expressed his philosophy fully, or as fully as one man can express anything for another, and it was not long before Jones discovered an unusual facility for expressing himself, both with his voice and with his pen. The letters he wrote to the men in his shops—putting them in their pay-envelopes—are models of simplicity and sincerity, which show a genuine culture and have that beauty which is the despair of conscious art.^[A] He had just learned of Oscar Wilde's "Ballad of Reading Gaol," and he committed it to memory, or got it into his memory somehow, so that he would recite stanzas of it to anyone. He read Burns, too, with avidity, and I can see him now standing on the platform in one of his meetings, snapping his fingers as he recited:

A fig for those by law protected!
Liberty's a glorious feast!

But it was Walt Whitman whom he loved most, and his copy of "Leaves of Grass" was underscored in heavy lines with a red pencil until nearly every striking passage in the whole work had become a rubric. When anything struck him, he would have to come and tell me of it; sometimes he would not wait, but would call me up on the telephone and read it to me. I remember that occasion when his voice, over the wire, said:

"Listen to this [and he read]:

“The snag-tooth’d hostler with red hair, redeeming sins past and to come,
Selling all he possesses, traveling on foot to fee lawyers for his brother
and sit by him while he is tried for forgery.”

Then he laughed, and his chuckle died away on the wire. That expressed him; that was exactly what he would have done for a brother, exactly what he did do for many a brother, since he regarded all men as his brothers, and treated them as such if they would let him. He was always going down to the city prisons, or to the workhouses, and talking to the poor devils there, quite as if he were one of them, which indeed he felt he was, and as all of us are, if we only knew it. And he was working all the time to get them out of prison, and finally he and I entered into a little compact by which he paid the expenses incident to their trials—the fees for stenographers and that sort of thing—if I would look after their cases. Hard as the work was, and sad as it was, and grievously as my law partners complained of the time it took, and of its probable effect on business (since no one wished to be known as a criminal lawyer!), it did pay in the satisfaction there was in doing a little to comfort and console—and, what was so much more, to compel in one city, at least, a discussion of the grounds and the purpose of our institutions. For instance, if some poor girl were arrested, and a jury trial were demanded for her, and her case were given all the care and attention it would have received had she been some wealthy person, the police, when they found they could not convict, were apt to be a little more careful of the liberties of individuals: they began to have a little regard for human rights and for human life.

We completely broke up the old practice of arresting persons “on suspicion” and holding them at the will and pleasure of the police without any charge having been lodged against them; two or three trials before juries, the members of which could very easily be made to see, when it was pointed out to them a few times in the course of a three days’ trial, that there is nothing more absurd than that policemen should make criminals of people merely by suspecting them, and sending them to prison on that sole account, wrought a change. It annoyed the officials of course, because it interfered with their routine. It was no doubt exasperating to be compelled to stay in court two or three days and try some wretch according to the forms of law, just as if he were somebody of importance and consequence in the world, when they would so much rather have been out at the ball-

game, or fishing, or playing pinochle in the guard-room at police headquarters with the detail that had been relieved. Jones managed to get himself fined for contempt one day, and he immediately turned the incident to his own advantage and made his point by drawing out his check-book with a flourish, writing his check for the amount of his fine, and declaring that this proved his contention that the only crime our civilization punishes is the crime of being poor.

But he was most in his element when the police judge was absent, as he was now and then. In that exigency the law gave Jones, as mayor, the power to appoint the acting police judge; and when Jones did not go down and sit as magistrate himself, he appointed me; and we always found some reason or other for letting all the culprits go. The foundations of society were shaken of course, and the editorials and sermons were heavy with all the predictions of disaster; one might have supposed that the whole wonderful and beautiful fabric of civilization which man had been so long in rearing was to fall forever into the awful abyss because a few miserable outcasts had not been put in prison. But nothing happened after all; the poor *misérables* were back again in a few days, and made to resume their hopeless rounds through the prison doors; but the policemen of Toledo had their clubs taken away from them, and they became human, and learned to help people, and not to hurt them if they could avoid it; and that police judge who once fined Jones became in time one of the leaders in our city of the new social movement that has marked the last decade in America.

I learned to know a good many people in that underworld, many of whom were professed criminals, and there were some remarkable characters among them. I learned that, just as Jones had said, they were all people, just folks, and that they had so much more good than bad in them, that if some way could be devised whereby they might have a little better opportunity to develop the good, there was hope for all of them. Of course, in any effort to help them,—and our efforts were not always perhaps wholly wise,—we encountered that most formidable and fundamental obstacle to prison reform, the desire in the human breast for revenge, the savage hatred which is perhaps some obscure instinct of protection against the anti-social members of society: it stands forever in the way of all prison reform, and of ameliorations of the lot of the poor. It is that which keeps the barbarity of capital punishment alive in the world; it is that which makes every prison in

the land a hell, where from time to time the most revolting atrocities are practiced. Out of those experiences, out of the contemplation of the misery, the pathos, the hopelessness of the condition of those victims, I wrote "The Turn of the Balance." I was very careful of my facts; I was purposely conservative, and, forgetting the advice of Goethe, softened things down; as for instance, where I had known of cases in which prisoners had been hung up in the bull-rings for thirty days,—being lowered to the floor each night of course,—I put it down as eight days, and so on. And the wise and virtuous judges and the preachers and the respectable people all said it was untrue, that such things could not be. Since then there have been investigations of prisons in most of the states, with revelations of conditions far worse than any I tried to portray. And such things have gone on, and are going on to-day; but nobody cares.

XXII

And yet somebody after all did care about all those miserable souls who are immured in the terrible prisons which society maintains as monuments to the strange and implacable hatred in the breast of mankind; perhaps, in the last chapter of these vagrant memories, I allowed to creep into my utterance some of the old bitterness which now and then would taint our efforts, do what we might. And that is not at all the note I would adopt, though it used at times to be very difficult not to do so; one cannot, day after day, beat against the old and solid and impregnable wall of human institutions without becoming sore and sick in one's soul.

And there is no institution which society so cherishes as she does her penal institutions, and most sacrosanct of these are the ax, the guillotine, the garrote, the gibbet, the electric chair. We tried at each session of the legislature to secure the passage of a bill abolishing capital punishment, but the good people, those who felt that they held in their keeping the morals of the state, always opposed it and defeated it. Beloved and sacred institution! No wonder the ship-wrecked sailor, cast upon an unknown shore, on looking up and beholding a gallows, fell on his knees and said; "Thank God, I'm in a Christian land!"

Travelers visit prisons and places of execution, those historic spots where humanity made red blots on its pathway in the notion that it was doing justice, and always they sigh and shake their heads, beholding in those events only a supreme folly and a supreme cruelty.

All the executions, all the imprisonments of the past are seen to have been mistakes made by savages; there is not one for which to-day a word is uttered in excuse. All the Golgothas of the world have become Calvaries, where men go in pity and in tears in the hope that their regret may somehow work a retroactive expiation of the guilt of their cruel ancestors—and they rise from their knees and go forth and acquiesce in brutalities that are to-day different only in the slightest of degrees from those they bemoan.

And so all the other executions of death sentences, on subjects less distinguished, with no glimmer of the halo of romance, no meed of

martyrdom to illumine them, are seen to have been huge and grotesque mistakes of a humanity that at times gives itself over to the elemental savage lust of the blood of its fellows.

I do not say, of course, that there was any similarity between the offenses of those whom Jones and I were concerned about in those days and those striking figures who illustrate the history of the world and mark the slow spiral path of the progress of mankind; these were the commonest of common criminals, poor, mistaken, misshapen beings, somehow marred in the making.

It was my lot to defend a number of those who had committed murders, some of them murders so foul that there was nothing to say in their behalf. All one could say was in behalf of those whom one would save from committing another murder. But when you have come to know even a murderer, when day after day you have visited him in his cell, and have talked with him, and have seen him laugh and cry, and have had him tell you about his family, and that amazing complexity which he calls his life, when gradually you come to know him, no matter how undeserving he may be in the abstract, he undergoes a strange and subtle metamorphosis; slowly and gradually, without your being aware, he ceases to be a murderer, and becomes a human being, very much like all those about you. Thus, there is no such thing as a human being in the abstract; they are all thoroughly and essentially concrete.

I have wandered far in these speculations, but I hope I have not wandered too far to make it clear that Jones's point of view was always and invariably the human point of view; he knew no such thing as murderers, or even criminals, or "good" people, or "bad" people, they were all to him men and, indeed, brothers. And if society did not care about them, except in its desire to make way with them, Jones did care, and there were others who cared; the poor cared, the working people cared,—though they might themselves at times give way to the same elemental social rage,—they always endorsed Jones's leniency whenever they had the opportunity. They had this opportunity at the polls every two years, and they never failed him.

They did not fail him even in that last campaign of his, though every means known to man was tried to win them away from their peculiar allegiance. It was a strange campaign; I suppose there was never another like it in

America. As I think of it there come back the recollections of those raw spring nights; we held our municipal elections in the spring in those days, that is, spring as we know it in the region of the Great Lakes. It is not so much spring as it is a final summing-up and recapitulation of winter, a coda to a monstrous meteorological concerto as doleful as the allegro lamentoso of Tschaikovsky's "Sixth Symphony." There is nowhere in the world, so far as I know, or care to know, such an abominable manifestation of the meanness of nature; it is meaner than the meanness of human nature, entailing a constant struggle with winds, a perpetual bending to gusts of snow that is rain, or a rain that is hail, with an east wind that blows persistently off Lake Erie for two months, with little stinging barbs of ice on its breath—and then, suddenly, it is summer without any gentle airs at all to introduce its heat.

Jones was not very well that spring; and his throaty ailment was the very one that should have been spared such dreadful exposures as he was subjected to in that campaign. It was in the days before motor cars, and he and I drove about every night from one meeting to another in a little buggy he had, drawn by an old white mare named Molly, whose shedding of her coat was the only vernal sign to be detected anywhere. But Jones was so full of humor that he laughed at nearly everything—even his enemies, whom he never would call enemies. I can see him now—climbing down out of the buggy, carefully blanketing old Molly against the raw blasts, then brushing the white hairs from his front with his enormous hands, and running like a boy up the stairway to the dim little hall in the Polish quarter where the crowd had gathered. The men set up a shout when they saw him, and he leaped on the stage and, without waiting for the chairman to introduce him,—he scorned every convention that obtruded itself,—he leaned over the front of the platform and said:

"What is the Polish word for liberty?"

The crowd of Poles, huddling about a stove in the middle of the hall, their caps on, their pipes going furiously, their bodies covered with the strange garments they had brought with them across the sea, shouted in reply.

"*Wolność!*"

And Jones paused and listened, cocked his head, wrinkled his brows, and said:

“What was that? Say it again!”

Again they shouted it.

“Say it again—once more!” he demanded. And again they shouted it in a splendid chorus. And then——

“Well,” said Golden Rule Jones, “I can’t pronounce it, but it sounds good, and that is what we are after in this campaign.”

Now that I have written it down, I have a feeling that I have utterly failed to give an adequate sense of the entire spontaneity and simplicity with which this was done. It was, of course, tremendously effective as a bit of campaigning, but only because it was so wholly sincere. Five minutes later he was hotly debating with a working man who had interrupted him to accuse him of being unfair to union labor in his shops, and there was no coddling, no truckling, no effort to win or to please on his part, though he would take boundlessly patient pains to explain to anyone who really wanted to know anything about him or his official acts.

He was natural, simple and unspoiled, as naïve as a child, and “except ye become as little children ye cannot enter the kingdom of heaven.” He fully realized that the kingdom of heaven is within one’s self; he was not looking for it, or expecting it anywhere outside of himself, certainly he was not expecting it in a political campaign, or in the mere process of being elected to an office. He regarded his office, indeed, only as an opportunity to serve, and he had been in that office long enough to have lost any illusions he may ever have had concerning it; one term will suffice to teach a man that lesson, even though he seek the office again.

He was like an evangelist, in a way, and his meetings were in the broad sense religious, though he had long since left his church, not because its ministers were always condemning him, but for the same reasons that Tolstoy left his church. His evangel was that of liberty. He had written a number of little songs. One of them, set to the tune of an old hymn he had heard in Wales as a boy, had a noble effect when the crowd sang it. It was the *Gad im Deimle*. His wife, who is an accomplished musician, had transposed its minors into majors, and in its strains, as they were sung by the men in his shops,—and there was singing for you!—or by the people in

his political meetings, there was all the Welsh love of music, all the Welsh love of liberty, and a high and pure emotion in the chorus:

Ever growing, swiftly flowing,
Like a mighty river
Sweeping on from shore to shore,
Love will rule this wide world o'er.

It was his Welsh blood, this Celtic strain in him, that accounted for much that was in his temperament, his wit, his humor, his instinctive appreciation of art, his contempt for artificial distinctions, his love of liberty, his passionate democracy. Sitting one evening not long ago in the visitor's gallery of the House of Commons I saw the great Welsh radical, David Lloyd George, saw him enter and take his seat on the government bench. And as I looked at him I was impressed by his resemblance to someone I had known; there was a strange, haunting likeness, not in any physical characteristic, though there was the same Welsh ruddiness, and the hair was something like—but when Mr. Lloyd George turned and whispered to the prime minister and smiled I started, and said to myself: "It is Jones!"

XXIII

There was something pathetic in that last campaign, the pathos, perhaps, of the last phase. The long years of opposition had begun to tell: there was a strong determination to defeat him. He had not wished to stand again for the office, but, after the Toledo custom, there had been presented to him an informal petition, signed by several thousand citizens, asking him to do so, and he had consented. But when he wrote a statement setting forth his position—it was a document with the strong flavor of his personality in it—the newspapers refused to publish it; some of them would not publish it even as advertising, and he opened his campaign on the post-office corner, standing bare-headed in the March wind, his son Paul blowing a saxophone to attract a crowd. Many of his old supporters were falling away; it seemed for a time that he alone would have to make the campaign without any to speak for him on the stump; far otherwise than in that second campaign, when, after having been counted out in the Republican convention, he had run for the first time independently, a “Man Without a Party,” as he called himself; and thousands, themselves outraged by the treatment his own party had accorded him, in the spirit of fair play had rallied to his standard.

But now things had changed, and an incident which occurred at the beginning of this campaign was significant of the feeling toward him, though in all kindness it most not be told in detail. There was a prominent man in town who had publicly reviled him and criticized him and persecuted him, who had done that which cut him more deeply than all else, that is, he had impugned his motives and questioned his sincerity. In some human hunger for understanding, I suppose, Jones went to this man with his written statement of his position and asked him to read it, merely to read it. The fellow’s answer was to snatch the paper from Jones’s hand and tear it up in his face. It is easy to imagine what a man ordinarily would do in the face of such an amazing insult; surely, if ever, the time had come for the “shotgun and the club.” Mayor Jones was large and powerful, he had been reared in the oil fields, where blows are quick as tempers; he was athletic, always in training, for he took constant physical exercise (one of the counts against him, indeed, was that he slept out of doors on the roof of his back

porch, a bit of radicalism in those days, grown perfectly orthodox in these progressive times), and he was a Celt, naturally quick to resent insult, of a temperament prompt to take fire. But he turned away from the fellow, without a word.

He came to my office immediately afterward, and I saw that he was trying hard to master some unusual emotion. I shall never forget him as he sat there, telling me of his experience. After a little while his face broke into that beautiful smile of his, more beautiful than I had ever seen it, and he said:

“Well, I’ve won the greatest victory of my life; I have won at last a victory over myself, over my own nature. I have done what it has always been hardest for me to do.”

“What?” I asked.

He sat in silence for a moment, and then he said:

“You know, it has always seemed to me that the most remarkable thing that was ever said of Jesus was that when he was reviled, he reviled not again. It is the hardest thing in the world to do.”

The struggle over the renewal of the franchise grants to the street railway company had already begun, and the council had attempted to grant it the franchise it wished, renewing its privileges for another twenty-five years. When Mayor Jones vetoed the bill, the council prepared to pass it over his veto, and would have done so that Monday night had it not been for two men—Mayor Jones and Mr. Negley D. Cochran, the editor of the *News-Bee*, a newspaper which has always taken the democratic viewpoint of public questions. Mr. Cochran, with his brilliant gift in the writing of editorials, had called out the whole populace, almost, to attend the meeting of the council and to protest. The demonstration was so far effective that the council was too frightened to pass the street railway ordinance. The attorney for the street railway company was there, and when there was a lull in the noise, he sneered:

“I suppose, Mr. Mayor, that this is an example of government under the Golden Rule.”

“No,” replied Jones in a flash, “it is an example of government under the rule of gold.”

Unless it were because of his interference with the nefarious privileges of a few, one can see no reason why the press and pulpit should have opposed him. What had he done? He had only preached that the fundamental doctrine of Christianity was sound, and, as much as a man may in so complex a civilization, he had tried to practice it. He had taught kindness and tolerance, and pity and mercy; he had visited the sick, and gone to those that were in prison; he had said that all men are free and equal, that they have been endowed by their Creator with certain inalienable rights. He had said that it is wrong to kill people, even in the electric chair, that it is wrong to take from the poor, without giving them in return. He had not said these things in anger, or in bitterness; he had never been personal, he had always been explicit in saying that he, as a part of society, was equally to blame with all the rest for social wrongs. The only textbooks he ever used in his campaigns were the New Testament, the Declaration of Independence, and, of course, his beloved Walt Whitman. And yet the pulpits rang every Sunday with denunciations of him, and the newspapers opposed him. Why was it, because a man endorsed these old doctrines upon which society claims to rest, that society should denounce him?

I think it was because he was so utterly and entirely sincere, and because he believed these things, and tried to put them into practice in his life, and wished them to be more fully incorporated in the life of society. Society will forgive anything in a man, except sincerity. If he be sincere in charity, in pity, in mercy, in sympathy for the outcast, the despised, the imprisoned, all that vast horde of the denied and proscribed, still less will it forgive him, for it knows instinctively that the privileges men have or seek could not exist in a system where these principles were admitted as vital, inspiring force.

There was nothing, of course, for one who believed in the American doctrines to do but to support such a man, and when he appeared to be so utterly without supporters it seemed to be one's duty more than ever, though I own to having shrunk from such unconventional methods as Jones employed. That meeting at the post-office corner, for instance; someone might laugh, and in the great American self-consciousness and fear of the ridiculous, what was one to do? The opposition, that is, the two old parties, the Republican and Democratic, had nominated excellent men against Jones; the Republican nominee, indeed, Mr. John W. Dowd, was a man to

whom I had gone to school, an old and very dear friend of our family, a charming gentleman of cultivated tastes. It was not easy to be in the attitude of opposing him, but my duty seemed clear, and I went into the campaign with Jones, and we spoke together every night.

It was a campaign in which were discussed most of the fundamental problems of social life. A stranger, coming to Toledo at that time, might have thought us a most unsophisticated people, for there were speculations about the right of society to inflict punishment, the basis of property, and a rather searching inquiry into the subject of representative government. This was involved in the dispute as to the propriety of political machines, for the Republicans by that time had a party organization so strong that it was easily denominated a machine; it was so strong that it controlled every branch of the city government except the executive; it never could defeat Jones. There was a good deal said, too, about the enforcement of law, a subject which has its fascination for the people of my town.

XXIV

Besides these interesting topics there was the subject of municipal home rule. This had already become vital in Toledo because, a year or so before, the Republican party organization through its influence in the state, without having to strain its powers of persuasion, had induced the legislature to pass a special law which deprived the Mayor of Toledo of his control of the police force and vested the government of that body in a commission appointed by the governor of the state.

It had been, of course, a direct offense to Jones, and it was intended to take from him the last of his powers. He had been greatly roused by it; the morning after the law had been enacted he had appeared at my house before breakfast to discuss this latest assault upon liberty. The law was an exact replica of a law that had been passed for Cincinnati many years before, and that law had been sustained by the Supreme Court in a decision which had made it the leading case on that subject of constitutional law for a whole generation. Time and again it had been attacked and always it had been sustained; to contest the constitutionality of this new act seemed the veriest folly.

But Jones was determined to resist; like some stout burgomaster of an old free city of Germany he determined to stand out against the city's overlords from the rural districts, and he insisted on my representing him in the litigation which his resistance would certainly provoke. I had no hope of winning, and told him so; I explained the precedent in the Cincinnati case, and that only made him more determined; if there was one thing more than another for which he had a supreme and sovereign contempt it was a legal precedent. My brethren at the bar all laughed at me, as I knew they would; but I went to work, and after a few days' investigation became convinced that the doctrine laid down in that leading case was not at all sound.

When I came to this conviction, I induced Jones to retain additional counsel, one of the most brilliant lawyers at our bar, Mr. Clarence Brown, a man who, in addition to his knowledge of the law, could bring to the forum a charming personality, a wit and an eloquence that were irresistible. He,

too, set to work, and in a few days he was convinced, as I, that the precedent should be overthrown. Jones refused to turn over the command of the police to the new commissioners whom the governor appointed; they applied to the Supreme Court for a writ of mandamus, we tried the case, and we won, overthrowing not only the doctrine at the Cincinnati case, but the whole fabric of municipal legislation in the state, so that a special session of the legislature was necessary to enact new codes for the government of the cities.

Our satisfaction and our pride in our legal achievement was somewhat modified by the fact that the application of the same rule to conditions in our sister city of Cleveland had the effect, in certain cases then pending, of pulling down the work which another great mayor, Tom L. Johnson, was then doing in that city. It was even said that the Supreme Court had been influenced by the desire of Mark Hanna, Tom Johnson's ancient enemy in Cleveland, to see his old rival defeated. Some were unkind enough to say that Mark Hanna's influence was more powerful with the court, as at that time constituted, than was the logic of the attorneys who were representing Golden Rule Jones.

But however that may have been, the decision in that case had ultimate far-reaching effects in improving the conditions in Ohio cities, and was the beginning of a conflict that did not end until they were free and autonomous. In my own case it was the beginning of a study of municipal government that has grown more fascinating as the years have fled, a study that has led me to see, or to think that I see, the large hope of our democracy in the cities of America.

I regard it as Jones's supreme contribution to the thought of his time that, by the mere force of his own original character and personality, he compelled a discussion of fundamental principles of government. Toledo to-day is a community which has a wider acquaintance with all the abstract principles of social relations than any other city in the land, or in the world, since, when one ventures into generalities, one might as well make them as sweeping as one can.

Jones's other great contribution to the science of municipal government was that of non-partizanship in local affairs. That is the way he used to express it; what he meant was that the issues of national politics must not be

permitted to obtrude themselves into municipal campaigns, and that what divisions there are should be confined to local issues. There is, of course, in our cities, as in our land or any land, only one issue, that which is presented by the conflict of the aristocratic, or plutocratic, spirit and the spirit of democracy.

Jones used to herald himself as “a Man Without a Party,” but he was a great democrat, the most fundamental I ever knew or imagined; he summed up in himself, as no other figure of our time since Lincoln, all that the democratic spirit is and hopes to be. Perhaps in this characterization I seem to behold his figure larger than it was in relation to the whole mass, but while his work may appear at first glance local, it was really general and universal. No one can estimate the peculiar and lively force of such a personality; certainly no one can presume to limit his influence, for such a spirit is illimitable and irresistible.

He was elected in that last campaign for the fourth time, but he did not live very long. He had never, it seemed to me, been quite the same after the day when he had that experience of insult which he did not resent. “Draw the sting,” he used to counsel us when, in our campaign harangues, we became bitter, or sarcastic, or merely smart. He had supreme reliance on the simple truth, on the power of reasonableness. He never reviled again; he never sought to even scores. When he died the only wounds he left in human hearts were because he was no more. They understood him at last, those who had scoffed and sneered and abused and vilified, and I, who had had the immense privilege of his friendship, and thought I knew him,—when I stood that July afternoon, on the veranda of his home, beside his bier to speak at his funeral, and looked out over the thousands who were gathered on the wide lawn before his home,—I realized that I, too, had not wholly understood him.

I know not how many thousands were there; they were standing on the lawns in a mass that extended across the street and into the yards on the farther side. Down to the corner, and into the side streets, they were packed, and they stood in long lines all the way out to the cemetery. In that crowd there were all sorts of that one sort he knew as humanity without distinction,—judges, and women of prominence and women whom he alone would have included in humanity, there were thieves, and prize-fighters,—and they all stood there with the tears streaming down their faces.

There is no monument to Golden Rule Jones in Toledo; and since St. Gaudens is gone I know of no one who could conceive him in marble or in bronze. There is not a public building which he erected, no reminder of him which the eye can see or the hands touch. But his name is spoken here a thousand times a day, and always with the reverence that marks the passage of a great man upon the earth. And I am sure that his influence did not end here. Did not a letter come from Yasnaya Polyana in the handwriting of the great Tolstoy, who somehow had heard of this noble and simple soul who was, in his own way, trying the same experiment of life which the great Russian was making?

XXV

In the beginning, of course, it was inevitable that Jones should have been called a Socialist. I suppose he did not care much himself, but the Socialists cared, and promptly disowned him, and were at one with the capitalists in their hatred and abuse of him. He shared, no doubt, the Socialists' great dream of an ordered society, though he would not have ordered it by any kind of force or compulsion, but in that spirit which they sneer at as mere sentimentalism. He was patient with them; he saw their point of view; he had, indeed, the immense advantage of being in advance of them in his development. He saw Socialism not, as most see it, from the hither side, but from the farther side, as one who has passed through it; he was like a man who having left the dusty highway and entered a wood which he thinks his journey's end, suddenly emerges and from a hill beholds the illimitable prospect that lies beyond. Of course he could never endure anything so doctrinaire as Socialism, in the form in which he was accustomed to see it exemplified in the Socialists about him. He could not endure their orthodoxy, any more than he could endure the orthodoxy they were contending against. Their sectarianism was to him quite as impossible as that sectarianism he had known in other fields. Their bigotry was as bad as any. He saw no good to come from a substitution of their tyranny for any other of the many old tyrannies in the world. And naturally to one of his spirit the class hatred they were always inciting under the name of class consciousness was as abhorrent to him as all hatred was.

Sometimes the Socialists, with their passion for generalization, for labeling and pigeonholing everything in the universe, said he was an anarchist. The more charitable of them, wishing to sterilize the term and rid it of its sinister implication, but still insistently scientific, said he was a "philosophic" anarchist. That is a term too vague to use, though in one sense, I suppose, all good men are anarchists, in that they would live their lives as well without laws as with them. Jones himself would have scorned those classifications as readily as he would had anyone said he was a duke or an earl. "No title is higher than Man," he wrote once in a little campaign song. And he was that—a Man.

He would not join any society or, as he said, “belong” to anything. I have thought so often of what he said to a book agent one day. We were just on the point of leaving the Mayor’s office for luncheon, and the individual who wishes “just a minute” was inevitably there, blocking the way out of the office. He was indubitably a book agent; anyone who has a rudimentary knowledge of human nature can identify them at once, but this one had as his insinuating disguise some position as a representative of a Thomas Jefferson Memorial Association, and he was there to confer on the Mayor the honor of a membership in that society.

“And what books am I required to buy?” asked Jones.

“Well,” the agent said, “you are not required to buy any books, but, of course, a member of the association would naturally want Mr. Jefferson’s complete works.” Jones’s eyes were twinkling; “Mr.” Jefferson amused him immensely, of course.

“They are very popular,” the man went on, “many persons are buying them.”

“I don’t find the ideas in them very popular; certainly those in Mr. Jefferson’s greatest work are not popular; no one wants to see them adopted.”

“To which one of his works do you refer?” asked the agent.

“Why, the one that is best known,” said Jones, “its title is ‘The Declaration of Independence.’ I already have a copy of that.”

The poor fellow was conscious that his enterprise was not going very well, but he said, with a flourish of magnanimity:

“Oh, well, it’s immaterial to me whether you take the books or not, but of course you will wish to belong to the association?”

“But I already belong to the association in which Mr. Jefferson was chiefly interested,” said Jones.

“What is that, may I ask?” said the agent.

“The United States of America,” said Jones, “and as I am a member of that, I see no reason why I should join anything smaller.”

And then he laughed, and if there had been any uneasiness because of his gentle guying, it disappeared when he laid his hand on the agent's shoulder and looked into his eyes in that spirit of friendliness which enveloped him like an aureole.

He had a conception of unity that was far beyond his contemporaries, a conception that will be beyond humanity for many years. It was that conception which enabled him to see through the vast superstition of war, and the superstition of partizanship, and all the other foolish credulities that have misled the people in all times.

One evening, it was just at dark, we were leaving the mayor's office to walk home—we walked home together nearly every evening—and in the dusk a tramp, a negro, came up and asked him for the price of a night's lodging. The Mayor fumbled in his pockets, but he had no small change, he had only a five-dollar bill, but he gave this to the tramp and said:

“Go get it changed, and bring it back.”

The tramp took it and disappeared, and we waited. Jones talked on about other things, but I was interested in the tramp; my expectation of his return was far more uncertain than Jones's. But after a while the tramp did come back, and he poured out into the Mayor's hand the change in silver coin. The Mayor complained humanly of the heavy silver which the Secretary of the Treasury always sends out to us, so that the new one-dollar bills may go to New York City, and tumbled the money into his trousers pocket.

“But ain't you goin' to count it?” asked the negro in surprise.

“Did you count it?” asked Jones.

“Yes, suh, I counted it.”

“Was it all there, wasn't it all right?”

“Yes, suh.”

“Well, then, there's no need for me to count it, is there?”

The negro looked in wide white-eyed surprise.

“Did you take out what you wanted?” asked the Mayor.

“No, suh, I didn't take any.”

“Here, then,” said Jones, and he gave the man a half-dollar and went on.

There was no possible ostentation in this; it was perfectly natural; he was doing such things every hour of the day.

He had no need to stop there, in the dark, to impress me, his friend and intimate. I do him wrong even to stoop to explain so much. But I wonder how much good his confidence did that wandering outcast? How much good did it do to me? By the operation of the same law which brought that vagrant back to Jones’s side with all the money, I with my distrust, might have been treated far differently.

Or so, at least, it seems to me, and I tell this incident as one which proves the reverence Jones had for the great natural law of love. For the chief count in the indictment respectability brought against him was that he had no reverence for law. To see and hear them when they said this, one would have supposed that a council or legislature had never been corrupted in the land. It used to amuse Jones to reflect that his literal acceptance of the fundamental principle of Christianity should have been such a novel and unprecedented thing that it instantly marked him out from all the other Christians and made him famous in Christendom.

XXVI

I say famous, and perhaps I mean only notorious, for in the beginning many of his townsmen meant it as a reflection, and not a tribute. Some of them said it was but an advertising dodge, a bit of demagogism, but as Jones applied the rule to everybody, other explanations had soon to be adopted, and after he had employed it about the City Hall for two years the situation became so desperate that something had to be done. Controversy was provoked, and for almost a decade, Toledo presented the unique spectacle of a modern city in which this principle was discussed as though it were something newly discovered. Some seemed to think that Jones had invented it; they said it was absurd, that it really would not work. Of course most regarded it, as most now regard the Golden Rule, as a pretty sentiment merely, something for the children in Sunday-school. It is considered, of course, as any sophisticated person knows, as altogether impractical, and even silly and absurd.

To be sure, the clergymen were under some sort of professional necessity of treating it seriously, and they used to prepare profound papers, arranged in heads and subheads, with titles and subtitles, and after all the usual ostentatious preliminary examination of the grounds and the authorities, and with the appearance of academic fairness, in discussions that were formal, exact, redolent of the oil, bearing the hallmark of the schools, they would show that Jesus meant there were only certain exigencies in which, and certain persons to whom, this rule was to be applied. It was all very learned and impressive, but one was apt to develop a disturbing doubt as to whether one was of those to whom it was to be applied. It was certainly not to be applied to criminals, or perhaps even to politicians. It was not to be applied to poor people, or to the working people, unless they were in Sunday-school as conscious inferiors, in devout and penitent attitudes. And as these people were so seldom in church or Sunday-school, and as those who were there apparently needed no such consideration, these discourses left one rather uncertain as to what to do with the Golden Rule.

All men of course believe in the Golden Rule, or say they do, but they believe in it only “up to a certain point,” and with each individual this point differs; the moment in which to abandon the Rule and take to “the shotgun and the club” comes to some soon, to others late, and to some oftener than others; but to most, if not to all of us, it inevitably arrives. That is why, no doubt, the world is no farther along in the solution of the many distressing problems it has on its mind.

According to the standards of conduct and of “honor” inherited from the feudal ages, while personal violence may be conceded to be illegal, one is, nevertheless, still generally taught that it is wrong and unmanly not to resent an insult or an injury, by violence, if necessary,—fighting and killing, by individuals, states and nations, are thought to be not only honorable and worthy, but, in many cases, indispensable. Society has an obsession similar to that strange superstition of the feud, which affects the Kentucky mountaineers. Generally we are less afraid to fight than we are not to fight. Our system is based on force, our faith is placed in force, so that nearly all of the proposals of reform, for the correction of abuses, involve the use of violence in some form. We have erected a huge idol in the figure of the beadle, who, assisted by the constable, is to make society over, to make men “good.” Jones came upon the scene in America at a time when there was undoubtedly a new and really splendid impetus toward a better and higher conception of life and conduct, both in public and private. Yet even then no other thought seemed to possess the public mind than that someone should be put in prison and made to suffer.

Men did not and do not see what Jones saw so much more clearly than any other reformer of his time, namely that, above all the laws men make with their political machines in their legislatures, there is a higher law, and that the Golden Rule is a rule of conduct deduced from that law. He saw that men, whether they knew it or not, liked it or not, or were conscious of it or not, had in all times been living, and must forever go on living, under the principle on which the Golden Rule is based. That is, Jones saw that this great law had always existed in the universe, just as the law of gravitation existed before Newton discovered it. It is inherent in the very constitution of things, as one of that body of laws which govern the universe and always act and react equally among men. And Jones felt that men should for their comfort, if for no higher motive, respect this law and get the best out of life

by observing it; and that it should be the business of men through their governments to seek out this law and the rules that might scientifically be deduced from it, instead of putting their faith in their own contrivances of statutes, resolutions, orders, and decrees, and, when these would not work, trying to make them effective through grand juries and petit juries, and all the hideous machinery of jails and prisons, and scaffolds and electric chairs. And because he had no superstitious reverence for policemen or their clubs, or for soldiers and their bayonets and machine guns, they said he had no reverence for law.

He had, of course, been to the legislature; he had seen the midnight sessions there, when statutes were enacted amid scenes of drunken riot and confusion, and he saw no reason why he should have reverence for the acts of these men. Perhaps he was wrong; I am only trying to tell how it appeared to him. He was not a lawyer, but he knew what many lawyers have never learned, that there is sometimes a vast difference between a statute and a law. He saw that not all statutes are laws; that they are laws only when, by accident or design, they are in conformity with those rules by which the universe is governed, whether in the physical or the spiritual world, and these laws, eternal and immutable, are invariable, self-executing, instant in operation, without judges to declare them, or executives to enforce them, or courts to say whether they are unconstitutional or not.

He saw that the law on which the Golden Rule is founded, the law of moral action and reaction, is the one most generally ignored. Its principle he felt to be always at work, so that men lived by it whether they wished to or not, whether they knew it or not. According to this law, hate breeds hate and love produces love in return; and all force begets resistance, and the result is the general disorder and anarchy in which we live so much of the time.

It may be that in this view of life some dangerous apothegms are involved; as we grow older we grow conservative, and conservatism is a kind of cynicism, a kind of fear, the trembling distrust of age. But I know that in the life concept to which Jones came in his study of this principle, every act of his life, no matter how trifling and insignificant it may have seemed, suddenly took on a vast and vital significance; so that the hasty glance, the unkind word, the very spirit in which a thing is said or done, were seen to have an effect which may reach farther than the imagination can go, an effect not only on one's own life and character, but on the lives and

characters of all those about him. He was always human; I say that to prevent any impression that he was solemn or priggish; he deliberately took up smoking, for instance, toward the end of his days, because, he said with a chuckle, one must have some vices. And sometimes when the Golden Rule seemed not to “work,” he would truly say it was only because he didn’t know how to work it. And he used to quote Walt Whitman:

The song is to the singer and comes back most to him;

The love is to the lover and comes back most to him;

The gift is to the giver, and comes back most to him—it cannot fail.

XXVII

I first saw Tom Johnson in the early nineties in Cleveland, at a Democratic state convention, where one naturally might have expected to see him. I had gone to Cleveland to report the convention for the *Chicago Herald*, and since it was summer, and summer in Ohio, it was a pleasant thing to be back again among the Democrats of my own state, many of whom I had known, some of whom I honored. And that morning—I think it was the morning after some frenzied members of the Hamilton county delegation had been shooting at one another in Banks Street in an effort to settle certain of those differences in the science of statecraft which then were apt, as they are now, to trouble the counsels of the Cincinnati politicians—I was walking along Superior Street when I heard a band playing the sweet and somehow pathetic strains of “Home Again, Home Again.” There were other bands playing that morning, but the prevailing tune was “The Campbells are Coming”; for we might as well have been Scotchmen at the siege of Lucknow in Ohio during those years that James E. Campbell was Governor of our state. We grew to love the tune and we grew to love him, he was so brilliant and human and affable; but he could not pose very well in a frock coat, and after he had been renominated at that very convention, McKinley defeated him for governor.

But as I was saying, it was not “The Campbells are Coming” which the band was playing that morning, but “Home Again,” and along the wide street, with an intimate sense of proprietorship that excluded strangers from this particular demonstration, people were saying:

“It’s Tom Johnson, home from Europe!”

It was his own employees who had gone forth to meet him, the men who worked for him in the street railway system he owned in Cleveland in those days, and I thought it rather a pretty compliment that a man’s employees should like him so well that they would turn out to welcome him with a band when he came home from his holiday abroad. I could understand their feeling when an hour later I saw Tom Johnson in the Hollenden Hotel, the center of a group of political friends; he seemed as glad as any of them to

be back among so many Democrats. He still had his youth, and there was in his manner a peculiar, subtle charm, a gift with which the gods are rather stingy among the sons of men. I can see him now, his curly hair moist with the heat of the summer day, his profile, clear enough for a Greek coin, and the smile that never failed him, or failed a situation, to the end. He was, I think, in Congress in those days of which I am writing, or if he was not, he went to Congress soon after from one of the Cleveland districts. And while he was there he wrote a remarkable letter in response to a communication he had received from some girls who worked in a cloak factory in Cleveland, asking him to vote against the Wilson tariff bill when it was amended by adding a specific duty to the *ad valorem* duty on women's cloaks. The girls, of course, poor things, had not written the communication; it was written by the editor of a protectionist newspaper in Cleveland, and the response which Johnson sent was one of the simplest and clearest expositions of the evils of protection I ever read. I had read it when it was published, and had been delighted, but it was not for a dozen years that I was able to tell Johnson of my delight, and then one day as he and Dr. Frederic C. Howe and I were at luncheon I spoke of the letter. He laughed.

"It was a great letter, wasn't it?" he said.

"Indeed it was," I replied.

"A wonderful letter," he went on. "You know, it completely shut them up around here. The editor of that paper tried for weeks to reply to it, and then he gave it up, and he told me privately some time afterward that he was sure the theory of protection was right, but that it wouldn't work on women's cloaks. Yes, it was a great letter." And then with a sigh, he added: "I wish I could have written such a letter. Henry George worked on that letter for days and nights before we got it to suit us; I'd think and think, and he'd write and write, and then tear up what he had written, but finally we got it down."

Henry George was the great influence in his life, as he has been the influence in the lives of so many in this world. Johnson had been a plutocrat; he had made, or to use a distinction Golden Rule Jones used to insist upon, he had "gathered," by the time he was thirty, an immense fortune, through legal privileges. Johnson's privileges had been tariffs on

steel, and street railway franchises in several cities, and thus early in life he was almost ready for that most squalid of all poverty, mere possession. And then suddenly he had a marvelous experience, one that comes to few men; he caught a vision of a new social order.

He was on a railway train going from Indianapolis to New York, and the news agent on the train importuned him to buy a novel. Johnson waved him aside—I can imagine with what imperious impatience. But this agent was not to be waved aside; he persisted after the manner of his kind; he had that weird occult power by which the book agent weaves his spell and paralyses the will, even such a superior will as Tom Johnson's, and the agent sold to him, not a novel, but Henry George's "Social Problems." He was not given to reading; he read only for information, and even then he usually had someone else read to him. Once during his last illness he asked me what I was reading, and I told him Ferrero's "Rome," and tried to give him some notion of Ferrero's description of the political machine which Cæsar and Pompey had organized, and of the private fire department of Crassus, and he said: "Well, I'll have Newton read it to me." He used to wonder sometimes half wistfully, as though he were missing some good in life, how it was that I loved poetry so, and it was somehow consoling when Mr. Richard McGhee, that fine Irish member of Parliament, told me one night in the House of Commons that when Johnson made that last journey to England he had read Burns to him, and that Johnson had loved and even recited certain passages from them. Well then, Johnson bought his book, and idly turning the pages began to read, became interested, finally enthralled, and read on and on. Later he bought "Progress and Poverty," and as he read that wonderful book, as there dawned upon his consciousness the awful realization that notwithstanding all the amazing progress mankind has made in the world, poverty has kept even pace with it, stalking ever at its side, that with all of man's inventions, labor-saving devices, and all that, there has been no such amelioration of the human lot, no such improvement in society as should have come from so much effort and achievement, he had a spiritual awakening, experienced within him something that was veritably, as the Methodists would say, a "conversion." There was an instant revolution in his nature, or in his purpose; he turned to confront life in an entirely new attitude, and he began to have that which so many, rich and poor, utterly lack, so many to whom existence is but a meaningless

confusion of the senses, a life concept. And with this new concept there came a new ideal.

He at once sought out Henry George, the two became fast friends, and the friendship lasted until George's dramatic death in the midst of his campaign for the mayoralty of New York. George used to do much of his work at the Johnson home in Cleveland—and used to forget to fasten his collar when he was called from that spell of concentration over his desk to the dinner table. The Johnsons were aristocrats from Kentucky, descended from a long line of southern ancestors. And yet Tom Johnson was a Democrat, from conviction and principle. In fact it seems almost as though the cause of democracy would never have got on at all if now and then it had not had aristocrats to lead it, as ever it has had, from the times of the Gracchi to those of the Mirabeaus and the Lafayettes and the Jeffersons.

Tom Johnson made an instant impression when he went into politics, and he went in on the explicit advice of Henry George. When he arose in the House of Representatives at Washington to make his first speech, no one paid the least attention. It is, I suppose, the most difficult place in the world to speak, not so much because of the audience, but because of the arrangement; that scattered expanse of desks is not conducive to dramatic effect, or to any focusing of interest. The British Parliament is the only one in the world that is seated properly; there the old form of the lists is maintained, opponents meet literally face to face across that narrow chamber. But when Johnson arose at Washington, there were those scattered desks, and the members—lolling at their desks, writing letters, reading newspapers, clapping their hands for pages, gossiping, sauntering about, arising and going out, giving no heed whatever. But Tom Johnson had not spoken many words before Tom Reed, then the leader on the Republican side, suddenly looked up, listened, put his hand behind his ear, and leaning forward intently said: “Sh!” and thus brought his followers to attention before the new and strong personality whose power he had so instantly recognized.

It was a power that was felt in that House. They tried to shelve him; they put him on the committee for the District of Columbia, and no shelf could have pleased him more, or been better suited to his peculiar genius, for it gave him a city to deal with. The very first thing he did was to investigate the revenues of the District, and he made a report on the subject, based on

the theories underlying the proposition of the single tax. He tried to have the single tax adopted for the District, and while he failed in that design his report is a classic on the whole subject of municipal taxation, even if, like most classics, it is little read. He made some splendid speeches, too, on the tariff, and by a clever device, under the rule giving members leave to print what no one is willing to hear, he contrived, with the help of several colleagues, to distribute over the land more than a million copies of Henry George's "Protection and Free Trade," giving that work a larger circulation than all the six best sellers among the romantic novels.

It is one of the peculiar weaknesses of our political system that our strongest men cannot be kept very long in Congress, and it was Johnson's fate to be defeated after his second term, but he then entered a field of political activity which was not only thoroughly congenial to him, but one in which for the present the struggle for democracy must be carried on. That field is the field of municipal politics which he entered just at the time of the awakening which marked the first decade of the new century.

XXVIII

When I think of the beginning of that period my thought goes back to an afternoon in New York, when, sitting in the editorial rooms of *McClure's Magazine*, Lincoln Steffens said to me:

"I'm going to do a series of articles for the magazine on municipal government."

"And what do you know about municipal government?" I asked in the tone a man may adopt with his friend.

"Nothing," he replied. "That's why I'm going to write about it."

We smiled in the pleasure we both had in his fun, but we did not talk long about municipal government as we were to do in the succeeding years; we had more interesting subjects to discuss just then.

I had been on a holiday to New England with my friend John D. Barry, and had just come from Maine where I had spent a week at Kittery Point, in the delight of long summer afternoons in the company of Mr. William Dean Howells, whom, indeed, in my vast admiration, and I might say, my reverence for him, I had gone there to see. He had introduced me to Mark Twain, and I had come away with feelings that were no less in intensity I am sure than those with which Moses came down out of Mount Horeb. And Steffens and I celebrated them and their writings and that quality of right-mindedness they both got into their writings, and we had our joy in their perfect Americanism. The word had a definite meaning for us; it occurred to us at that time because of some tremendous though unavailing blows which Mark Twain had delivered against our government's policy in the Philippines, the time falling in that era of khaki imperialism which opened in this land with the Spanish war and too much reading of Kipling, who, if I could bring myself to think that literature has any influence in America, might be said to have induced us to imitate England in her colonial policy. There comes back the picture of Mark Twain as he sat on the veranda of the home he had that summer at Sewell's Bridge, a cottage on a hill all hidden among the pines; he sat there in his picturesque costume of white trousers

and blue jacket, with his splendid plume of white hair, and he smoked cigar after cigar—he was an “end to end smoker” as George Ade says—and as he sat and smoked he drawled a delightful monologue about some of his experiences with apparitions and telepathy and that weird sort of thing; he said they were not to be published during his life, and since his death I have been waiting to see them in print. He had just been made a Doctor of Laws by some university in June of that year, a distinguishing fact known to a caller from the fashionable resort of York near by, who, though somewhat hazy as to Mark Twain’s performances in literature, nevertheless scrupulously addressed him as “Doctor,” and every time he was thus recognized in his new and scholarly dignity, he winked at us from under his shaggy brows. Perhaps that was part of his Americanism, too, unless it were a part of that universality which made him the great humorist he was, and philosopher, too; an universality that makes Mr. Howells a humorist as well as a novelist and a philosopher—the elements are scarcely inseparable—though Mr. Howells’s humor is of a more delicate quality than that of his great friend, and, as one might say, colleague, a quality so rare and delicate and delightful that some folk seem to miss it altogether. Perhaps it was the Americanism of these two great men and their democracy that have won them such recognition in Europe, where they have represented the best that is in us.

I speak of their democracy for the purpose of likening it in its very essence to that of Golden Rule Jones and of Johnson, too, and of all the others who have struggled in the human cause. We owe Mr. Howells especially a debt in this land. He jeopardized his standing as an artist, perhaps, by his polemics in the cause of realism in the literary art, but he was the first to look about him and recognize his own land and his own people in his fiction; that is why it is so very much the life of our land as we know it, and to me there came long ago a wonderful and consoling lesson, when in reading after him, and after Tolstoy and Tourgenieff, and Flaubert, and Zola, and Valdez, and Thomas Hardy, I discovered that people are all alike, and like all those about us in every essential.

Lincoln Steffens did not miss the humor in Mr. Howells’s writing, because he could not miss the humor in anything, though there was not so much humor perhaps in another writer whom we had just then discovered and were celebrating that day in the joy of our discovery. It was to me a

discovery of the greatest charm, a charm that lasts to this day in everything the man has written, that charm of the sea and of ships, the romance and poetry of it all which I had felt ever since as a boy I found a noble friend in Gus Wright, an old sailor whose name I cannot speak even now without a quickening of the spirit because of the glamour that invested him when I sat and looked at him and realized that he had hunted whales in the South Pacific and had sailed the Seven Seas. I wish I had written him into the first of these papers, where he belongs; he made two miniature vessels for me, one a full rigged ship, the other a bark—dismantled now, both of them, alas, and long since out of commission....

“You go down to the wharves along the East River,” Steffens was saying, “and you’ll see a ship come in, and after she has been made fast to her wharf, an old man will come out of the cabin, light his pipe, and lean over the taffrail; he’ll have a brown, weather-beaten face, and as he leans there smoking slowly and peacefully, his voyage done, his eye roving calmly about here and there, you’ll look at him, and say to yourself, ‘Those eyes have seen everything in this world!’”

It was a rather big thought when you dwelt on it.

“He’s seen everything in the world,” Steffens went on, “but he can’t tell what he’s seen. Now Conrad has those eyes, he has seen everything, and he can tell it.”

It was Joseph Conrad, of course, of whom we were talking, the great Pole who even then had come to a mastery of our language that might shame most of his contemporary writers in it. I would not give “Lord Jim” for all the other sea stories that were ever written, not even if all the novels of Cooper and Scott and Stevenson and Dickens were thrown in. For Joseph Conrad can see all that the old sailor Steffens was imagining that day could see, and far more besides; he can see into the human soul. He had not written “Lord Jim” at that time, or if he had, I had not read it, nor had Steffens written his books about municipal government, to get back to the subject; too often, I fear, have I been thinking about some book of Joseph Conrad when I should have been thinking of municipal government.

I did not know much about municipal government in those days, except what I had learned in Jones’s campaigns and that theoretical knowledge I had obtained in the courts as his attorney, and I had, I fear, the same

indifference to the subject most of our citizens have. I should have preferred any time to talk about literature and I should prefer to do so now, since that is really so much more interesting and important. But the fact that we knew nothing about it in those days was not unusual; nobody knew much about it except that Mr. James Bryce had said that it was the most conspicuous failure of the American Commonwealth, and we quoted this observation so often that one might have supposed we were proud of the distinction. Certainly few in America in those days understood the subject in the sense in which it is understood in some of the British cities, like Glasgow, for instance, whose municipal democracy is so far ahead of ours, or in the German cities where municipal administration is veritably a science. But in Steffens's case a lack of knowledge was in itself a qualification, since he had eyes, like the old sailor, and, like Joseph Conrad, the power to tell what he saw. That is, Steffens had vision, imagination, and if the history of the city in America is ever written he will fill a large place on its page.

I marvel when I reflect that he could see so clearly what most had not even the sensitiveness to feel. He went at his task quite in the scientific spirit, isolating first that elementary germ or microbe, the partizan, the man who always voted the straight ticket in municipal elections, the most virulent organism that ever infested the body politic and as unconscious of its toxic power as the bacillus of yellow fever. Then he discovered the foul culture this organism blindly breeds—the political machine, with its boss. But he went on and his quest led him to the public service corporation, the street railway company, the gas company, the electricity company, and then his trail led him out into the state, and he produced a series of studies of politics in the American cities which has never been equaled, and so had a noble and splendid part in the great awakening of our time.

As long as his writings exposed only the low and the vulgar politicians, ward heelers and bosses, and the like, he was quite popular; I believe he was even asked to deliver addresses before clubs of the *dilettante*, and even in churches, for the righteous were terrible in their wrath. But when he went more deeply, when he exposed the respectable connections of the machine politicians, some of his admirers fell away, and stood afar off, like certain disciples of old. The citizen was delighted when some city other than his own was under the scrutiny of the sharp eyes that gleamed behind those round glasses, but when he drew near for a local study, there was an

uplifting of the hands in pious horror. Cincinnati applauded the exposure of Minneapolis, and St. Louis was pleased to have Philadelphia reformed. Reform is popular so long as someone else is to be reformed.

XXIX

Steffens came to Toledo occasionally, and I recall an evening when we sat in my library and he told me of a certain editor with whom he had been talking; the editor had been praising his work with a fervor that filled Steffens with despair.

“Must I write up every city in the United States before they will see?” he said. “If I were to do Toledo, how that chap would berate me!”

He came to Toledo early in his investigations, and I took him to see Jones, and as we left the City Hall in the late afternoon of that spring day, Steffens was somehow depressed; we had walked a block in St. Clair Street in silence when he said:

“Why, that man’s program will take a thousand years!”

It did seem long to wait. There was a time when I thought it might be done in a shorter period, but I have found myself under the necessity of extending the term from time to time. I fear now that Steffens’s estimate of the length of Jones’s program was rather short, but I know of no other way that the program can be carried out. Steffens himself is not so impatient now; he learned much more about our cities than he ever wrote or dared to write, much no doubt that he could not write. Great as was the data he collected, before all the conclusions could be drawn, all the general rules deduced, it would be necessary to have the data of all life, of which the cities are microcosms. The subject, after all, is rather large.

But to some it seemed simple enough; were there not policemen patrolling their beats ready to arrest the bad people? Thus in the early days of the awakening in America impatience took on the form it always takes with us, and men flew to the old idols of our race, the constable and the policeman; someone must be hounded down, someone must be put in prison. This was the form which the awakening took in many places, and many reputations were built up in that wretched work, and perhaps the inadequacy of the work is best demonstrated by the instability of the reputations. I suppose that such efforts do accomplish something, even though it be at such fearful

cost; they may educate some, but mostly they seem to me to gratify a taste for cheap sensation and reward that prurient curiosity which has always made the contemplation of sin so very fascinating to our race. The reformer was abroad, seeking to make mankind over, but since he has no model more attractive than himself to offer, his work never goes very far, and he returns to his warfare on the cigarette, or in moments of greater courage, on the poor girl whose figure flits by in the darkness, followed by the reformer's devouring eye.

But Steffens did not write us up, as the reporters phrase it. I think Jones perplexed him in those first days, though he knows now that Jones was wholly and I had almost said solely right. Jones indeed perplexed most of us. A man with a program of a thousand years could not be expected to interest so vitally our impatient democracy, as would one with a program so speedy and simple that it involved nothing more complex than putting all the bad people in jail; and there was always someone ready to point out the bad people, so that it seemed simple, as well it might to those who had forgotten that even that program is six thousand years old, at least, according to Archbishop Ussher's chronology. Steffens, however, was seeking types and in the two leading cities of Ohio he found them so perfect that he need never have gone further—had it not been for people like that fellow citizen of ours who filled Steffens with such despair. But while he was gathering his data on Cincinnati and on Cleveland he came to see us often, to our delight, and continued to come, so that he knew our city and our politics almost better than we knew them ourselves. He went to Cleveland, I remember, with some distinct prejudice against Tom Johnson; the prejudice so easily imbibed in gentlemen's clubs. But I was delighted when, after his investigation, he wrote that story in *McClure's* which characterized Tom Johnson as the best mayor of the best governed city in the United States. I was delighted because I was flattered in my own opinion, because I was fond of Tom Johnson, and because it appeared just in the nick of time to turn the tide in Johnson's third campaign.

Jones was delighted, too; he had said almost immediately after Johnson became mayor of Cleveland that he "loved him" because, in appointing the Reverend Harris R. Cooley as Director of Charities and Corrections, Johnson selected a man who began at once to parole prisoners from the workhouse, and Jones and Johnson became friends as Johnson and Pingree

had been friends. It was a peculiar instance of the whimsical and profligate generosity of the fates that the three cities grouped at the western end of Lake Erie like those cities Walt Whitman saw, or thought he saw, “as sisters with their arms around each others’ necks” should have had about the same time three such mayors as Pingree in Detroit, Johnson in Cleveland and Jones in Toledo, though the three men were different in everything except their democracy.

Johnson’s success in Cleveland, obtained nominally as a Democrat, though in his campaign he was as non-partizan as Jones himself, made him the “logical” candidate of the Democrats in the state for governor, and when he was nominated for that office he burst upon the old Republican state like a new planet flaming in the heavens. Many of the Democrats found that he was entirely too logical in his democracy, since he was as like as not to denounce a Democratic office holder as any other. He went forth to his campaign that year in his big French touring car, a way entirely new to us, and in the car he went from town to town, holding his immense meetings in a circus tent which was taken down and sent on ahead each night. In this way he was entirely independent of local committees, and they did not like that very well; it had been his wealth more than his democracy that had made him seem so logical as a candidate to some of the Democrats. Such a spectacle had not been seen on our country roads as that great touring car made; it was a red car, and the newspapers called it “the red devil”; sometimes they were willing to apply the epithet to its occupant. It was inevitable, of course, that provincialism should criticize him for having bought his car in France instead of the home market, and I shall never forget, so irresistible in retort was he, the instant reply he made:

“That complaint comes in very bad grace from you protectionists. I bought my car in France it is true and paid \$5,000 for it, but I paid you \$3,000 more in tariff duties to let me bring it home. You made me pay for it twice and I think I own it now.”

Few have ever been vilified or abused as Johnson was abused in our state that year; his red car might have been a chariot of flame driven by an anarchist, from the way some of the people talked. Strange, inexplicable hatred in humanity for those who love it most! Tom Johnson campaigned that year on a platform which demanded a two-cent-a-mile railway fare and the taxation of railroad property at something like its value, or at least, he

said the railroads should pay in taxes as much, relatively, as a man paid on his home; the poor man was paying on more than a sixty per cent. valuation while the railways were valued at eighteen or twenty per cent. This was dangerous, even revolutionary doctrine, of course, and Johnson was a single-taxer, supposed in Ohio to be a method of taxation whereby everybody would be relieved of taxation except the farmers who were to be taxed according to the superficial area of their farms. And of course Johnson was defeated, and yet within two years the legislature enacted the first of these proposals into law with but one dissenting vote. Thus heresy becomes orthodoxy. The proposal for taxation reform still waits, and will wait, I fancy, for years, since it is so fundamental, and mankind never attacks fundamental problems until it has exhausted all the superficial ones. And yet, while many other changes he contended for in his day have been made, while many of his heresies have become orthodoxies, the fear of him possessed the rural mind in the legislature until his death, and almost any measure could be defeated by merely uttering the formula "Tom Johnson."

XXX

One remembers one's friends in various attitudes, and I see Tom Johnson now standing on the platform in the old tent, under the flaring lights, with the eager crowd before him—there were never such intelligent audiences to speak to as those in Cleveland, unless it were those in Toledo—and he was at his best when the crowd was heckling him. He was like Severus Cassius, who, as Montaigne says, “spoke best extempore, and stood more obliged to fortune than his own diligence; it was an advantage to him to be interrupted in speaking, and his adversaries were afraid to nettle him, lest his anger redouble his eloquence.” He voluntarily introduced the custom of heckling so prevalent in England and Scotland, because at first he was not a proficient speaker; he was so simple, so direct, so positive, that he could state his position in a very few words. Thus, as he told me once, his speeches were too short for the customary political meeting in a state where political oratory flowed on and on indefinitely, and he asked the crowd to put questions to him. This stirred him up, put him on his mettle, stimulated his thought, and he was best at this short range. And no one ever got the better of him. Once an opponent triumphantly demanded, in a campaign in which Johnson's administration was charged with extravagance:

“Mr. Johnson, is it not a fact that under your administration the Cleveland workhouse has lost money?”

“Yes, sir,” the Mayor replied promptly.

“How do you explain that?”

“We are not trying to make money in the Cleveland workhouse,” the Mayor replied instantly, “we are trying to make MEN!”

Or again I see him, superintending the tearing up of street railway tracks, on streets where the franchises of the private company had expired, to make room for the rails of the city company, calmly smoking a cigar, and with a gesture of his expressive delicate white hand waving aside the latest of the many injunctions that were sued out against him. The battle was never lost

to him, though his followers were often discouraged. He might have said of court injunctions as Napoleon said of bullets at the battle of Krasnoi:

“Bah! They have been whistling about our legs these forty years!”

But I see him best I think in the great hall of his home in Euclid Avenue, one short, fat leg tucked comfortably under him, his cigar in his aristocratic hand, his friends and admirers about him. It was a remarkable coterie of brilliant young men. One of them had been originally an opponent, one of those who heckled him in the tent, a fiery young radical not long since a blacklisted mechanic who had gone hungry when on strike, Peter Witt, one of the most picturesque personalities in Ohio politics; he became one of Johnson's intimate friends and strongest supporters, and a splendid speaker on the stump. He was city clerk of Cleveland under all the Johnson administrations and is now the street railway commissioner of that city under Mayor Newton D. Baker, who, as city solicitor, was another of the group of those happy days. Mr. Baker was like a boy in appearance, with his sensitive face and the ideals of a poet, and a brilliant lawyer. He carried all the legal burden of the long street railway controversy in Cleveland,—it was almost a civil war—and did it all with such skill and ability, and withal with such grace and courtesy and good nature that he never offended his opponents, who were the leading corporation lawyers of the city. Frederic C. Howe had been elected to the council in Cleveland as a Republican from one of the most aristocratic wards, but he was won over by Johnson's personality, was renominated by Johnson on the Democratic ticket, afterwards sent to the state senate and became one of the foremost men in the liberal movement in America; his books on municipal government are authorities. And Dr. Cooley; he was a Disciple preacher, and Johnson placed him at the head of the department of charities and corrections, so that, as Johnson used to say, instead of a preacher Dr. Cooley became a minister. It was delightful to be with them in those gatherings. The genuine reform of conditions in that city possessed them all like a passion; they were stimulated by a common ambition, which was, as Johnson used to say, to make Cleveland a city set on a hill, and though he was not a poet nor a maker of phrases everyone instinctively knew what he meant when he spoke of his city set on a hill. I do not know how much of history he had read, but he knew intuitively that the city in all ages has been the outpost of civilization, and that if the problem of democracy is to be solved at all it is

to be solved first in the city. That was why he struggled for the free city, struggled to make the city democratic; he knew that the cure for the ills of democracy is not less democracy, as so many were always preaching, but more democracy. And how delighted he was when Fred Howe brought out his book "The City the Hope of Democracy." He had the joy of seeing marshaled there in the thesis of a scholar all the arguments he had apprehended but had never reduced to terms; there they were, all in their logical order—and Johnson straightway sent a copy of the book to every member of the Ohio legislature, to their amazement no doubt, if not to their amusement.

I used to like to go over to Cleveland and meet that charming group Johnson had gathered about him. There was in them a spirit I never saw in such fullness elsewhere; they were all working for the city, they thought only of the success of the whole. They had the city sense, a love of their town like that love which undergraduates have for their university, the *esprit de corps* of the crack regiment.

But Johnson used to set me to work with the rest of them. I went over there once to spend the week's end, for rest and relaxation, and he had me working far into three nights on amendments to the municipal code. He had terrible energy, but it was a joy to work with him. I wish I had gone oftener.

I have said enough I hope to make it clear that Tom Johnson was one of those mortals who have somehow been lifted above their fellows far enough to catch a vision of the social order which people generally as yet do not see. It was inevitable, of course, that such a man, especially since he was a rich man, should have his motives impugned, and I recall now with what a confidential chuckle he said to me one time when he had been accused of I know not what vaulting and wicked ambition:

"I am politically ambitious; I have just one ambition; I want to be the mayor of a free city, and if I were, the very first thing I should do would be to appoint a corps of assessors who couldn't see a building, or an improvement; they would assess for taxation nothing but the value of the land, and we would try out the single tax."

He did not realize that ambition of course; no one ever realizes his ambition. But he did perhaps more than any other man in America to make possible the coming of the free city in this land.

His struggle for three-cent railway fares in Cleveland, which was but a roundabout method of securing municipal ownership in a state where the legislature in those days would not permit cities to own their public utilities was his great work. He lived to see that successful in a way, though not exactly in the way he had expected; that is another irony which the fates visit on the head of ambitious men.

And yet that irony of the fates is not always, after all, unkind. Somehow, after a while, in the lengthened perspective, the broadened vision that reveals a larger segment of the arc, the event is seen in better proportion. It requires faith in one's cause to see this always, and Johnson always had that faith. I shall not forget how when the people at last voted against him, he still could smile, and say to me: "The people are probably right." It was the last time I saw him. He was sick then, and dying, and sadly changed; the hair that had been so black and curly that summer morning long before, had grown thin and white; the face, sadly lined with weariness, was sublimated by a new expression. There was the same courage in the classic profile, and the old smile was there. He was writing his memoirs with a courage as grim as that of General Grant—and he had the equanimity of Antoninus Pius. And on his countenance there was the expression of a purified ideal. So he had won; his was the victory after all.

XXXI

The best of life, no doubt, is made up of memories, as M. George Cain says, and perhaps that is why I have lingered so long over these little incidents of Sam Jones and Tom Johnson. I have told them in no sort of related order; Jones died years before Johnson; but somehow they seem to me to have appeared simultaneously, like twin stars in our northern sky, to have blazed a while and then gone out together. Different as their personalities were, different as two such great originals must have been, they were one in ideal, and even in their last words they expressed the vast toil and strain of the efforts they put forth to attain it.

“Was it worth while?” asked Tom Johnson of his friend Newton Baker, a day or two before he died. And Sam Jones on that last day turned to his sister Nell, the noble spirit who had conducted the settlement work at Golden Rule House, and said:

“‘He that endureth to the end——’ What does it say?”

She repeated the Scripture to him.

“Say it in Welsh,” he said, his thought returning in those ultimate moments to the speech they had used as children. But before she could direct her mind into the old sequences, the end had come.

At least, there were those in town who thought it was the end. The stock of the street railway company went up twenty-four points the next morning, and some brokers issued a letter saying now that Jones had died the securities of that enterprise offered a golden investment—about the most authentic extant illustration, I suppose, of the utter contemptibility of privilege in these states. The politicians often had been heard to say that when Jones retired the non-partizan movement in Toledo would come to an end; in their professional analyses they had pronounced it a personal following not governed by principle, and that with the passing of the leader it would disappear and the voters become tractable and docile partizan automata again. And now that Jones was dead and one of their organization, the president of the council, was to succeed to the mayor’s office, the hopes

they had so long entertained seemed at last on the point of realisation. Within a few weeks, therefore, an ordinance granting the street railway company a renewal of its rights was passed by the council.

Then, instantly, the old spirit flamed anew; there were editorials, mass meetings, and all sorts of protest against the action, and in response to this indignant public feeling, the acting mayor, Mr. Robert H. Finch, very courageously vetoed the ordinance. But the machine "had the votes," and on the following Monday night the council met to pass the ordinance over the veto. The members of the Republican organization were there, favored with seats in the office of the city clerk; lobbyists and the legal representatives of the street railway company were there. The chamber was crowded; the hot air of the small, low-ceiled room was charged with a nervous tension; there was in it an eager expectant quality, not unmingled with dread and fear and guilt. The atmosphere was offensive to the moral sense—a condition remarked in other halls in this land when councils and legislatures have been about to take action that was inimical to the public good.

But the machine councilmen bore themselves jauntily enough; the windows were open to the soft night of the early autumn, and now and then some one sauntered in nonchalance over to the windows, and looked down into St. Clair Street, garish in the white and brilliant light of the electric signs of theaters, restaurants and saloons. The theater crowds were already going by, but it was to be noted that they loitered that evening, and were reinforced by other saunterers, as though the entertainment of the pavement might surpass that of the painted scene within. And above all the noises of the street, clanged the gongs of the street cars gliding by, and, for the moment, as a dramatic center of the scene, a squad of policemen was stationed in the lobby of the council chamber.

This nervous, sinister mood was somehow abroad in the whole city that night. Mr. Negley D. Cochran had written another editorial, published that evening in heavy type, in the *News-Bee*, calling on the citizens to come out and protect their rights in the streets of their city, so that there were apprehensions of all sorts of danger and disaster.

The council proceeded with its business; the voice of the reading clerk droned on in the resolutions and ordinances that represented the normal

municipal activities of that hour, and then, suddenly, a sound of a new and unaccustomed sort arose from St. Clair Street, the sound of the tramp of marching men. Those at the windows, looking out, saw a strange spectacle—not without its menace; the newspaper reporters, some of them, embellished their reports with old phrases about faces blanching. Perhaps they did; they might well have done so, for the men came down St. Clair Street not as a mob; they were silent, marching in column, by sets of fours, with an orderly precision and a discipline almost military. And at their head there was a man whose square, broad shoulders and firm stride were the last expression of determination. He wore a slouch hat, under which his gray hair showed; his closely trimmed beard was grizzled; he looked, as many noted, not unlike the conventional portraits of General Grant. The man was Mr. Johnson Thurston, and he was as grim as General Grant, as brave, as determined, and as cool. He was widely known in Toledo as a lawyer, however, not as a politician; he had never been in politics, indeed, but he was in politics that night, surely, and destined to remain in politics for years to come.

He brought his column to a halt under the windows of the council chamber. There was no room in that small chamber for such a delegation, or seemingly for any delegation of the people, however small. Johnson Thurston's son marched beside him as an aide, bearing a soap box—the modern tribune of our democracy—and he placed it on the pavement for his father. A street car, just then halting, clanged its gong for the throng to make way, and at this perfect symbol of the foe they were opposing, Johnson Thurston shook his fist, and shouted:

“Stand there! The people are attending to their business to-night!”

The street car stood, and Johnson Thurston mounted his soap box, produced a paper and read from it in a loud voice that section of the Constitution in which the people retain to themselves the right peaceably to assemble and petition for a redress of grievances. And this done, he turned to his followers, gave them a signal, and there went up from their throats in perfect unison a mighty cry: “Let the franchise alone!”

Three times they voiced their imperative mandate, and then, at a signal, they wheeled about, and marched away in the excellent order in which they had come. Such a demonstration, in the streets, at night, before a legislative

body, had it occurred in a capital or in a metropolis, would have been historic. As it was, the cry that went up from those men was heard in the council chamber; and it was destined to ring through the town for the better part of a decade. The council did not pass the ordinance over the Mayor's veto; half an hour later the councilmen were escorted from their chamber by the police they had summoned; and a sadly shaken body they were, poor fellows.

Meanwhile the men who had marched with Johnson Thurston had retired to a vacant storeroom in Superior Street, three blocks away, over the door of which there was a canvas sign bearing the inscription "INDEPENDENT HEADQUARTERS." There they had assembled and been drilled by Johnson Thurston, as college men are drilled by a leader in their yells, and with a solemn sense of civic duty they had marched to the council chamber to save their city from a quarter of a century more of shameful vassalage to a privileged public utility corporation. The threat of their presence had been sufficient, but had that proved unavailing, they had provided other resources. There had been all the while, from the hour of the opening of the doors that night, twelve men in the council chamber, armed with bombs, not of dynamite or any such anarchist explosive, but of asafœtida and sulphureted hydrogen and I know not what other overpowering fumes and odors, confidently relied upon to prevail against even so foul a stench as that which a privileged plutocracy can make in any of the halls of government when it has determined to secure another lease of its tenure.

At Independent Headquarters, then, that autumn, political meetings were held, in which local affairs—the street-car situation especially and the relation it bore to the machines of political parties—were discussed. Because of those changes the legislature was always making in the government of cities, three councilman at large were to be elected. This was in the year 1904, in the midst of a national campaign. Roosevelt was running for president for his second—or his first term, depending on the point of view—and three of those men who had voted for that street railway ordinance, and were ready to vote to pass it over the mayor's veto, were candidates on the Republican ticket for councilmen at large. The Independents who had marched with Johnson Thurston determined to nominate a city ticket, and they honored me by offering me the place at the head of that ticket as their candidate for councilman at large. I was writing

another novel just then and battling as usual against interruptions, and so I begged off; it was not the campaign I feared, but, as I told them, the fear that I should be elected. We nominated a ticket, and went into the campaign, speaking every night, and in November, though Roosevelt carried the city by fifteen thousand, our candidates for councilmen at large were elected. Clearly, then, the non-partizan movement had not wholly died with Golden Rule Jones; his soul, like the soul of John Brown, was marching on, and still somehow led by him, and inspired by his spirit, there had sprung forth, like Greek soldiers from the dragon's teeth, in Toledo a democratic municipal movement. First of all the cities in America, she had taken the initial step in freeing herself, the step all cities in America must take if they would free themselves from their masters—that of non-partizan municipal elections.

XXXII

The predilection of the Ohio man for politics, I believe, is well known in this land, where it is generally identified with a love for office. There is a reproach implied in the reputation which we perhaps deserve. An Ohio man goes into politics as naturally as a Nova Scotian goes to sea, and yet not all Nova Scotians go to sea. They all love the sea perhaps, but they do not all care to become sailors. And so with us Ohioans. We all love politics, though fortunately we do not all care to hold office, even if most people do smile indulgently when the modest disinclination is expressed. Perhaps such scepticism is quite natural in a land so saturated in privilege that even office holding is regarded in that light—or was until recently, for now a new conception is expanding in the public consciousness and there is hope that ere long public office will be regarded as a responsibility. I was quite sure that I did not care to be a councilman—that weekly wrangle, by night, in a room choking with the fumes of cheap tobacco, known as the session of the common council, was far from my tastes. And when the mayoralty was suggested to me I was quite as certain that I did not wish that. For it was not long after the death of Jones that it was suggested; by Tom Johnson for one, who, in his blunt way, told me that I should run for the place; and by Steffens, who, just then in Cleveland, was writing the article in which Tom Johnson was celebrated as “the best mayor of the best governed city in America,” and Steffens found time now and then to come over to Toledo to see us. “And another thing,” he wrote to me after one of these visits, “you’ll have to run for mayor.” He reached this conclusion, I believe, by a process of inversion. He had been talking with some of the machine politicians, and it was their objection to me as a candidate that caused him to see my duty in that light. I was at one with them on that point, at any rate; they could have been no more reluctant to have me run than I myself was. Tom Johnson, when the Democrats met in their state convention at Columbus that year, might propose me for governor, and the delegation of his county, Cuyahoga, and the delegation from my own county of Lucas vote for my nomination, but that stroke of political lightning was easily arrested by rods that had been more accurately and carefully adjusted, so that I could take the

manuscript of "The Turn of the Balance" and go to Wequetonsing on the shores of Little Traverse Bay, where the days are blue and gold, and there is sparkling sunshine, and a golf links where one may find happiness, if he is on his game, or if he is not, consolation in that noble view from the hill—the tee at the old fourth and the new twelfth hole—when he may, if he wish, imagine himself in Italy overlooking the Bay of Naples—which is no more beautiful. Meredith Nicholson, a hale old Hoosier friend, as James Whitcomb Riley used to phrase it, was there, too, near the spot where he wrote that excellent novel, "The Main Chance," and in that country place with him and other charming friends near by I spent the summer. But when I came home in the autumn the campaign was already on, and the Independents had all but nominated me as their candidate for mayor.

They were forced to make their nominations by petition, and on the petitions proposing me for the office there were many thousands of names, pages that were stained with the grime and dust and grease of factories and shops—a diploma in its way, which might have made one proud, had not the prospect been one to make one so very unhappy. For I knew what the mayoralty had done to Jones. I had come to realize in my association with him that there is no position more difficult than that of the mayor of a large city in the America of our times, for the city is a kind of microcosm where are posited in miniature all the problems of a democracy, and the fact that they are in miniature only increases the difficulty. My ambitions lay in another field, and besides I had a feeling against it, dim and vague, though since adequately expressed in one of those fine generalizations which Señor Guglielmo Ferrero makes on his brilliant page; "there is no sphere of activity," he says, writing of the perils of political life, "which is so much at the mercy of unforeseen accidents or where the effort put out is so incommensurable with the result obtained." It is, of course, one of the privileges of the citizen in a democracy to be "mentioned" for public office; if no one else mentions him he can mention himself, and whenever someone else does mention him there are many who ascribe to his originality the credit for the suggestion.

It seems difficult for our people to understand any man who really does not desire public office in a land where it has so long been regarded purely as a privilege to be bestowed or a prize to be contested. I suppose that even the blunt and grim old warrior Sherman caused the people to smile when he

said that if nominated for the presidency he would not accept and if elected he would not serve. They wondered what he meant, and for a time it never occurred to them that he meant just what he said.

But the day came at last when I must decide, and to a committee of the Independents I said that I should give them an answer in the morning. I thought it all over again in the watches of the night,—and the unfinished manuscript on my library table—and at last, since somebody had to do it, since somebody had to point out at least the danger of risking the community rights in the hands of a political machine, I said I would accept. I suppose that it is but an expression of that ironic mood in which the Fates delight to deal with mortals that it should be so easy to get that which one does not want; the Independents insisted on my standing for the office, but the only humor in that fact was just then too grim for pleasure, though there is always a compensation somewhere after all, and gloomy as I was that morning at the prospect of the bitter campaign and the difficulties that would follow if I were elected, I could laugh when “Dad” McCullough, the old Scotsman whom we all loved for himself and for his devotion to our movement, leaned forward in his chair, stroked his whiskers in a mollifying way and, as though he preferred even the other members of his committee not to hear him, said:

“Would it be out of place if I suggested that in the campaign you bear down as lightly as possible on the infirmities of the law?”

His shrewd sense even then warned him of the herring that would be drawn across the trail of privilege as soon as we struck it!

And he was right. We had not opened our campaign at Golden Rule Hall, before privilege did what it always does when it is pursued, it tried to divert attention from itself by pointing out a smaller evil. All the old and conventional complaints about the morals of the city to which we had been used in Jones’s campaigns were revived and repeated with embellishments and improvements; no city was ever reviled as was ours by those who had failed in their efforts to control it and absorb the product of its communal toil. My attitude, conceived by “Dad” McCullough as “bearing down on the infirmities of the law,” was now represented as evidence of an intention to ignore the law, to enforce none of the statutes, and it was predicted that the election of the Independent ticket meant nothing but anarchy and chaos.

To this “moral” issue that had served for so many years, the “good” people responded immediately, as they always do, and with certain of the clergy to lead them rallied instantly about the machine, and for six weeks reveled in an inspection of all the city’s vices, and mouseled in the slums and stews of the tenderloin for examples of the depravity which they declared it was the purpose and design of the Independents to intensify and perpetuate. Their own candidate had been in power for a year and a half and these conditions had existed unmolested, but when some of our speakers indicated this inconsistency in their attitude they only raged the more.

But notwithstanding all this, the issue was clear; the machine had helped to make it clear, not only by its long opposition to Jones, but more recently by its efforts for the street railway company. It was the old issue between privilege and democracy, that has marked the cleavage in society in all ages. The people were trying to take back their own government, for the purpose, first, of preventing the street railway company from securing another lease of the city’s streets for a quarter of a century, by which, incidentally, the company would realize profits on about twenty-five million dollars of watered stock. But the people were not to be deceived; they were not to be turned off the trail so easily; and the entire ticket was elected, so that at the beginning of that new year the Independents were in control of every branch of the government, not only in the city, but in the county as well.

XXXIII

I have spoken of the Independents as though they were an authentic political party, when it was one of their basic principles to be no party at all. They were Republicans and Democrats who, in the revelation of Jones's death, had come to see that it was the partizan that was responsible for the evil political machines in American cities; they saw that by dividing themselves arbitrarily into parties, along national lines, by voting, almost automatically, their party tickets, ratifying nominations made for them they knew not how, they were but delivering over their city to the spoiler. As Republicans, proud of the traditions of that party, they had voted under the impression that they were voting for Lincoln; as Democrats they thought they were voting for Jefferson, or at least for Jackson, but they had discovered that they had been voting principally for the street railway company and the privileges allied with it in interest.

And more than all, they saw that in the amazing superstition of party regularity by which the partizan mind in that day was obsessed, they were voting for these interests no matter which ticket they supported, for the machine was not only partizan, it was bipartisan, and the great conflict they waged at the polls was the most absurd sham battle that ever was fought. It seems almost incredible now that men's minds were ever so clouded, strange that they did not earlier discover how absurd was a system which, in order to enable them the more readily to subjugate themselves, actually printed little wood-cuts of birds—roosters and eagles—at the heads of the tickets, so that they might the more easily and readily recognize their masters and deliver their suffrages over to them. It is an absurdity that is pretty well recognized in this country to-day, and the principle of separating municipal politics from national politics is all but established in law. Mr. James Bryce had pointed it out long before, but Jones seemed to be almost the first among us to recognize it, and he probably had not read from Mr. Bryce; he deduced the principle from his own experience, and from his own consciousness, if not his own conscience, perhaps he had some intimation of it from the Genius of These States, whose scornful laugh at that and other absurdities his great exemplar Walt Whitman could hear, echoed as from

some mountain peak afar in the west. But it was no laughing matter in Toledo in those days. Men were accused of treason and sedition for deserting their parties; it made little difference which party a man belonged to; the insistence was on his belonging to a party; any party would suffice.

I have no intention, however, of discussing that principle now, but it was the point from which we had to start in our first campaign, the point from which all cities will have to start if they wish to be free. The task we faced was relatively greater than that which Jones had faced; we had a full ticket in the field, a candidate for every city office and a man running for the council in every ward in town. Jones had run alone, and though he succeeded there was always a council and a coterie of municipal officials who represented the other interest in the community. Of course he had made our work possible by the labor he had done, great pioneer that he was. He had been his own platform, as any candidate after all must be, but with our large movement it was necessary to reduce our principles to some form and we tried to do this as simply as we could. We put forth our belief that local affairs should be separate from, and independent of, party politics, and that public officers should be selected on account of their honesty and efficiency, regardless of political affiliations; that the people should be more active in selecting their officials, and should not allow an office-seeker to bring about his own nomination; that the prices charged by public service corporations should be regulated by the council at stated intervals; and that all franchises for public utilities should first be submitted to a vote of the people, that the city should possess the legal right to acquire and maintain any public utility, when authorized so to do by direct vote of its people, that every franchise granted to public service corporations should contain an agreement that the city might purchase and take over its property at a fair price, whenever so voted by the people, and that no street railway franchise should be extended or granted, permitting more than three-cent fares, and unless it includes provision for universal transfers, satisfactory service, and reasonable compensation for the use of bridges, and we demanded from the legislature home rule, the initiative and referendum and the recall.

Perhaps it was not such a little platform after all, but big indeed, I think, when one comes to consider its potentialities, and if anyone thinks it was easy to put its principles into practice, let him try it and see! It was drawn by that Johnson Thurston of whom I spoke, and by Oren Dunham and by

Elisha B. Southard and others, citizens devoted to their town, and already with a prescience of the city spirit. They succeeded in compressing into those few lines all we know or need to know about municipal government, and ages hence our cities will still be falling short of the ideal they expressed on that little card. There were many who went with us in that first campaign who did not see all the implications of that statement of principles; none of us saw all of them of course. The movement had not only the strength but the weaknesses of all so-called reform movements in their initial stages. Those who were disappointed or disaffected or dissatisfied for personal reasons with the old party machines, no doubt found an opportunity for expression of their not too lofty sentiments, although later on when they saw that it was merely a tendency toward democracy they fell away, not because the movement had deserted its original ideals but because they at last understood them.

As I now look back on that first campaign, on the experience I had so much dreaded, the perspective has worked its magic, and the hardships and difficulties have faded away, even, I hope, as its enmities have faded away, though remembering Jones's admonition to "draw the sting" I tried to keep enmities out of it. Since I could not bring myself to discuss myself, I resolved not to discuss my opponents, and I went through the campaign without once mentioning the name of one of them—there were four candidates for mayor against me—without making one personal reference to them. And never in any political campaign since have I attacked an opponent. It was enough to discuss the principles of our little platform; and the first task was to get the electors to see the absurdity of their partizanship and to make clear the necessity of having a city government that represented the people or, since that phrase is perhaps indefinite, one that did not represent the privileged interests of the city.

The campaign was like the old Jones campaigns, though not altogether like them.

The legislature, which is always interfering as much as possible with the cities, had changed the time of holding the municipal elections from the spring to the autumn, one change wrought by a legislature in cities that the people approved, since instead of those raw spring winds we now have the glorious weather the autumn usually brings us in the lake regions, with a sparkling air and a warm sun, and a long procession of golden days, on

which one really should be playing golf, if one could play golf in the midst of a political campaign, which one could not, since art and politics, or at least the practice of them, are wholly incompatible.

There was no old gray Molly to jog about from one meeting to another, and if there had been, she could not have jogged fast enough for the necessities of that hour; and we established new precedents when Percy Jones, the son of the Golden Rule Mayor, drove me about at furious speed in his big touring car, the “Grey Ghost” the reporters called it, and it streaked through the night, with its siren singing, from place to place until I had spoken at half a dozen meetings. Every day at noon it wheeled up to the entrance of the factories and shops as the men were coming out for their noon hour. And such meetings I believe were never held anywhere; there was an inspiration as the men crowded about the car to hear the speeches; they were not politicians, they were seeking nothing, they were interested in their city; and in their faces, what is far above any of these considerations, there was an eager interest in life, perhaps a certain hunger of life which in so many of them, such were the conditions of their toil, was not satisfied.

XXXIV

As I sat and looked out over the crowds that poured from the shops and stood, sometimes for the whole of the noon hour, in discomfort perhaps if the wind was off the lake, and saw the veritable hunger for life that was in their faces, a hunger surely which no political or economic system, however wise and perfect, could satisfy, I could not help thinking that it was a pity the clergy did not understand these people better, for, after all, the message of the Carpenter who came out of Nazareth was for the workers and the poor, and He had passionately thrown Himself on their side. It might have been suggested to that pastor who complained bitterly that his own pews were empty on Sunday evenings while the streets outside his church were crowded with people who for one evening at least were joyous and free from care, that the Master whom he served would have asked no better congregation than they and no better auditorium than the street.

But this pastor was used to making suggestions, not to receiving them; he was not of a mind as open as that one who actually came to me once to ask me how he could get the workingmen to hear him preach. He had not failed, he said, to go to them; he had advertised on a placard hung at the entrance of a factory where two thousand men were working that on a Monday at noon he would speak to them. They had known of him, for he had recently been celebrated in the newspapers as having inaugurated a crusade to close the cheap theaters, whose lurid melodramas,—I believe lurid is the word in that connection unless the melodramas are “novelized” and sold for a dollar and a half,—he said, were detrimental to morals, as no doubt they were. And so when he appeared, punctually, on that Monday noon, at the rendezvous appointed by his poster, the workingmen were ready and, when he stood up to preach to them, they received him with a deafening din, made by pounding on pieces of metal they had brought from the shop, so that the poor fellow could not speak at all, and when, with roars of awful laughter they unfurled some ribald banner fresh from the paint shop of their establishment, advising him to go to hell where he was always consigning so many of his fellow human beings, he went away quite broken-hearted. It was in that mood and perhaps a little chastened by his experience that he

came to see me. I could agree with him, of course, that the men had acted like the perfect barbarians they could be at times, but there was nothing I could do for him, nothing I could tell him. I learned long ago that you cannot tell a man anything unless he knows it already!

And yet that preacher's case was perfectly simple. He had come to the city not long before, and of course, had come from the country. His training and his experience had all been rural, he knew nothing whatever of the life of our cities or of their problems; he thought only in agrarian sequences. He had a little code of conduct consisting of a few perfectly simple negatives, namely, men should not use tobacco, or liquor, or attend theaters or circuses, or play with colored cards, or violate (that is, do anything pleasant on) the Sabbath day. And whenever he saw people doing any of these things it was his duty to dissuade them from doing them, and if he could not dissuade them, then it was the duty of the authorities to force the people to stop doing these things by sending policemen after them. Poverty was caused either by drink, or by idleness, though usually by drink, and if the saloons were closed, drinking would cease!

This was the man's conception. Of the condition of the workingmen in the cities he had literally no notion. He knew they worked, and that working made them tired, of course, just as it made farmers tired. He saw no difference between the labor in the agricultural field and that in the industrial field. That men who had been shut up in dusty factories for six days, working intently at whirling machines, under the bulb of an electric light, felt, when they came to the one day of rest, that they should like to go outdoors and breathe the air, and have some relaxation, some fun, had never occurred to him. That they had to work so hard, too, that stimulants were perhaps a necessity, never occurred to him, just as it had never occurred to him that when one of these workers left home there was no place for him to go unless he went to a saloon, where there were light and warmth and companionship, and, above all, liberty; or to a cheap theatre or in the summer to a baseball game. And he could not understand why these men resented his suggestion that they give up all these things, and instead do as farmers do on Sunday, or as they pretend to do, that is, stay indoors, or, if they do go out, go out to attend church.

And what was most curious of all, he had not the slightest notion of what we meant when we spoke of the street railway problem. He knew, of

course, that it was proposed to reduce the fare a cent or two cents, but that was not important; what were two cents? That there was anything immoral in watering stock, in seizing millions of the communal value, had never occurred to him, and in the midst of all the complexities of city life he remained utterly naïve, bound up in his little code, with not the glimmer of a ray of light on social conditions or problems, or of economics, or, in a word, of life. To him there were no social problems that the Anti-Saloon League could not solve in a week, if wicked officials would only give them enough policemen and a free rein to do it.

And so he wondered why the workingmen would not come to hear him preach, or at least would not listen to him at the door of their shop!

And most of the parsons in the town—at that time, though it is not so any more, so rapidly have changes come in our thought—were of this frame of mind. Not one of them supported our cause; many of them denounced it, and continued to denounce it, for years. Now and then there was one who might whisper to me privately that he understood and favored our efforts, but not one ever spoke out publicly, unless it were to denounce us. And several times they attacked me in their prayers. For instance, if—after I became mayor—I went to deliver an address of welcome, and a preacher was there to open the assembly with prayer, he sometimes would take advantage of the situation and, in the pretense of asking a blessing on the “chief magistrate of our beloved city,” point out my short-comings and read me a lecture on my duties with his eyes shut and his hands folded. To that attack it would have been necessary, I presume, though I am not quite sure of the ecclesiastical etiquette, to reply with my eyes shut and my hands folded, but Jones had said: “When He was reviled, He reviled not again,” and “He that endureth to the end.” It seemed as good a plan as any. I never replied to these or any other of their attacks. Some of the leaders of our movement always insisted that the preachers opposed us because they were influenced, according to the historical precedents, by their economic dependence on the privileged class. But if that is true I am sure the influence was unconscious in most cases, and that they simply did not understand. They were all desperately sincere. That was the chief difficulty with them.

Indeed, I found it better never to reply to any criticisms or attacks whatever. The philosophy of that attitude has been pretty well set forth I think by

Emerson, though it has been so long since I have read it that I do not now know in which of his essays or his poems or his lectures he revealed it, though probably it would be found in all three since, shrewd Yankee that he was, he cast every thought he had in three forms. Had he lived in our day he might in addition have dramatized each one of them. But from his advice never to apologize, one may proceed to the virtue of never explaining. It saves an immense amount of time and energy, for since a politician's enemies are legion, and are constantly increasing in number, and can attack him, as it were, in relays, he must have enormous energy if he is to reply in detail to all of them; he will find himself after a while more desperately involved than was the man in Kipling's story, who through the Indian Government kept his enemy toiling night and day to answer foolish questions about pigs, and, what was worse, explaining his previous answers.

Telling what one is going to do is equally as foolish as explaining what one has done, or denying what one has not done, and so promises could be dispensed with as easily as retorts and explanations. Long catalogues of promised prodigies and miracles are of course absurd, and the bawling and blowing politician (as Walt Whitman called him) can make them as fluently in his evil cause as can the purest of the reformers. I had been disgusted too often with such performances to be able to enter into competition of that sort, and so let our little platform speak for itself and did not even promise to be good. And the people understood.

I have often heard men complain of the strain and fatigue of political campaigning, and I sometimes think much of their distress arises from the fact that they campaign in ways that are not necessary, if nothing more derogatory is to be said of them. There is of course the fatigue that comes of nervous strain and anxiety, and this is very great, but the haggard visage and the husky voice are all unnecessary. It is no wonder to be sure that some men break down in campaigns, since their cause is so bad that anyone might well be expected to sicken in its advocacy, and in furthering it it is perhaps inevitable that their efforts partake in a measure of its corruption. There is no exercise that is physically more beneficial than speaking, especially speaking in the open air, provided one knows how to use his voice and does not attempt to shout up the wind; and two or three speeches at noon, just before luncheon and four or five more in the evening after

dinner may be recommended as an excellent course in physical culture, if when one is done one's speeches for the evening one will go home and, for an hour, read, say "Huckleberry Finn" or "Tom Sawyer" before he goes to bed. I can recommend these two great American novels with entire confidence in their power to refresh, and in their deep and true and delightful philosophy to correct aberrations in the point of view—of one's self, in the first place, and of some other things of much more importance than one's self. If the cause be one in which one believes there is an incomparable exhilaration in it all. And it was with some pride that I came through that first campaign without having lost either my temper or my voice.

There must always remain the memory of those throngs in the meetings, those workingmen who came pouring out of the shops and factories at noon, glad as school boys to be released for a little while from toil, laughing, whistling, engaging in rude pleasantries, jostling, teasing and joking each other, and then, suddenly, pausing, gathering about the motor car, drawing closer, pressing up to the foot-board, and listening, with eager, intent faces, in which there was such instant appreciation of a joke, a pleasantry, anything to make them laugh, and yet somehow the adumbration of a yearning and a hope. Lyman Wachenheimer—who as judge of the police court once had fined Jones for contempt of court, but had come later to agree with him and now was candidate for prosecuting attorney of the county—would stand up in the car, lean over, and speak to them out of the splendid new faith in democracy that had come to him, and the rest of us in our turn would speak. We did not ask them to vote for us; our message was at least higher than that old foolish and selfish appeal. First of all we wished them to vote for themselves, we wished them to vote their own convictions, and not merely to follow with the old partizan blindness the boss or the employer or someone else who told them how to vote. And all too soon for the orators warming to their work—they must speak rapidly, they must speak simply and come to the point, for the demands of the street meeting are obdurate and out under the open sky there is short shrift for insincerity or any of the old pretense and buncombe—the whistle blows, the men turn and scatter, the crowd melts away, a few linger to the last minute to catch the last word, and then they turn and run, and as they go they lift high the perpendicular hand—Walt Whitman's sign of democracy.... Do you know it? Sometimes one of the section gang working on the railroad, pausing in

his labor while the Limited sweeps by, looks up and to the idle one on the rear platform of the observation car, going for his long holiday, he waves his hand in a gesture instinct with grace and the sincere greeting of a fellow human being, and perhaps because—alas!—the moment of their swift and instantly passing communication is isolated from all the complexities of our civilized life, because it is to vanish too soon for the differences men have made between themselves to assert their distinction, there is that one instant of perfect understanding. Sometimes a man in a boat sailing by will hail you with this gesture from his passing craft; he is safe from long contact, he can run a risk and for that little moment yield to the adventure of picking up an acquaintance. Sometimes it is the engineer of a locomotive leaning out of his cab window, giving you perhaps a droll wink, and there are tramps who from a box car will exchange a friendly greeting. And I shall never forget the little Irish sailor up on the boat deck with whom I talked in the early darkness of an autumn evening in the middle of the Atlantic, with the appalling loneliness of the sea as night came down to meet it in mystery, and the smoke from the funnels trailed up off to the southwest on a rising and sinister wind; he told me of his mother and his uncle—“who makes his five guineas a week and doesn’t know the taste of liquor”—and of his little ambitions, and so, after a bit, of the mysteries of life, with a perfect *camaraderie*, as we stood there leaning over the rail, and then, suddenly, when we parted, invested himself with a wholly different manner, and touched his cap in a little salute and left me to the inanities of the smoking-room.

It was something like that, those intimacies, vouchsafed for a moment in our early meetings, whether those at noon or those at night, in the suffocating little halls, or the cold tent, with the torches tossing their flames in your eyes as you spoke, and it was even that way in those curious meetings down in the darker quarter of the town, where the waste of the city lifted up faces that were seared and scarred with the appalling catastrophes of the soul that had somehow befallen them, and there was unutterable longing there.

The one thing that marred these contacts was not only that one was so powerless to help these men, but that one stood before them in an attitude that somehow suggested to them, inevitably, from long habit and the pretense of men who sought power for themselves, that one needed only to

be placed in a certain official relation to them, and to be addressed by a certain title, to be able to help them. It was enough to make one ashamed, almost enough to cause one to prefer that they should vote for someone else, and relieve one from this dreadful self-consciousness, this dreadful responsibility.

And these were the people! These were they who had been so long proscribed and exploited; they had borne a few of the favored of the fates on their backs, and yet, bewildered, they were somehow expectant of that good to come to them which had been promised in the words and phrases by which their very acquiescence and subjugation had so mysteriously been wrought—"Life, liberty and the pursuit of happiness."

Where? And for them, when? Not through the efforts of those who employed cold phrases about "good" government, and "reform," and "business" administrations, and efficiency methods, and enforcement of the laws, and law and order, and all that sort of thing, and class consciousness, and economic, or any other interpretation of history, or through initiatives, referendums and recalls. What good would any of these cold and precise formulæ do them? Better perhaps the turkey at Thanksgiving, and the goose at Christmas time which the old machine councilman from the ward gave them; of course they themselves paid for them, but they did not know it, and the councilman did not know it; he had bestowed them with the voice of kindness, in the same hearty human spirit in which he came to the wedding or the wake, or got the father a job, or the oldest son a parole from the workhouse, and rendered a thousand other little personal services. Perhaps Bath House John and Hinky Dink were more nearly right after all than the cold and formal and precise gentleman who denounced their records in the council. For they were human, and the great problem is to make the government of a city human.

There were many, of course, even in our own movement, who were not concerned about that; I was strongly rebuked by one of them once in that very first campaign for declaring that we were no better than anyone else, and that all the "good" men of the world could not do the people much good even if they were elected to the city government for life. No, we may have efficient governments in our cities, and honest governments, as we are beginning to have everywhere, and, happily, are more and more to have, but the great emancipations will not come through the formulæ of

Independents, Socialists, or single-taxers, nor through Law and Order Leagues, nor Civic Associations. Down in their hearts these are not what the people want. What they want is a life that is fuller, more beautiful, more splendid and, above all, more human. And nobody can prepare it and hand it over to them. They must get it themselves; it must come up through them and out of them, through long and toilsome processes of development; for such is democracy.

“That man’s program will take a thousand years!” Lincoln Steffens had said in despair that day I introduced him to Jones. Yes—or a hundred thousand. But there is no other way.

XXXV

The most efficient executive of which there is any record in history is clearly that little centurion who could say: "For I also am a man set under authority, having under me soldiers; and I say unto one, go, and he goeth; and to another, come, and he cometh; and to my servant, do this, and he doeth it."

In my experience as an executive I learned that it was easy to say "Go," but that the fellows did not go promptly; I could say "Come," and he came—after a while, perhaps, when I had said "Come" again, and that sometimes, having said "Do this," I had to go myself and do it, or leave it undone.

Executive ability is a mysterious quality inhering in personality, and partaking of its mysteries.

I had gone into the mayor's office feeling that I was about the most ill-prepared man for such a job in the town. Naturally I had turned to Tom Johnson, who had a tremendous reputation as an executive; even his worst enemy, as the saying is, would not deny his wonderful executive ability. I went to him in a sort of despair, and he laughed and leaned over and whispered——

But perhaps after all I should not tell. It was spoken in confidence. And it is ungenerous and unkind to destroy the cherished illusions of the world, almost as unkind, I was about to say, as it is difficult, since there is nothing the world so cherishes and hugs to its sad old withered bosom as it does its illusions. It may be that they are entirely necessary to it, it may be that it could not get along without them. What would this nation have done, after all, if it had not been for executive ability and the judicial temperament? The judicial temperament consists, of course, in nothing more than the calm assurance which enables one to put off till to-morrow problems that should be decided to-day, for if allowed to go long enough problems will solve themselves, just as letters unanswered long enough despatch their own replies.

I had deduced that generalization for myself long ago, while waiting for judges to hand down opinions, and then in decisions reading the well-known formula: "The court does not find it necessary to pass on this particular point at this time." Why, I applied one time to the Supreme Court, on a Wednesday morning, for a stay of execution on behalf of a man who was to be burned alive in our electric chair on the following Friday, and the judicial temperament who at that time happened to be chief justice calmly said that the application would be taken under advisement and a decision handed down in due course, which, at the earliest, was the following Tuesday morning. But the governor half an hour afterward said, "Oh, well, don't worry; if the court doesn't act, I'll reprieve him," an example, perhaps, of what I had in mind when I was writing those vague thoughts about making government human. But executive ability! I had, and still have, great admiration and reverence for that——

But Tom Johnson leaned over that afternoon, as we sat there in the committee room of the House at Columbus, and laughed and whispered:

"It's the simplest thing in the world; decide every question quickly and be right half the time. And get somebody who can do the work. That's all there is to executive ability."

I looked at him in amazement. He had grown quite serious.

"There's another thing," he added. "Don't spend too much time in your office. A quarter of an hour each day is generally too long, unless there are a whole lot of letters. Of course," he went on reflectively, "you can get clerks who can sign your name better than you can."

XXXVI

The first thing was to get men who could do the work, a difficulty made greater because we have been accustomed to bestow public offices as rewards for political service; the office is for the man, not the man for the office. I had a friend, a young man, who had never been in politics in his life, though he had been born and reared in Ohio. He was of an old, wealthy and aristocratic family, a graduate of an eastern university. His name was Franklin Macomber. I appointed him a member of the Board of Public Safety—we still had the board plan of government then—and the appointment to office of a young aristocrat afforded the newspapers and cartoonists an opportunity for ridicule which they did not overlook. But I knew the boy. I had seen him play football, for one thing, and I knew how he managed his own business. The vigor and the nerve he had displayed on the football field at once showed in his duties, and the ability and devotion he displayed in his own affairs he applied in the public service. The criticism to which the administration was constantly subjected distressed him; he heard so much of it at the fashionable club where he had his luncheons. One afternoon he came into City Hall with an expression more somber than usual, and as he sat down in my office he began:

“They are saying——”

“Who are saying?” I asked.

“The people,” he replied.

He had come, of course, from his luncheon at the club. His motor car was at the door of the city hall, and I asked him to take me for a drive, and I suggested certain parts of town through which, for a change, we might go. We ignored the avenues and the boulevards, and for two hours drove about through quiet streets far from the life of the town as we knew it and as all men down in the business section knew it—the old third ward, where the Poles lived, and around to the upper end of the old seventh where the shops and factories were, and then on over through the eighth and the ninth, and so up to the Hill, and after we had passed by all those blocks and blocks of

humble little homes, cottages of one story, and all that, I asked him if he knew what the folk who lived in them were saying about the administration.

“Why, no,” he answered. “I never talk with any of them.”

“Well,” I ventured to say, “they are the people, they who live in those little houses with the low roofs. It is important to know how they feel, too.”

I always felt that he had a new vision after that; he saw that if government was to mean anything to these persons, it must be made human, and the reforms in the police and fire departments he wrought out in that spirit were such that when he died, in not quite four years, when he was just turned thirty, the cartoonist had long since ceased to caricature him as an idle fop, and the newspaper editorials mourned him, in common with most of the community, as one of the best public servants our city, or any city, ever had.

XXXVII

I went into the mayor's office, as I said, all unprepared. My equipment was what the observations of a political reporter, a young lawyer's participation in the politics of his state, and an intimacy with Golden Rule Jones could make it. It was not much, though it was as much perhaps as have most men who become municipal officials in our land, where in all branches of the civil service, training and experience, when they are considered at all, seem to be the last requisites. The condition I suppose is implicit in democracy, which has the defects of its own virtues, and founds its institutions in distrust. They order these things better in Germany, by committing the administration of municipal affairs to trained men as to a learned profession, though the German cities have the disadvantage of having so reformed their civil service that it is a monstrous bureaucracy. I had been chosen chiefly because I had been the friend of my distinguished predecessor, and for a long time I was so inveterately referred to as of that honored relation, so invariably introduced as the successor of Golden Rule Jones, that I was haunted by the disquieting dread that I was expected to be, if not a replica of him, at least some sort of measurable imitation of his manners and methods, the most impossible achievement in the world, since his was a personality wholly original and unique. And then besides, a man prefers to be himself. But of all those, and they were many and respectable, who doubted my ability, there was none whose distrust could exceed my own. I knew one thing, at any rate, and that was, that I did not know.

Aside from my political principles, which I presume may as well be called liberal, and certain theories which were called radical, though even then I knew enough of human nature to know that they could not be realized, especially in one small city in the American Middle West, I had been able to make, or at least to recognize when others made them, as Mr. Bryce and most of the students of municipal government in America had done, two or three generalizations which, upon the whole, after four terms in a mayor's office testing them, I still believe to be sound. The first was that, whatever the mere form of local government, our cities were directly ruled by those small coteries we had come to call political machines; the second, that these

machines ruled the cities for the benefit of public utility corporations; and the third, that the legal power through which this was accomplished was derived from legislatures controlled by the same persons in the same interest. That is, the people had no voice in their own affairs; representative government itself had disappeared. Therefore these remedies seemed to be indicated, as the doctors say—non-partizan city elections, municipal ownership, and home rule for cities. This was the task, this was the program.

We had already defeated the machines; Jones had made that victory possible by his great pioneer work in destroying the superstition of party regularity. I say defeated the machines, when perhaps I should say checked the machines, since the bosses remained and the partizans who made them possible. And the public utilities were in private hands, the street railway company still was there, desperate because its franchises were about to expire, and its securities, through the financiering too familiar to America in these latter days, six times the amount of its actual investment. And down at Columbus, the legislature still was sitting, controlled by rural members who knew nothing of cities or of city life or city problems, farmers and country lawyers and the politicians of small towns, who, in the historic opposition of the ruralite to the urbanite, could not only favor their party confreres and conspirators from the city—machine politicians to whom they turned for advice—but gain a cheap *réclame* at home by opposing every measure designed to set the cities free. Thus the bosses in both parties, the machine politicians, the corporations, and their lawyers, promoters, lobbyists, kept editors, ward heelers, office holders, spies, and parasites of every kind were lying in wait on every hand. And besides, though inspired by other motives, the “good” people were always insisting on the “moral” issue; urging us to turn aside from our larger immediate purpose, and concentrate our official attention on the “bad” people—and wreck our movement. Our immediate purpose was to defeat the effort of the street railway company to obtain a franchise, to prevent it from performing the miracle of transmuting twenty-five millions in green paper into twenty-five millions in gold, and thereby absorb the commercial values of half a century. To do this it was necessary to win elections for years, and to win elections, one must have votes, and “bad” people have votes, equally with “good” people, and if one is to judge from the comment of the “good” people on the election returns, the “bad” people in most cities are in the majority. On that point, I believe, the

reformers and the politicians at least are agreed. More than this, we had to obtain from reluctant legislatures the powers that would put the city at least on equal terms with the corporations which had always proved so much more potent than the city. Such was the struggle our movement faced, such was the victory to be won before our city could be free from the triumvirate that so long had exploited it, the political boss, the franchise promoter, and the country politician. The Free City! That was the noble dream.

Well might the wise and sophisticated laugh at their mayor and call him dreamer! It was, and, alas, it is a dream. But youth is so sublimely confident, and counts so little on opposition. Not the opposition of those who array themselves against it—that was to be expected, of course, that was part of the glorious conflict—but the opposition from within the ranks, the opposition on the hither side of the barricade. For youth thinks, sometimes, that even opponents may be won, if only they can be brought to that vantage ground whence one inevitably beholds the fair and radiant vision. It had not expected the falling away of followers, of supporters, even of friends—the strangely averted eye on the street, the suddenly abandoned weekly call, the cessation of little notes of encouragement, the amazing revelations of malignity and bitterness at election times, and the flood increasing in volume at each succeeding election. One man, thought to be devoted to a cause, fails in his desire to secure an office; another you refuse a contract; he whom you neglected to favor in January punctually appears in the opposition ranks in November, one by one they drop away, and multiply into an army. Even in the official group in the City Hall and in the council, there are jealousies, and childish spites, and pitiable little ambitions and with them misunderstanding, gossip, slander, anonymous attacks, lies, abuse, hatred, until youth makes the awful discovery that there is, after all, in human nature, pure malice, and youth must fight hard to retain its ideals, so continually are all the old lovely illusions stripped away in this bewildering complication of little tragedies and comedies we call life.

To be sure, youth might have known, having read the like in books from infancy, and having made some reflections of its own on the irony of things, and indulged from time to time in philosophizings. But that was about the experience of others, from which none of us is wise enough to learn. Most of us indeed are not wise enough to learn from our own. It is all a part of

life. What a thing human life is, to be sure, and human nature! *Ay di mi!* as Carlyle used to say. Patience, and shuffle the cards!...

... I had no intention of recalling such things. Did not Jones say that when the Golden Rule would not work, it was not the fault of the Rule, but because one did not quite know how to work it? I have no intention of setting down the failures or the little successes of four terms as mayor. Nor shall I write a little history of those terms in office; I could not, and it would not be worth while if I could. I shall not attempt in these pages a treatise on municipal government, for if the task were rightly executed, it would be a history of civilization. Non-partizanship in municipal elections, municipal ownership, home rule for cities,—who is interested in these? I have discussed them in interviews—(“Is there to be a statement for us this morning, Mr. Mayor?”)—and speeches numerous as autumn leaves, and like them, lost now in the winds to which they were given.

After all, it is life in which we are all interested. And one sees a deal of life in a mayor’s office, and in it one may learn to envisage it as—just life. Then one can have a philosophy about it, though one cannot discover a panacea, some sort of sociological patent medicine to be administered to the community, like Socialism, or Prohibition, or absolute law enforcement, or the commission form of government. One indeed may open one’s eyes and look at one’s city and presently behold its vast antitheses, its boulevards and marble palaces at one end, and its slums, its tenements and tenderloins at the other. He may discern there the operations of universal and inexorable laws, and realize the tremendous conflict that everywhere and in all times goes on between privilege and the people. Such a view may simplify life for him; it may make easy the peroration to the campaign speech; it may provide a glib and facile answer to any question. But he should have a care lest it make him the slave of its own *clichés*, as Socialists for instance, when they become purely scientific, explain every human impulse, emotion and deed by simply repeating the formula “Economic determinism.”

But it will not do; it will not suffice. This view of life is simple only because it is narrow and confined; in far perspectives there appear curious and perplexing contradictions. And even then, the most exhaustive analysis of life and of human society, however immense and comprehensive, however logical and inevitable its generalizations, must always fall short simply because no human mind and no assembly of human minds can ever

wholly envisage the vast and bewildering complexity of human life. Each man views life from that angle where he happens to have been placed by forces he cannot comprehend. All of which no doubt is a mere repetition in feebler terms of what has heretofore been spoken of the inherent vice of the sectarian mind. There are no rigid distinctions of good and bad, of proletarians and capitalists, of privileged and proscribed; there are just people, just folks, as Jones said, with their human weaknesses, follies, and mistakes, their petty ambitions, their miserable jealousies and envies, their triumphs, and glories and boundless dreams, and all tending somewhither, they know not where nor how, and all pretty much alike. And government, be its form what it may, is but the reflection of all these qualities. The city, said Coriolanus, is the people, and as Jones used to say, with those strange embracing gestures, "I believe in *all* the people."

XXXVIII

However, all these confused elements make the task of a mayor exceedingly difficult, especially in America where there are, not so many kinds of people, but so many different standards and customs and habits. When one gets down into humanity, one beholds not two classes, separate and distinct as the sexes, but innumerable classes. In Toledo something more than twenty languages and dialects are spoken every day, and as the mayor is addressed the chorus becomes a very babel, a confusion of tongues, all counseling him to his duty. The result is apt to be perplexing at times. The rights of “business” in the streets and to the public property, the proper bounds within which strikers and strike breakers are to be confined, the limitations of the activities of pickets, the hours in which it is proper to drink beer, who in the community should gamble, whether Irishmen or Germans make the better policemen; the exact proportion of public jobs which Poles and Hungarians should hold; whether Socialists on their soap boxes are obstructing traffic or merely exercising the constitutional right of free speech, whether there are more Catholics than Protestants holding office; whether the East Side is receiving its due consideration in comparison with the West Side; whether boys have the right to play ball in the streets, and lovers to spoon in parks, and whose conceptions of morals is to prevail—these, like the sins of the Psalmist, are ever before him.

And with it all there is a strange, inexplicable belief in the almost supernatural power of a mayor. I have been waited on by committees—of aged men—demanding that I stop at once those lovers who sought the public park on moonlit nights in June, I have been roused from bed at two o’clock in the morning, with a demand that a team of horses in a barn four miles on the other side of town be fed; innumerable ladies have appealed to me to compel their husbands to show them more affectionate attention, others have asked me to prohibit their neighbors from talking about them. One Jewish resident was so devout that he emigrated to Jerusalem, and his family insisted that I recall him; a Christian missionary asked me to detail policemen to assist him in converting the Jews to his creed; and pathetic mothers were ever imploring me to order the release of their sons and

husbands from prisons and penitentiaries, over which I had no possible jurisdiction. I have recalled I know not how many times a remark Jones made one evening after one of those weary days I afterward came to know so well; "I could wash my hands every day in women's tears."

Of course, the main thing was not to wash one's hands of them or their difficulties. I remember one poor soul whose husband was in the penitentiary. She came to me in a despair that was almost frantic, and showed me a letter she had received from her husband. A new governor had been elected in that state wherein he was imprisoned, and he urged his wife, in the letter she gave me to read, to secure a pardon for him before the new governor was inaugurated. "They say," he wrote, "that the new governor is a good church member, which is a bad sign for being good to prisoners."

Poor soul! It was impossible to explain to her that I was wholly powerless. She stood and humbly shook her sorrowful head, and to each new attempt at explanation she said:

"You are the father of all."

It was a phrase which most of the women of the foreign born population employed; they repeated it as though it were some charmed formula. This exaggerated notion of the mayoral power was not confined to those citizens of the foreign quarters; it was shared by many of the native Americans, who held the mayor responsible for all the vices of the community, and I was never more sharply criticized than when, in refusing to sanction the enactment of a curfew ordinance, I tentatively advanced the suggestion that, if it did not seem too outrageously radical, the rearing and training of children was the duty, not so much of the police as of parents, pastors and teachers.

It may have been because, in some way, it had got abroad that I was a reformer myself. It was at a time when there was new and searching inquiry, and a new sense of public decency, the result of a profound impulse in the public consciousness, and I had been of those who in my town had opposed the political machines. Constructive thinking and constructive work being the hardest task in the world, one of which our democracy in its present development is not yet fully capable, the impulse spent itself largely in destructive work. That was natural; it is a quality inherent in humanity. My friend Kermode F. Gill, the artist-builder and contractor of Cleveland,

once told me that while it is difficult to get men to carry on any large construction, and carry it on well, and necessary to set task masters over them to have the work done at all, there is a wholly different spirit in evidence when the work is one of demolition. If a great building is to be torn down, the men need no task masters, no speeding up, they fly at it in a perfect frenzy, with a veritable passion, and tear it down so swiftly that the one difficulty is to get the salvage. And in the course of building public works I have observed the same phenomenon. While the forces are tearing down, while they are excavating, that black fringe of spectators, the “crow line” the builders call it, is always there. But when once the work is above ground, and construction begins, when the structure lifts itself, when it aspires,—the crow line dissolves and melts quite away. This, in a sense, is true of man in any of his operations. When the great awakening came, after the first shock of surprise, after the first resolve to do better, the public went at the work of demolition, all about the arena the thumbs of the multitude were turned down, and we witnessed the tragedy of men who but a short while before had been praised and lauded for their possessions, and used as models for little boys in Sunday-school, suddenly stripped of all their coveted garments, and held up to the hatred and ridicule of a world that can yet think of nothing better than the stocks, the pillory, the jail, and the scaffold.

In Edinburgh I was shown a little church of which Sir Walter Scott was once a vestryman, or deacon or elder or some such official, and in the door still hung the irons in which offenders were fastened on Sunday mornings so that the righteous, as they went to pray, might comfort themselves with a consoling sense of their own goodness by spitting in the face of the sinner. Many of our reforms are still carried on in this spirit, and are no more sensible or productive of good.

The word “reformer,” like the word “politician” has degenerated, and, in the mind of the common man, come to connote something very disagreeable. In four terms as mayor I came to know both species pretty well, and, in the later connotations of the term, I prefer the politician. He, at least, is human. The reformers, as Emerson said, affect one as the insane do; their motives may be pious, but their methods are profane. They are a buzz in the ear.

I had read this in Emerson in my youth, when for a long time I had a veritable passion for him, just as in a former stage, and another mood, I had

had a veritable passion for books about Napoleon, and, at another, for the works of Carlyle, and the controversy excited by the reckless Froude; but the truth—as it appears to me, or at any rate, the part of a truth—was not borne in upon me until I came to know and to regard, with dread, the possibility that I might be included in their number, which I should not like, unless it were as a mere brother in humanity, somewhat estranged in spirit though we should be.

XXXIX

The disadvantages of being classed as a reformer are not, I am sure, sufficiently appreciated; if they were the peace of the world would not be troubled as constantly as it is by those who would make mankind over on a model of which they present themselves as the unattractive example. One of those advantages is that each reformer thinks that all the other reformers are in honor committed to his reform; he writes them letters asking for expressions of sympathy and support, and, generally, when he finds that each of the others has some darling reform of his own which he is determined to try on an unwilling public, he is at once denounced as a traitor to the whole scheme of reform in the universe. Another disadvantage is that reformers never are reëlected, and I might set forth others, were it my intention to embark on that interesting subject.

I am moved to these observations, however, by the recollection of an experience, exasperating at the time, though now of no moment, since it has cured itself as will most exasperations if left long enough to themselves. Its importance, if it have any importance at all, may be ascribed to its effect of having saved me from any such fatal classification, unless I were far enough away from home, where almost anyone may be regarded as a reformer. To be sure, as I was just saying, in the days immediately following my first election, I was regarded by many of the sacred and illuminated host of reformers in the land as one of them, since I was asked to join in all sorts of movements for all sorts of prohibitions,—of the use of intoxicating liquors and tobacco and cigarettes, and I know not what other vices abhorred by those who are not addicted to them,—but it was my good luck, as it seems now to have been, to be saved from that fate by as good and faithful an enemy as ever helped a politician along. The Democrats had been placed in power that year in Ohio, and with Tom Johnson, many of us felt that it was an opportunity to secure certain changes in the laws of Ohio relating to the government of cities, that is, we felt it was time to secure our own reforms; everyone else, of course, felt the same way about his reforms. We had organized late in the previous year an association of the mayors of the cities in the state for the purpose of making changes in the municipal

code that would give the cities a more mobile form of government and greater powers, in other words, it was the first definite movement in favor of home rule for cities, a liberation for which we struggled for almost a decade before we achieved any measure of success. We had drafted a new municipal code and had met at Columbus early in that January in which I took my office, to put the finishing touches to our code before presenting it to the legislature, and one morning I strolled into the hall of the House of Representatives before the daily session had been convened.

There was in the House at that time a newly elected member whom Johnson had supported for election and no sooner was he in his seat than he opposed every measure Johnson espoused, and, under the warming applause his disloyalty won from Johnson's enemies, he became an opponent of the mayor more vociferous than effective. He was exactly, I think, of that type described by Emerson, who in the course of saying everything worth saying, or that will be worth saying for the next two hundred years, said: "Republics abound in young civilians who believe that the laws make the city, that grave modifications of the policy and modes of living and employments of the population, that commerce, education and religion, may be voted in or out; and that any measure, though it were absurd, may be imposed on a people if only you can get sufficient voices to make it a law. But the wise know that foolish legislation is a rope of sand which perishes in the twisting; that the state must follow and not lead the character and progress of the citizen; the strongest usurper is quickly got rid of; and they only who build on Ideas build for eternity; and that the form of government which prevails is the expression of what cultivation exists in the population which permits it. The law is only a memorandum. We are superstitious, and esteem the statute somewhat; so much life as it has in the character of living men is its force."

I knew this young civilian then only as one of the Johnson group and as that was sufficient introduction, in the *camaraderie* that existed between those of us who were devoted to the same cause, I stopped, at his salutation, and chatted with him for a moment. He had asked my opinion on a bill he had introduced, a measure to prohibit or regulate public dances in cities, or some such thing, and when I failed to evince the due degree of interest in the young man's measure, he was at once displeased and tried to heat me to the proper degree of warmth in the holy cause of reform. He began, of

course, by an indignant demand to know if I was in favor of the evils that were connected with public dances, and when I tried to show him that my inability to recognize his measure as the only adequate method of dealing with those evils did not necessarily indicate approval of them, he struck the prescribed attitude, held up his right hand and said something in the melodramatic style, about the oath of office I had taken not many days before. I saw at once then that I was dealing with a member in high standing of the order of the indurated sectarian mind, whose fanaticism makes them the most impossible persons in the world, and having never been certain which of the advice in the Proverbs should be accepted, I yielded to a fatal habit of joking—the history of the Republic is strewn with the wrecks of careers that were broken by a jest—and told him that I had taken my oath of office before a notary public, and that perhaps it had not been of full efficacy on that account.

And then I went away, and forgot the incident. It was revived in my memory, however, and intensified in its interest for me the next morning, when on getting back home, I saw in the newspapers a despatch from Columbus, under the most ominous of black headlines, stating that I had told the distinguished representative, on the very floor of the House, under the aegis, one almost might say, of the state, that I had no reverence for my oath of office, and did not intend to respect it. Here was anarchy for you, indeed, from the old pupil of Altgeld!

It was, of course, useless to explain, since any statement I might make would be but one more welcome knot to the tangle of misrepresentation in which the unhappy incident was being so gladly snarled, and I tried to forget it, though that was impossible, since it provided the text for many a sanctimonious editorial in the land, in each one of which some addition was made to the original report. Herbert Spencer says somewhere that for every story told in the world there is some basis of truth, and I suppose he is right, but I have always felt that he did not, at least in my reading of him, sufficiently characterize that worst vice of the human mind, intellectual dishonesty. Perhaps if he had associated less with scientists and more with professional reformers of the morals of other persons he would not have omitted this curious specimen from his philosophic analysis, if he did omit it; and if that experience of the young civilian at Columbus had not been sufficient, I could have supplied him with another out of an episode in

which I had borne a part some years before, one which should have been sufficient to warn me against the type for the rest of my life.

It concerns another young civilian, though this one was so old that he should have known better, and relates to a time years before when I happened to be running for the state senate. I say happened, for it was precisely of that fortuitous nature, since I had not been concerned in the circumstances which nominated me, so entirely negative in their character that I might as well have been said not to be running at all. I was a young lawyer, just beginning to practice, and in my wide leisure was out of town that summer, economically spending a holiday at my father's house, and, since the Democrats had no hope in this world of carrying the district, and could get no one who was on the ground to defend himself to accept their nomination, they had nominated me. It was an honor, perhaps, but so empty and futile that when I came home again it seemed useless even to decline it, and best to forget it, and so I tried to do that, and made no campaign at all. But one afternoon I had a caller, a tall, dark visaged man, in black clerical garb, who came softly into my office, carefully closed the door, and, fixing his strange, intense eyes on me, said that he came to talk politics. He represented a reform league and he came, he said, to discuss my candidature for the state senate, and to offer me the support of his organization. "Of course," he went on to explain, "we should impose certain conditions." He fixed on me again and very intently, those strange, fanatic eyes.

I knew very well what the conditions were; it was hardly necessary for him to explain that I should be expected to sign a pledge to support the bills proposed by his organization, some of which, no doubt, were excellent measures.

I explained to him that I was under no illusions as to the campaign, that there was no possible chance of my election that year, that if there had been I never would have been nominated, and nothing short of a miracle could elect me. "But," I added, "even if that miracle happens, though it will not, and I should be elected, I should go down to Columbus and to the Senate able to say that I had made no promises whatever."

He looked at me a moment, with those strange, cold eyes peering narrowly out of his somber visage, and as he gazed they seemed to contract, and with

the faint shadow of a smile that was wholly without humor, he said:

“Well, you can say that.”

“What do you mean?” I asked.

The smile raised the man’s cheeks a little higher until they enclosed the little eyes in minute wrinkles, and invested them with an expression of the deepest cunning.

“Why, since you are opposed to signing our pledge, we will waive that in your case, and you and I can have a little private understanding—no one need ever know, and you can say——” he was gently tapping the ends of his fingers together, and the last terms of his proposal seemed to be absorbed by an expression of vulpine significance so eloquent and plain in its meaning that mere words were superfluous.

I sat there and looked at him; I had known of him, he spoke nearly every Sunday in some church, and took up collections for the reform to which, quite sincerely, I believe, he was devoting his life. Then I said:

“But that isn’t my idea even of politics, to say nothing of ethics.”

I believe now that he had no conception of the moral significance of his suggestion that we have an implied understanding which I was to be at liberty to deny if the exigencies of politics suggested it. He was a reformer, belonging to the order of the indurated mind. He was possessed by a theory, which held his mind in the relentless mould of its absolutism, and there his mind had hardened, and, alas, his heart, too, no doubt—so that its original impressions were all fixed and immutable, and not subject to change; they could not be erased nor could any new impressions be superimposed. He was convinced that his particular theory was correct, and that if only it could be imposed on mankind, the world would be infinitely better off; and that hence any means, no matter what, were permissible in effecting this imposition, because of the good that would follow. It is an old mental attitude in this world, well treated of in books, and understood and recognized by everyone except those who adopt it, and in its spirit every new reform is promulgated by its avatar. But the reformer never thinks of himself in any such light, of course, he does not understand it any more than he understands mankind’s distrust of him. It is the instinctive fear of the theorist that has been felt for every one of them from Robespierre, the

archtype, and impossibilist par excellence, down to the latest man haranguing his little idle crowd on the street corner.

XL

These observations come with the recollection of those days of my first term in the mayor's office when I had so much to do with reformers that I earnestly desired that no one would ever include me in their category. They came to see me so often and in such numbers that my whole view of life was quite in danger of distortion. It seemed that half the populace had set forth in a rage to reform mankind, and their first need was to get the mayor to use the police force to help them. When they did not call at the office, they were writing letters. The favorite day for these expressions of the reforming spirit was Monday. I had been many months in the office however, before I was able to make this generalization, though from the first I could observe that Monday took on something of that dismal and somber tone which has given it its name of blue Monday. In the early days of a simpler life in our country, when the customs of the pioneer had not been superseded by the complexities of modern existence, its color used to be ascribed to the fact that it was wash day, and perhaps it has remained a sort of moral wash day ever since. At any rate we soon discovered that everyone who had a grievance or a complaint or a suggestion about his neighbor or some larger scheme of reforming whole groups of the population was most likely to be heavily charged with it on Monday, and since the almost universal conception among us is that all reforms can be wrought by the mayor, by the simple process of issuing an order to the police, these complaints were of course lodged at the mayor's office.

They were of a curious variety, expressing, I suppose, not only all the moral yearnings of mankind, but all the meaner moods of human nature, and each new Monday morning seemed to have in reserve, for a nature that was trying to keep its faith in humanity, some fresh and theretofore unimagined instance of the depths of little meannesses to which human nature is capable of sinking. Many of them came in person with their criticism, others sent anonymous letters. Then there were those who came to repeat ugly things they had heard about me; "I wouldn't tell you this if I were not your friend. I think you ought to know it." Later in the afternoon the evenings' newspapers, with the criticisms marked, were laid on my desk. All this

made Monday the hardest day of the week, especially as the day closed with the hebdominal session of the council, where one might find now and then some pretty discouraging examples of human meanness. Tuesday was not quite so bad, though it was trying; human nature seemed to run pretty high, or pretty low, on that day, too. By Wednesday, the atmosphere began to clear, and by Thursday and Friday, everyone seemed to be attending to his own business and letting the faults of his neighbors go unnoted or at least unreported, and Saturday was a day of such calm that one's whole faith in humanity was miraculously restored; if the weather was fine one might almost discover human nature as to be good as that nature which would reveal herself on the golf links.

As a result of it all we finally made the deduction—my secretary Bernard Dailey, the stenographers in the office and the reporters who formed so pleasant an element of the life there—that it was all due to the effects of the Sunday that had intervened. In the first place, people had leisure on that day and in that leisure they could whet up their consciences and set them to the congenial task of dissecting the characters of other people, or they could contemplate the evils in the world and resolve highly to make the mayor do away with them, and then after the custom of our land they could gorge on the huge Sunday noon dinner of roast beef, and then lie about all afternoon like pythons in a torpor which produced an indigestion so acute and lasting that for three days it passed very well for pious fervor and zeal for reform. Such at least was our theory, offered here solely in the scientific spirit, and not by any means as final. It was acquiesced in by all of us at the time, and has been supported by an unvarying series of data on the Monday mornings since then.

We submitted it to Henry Frisch, the police sergeant who had been detailed for duty in the mayor's office for many years, a dear and comfortable soul, who had served under several mayors, and had developed a philosophy of life that was a very Nirvana of comfort and repose. Long ago, so it seemed when he smiled indulgently on the discomfiture of blue Monday, he had given up humanity as a bad job; to him the race was utterly and irredeemably hopeless, and without the need of saying a word he could shake his honest head at the suggestion of a new reform with a motion that was eloquent of all negation. He was very tolerant, however, and made no argument in rebuttal, he simply refused to accept humanity on any general

plane; regarding the race as a biological species merely, he would confide to you that his years of experience at that post and as a policeman who had paced his beat and afterward commanded a sergeant's squad, had convinced him that it was altogether depraved, dishonest and disgusting, but with any individual specimen of the species he was not that way at all. He was really kindness itself. The next minute, with tears in his eyes, he would go to any extremes to help some poor devil out of trouble. Unless it were reformers; for these he had no use, he said, and if his advice had been accepted he would have been permitted to expel them from the City Hall by their own beloved weapons of violence and force of arms. On Sundays he went fishing.

Perhaps at the time of which I am thinking, if not very specifically writing, there was more of this Monday spirit of reform than is usual. In the first place, much is expected of a new official and because he does not promptly work those miracles which are confidently expected whether he was foolish enough to promise them or not, he is so generally complained of that it may be set down as an axiom of practical politics that any elected official, in the executive branch of the government, could be recalled at any time during the first year of his incumbency of his office. Just then, too, there had been elected to the governorship a gentleman who had been very deeply devoted to the interests of the Methodist Church, the strongest denomination numerically in Ohio—the first governor of Ohio, indeed, was a Methodist preacher—and because of that fact and because of the use in his inaugural message of the magic phrase “law and order,” it was at once announced in the most sensational manner of the sensational press that, unless all the sumptuary laws in Ohio were drastically enforced, all the mayors of the cities would be removed. Governor Pattison had been elected as a Democrat, and during his campaign Tom Johnson and I had supported him, and it was while we were in Columbus at his inauguration that this sensation was exploited in the newspapers. I remember how Tom Johnson received it when one of his coterie brought the extra editions into the hotel and pointed out to him the dreadful predictions of the headlines; the white, aristocratic hand waved the suggestion imperiously aside, and he said:

“Four days, and it'll all be over. That's the life of a newspaper sensation.”

I believe that newspaper editors themselves place the limit of the effectiveness of a sensation at about that time, though some of them are so

shrewd that they drop the sensation the day before the people begin to lose interest in it, instead of waiting for the day on which they actually tire of it. Which may be an explanation of the fact that the beginnings of things are always treated so much more fully in the press than their endings; one always reads of the opening of the trial, and the awful charge, but is never told how it all came out in the end, unless the end was catastrophic. The theory of the press is, I believe, that good news is no news.

I do not know that poor Governor Pattison ever had any intention of raising the issue of local self-government, and of raising it in such a direct and positive way as by attempting to remove all the mayors of Ohio towns and cities in which it could be shown that some little enactment of the legislature had failed of absolute enforcement; I suppose he had no such intention, since the law gave him no such power, though that made no difference to the professional reverencers and enforcers of law. The poor man never saw the governor's office after that night of his brilliant inauguration, when he stood, very dark and weary, with features drawn, but resolutely smiling, at his levee in the senate chamber, a tragic figure in a way, the first Democratic governor in a long while, and the fates treating him with their customary irony and indignity by setting their seal upon him in the very hour of his triumph. He died in a few months, but there remained many of course who could prophesy in his name and cast out devils with each extra edition of the newspapers, and the discussion of law enforcement has gone on pretty steadily from that time to this.

XLI

I suppose the discussion is one which must go on always in any land where the people of our race and tradition dwell. A more objective, natural and naïve people would not be so interested in sin, and when the late Mayor Gaynor of New York spoke of the difficulty of administering the affairs of a modern city according to “the standard of exquisite morals” held aloft by some persons for others, he designated in his clear and clever way a class of citizens familiar to every mayor by the curiously doctrinaire order of indurated mind with which they are endowed. They begin with the naïve assumption that their standard is the one and only correct standard, and that since men have repeatedly refused to adopt it on mere inspection they must be forced to do so by the use of violence, a process which they call maintaining “law and order.” They believe that any wrong, any abuse, may be stopped instantly by the passage of a law, and if one venture to question the efficacy of any plan they propose, he is said at once to be opposed to morality and to religion, and is set down as a profane and sacrilegious person.

It is, of course, inconvenient to argue with a person who has the supreme refuge of the irrelevant conclusion; as inconvenient as it would be were one to be offered carbolic acid as a toilet article, and, upon refusal, be accused of not believing in cleanliness. This order of mind imagines that every phase of human conduct can be ordered and regulated by the enactment of statutes; that the industries, occupations, clothing, amusements, appetites, passions, prejudices, opinions, ambitions, aspirations and devotions of man can be changed, moulded and regulated by city councils and state legislatures. Every inconvenience, every difficulty, every disagreeable feature of modern life, is to be done away by the passage of a law.

That our race is saturated with this curious and amazing superstition of the power of written enactments is shown by the common terminology. The mental reactions of a large portion of mankind against the irritation of opposing opinion and conduct habitually express themselves in the phrase, “There ought to be a law.” It is heard as often every day as the stereotyped

references to the weather. Not a disagreeable incident in life is complained of without that expression; no one has a pet aversion or a darling prejudice that he does not cherish the desire of having a law passed to bring the rest of the world around to his way of feeling. And when a trust is formed, or a strike interrupts business, or the sheets on the hotel bed are too short, or the hatpin of a woman in a crowded street car is too long, or a new dance is introduced, or a boor preëmpts a seat in a train, or a cat howls on the back-yard fence in the night time, or a waiter is impertinent, or the cook leaves, the indignant citizen lifts his eyes hopefully toward that annual calamity known as the session of the state legislature, and repeats the formula: "There ought to be a law." And when the legislature assembles, a whole body of foolish bills is introduced regulating everything in the earth, and some things that are outside of the earth. If a deed is disapproved of by a group of people, an agitation is begun to make it a criminal offense; by means of pains and penalties the whole of life is to be regulated, and government is to become a vast bureaucracy of policemen, catch-polls, inspectors, beadies, censors, mentors, monitors and spies. As the session draws toward its close, the haste to enact all these measures becomes frantic. I shall never forget those scenes of riot, the howling and drunkenness and confusion and worse I have witnessed in the legislatures of Illinois and of Ohio the last night of the session. And all this delirium goes on in every state of the Union, every winter—and all these enactments must be revered. It is the phase of the apotheosis of the policeman, who is to replace nurse and parent and teacher and pastor, and, relieving all these of their responsibilities, undertake to remould man into a being of absolute perfection, in whom character may be dispensed with, since he is to dwell forever under the crystal dome of a moral vacuum from which temptation has been scientifically exhausted.

The reason is simple, and obvious; it inheres in the belief in the absolute. Your true reformer is not only without humor, without pity, without mercy, but he is without knowledge of life or of human nature, and without very much of any sort of sweetness and light. The more moral he is, the harder he is, and the more amazingly ready with cruel judgments; and he seldom smiles except with the unction that comes with the thought of his own moral superiority. He thinks there is an absolute good and an absolute bad, and hence absolutely good people and absolutely bad people.

The peculiar and distinguishing feature of his mind is that life is presented to it in stark and rigid outline. He is blandly unconscious of distinctions; he has no perception of proportions, no knowledge of values, in a word, no sense of humor. His world is made up of wholly unrelated antitheses. There are no shades or shadows, no gradations, no delicate and subtle relativities. A thing is either black or white, good or bad. A deed is either moral or immoral, a virtue or a crime. It is all very simple. All acts of which he does not himself approve are evil; all who do not think and act as he thinks and acts, are bad. If you do not know when a deed, or an opinion is wrong, he will tell you; and if you doubt him or differ with him, you are bad, and it is time to call in the police. "Whenever the Commons has nothing else to do," said the wise old member of Parliament, "it can always make a new crime." Statutes are thus enacted, as the saying is, against all evils, great and small, and the greater the evil, of course, the greater the moral triumph expressed by the mere enactment. But because of certain contrarities in nature and a certain obstreperous quality in human nature and a general complexity in life as a whole these legal fulminations are frequently triumphs only in theory, and in practice often intensify the very ills they seek to cure. As the witty Remy de Gourmont says: *Quand la morale triomphe il se passes des choses très vilaines.*

The more intensively developed specimen of the type will not overtly sin himself, but he loves to inspect those who do, and to peer at them, and to wonder how they could ever have the courage to do it; he likes to imagine their sensations, and to note each one of them as it was developed in the interesting experience. And hence the psychic lasciviousness of those who are constantly reporting plays and pictures as fit for the censor they are always clamoring for. Sometimes they go slumming as students of the evils of society. They are like pious uncles who never swear themselves under any circumstances, but relate stories of other men who do, recite their delightful experiences and roll out the awful oaths with which the profane gave vent to their feelings with a relish that is no doubt a relief to their own.

It is, I suppose, our inheritance from the Puritans, or the worst of our inheritance from the Puritans, and it is possible that it is worth while to have paid the penalty as a price for the best we derived from them, since one has to take the bad with the good, though in those days I often wished that the bequest had gone to some other of the heirs. Perhaps in thus speaking of the

good we had from them, I am merely yielding to the fear of saying openly what I have often thought, namely, that the good we had from the Puritans has been immensely overestimated and exaggerated, and is not one whit better or greater in quantity or influence than that we had from the Cavaliers, or for that matter from the latest emigrant on Ellis Island. They themselves appreciated their own goodness, and we have always taken their words for granted. I have often thought that some day, when I had the elegant leisure necessary to such a task, I should like to write "A History of Puritanism," or, since I should have to place the beginnings of the monumental work in Rome as far back at least as the reign of the first Emperor, perhaps I should be less ambitious and content myself with writing "A History of Puritanism in the United States of America." I should have to begin the larger work at that interesting period of the history of Rome when the weary Augustus was being elected and reëlected president against his will and trying to gratify the spirit of Puritanism that was even in such people as those Romans, by enacting all sorts of sumptuary laws and foolish prohibitions, and trying out to miserable failures every single one of the proposals that have since that time been made over and over again in the hope of regenerating mankind. The story of how the Emperor's own daughter was almost the first to disobey his regulations is dramatic enough to conclude rather than to begin any history, and yet I could write it with much more pity than I could the story of those Puritans who abounded in my own locality in my own time. To write fairly and philosophically of them I should have to wait not only for a leisure so large and so elegant that I am certain never to have it, but I should have to cultivate a philosophic calm which I own with shame is far from me when I think of some of the things they, or some of them, did in their efforts to force their theories on others. I should not recall such things now, and if I were to put them in that monumental and scholarly work of my imagination, it should be, of course, only in the cold scientific spirit, and as specimens, say in nonpareil type, at the foot of the page with the learned annotations.

XLII

Speaking of this passion for laws and regulations and how some of the zealous would order even the most private and personal details of life in these states, Mr. Havelock Ellis, in a brilliant chapter of his work, "The Task of Social Hygiene," takes occasion to observe that "nowhere in the world is there so great an anxiety to place the moral regulation of social affairs in the hands of police," and that "nowhere are the police more incapable of carrying out such regulation." The difficulty is due of course to the fact that the old medieval confusion of crime and vice persists in a community where the Puritan tradition still strongly survives. The incapability, as has been pointed out, is not so much in the policemen as in that *bêtise humaine* which expects such superhuman work of them.

This insistent confusion of vice with crime has not only had the effect of fostering both, but is the cause of the corruption of the police. Their proper function is to protect life and property and maintain the public peace, and this the police of American cities perform as well as policemen anywhere. But when, by a trick of the sectarian mind, the term *crime* is made to include all the follies and weaknesses and vices of humanity, where there is added the duty of enforcing statutes against a multitude of acts, some of which only Puritanical severity classes as crimes, others of which are regarded by the human beings in the community with indifference, tolerance or sympathy, while still others are inherent in mysterious and imperative instincts which balk all efforts at general control, the task becomes wholly impossible and beyond human ability.

The police know it, and everybody knows it, and it is the hypocrisy of society that corrupts them. The police know, intuitively, and without any process of ratiocination, that people are human, and subject to human frailties; they are pretty human themselves, and, in common with most of the people in the community, see no great wrong in some of the things that are done which the sumptuary laws condemn. Most of them, for instance, drink a glass of beer now and then, or play a game of cards, or go to a baseball game on Sunday. They are not apt to be gentlemen of the most

refined and exquisite tastes. And it is difficult to induce men to take much interest in punishing acts their own consciences do not condemn. This, with the situation at its best; at its worst, knowing that, despite all the enactments of legislatures, people will continue in their hardened ways, they are apt to abuse their power. For they know, too, that the statutes prohibiting the merely venial of those acts oftentimes run counter to the urban custom and that the community regards it as of no great consequence if they are not enforced. Thus a wide discretion is permitted the police by the public conscience in the discharge of their duties, and this discretion is one which quite humanly they proceed to abuse. If they choose, they may enforce the sumptuary laws against certain persons or refrain from doing so, and the opportunity for corruption is presented. The opportunity widens, opens into a larger field, and not only does the corruption spread, but it is not long before the police are employing extra legal methods in other directions, and at last in many instances establish an actual tyranny that would not be tolerated in a monarchy. The result is that we read every day of arbitrary interferences by policemen with most of the constitutional rights, such as free speech, the right of assembly and petition, etc. They even set up a censorship and condemn paintings, or prohibit the performance of plays, or assume to banish women from the streets because they are dressed in a style which the police do not consider *comme il faut*.

And while the corruption is deplored and everywhere causes indignation and despair, this tyranny does not seem to excite resistance or even remark; the press, the paladium of our liberties, does not often protest against it, and few seem to have sufficient grasp of the principle to care anything about it.

There is a story somewhere of a little girl, homeless, supperless, shivering in rags in the cold rain of the streets of New York, and of a passer-by observing in a kind of sardonic sympathy:

“And she is living under the protection of sixteen thousand laws!”

“Ah, yes,” said his friend, perhaps a professional reformer of third persons, who naturally lacked a sense of humor; “but they were not enforced!”

It is not altogether inconceivable that if all the laws had been enforced the little girl’s condition would have been even worse than it was, considering how haphazard had been the process of making all those laws, and how, if set in motion, many of them would have clashed with each other.

If they were effective, the whole of human kind would have been translated, like Enoch, long ago. Of course, the assertion that they had not been enforced was the obvious retort. And it was true, because it is impossible to enforce all of them. And what is more no one believes that all the laws should be enforced, all the time,—that is, no one believes in absolute law enforcement, since no one believes that the laws should be enforced against *him*. Everybody hates a policeman just as everybody loves a fireman. And yet the fire department and the police department are composed of the same kind of men, paid the same salaries, and responsible to the same authorities. The duty of the fireman is, of course, the simpler, because there is no disagreement among men about the thing to be done. When a fire breaks out in the city, the fire department is expected to rush to the spot, to pour water on the fire, and to continue pouring water on the fire until it ceases to burn. The reforming mind seems to think that the duty of the policeman is of equal simplicity, and that when a wrong is done, the sole duty of the police consists in rushing immediately to that spot, seizing the wrongdoer, and, by confining him in a prison, thereby eradicate his tendency to do wrong, and, by holding him up as an example to others who are considering the commission of that wrong, to deter them from it.

As far as crimes are concerned, the policemen, indeed, do fairly well. Though that they succeed in any measure at all in discharging their functions is a wonder when one considers the contumely and abuse that are constantly heaped upon them in all our cities. The newspapers, when there are no accounts of crime to print—and the assumption is that crimes and casualties, if they are horrid enough, are the principal events in the annals of mankind worth chronicling—can always print suggestions of the crimes of the police. The reporter, a human being himself, dissatisfied because the policemen cannot gratify his hunger for sensation, is not to blame, perhaps; he views life from the standpoint of his own necessities, and his conception of life is of a series of exciting tragedies enacted with a view to making the first edition interesting, so that the ears of the populace may be assaulted in the gloom of each evening's dusk by that hideous bellowing of the news "boy," whose heavy voice booms through the shade like some mighty portent of disaster in the world.

This all sounds pretty hopeless, but if morals are to be wrought by and through policemen, I am sure we shall have to pay higher salaries, and

procure men who are themselves so moral that their consciences are troubled only by the sins of others; there is no other way. Unless, of course, anything is left in these modern days of the theory of the development of individual character. But that is the program of a thousand years.

As for the future of municipal government in this land, I venture to set down this prediction: That no appreciable advance will be made, no appreciable advance can be made in any fundamental sense, so long as the so-called moral issue is the pivot on which municipal elections turn, or so long as it is allowed to remain to bedevil officials, to monopolize their time and to exhaust their energies, so that they have little of either left for their proper work of administration.

Either cities must have home rule, including the local police power, with the right to regulate amusements and resorts and even vices according to the will of the people in that city, whatever the rural view may be, or some authority other than the mayor, and far wiser and nobler than any mayor I ever knew or heard of, must be raised up by the state in whom may be united the powers and functions of a beadle, a censor, and a dictator. I have not the slightest idea where one so wise and pure is to be found, but doubtless there are plenty who do, if their modesty would permit them to speak.

XLIII

I used to recall, during the early and acute phase of this discussion, an incident that occurred in the old Springfield days in Loami, down in the Sangamon country. The little village in those days could boast an institution unlike any, perhaps, in the land, unless it were to be found in some small hamlet in the South. In the public square, on a space worn smooth and hard as asphalt, a great circle was drawn, and here, every day when the weather was fine, a company of old men gathered and played marbles. What the game was I do not know; some development of one of the boys' games, no doubt, but with what improvements and embellishments only the old men who understood and played it could say. Its enthralled votaries played with large marbles, which spun from their gnarled and horny knuckles all day long, with a shifting crowd of onlookers gaping at their prowess. The players were old and dignified, and took their sport seriously. There were to be seen, about that big ring, sages who had sat on juries and been swayed by the arguments of Lincoln; there were gray veterans who had gone with Sherman to the sea and had been with Grant at Appomattox; and now, in their declining years, they found pleasure and a mildly stimulating excitement in this exercise. The skill they developed in the game is said by those who have studied the subject on the ground to have been considerable; some testify that these elders had raised their sport to the point of scientific dignity, and that the ability they displayed ranked them as the equals of golfers or of billiardists.

The exciting tournaments went on for years, the old gentlemen were happy, the little village was peaceful and contented, when suddenly the town was shocked by a new sensation. Loami elected a reform administration. How it came about I do not know; some local muckraker may have practiced his regenerating art, or perhaps some little rivulet of the reform wave just then inundating the larger world outside may have trickled down into Loami. What privilege in the town was menaced I do not know; what portion of eminent respectability felt its perquisites in danger I cannot say; but Privilege seems to have done what it always does when pursued—namely, it began to cry for the reformation of persons instead of conditions. The new

reform mayor, like many another mayor, was influenced; and, looking about for someone to reform, his eye wandered out of the window of the town hall one May morning and lighted on the grizzled marble-players, and he ordered the constable into action.

Upon what legal grounds he based his edict I cannot say. It is not vital for, as there were about sixteen thousand laws then running in his jurisdiction, it would not have been difficult to justify his action on legal grounds. It will be remembered that the old men were playing in the public square; perhaps they played "for keeps," and it may have been that there were certain little understandings of a speculative nature on the side. Above all, the old men were enjoying themselves, and if this were not a sufficient offense what could be? And if a constable's highest duty were not to interfere with the enjoyment of other folks what would become of the constitution and the law?

At any rate the old men were forbidden to play, their game was rudely interrupted, their ring obliterated, their marbles confiscated. There was, of course, resistance; some skirmishing and scrimmaging; a heated, acrimonious proceeding in the mayor's court, and afterward hatred and strife and bad feeling, the formation of factions, and other conditions catalogued under law and order. But at length the space worn so smooth under the trees near the bandstand was sodded, and the old fellows might gather in silent contemplation of a new sign, "Keep off the Grass," and reflect upon this supreme vindication of authority.

But Loami is a democracy, or as much of a democracy as the state will permit it to be, and when the next election rolled around the old men were alert, and after an exciting contest they elected a mayor of their own, a liberal. The reform mayor was relegated to the political limbo of one-termers, the privileged few preserved their privileges, and the old men, skinning the sod off that portion of the public square, drew anew their huge bull-ring, resumed their game, and everybody was happy and unreformed except, of course, the reformers; though perhaps they were happy, too, in their restored misery of having something to complain about and to wag their heads over.

In relating this veracious little tale of the lid of Loami, perhaps I have not sufficiently revealed that attitude of moral sympathy toward the good

characters in the story which Tolstoy insists a writer should always assume and maintain. But this has not been due to any want of that sympathy. In the shadows of the scene the figure of the mayor, for instance, has ever been present—the keenest sufferer, the most unhappy man of them all. He was the one of all of them who was burdened with official responsibility; the marble-playing faction was happy in that it had no responsibility save of that light, artificial sort imposed by the rules of its game; its conscience, indeed, was untroubled. The other faction—the goo-goos, or whatever they were called in Loami—felt responsible primarily for the short-comings of others; their consciences were troubled only by the sins of other people, the easiest and most comfortable, because it is the most normal, position that the human conscience can assume. But the mayor was held responsible for everything and everybody, and in seeking to do his duty he found that difficulty which must everywhere increase in a society and a civilization which, in casting off some of its old moorings, recognizes less the responsibility of parent and teacher, not to mention personal responsibility, and is more and more disposed to look to the law and its administrators as the regulators and mentors of conduct.

XLIV

It is an axiom of municipal politics that a reform administration, or an administration elected as a protest against the evils of machine government, boss rule, and the domination of public service corporations, is immediately confronted by the demand of those who call themselves the good people to enforce all the sumptuary laws and to exterminate vice. That is, the privileged interests and their allies and representatives seek to divert the attention of the administration from themselves and their larger and more complex immoralities to the small and uninfluential offenders, an old device, always, in the hope of escape, inspired by privilege when pursued, just as friends of the fox might turn aside the hounds by drawing the aniseed bag across the trail. Many a progressive administration in this land has been led into that *cul de sac*, and as Mr. Carl Hovey observed recently of the neat saying to the effect that the way to get rid of a bad law is to enforce it, the process usually proves to be merely the way to get rid of a good administration. The effort had been made by the opponents of Golden Rule Jones and it had failed. It had been attempted in the case of Tom Johnson and it had failed, though curiously enough the effort was never made in Toledo or in Cleveland or in Cincinnati, or elsewhere for that matter, in the days of machine domination. The Puritan never lets his religion interfere with business.

I used often to recall, in those days, a witty saying of Mr. William Travers Jerome, when he was District Attorney in New York. He said he often wished that there were two volumes of the Revised Statutes, one to contain the laws enacted for human beings, and the other to embalm the moral yearnings of rural communities.

It was disturbing and discouraging, of course, to feel that out there in the community there was this shadowy mass of well intentioned people, the most of whom no doubt, in common with all the rest of us, did wish to see moral improvement, and yet so misconstrued and misinterpreted our efforts. It was saddening, too, because in the work we were trying to do we should have liked their sympathy, their interest and their support. Because of their

wider opportunity of enlightenment much better and nobler things might have been demanded of them, but as Johnson Thurston one night pointed out, they did not show as much civic spirit, as much concern for the common weal as those of smaller opportunities, those bad people as they called them of whom much less would naturally have been expected. I made a rule, as I have already said somewhere in these pages, not to talk back, or to argue with them. They viewed life from the Puritan standpoint, and I suppose that I viewed it from the pagan standpoint. The sins of others and their mistakes and failures never did excite in me that moral indignation which exists in the breasts of some; perhaps the old distinction between bad people and good people had been blurred in my consciousness. I could see that the bad people did many good things in their lives, and that the good people thought many dark and evil thoughts. I had seen indeed so much more kindness and consideration, so much more pity and mercy shown by the bad that I felt strengthened in my philosophy and in my belief that if their environment could be improved, if they could have a better chance in life, they would be as good as anybody. It seemed to me that most of the crime in the world was the result of involuntary poverty, and the tremendous, perhaps insuperable task, was to make involuntary poverty impossible. But in the meantime there was other work to be done. Aside from the problem of transportation which was but one phase of the great struggle between privilege and the people, of plutocracy with democracy, there were civic centers, city halls, markets, swimming pools, bridges to be built, parks to be improved, boulevards and parkways to be laid out, a filtration plant to be installed, improvements in all of the other departments, a great mass of wonderful work for the promotion of the public amenities, the public health, and the adornment of the city, in a word, there was a city to be built, and strangely enough this group of objectors of whom I have been speaking, were so intensely preoccupied with moral considerations that they never had even the slightest interest in these improvements. I think it is this spirit of Puritanism that has made the cities of America so ugly, or permitted them to be ugly; such conceptions as beauty and ugliness are perhaps impossible to minds that know no distinction but good and bad, and for this reason it has been difficult to make an æsthetic appeal with any effectiveness.

During three of my four terms in that office the nasty quarrel about morals raged. As I look back and think now with what virulence it did rage, it

appeals to me as a remarkable psychological phenomenon. Of course it was bad for those who engaged in it, and bad for the town as well, for such an exaggerated idea of conditions was given that the police in neighboring cities, clever rogues that they were, could always excuse and exculpate themselves for any of their delinquencies by saying that the thieves that had come to town hailed from Toledo, or that those they could not catch had gone and taken refuge there. But I did not engage in the discussion nor permit the police officials to do so. There was no time, since there was so much other work to do, and we went on as well as we could with what Tom Johnson used to call the policy of administrative repression, improving moral conditions with such means as we had. We did succeed in eliminating the wine rooms, in closing the saloons at midnight, and finally, after a tremendous effort, in extirpating professional gambling. It was of no consequence that it did not have any effect upon criticism, for we did not do it to stop criticism, and the discussion went on until I had been elected for the third time, and immediately after that election when a large majority of the people had again spoken their minds on the subject, it was considered the proper time to reopen the discussion and to hold a so-called civic revival. The young, uncultured man they brought to town to conduct that revival, could have known nothing whatever of life, and was wholly unconscious of the great economic forces which, with so much complexity and friction, were building the modern city. He came to call on me before he opened his revival that he might have, as he said, a personal, private and confidential talk. When I asked him how the city could be regenerated, he said he did not know, but this fact did not prevent him from telling the audiences he addressed that week just what should be done, and that he, for instance, could nobly do it, and in the end they sent a committee to me to tell me what to do, if not how to do it. I asked the committee to reduce their complaints to writing, to point out those evils which they considered most objectionable, and to propose means of combating them. The committee went away and I confess I did not expect to see them again because I had no notion that they could ever agree as to the particular evils, but after some weeks they had come to terms on a few heads, and filed their complaint pointing out several specific vices in town, and as a remedy proposed that they be "prevented." I replied to them in a letter in which I said all I could think of at that time or all I could think of now on this whole vexed problem. It was printed in pamphlet form and rather widely circulated, and

finally published as a little book.^[B] I do not know that it convinced anybody who was not convinced already. I think we got along a little better afterward than we had before, and by the time my fourth term was done the phenomenon of the discussion, if not the vice, had disappeared. After my letter was sent to the committee, it was said that they would reply to it, but they never did, and instead invited the Reverend William A. Sunday to come to the city to conduct a revival. It was announced by some that he came to assault our position, but when he arrived Captain Anson, the old Chicago baseball player, under whom Mr. Sunday had played baseball in his younger days, happened to be giving his monologue at a variety theater that week, and he and Mr. Sunday together called on me. I do not know when I have had a pleasanter hour than that we spent talking about the old days in Chicago when Anson had been playing first base and I had been reporting the baseball games for the old *Herald*. That, to be sure, was after the days of Billy Sunday's services in right field, but it was not too late for me to have known and celebrated the prowess of that famous infield, Anson, Pfeffer, Williamson and Burns, and we could celebrate them again and speculate as to whether there were really giants in those days whose like was known on earth no more.

Mr. Sunday conducted his revival with the success that usually attends his efforts in that direction, but he did not mention me or the administration until the very close of his visit, when he said that we were doing as well as anybody could be expected to do under all the circumstances.

XLV

When I referred to the general rule that policemen are disliked and condemned I should have noticed certain exceptions. The traffic squad for instance is generally held in a respect and affection that is part of the civic pride of the community. Those fine big fellows on the corner, waving this way or that with a gesture the flowing traffic of the street, are greeted with smiles, and, as they assist in the perilous passage of the thoroughfares, sometimes with thanks and benedictions. The reason, of course, is simple; they are not engaged in hurting people, but in helping people, and so by the operation of the immutable law, they attract to themselves the best feelings of the people.

And this is what we tried from the first to have all our policemen do, to help people and not to hurt them. It was what Jones had tried to do, and he had begun with one of the most interesting experiments in policing a city that has been made in our country. He took away the clubs from the policemen. He could have made at first no greater sensation if he had taken away the police altogether, the protest was so loud, so indignant, above all so righteous. What sense of security could a community feel if the policemen were to have no clubs, how would the unruly and the lawless be kept in check when they no longer beheld this insignia of authority in the hands of the guardians of the peace? And perhaps to reassure the righteous and truly good Jones gave the policemen canes and ran the great risk of making them ridiculous.

I am not sure that he would have cared much if he had, since he had so little respect for the police idea, and of course he had as little regard for organization. I remember once that at a session of the old police board he opposed the creation of new sergeants; he said a sergeant always seemed as superfluous to him as a presiding elder in the Methodist Church. With an elected board of police commissioners over it the police force was pretty certain to be demoralized, of course, as is any executive department of government which is directed by a board, for with a board, unless all the members save one are either dead or incapacitated, discipline and efficiency

are impossible. We got rid of the board system in Ohio after two or three sessions of the legislature had been wrestled with, and though the “mayor’s code” was never enacted, many of its ideas were adopted in amendments to the municipal code, so that we approached the most efficient form of city government yet devised in our rather close resemblance to the federal plan.

The time came, however, when the old elected board of public service was succeeded by a director of public service appointed by the mayor, and the old board of public safety by a director of public safety appointed by the same authority, though that was not until I had entered on my third term in the mayor’s office. When that time came I appointed as Director of Public Service Mr. John Robert Cowell, a Manxman who managed the department of public works admirably, and to the post of Director of Public Safety Mr. John Joseph Mooney, whose services and assistance I had already had on the board of public safety when that was appointed by the mayor. And Mr. Mooney was able to work out many of the improvements we hoped to make in the police department.

And as Jones had taken the clubs away from the policemen and given them canes, we took away the canes and sent them forth with empty hands. Jones had the idea of doing away with clubs from London where he observed the bobbies who control the mighty traffic in the streets of London. We were therefore able to realize the whole of his ideal in that respect, and our city, I think alone of all American cities, could not merit the reproach that a Liverpool man once made to me when we were discussing superficial appearances in the two nations. “The most offensive thing in America to me,” he said, “is the way in which the policemen parade their truncheons.” The public made no complaint at the disappearance of the canes, but the policemen did; they felt lost, they reported, without something to twirl in their hands. We thought of letting them have swagger sticks, but finally decided that they should be induced to bear themselves gracefully with their white gloved hands unoccupied. The white gloves were the subject of amusement to the boors in town, who could always be amused at any effort at improvement, but with them on, and the new uniforms we had patterned after the uniform worn by the New York policemen, the members of the department soon began to have a pride in themselves.

And that was exactly what we were trying to inculcate, though it was difficult to do, and almost impossible, one might think, since for

generations policemen have been the target for the sarcasms and abuse of every voice of the community. The wonder is, with such an universal conspiracy as exists in America to give policemen a bad name, that they have any character left at all. Surely each community in various ways has done everything it could to strip its policemen of every shred of reputation and self respect and with these gone, character might be expected shortly to follow. Of course the new uniforms were ridiculed too, but we did not let that discourage us.

There was the civil-service law to help, and we were of old devoted to the spirit and even to the letter of that, though once the letter of that law compelled us to an injustice, as the letter of any law must do now and then. We had reorganized the police department on a metropolitan basis, and had done the same with the fire department, and in this department there were accordingly created three new positions of battalion chiefs, for which captains were eligible. The oldest ranking captain in the department was Dick Lawler, by everyone in the department from the chief down conceded to be the best fireman in the department, with a long and untarnished record of devoted duty and quiet, unassuming bravery. And it was his natural ambition to round out that career as one of the chiefs. The examining board held a written test, and as Lawler was more accomplished in extinguishing, or, as his comrades expressed it, in fighting fire, and much more comfortable and at home on the roof of a burning building than he was at a desk with a pen in his hand, he did not do very well. When, for instance, he read a long hypothetical question, setting forth certain conditions at a fire and asking the applicant where, under such circumstances, he would lay the hose, Lawler wrote down as his answer, "Where it would do the most good," and on that answer the board marked him zero. The board marked him zero on so many answers indeed that the net result was almost zero, and he failed.

It was a kind of tragedy, in its little way, as he stood in my office that morning on which he came to appeal from the board, with tears in his eyes. But the law was obdurate and I was helpless. But I did point out to the examining board the absurdity of such methods of testing a man's ability, and after that they allowed a man's record to count for fifty per cent. And it was not long until a vacancy occurred among the chiefs—and Lawler was appointed.

XLVI

The questions put to Lawler were perhaps no more absurd than many a one framed by civil-service examiners. In any event the written examination is apt to do as much harm as good, and for policemen and firemen we came to the conclusion that it was almost wholly worthless, once it had been determined that an applicant could write well enough to turn in an intelligible report. The initial qualification on which we came to rely and to regard as most important was the physical qualification. There is no way to tell by asking a man questions whether he will be a good policeman or not; the only way to find that out is to try him for a year. But his physical condition can be determined, and on this basis we began to build the police force, under the direction of Dr. Peter Donnelly, one of the ablest surgeons in the country, whose tragic early death was seemingly but a part of that fate which took from us in a few short years so many of the best and brightest of the young men in our movement. The death of Peter Donnelly left us desolate because he had a genius for friendship equal to that genius as a surgeon which enabled him to render a great social service.

He was perfectly rigid in the examinations to which he subjected applicants for positions in the department, and wholly inaccessible to any sort of influence in favor of the unfit. In the old days, which by many were regretted as the good old days, the only qualification an applicant needed was a friend on the police board, and as a result the force was encumbered with the lame, the halt, and the blind; there were drinkers if not drunkards among them, and the paunches which some bore before them were so great that when they took their belts off and hung them up in those resorts where they accepted the hospitality of a midnight meal, the belts seemed to be as large as the hoops of the Heidelberg tun. We rid the force of these as quickly as it could be done, and the recruits who replaced them were, because of Dr. Donnelly's care and service, superb young fellows, lithe and clean, who bore themselves with self respect and an ardent pride in that *esprit de corps* we were enabled to develop.

But before that spirit could exist there were defects other than physical that must be removed; there were old jealousies and animosities, some of a religious, or rather a theological nature—relic of an old warfare between the sects that once devastated the town with its unreasoning and remorseless and ignorant hatred; a St. Patrick's day had once been celebrated by dismissing a score or more of Irishmen from the police department. There were other differences of race origin, and in doing away with all these, so far as it could be done, Mr. Mooney, the Director of Public Safety, had to his assistance the ability and the tact of two trusted old characters on the force, one of them the Chief of Police, Perry D. Knapp, and the other Inspector John Carew, whose hair had so whitened in the days he served the city as a detective that he was called Silver Jack. He was one of the ablest detectives anywhere, though prejudice and jealousy had kept him down for a long time. I had known him in my youth, and later in the courts, and now that I had the chance I put him at the head of the detective department, and when I was tired of the troubles which harassed him and me during the day, I tried sometimes to forget them at night by writing stories in which he figured as the clever detective he was.

And as for Perry Knapp, I suppose there was not another chief of police like him anywhere. Over his desk was a picture of Walt Whitman, and in his heart was the love for humanity that Whitman had, and in his library were well read copies of Emerson and a collection of Lincolniana I have often envied him. He had served in close association with Jones, who had made his position difficult by promoting him over the heads of others in the department who ranked him, and he was the heir of all the old distrust of Jones's attitude toward life. Nevertheless, he found a way to apply Jones's theories to the policing of a city without any of that ostentation which in some cases has brought such methods into disfavor. I cannot, of course, describe his whole method, but he was always trying to help people and not to hurt them. He established a system by which drunken men were no longer arrested, but, when they could not be taken home as were those club members with whom he tried in that respect at least to put them on a parity, they were cared for at police headquarters until morning, and then with a bath and a breakfast, allowed to go without leaving behind to dog their footsteps that most dreadful of all fates, a "police record." No one will ever know how many poor girls picked up in police raids he saved from the life to which they had been tempted or driven, by sending them back to their

homes when they had homes, or in some manner finding for them a way out of their troubles. And I shall always remember with a pleasure that there is such good in humanity after all, when I recall that boy in the workhouse whom a father in a far-off city was seeking. The boy was working with other prisoners on a bit of public work in one of the parks that winter morning, and after he had secured a parole, the Chief drove out to the park, and got the boy, clothed him with garments he had bought himself, bought a railway ticket and sent the boy away to Chicago and his home. If he had waited until the lad was brought in at night, he explained, the old man would have lost a whole day of his son's companionship!

That is what I mean when I say that a government should be made human, or part of what I mean; such incidents are specifically noticeable because they stand out in such contrast against the hard surface of that inhuman institutionalism the reformers with their everlasting repressions and denials and negatives are trying to make so much harder. Charley Stevens, the old circus man whom I appointed as Superintendent of the Workhouse, very successfully applied the some principle to the management of that institution, which he conducted with his humor and quaint philosophy more than by any code of rules. He usually referred to his prison as the Temple of Thought, and he abolished from it all the marks of a prison, such as stripes and close cropped polls, and all that sort of thing. He was criticized, of course, since the conventional notion is that prisoners should be made to appear as hideous as possible; I am pretty sure that reformer disapproved who one Sunday afternoon went down there and asked the superintendent if he would permit him to preach to the inmates and was told by Stevens that he would like to accommodate him, but that he could not just then break up the pedro game. There were those who said that he was making it too easy for the prisoners, and yet every now and then some of them would escape, and when they were brought back, as they usually were, they were met only with reproaches and asked why they could not leave their addresses when they went away so that their mail could be forwarded. There were, however, two escaping prisoners who never were returned. They got away just in time to make a sensation for the noon editions of the newspapers, and as I was on my way to luncheon I met Stevens, standing on the street corner, very calmly, while the newsboys were crying in our ears the awful calamity that had befallen society. When I asked what he was doing, he said that he was hunting the escaped prisoners. "I've been to the Secor and the Boody

House,” he said, naming two leading hotels, “and they’re not there. I’m going over to the Toledo Club now, and if they’re not there, I don’t know where to look for them.”

It may be that in these little incidents I give the impression that he was a trifler, but that is not the case. He knew, of course, that so far as doing any good whatever in the world is concerned, our whole penal system is a farce at which one might laugh if it did not cause so many tears to be shed in the world. But he did try to be kind to the inmates, and by the operation of the parole system succeeded to an extent commensurate with that attained by Dr. Cooley of Cleveland. Of course it was all done under the supervision of Mr. Mooney, the Director of Public Safety, who rightly characterized our whole penal system when he said:

“Whenever you send one to prison you send four or five; you send a man’s wife and his mother, and his sister and his children, who are all innocent, and you never do him any good.”

But the workhouse, though under Mr. Mooney’s direction, was not connected with the police department, except in the archaic minds of those who thought if we were only harsh and hard enough in our use of both, we could drive evil, or at least the appearance of evil, out of the city, and leave it, standing like a rock of morality, in the weltering waste of immorality all about us.

XLVII

In no respect has the utter impotence of medieval machinery in suppressing vice been more definitely proved than in the great failure of society in dealing with what is called the social evil. Whenever my mind runs on this subject, as anyone's mind must in the present recrudescence of that Puritanism which never had its mind on anything else, I invariably think of Golden Rule Jones and the incidents in that impossible warfare which worried him into a premature grave. He was an odd man, born so far out of his time that the sins of others never troubled his conscience. He was so great, and knew so much of life, more perhaps than he did of history, on every page of which he would have found the confirmations of the opinions life had taught him, that he divined all lewdness, all obscenity to be subjective and not objective, so that he found less to abhor in the sins of the vicious than in the state of mind of their indefatigable accusers and pursuers. And he had his own way of meeting their complaints. Once a committee of ladies and gentlemen called upon him with the demand that he obliterate the social evil, off-hand and instantly. They were simple, brief and to the point. They informed him that the laws providing for chastity were being broken, that there were prostitutes in the city, and in short, urged him to put a stop to it.

"But what am I to do?" he inquired. "These women are here."

"Have the police," they said, a new, simple and happy device suddenly occurring to them, "drive them out of town and close up their houses!" They sat and looked at him, triumphantly.

"But where shall I have the police drive them? Over to Detroit or to Cleveland, or merely out into the country? They have to go somewhere, you know."

It was a detail that had escaped them, and presently, with his great patience, and his great sincerity, he said to them:

"I'll make you a proposition. You go and select two of the worst of these women you can find, and I'll agree to take them into my home and provide

for them until they can find some other home and some other way of making a living. And then you, each one of you, take one girl into your home, under the same conditions, and together we'll try to find homes for the rest."

They looked at him, then looked at each other, and seeing how utterly hopeless this strange man was, they went away.

XLVIII

To be sure, that was in another day. Prostitution had not become a subject for polite conversation at the dinner table; pornographic vice commissions had not been organized and provided with appropriations so that their hearings might be stenographically reported and published along with the filthy details gathered in the stews and slums of cities by trained smut hunters; it had not yet been discovered that the marriage ceremony required a new introduction, based upon the scientific investigations of the clinical laboratory, and on the same brilliant thought that centuries ago struck the wise men of Bohemia, who, when the population increased too rapidly, prohibited marriages for a number of years that proved, of course, to be the most prolific the land had ever known.

The new conception was created in a moment, in the twinkling of an eye, by the necromancy of a striking phrase. I do not know who it is that had the felicity to employ it first in its present relation. I remember that long years ago, when as a boy I used to frequent the gallery of the theater, I sat rapt afar in the mystery and romance of life on the Mississippi while gazing on the scenes of Bartley Campbell's melodrama "The White Slave." I can call back now, with only a little effort of the imagination and the will, that wonderful pageant—the *Natchez*, the *Robert E. Lee*, the great steamboats I knew so well from Mark Twain's book, the plantation hands, the darkies singing on the levee, the moonlight and the jasmine flower—and there was no David Belasco in those days to set the scene either, nor, for the imagination of youth, any need of one! And then the beautiful octoroon, so lily white and fragile that it should have been patent to all, save perhaps an immoral slave-holder, from the very first scene, that she had no drop of negro blood! And the handsome and cruel owner and master, with his slouch hat and top boots, and fierce mustache and imperial, taking her to her awful fate down the river! It was an old story Bartley Campbell used for his plot, a story which had for me an added interest, because my grandfather had told it to me out of his own southern experiences, in those far-off days when he had business that took him down the river to New Orleans. And it was a story which, for a while, in many variants of its original form, was

told all over the land to illustrate the immorality of slavery. I suspect that it was not altogether true in its dramatic details; surely no such number of lovely and innocent creatures were permitted to fling themselves into the Mississippi from the hurricane decks of steamboats as the repetitions and variations of that tale would indicate; it would have been altogether too harrowing to the voyagers, some few of whom at least must have been virtuous, and journeyed up and down on peaceful moral missions of one sort and another. No doubt it was symbolic of a very wrong condition, and I suppose that is what justified it in the minds of those who told it over and over without the trouble of verifying its essential details. It was a good story, and in the hands of Mr. Howells it made a good poem, and it made surely a pretty good play, which, could it enthrall me now as once it did by its enchantments, I should like to see again to-night!

But I doubt if I could sit through any one of the plays that have been written or assuredly are to be written about the white slaves of to-day. The plot has been right at hand in the tale that has gone the rounds of two continents, and resembles that elder story so closely in its incidents of abduction that I presume the adapter of its striking title to the exigencies of current reform must have been old enough to recognize its essential similarity to the parent tradition. It was told in books, it served to ornament sermons and addresses on sociological subjects, and it has, I believe, already been done in novels that are among the best sellers. The newspapers printed it with all its horrific details; it was so precisely the sort of pornography to satisfy the American sense of news—a tale of salacity for the prurient, palliated and rendered aseptic by efforts of officials, heated to the due degree of moral indignation, to bring the concupiscent to justice. I had been in England, too, when the subject was under discussion there, and this same story was told to such effect that Parliament, as hysterical as one of our own state legislatures, had been led to restore the brutality of flogging. It was always the same: some poor girl had been abducted, borne off to a brothel, ruined by men employed for that purpose, turned over to aged satyrs, and never heard of more. Of course there were variations; sometimes the girl was lured away in a motor car, sometimes by a request for assistance to some lady who had fainted, sometimes by other ruses. The story was always told vehemently, but on the authority of some inaccessible third person, to doubt or question whom was to be suspected of sympathy with the outrage. But however high the station, or unimpeachable the character of the informants,

anyone who had the slightest knowledge of the rules of evidence, unless he were especially credulous, would have reason to doubt the tales. In Toledo it had its vogue. It went the rounds of gentlemen's clubs and the tea tables of the town, and in the curious way stories have, it went on and on with new embellishments at each repetition. I had a curiosity about it, not because I cared for the realistic details that might as Pooh Bah used to say, "lend an air of artistic verisimilitude to an otherwise bald and unconvincing narrative," but because here was a chance to test it at first hand, and so I asked the person most heroically concerned to come and tell me of an experience that had earned for him the plaudits of many of his fellow citizens and citizenesses. And so he came. He was a social worker, as they are called, and had had the training in settlement work which is said to qualify young persons to deal professionally with the poor and wicked. He was a rather good looking young chap, with a smile about his full red lips, who lifted his mild eyes to yours with perhaps an effort at frankness too pronounced. He spoke well and fluently.

One night (he said) at the close of a hard day's work in his mission, a man came to him in evident distress. The man was a business man, in comfortable though modest circumstances, with a family of which perhaps the most interesting member was a beautiful girl of seventeen. The girl was attending a high school, where she was in one of the advanced classes, and the evening before had gone from school to spend the night at the home of a friend, a girl of her own age. The next evening, on her failure to return home, the parents became alarmed, and after unavailing inquiry at her schoolmate's house, and in other quarters, the distraught father had appealed to the social worker. The social worker at once caused an investigation to be made, and by a process of elimination (as he said, though unlike Sherlock Holmes, he did not detail the successive steps of his logic), he concluded that the girl was in a certain quarter of the city, in fact in a certain street. He then sent for the father, told him to supply himself with sufficient money, instructed him in the part he was to play, and was careful to stipulate that if he, the social worker, were to feign drunkenness or to indulge in conduct out of keeping with his character, the father was patiently and trustingly to await results. Thereupon they set forth, and before midnight visited some thirty houses of ill fame. In the thirty-first house the suspicions of the social worker were confirmed, and, pretending to be intoxicated, he invited an inmate to accompany him, and ascended to

the upper floor. He tried the doors along the hall, and finding them all open but one, and that locked, he lurched against it, broke it open, and on entering the room surprised a young woman, entirely nude, who screamed—until he muttered some word of understanding and encouragement. Meanwhile the inmate had summoned madame the proprietress, who flew up the stairs, burst into the room and emptied her revolver at the social worker.

The social worker, at this supreme moment in his recital, paused, and with a weary but reassuring smile, as who should say such adventures were diurnal monotonies in his life, remarked: “with no damage, however, to anything but the furniture and the woodwork.”

But he had the girl in his arms, and, thrusting aside foiled madame and the inmate, bore his charge downstairs, snatched a raincoat from the hall rack, wrapped it about her, called to the father to come, and escaped into the street.

After the rescued girl had been restored to her home, and sufficiently recovered from her terrible experience to give a connected account of herself, she related the following incidents: Leaving school on that night she had started for the home of the girl whom she was to visit—the girl not having attended school that day—and while passing a house in a respectable residential district, about five o’clock of the winter evening, darkness already having fallen, a woman came to the door and in great distress told the girl that a baby was sick, that she was alone, and implored the girl to come in and care for the baby while she ran for a doctor. The girl complied, and on reaching the door, was immediately seized, drawn into the hallway, her cries smothered by a hand in which there was a handkerchief saturated with chloroform, and she knew no more until she regained consciousness in the place where the social worker had rescued her.

Here his direct recital ended. I put to him two or three questions: Who is the girl? Where is she now? Where is the house into which she was beguiled? Where is the brothel in which she was imprisoned? He had answers for all these. The girl’s name could not be divulged, even in official confidence, for the family could not risk publicity; the house where she had been summoned to care for the ailing baby was the home of wealthy and respectable people, who had been out of town at the time, and their

residence had been broken into and used temporarily by the white slavers. As for the brothel, the social worker, by methods he did not disclose, had compelled the proprietress to leave the city, and the place was closed.

Such was the amazing adventure of the social worker. It was easy to imagine the effect of it when related to neurotic women, to prurient and sentimental men, and in country churches to gaping yokels curious about “life” in the city. It was easy to understand the effect it would have on minds starved and warped by Puritanism, ready for any sensation, especially one that might stimulate their moral emotions, and give them one more excuse for condemning the police. No wonder certain of the elect brethren in gratitude for having been told just what they wished to hear had contributed hundreds of dollars, that the “work” might go on!

I determined, therefore, that in one instance, at least, the truth as to this stock story should be discovered, and I requested Mr. Mooney, the Director of Public Safety, to make a complete investigation. He detailed to the task the best of his detectives; the inspectors of the federal government under the white slave laws were called in, and I asked two clergymen of my acquaintance who knew the social worker and said they believed him, to give what aid they could. Together they worked for weeks. They made an exhaustive investigation, and their conclusion, in which the clergymen joined, was that there was not the slightest ground for the silly tale.

It was, of course, simply another variant of the story that had gone the rounds of the two continents, a story which had been somehow psychologically timed to meet the hysteria which the pulpit, the press, and the legislatures had displayed, as had the people, in one of those strange moral movements which now and then seize upon the public mind, and, in effect, make the whole population into a mob, which is, of course, the most moral thing in the world. The subject was investigated in England and it was shown that not one of the stories told in this cause there had any foundation in fact.^[C] So far as I know, no authentic verification of the story in any of its forms has ever been made. And yet it was the stock in trade of the professional moralists and was employed by them in two continents to generate that hysteria without which they cannot carry on their reforms. It was repeated and accepted—that is all, and to doubt it was to make oneself *particeps criminis*, a sort of accessory after the fact.

XLIX

It is a subject which only the student of morbid psychology, I suppose, can illuminate properly, but I fancy he would find somewhere a significance in the phrase “white slave,” when acted upon by minds that had never been refined enough to imagine any but the grossest of objective crimes, and out of all this there arose a new conception of the prostitute quite as grotesque as that which it replaced. She was no longer the ruined and abandoned thing she once was, too vile for any contact with the virtuous and respectable; she no longer occupied even the sacrificial pose in which Cato centuries ago and Lecky in our own time figured her; she was not even that daughter of joy whose dalliance is the secret despair of moralists too prudent to imitate her abandon; she became the white slave, a shanghaied innocent kept under lock and key. And thousands and thousands of her sisters were said to be trapped every year in precisely the same way by the minions of a huge system, organized like any modern combination of rapacity and evil, with luxurious headquarters, presumably in some sky-scraper in New York, and its own attorneys, agents, kidnappers, crimpers, seducers, panderers and procuresses all over the land, a vast and complicated organization, with baffling ramifications in all the high and low places of the earth. The sensational newspapers referred to it as “the white slave syndicate,” as though it were as authentic as the steel trust or Standard Oil. It was even said that somewhere in New York the trust conducted a daily auction! With such a bizarre notion, the victims of their own psychic lasciviousness became obsessed. Raids and “revivals” must be inaugurated, a body of new laws enacted, and a horde of official inspectors, agents and detectives turned loose on the land, empowered to arrest any man and woman traveling together, and hold the man guilty of a felony.

To be sure, it was something to have the conception change. It was something that the prostitute should at last be regarded with some touch of human pity. And it was something, a great deal, indeed, that there was, with all the fanatical and zealous law making, some quiet study of the problem. The word “economic,” so long scorned by the proponents of an absolute morality, somehow penetrated the public consciousness, and at last it

dawned on the human mind that prostitution is related to economic pressure. But, unfortunately, by the familiar human process, the mind leaped to extremes; it was assumed that all prostitutes were girls who did not receive sufficient wages, and the simple and all sufficient cure was to be the minimum wage; instead of receiving eight dollars a week and going to the bad, all working girls were to be paid nine dollars a week and remain virtuous. And of course new work for the constable was cut out; if the employers of girls did not pay them that much, they were all to go to jail, and if the girls did not remain chaste after they had been assured of that splendid income, they must go to the pillory for the godly to spit at. This, with the laws against white slavery, was to be the panacea, and prostitution, a problem which had perplexed the thoughtful for thirty centuries, was to be solved before the autumn primaries, so that those who solved it might get their political rewards promptly.

I used to wish, when it was presented to me as mayor, that some of these cock-sure persons who would solve the problem off-hand by issuing a general order to the police, could get themselves elected to the opportunity. Of course I issued no general order on the subject; perhaps I was too skeptical, too much lacking in faith in the miraculous powers of the constabulary. Our city was like all cities; there were prostitutes in brothels, prostitutes in saloons, prostitutes in flats, prostitutes on the streets at night. There were, for instance, a score or more of disorderly saloons where men and women congregated. But we found that merely by posting a policeman in uniform before such a place, its patronage was discouraged, and in a few days discontinued. Of course it was a dangerous and preposterous power to wield; in the hands of unscrupulous police it might have appalling possibilities of evil. I had the idea of stationing a policeman before a disorderly house from Tom Johnson, who told me he had it from his father—who was Chief of Police in Louisville. And so we adopted it, and after a while the wine rooms were no more. And that was something. But the girls in them, of course, had to go somewhere, just as Jones said.

Then we found that the police, if they were brutal enough, could drive the girls off the streets. It seemed to me always a despicable sort of business—the actions of the police I mean; I didn't like to hear the reports of it; I don't like to think of it, or write of it even now. It is not very creditable to make war on women, whatever the Puritans may say. But the streets would show

an improvement, even they would admit; much as they might linger and loiter and leer, the most seductively pure of them could not get himself “accosted” anywhere down town at night. Of course, after a while, the poor things would come back, or others exactly like them would come. Then the police would have to practice their brutalities all over again. Perhaps they were not brutal enough; I am not certain. To be sure they were not as brutal as Augustus with his sumptuary laws, or as Theodosius, or Valentinian, or Justinian, or Karl the Great, or Peter the Great, or St. Louis, or Frederick Barbarossa, or the Empress Maria Theresa in Vienna, or as John Calvin in Geneva, or Cotton Mather in Massachusetts, with all their tortures and floggings and rackings and brandings and burnings; or as the English Puritans who used to have bawds whipped, pilloried, branded and imprisoned and for a second offense put to death. And even they were not brutal enough, it seems, since prostitution went right on down the centuries to our times. I suppose that we might have learned from their failures that prostitution could not be ended by physical force and brutality. However, when the girls were driven from the streets, inasmuch as the police did not despatch them, they still had to go somewhere, and the brothels remained. They had their own quarter and if it was not a segregated quarter it was something very like it, since the police bent their efforts to rid other portions of the city of such places. It was perhaps a tolerated rather than a segregated district, and after a while the Director of Public Safety wished to try the experiment of making it a regulated district as well. I felt that the world was too old and I found myself too much of its mood to hope that any good could come from any of the efforts of policemen to dispose of such a problem, but I was glad of any experiment conducted in sincerity that might make for the better, and accordingly the Director of Safety put his scheme into operation. It was not *reglementation* in the exact European sense, since the temper of our American people will not acquiesce in that, and, as I discovered by some inquiries of my own in the principal cities of Europe, it is not of very valid effect over there. But the Director adopted most of the familiar requirements of the Parisian *reglement*, except the examinations, and the registration of those not *en maison*; he required the proprietresses to report at police headquarters the presence of new inmates; he forbade them to have minors or male parasites in the houses, and as far as possible he separated the business from the saloon business. Any house which ignored his orders found a policeman posted before it; then it came to time. The

result was, as Mr. Mooney could report in the course of a year, that the number of brothels had been reduced from over two hundred to thirty and the number of prostitutes of whom the police had any knowledge, in an equal proportion. He was very proud when General Bingham complimented his policemen and their policing, as he was at similar compliments from the government's white slave agents.

Superficially this was a very gratifying report, but only superficially. Five-sixths of the brothels had been closed, but their inmates had to go somewhere, just as Jones said, and the police found that clandestine prostitution had proportionately increased; the women had gone into flats, or hotels, or residences which on occasion could be made to serve as assignation houses. It may perhaps have improved the life of the prostitute, made it freer and more human, or perhaps it indicated that prostitution in America is showing a decadent tendency toward refinement. But while they had reduced the number of houses of prostitution, the police discovered that they had not reduced prostitution in the least, and when, after a trial of four years, I asked the Director and the Chief of Police what the result of the experiment had been, they said that, aside from the fact that it seemed to make for order in the city, and simplified the work of policing, it had done no good.

The experience was like that of Chicago, where after a police order prohibiting the sale of liquor in houses of prostitution, it was found—according to the report of the vice commission—to be “undoubtedly true that the result of the order has been to scatter the prostitutes over a wide territory and to transfer the sale of liquor carried on heretofore in houses to the near-by saloon keepers, and to flats and residential sections, but it is an open question whether it has resulted in the lessening of either of the two evils of prostitution and drink.”

The experience, I think, is probably universal. I used to hear the systems of regulation used in European cities held up as models by the pessimistic as the only practical method of dealing with the problem. Paris was commonly considered as the ideal in this respect; latterly it is apt to be Berlin. But the fact is that the *reglementation* which for years and years has been in force in Paris is a failure; the experience there was precisely what it was in our little city. And from Berlin, which the well-known German genius for

organization has made the most efficiently governed city in the world, the same failure has been reported.

In England, on the other hand, there is no regulation; any evening along Piccadilly, one may see street walkers whom the police never dream of molesting. It is in part due to the traditional Puritanic attitude of our northern race, and partly to the respect for personal liberty that exists in England. There the principle is much more scrupulously respected than with us, with whom individual liberty indeed, is hardly a principle at all. With us the phrase "personal liberty" is regarded merely as a shibboleth of brewers and distillers, an evidence on the part of him who employs it that he is a besotted slave to drink and an unscrupulous minion of the rum power. The interferences practiced daily by our policemen are unknown there, and if, for instance, it should even be proposed that an enactment like that in Oklahoma limiting the amount of liquor a man may keep in his own house, and providing that agents of the state may enter his domicile at will and make a search, and especially if in the remotest region of the British Isles there should be an instance of what Walt Whitman calls "the never ending audacity of elected persons," such as is of daily occurrence in that state where these agents enter railway trains and slit open the valises of travelers in their quest of the stuff, the whole of the question hour the next afternoon in the House of Commons would be occupied with indignant interpellations of the home secretary and the *Times* could not contain all the letters that would be written.

Other lands have made other experiments, but everywhere and in all times the same failure has been recorded, from the efforts of Greece to control the *hetaerae* and *dicteriades* and the severe regulations of ancient Rome, down to the latest reform administration in an American city. Nothing that mankind has ever tried has been of the slightest avail. And now come the vice commissions with their pornographic reports, and no doubt feeling that they have to propose something after all the trouble they have gone to, when they have set forth in tabulated statistics what everybody in the world already knows, they repeat the old ineptitudes. That is, more law, more hounding by the police.

The Chicago product is the classic and the model for all of these, and as the latest and loftiest triumph of the Puritan mind in the realm of morals and of law, a triumph for which three centuries of innocence of nothing save

humor alone could have prepared it, its own great masterpiece in morals was at once forbidden circulation in the mails because of its immorality!

The problem cannot be solved by policemen, even if—as is now recommended—they be called “morals” police. The word has a reassuring note of course, possibly by some confused with “moral” police, but policemen are policemen still. I have seen the *police des mœurs* in European cities, and they look quite like other policemen. And all cities in America have had morals police; that is exactly what our policemen have been, and that is exactly what is the matter with them. That is, all cities have had detectives especially detailed to supervise the conduct of the vicious, and they always fail. We had such a squad in Toledo for years, though it was not called morals police. It was composed of men, mere men, because we had nothing else but men to detail to the work. They were honest, decent, self-respecting men for the most part, who on the whole did very well considering the salaries they were paid and the task imposed on them. They regulated vice as well as anybody anywhere could regulate it. But of course they failed to solve the problem, just as the world for thousands of years has failed to solve it, with all the machinery of all the laws of all the lawgivers in history. Solon in Athens tried every known device, including segregation. He established a state monopoly of houses of prostitution, confined the *dicteriates* to a certain quarter of the city, and compelled them to wear a distinctive dress, but all his stringent laws had broken down long before Hyperides dramatically bared the breast of Phryne to the Areopagus. In Rome there was the most severe regulation in the ancient world and yet—it may be read in Gibbon—the successive experiments of the law under Augustus, Tiberius, Caligula, Valerian, Theodosius and Justinian were all failures, and when the laws were most rigorous and the most rigorously enforced, immorality was at its height. Charlemagne tried and failed, and though the sentiment of the age of chivalry and the rise of Christianity for a while softened the law, under the English Puritans, bawds were whipped, pilloried, branded and imprisoned, and for a second offense put to death. France was not behind; under Louis IX., prostitutes were exiled, and in 1635 an edict in Paris condemned men concerned in the traffic to the galleys for life, while the women and girls were whipped, shaved and banished for life. Charles V. in the monastery at Yuste, trying to make two clocks tick in union, found his efforts no more vain than his attempts to regulate human conduct, and Philip II. tried again to do what his father had

been unable to accomplish. Peter the Great was a grim enforcer of the laws, and in Vienna Maria Theresa was most rigorous with prostitutes, putting them in a certain garb, and then in handcuffs; she was almost as remorseless in her treatment of them as was John Calvin in Geneva, which came to have more prostitutes proportionately than any other city in Europe. Several modern attempts at annihilation have been made. Saxony tried to do away with prostitutes, but they exist in Dresden and other cities of the Kingdom and Hamburg claims to have banished them, but in that Free and Hanseatic city I was told by an American who was investigating the subject that there were as many there as elsewhere.

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And these laws have not only failed, they have not only stimulated and intensified the evil, but they themselves have created a white slavery worse than that of the preposterous tales and sentimental twaddle that circulate among the neurotic, a white slavery worse than any ever imagined by the most romanticistic of the dime novelists or by the most superheated of the professional reformers. Every one of these laws has been devised, written and enacted in the identical spirit with which the Puritans in Massachusetts branded the red letter on the scarlet woman. Every one of them is an element of that brutal and amazing conspiracy by which society makes of the girl who once “goes wrong,” to use the lightest of our animadversions, a pariah more abhorred and shunned than if she were a rotting leper on the cliffs of Molokai. She may be human, alive, with the same feelings that all the other girls in the world have; she may have within her the same possibilities, life may mean exactly the same thing to her, she may have youth with all its vague and beautiful longings, but society thunders at her such final and awful words as “lost,” “abandoned,” thrusts her beyond its pale, and causes her to feel that thereafter forever and forever, there is literally no chance of redemption for her; home, society, companionship, hope itself, all shut their obdurate doors in her face. In all the world there are just two places she may go, the brothel, or the river, and even if she choose the latter, that choice, too, is a sin. She is “lost” and the awful and appalling lie is thundered in her astonished ears by the united voices of a prurient and hypocritical society with such indomitable force and persistence that she must believe it herself, and acquiesce in its dread finality. And there is no course open to her but to go on in sin to the end of days whose only mercy is that they are apt to be brief. No off-hand moralist, even by exercising his imagination to the last degree of cruelty, has ever been able to devise such a prison as that. White slave, indeed, shackled by the heaviest chains the Puritan conscience has yet been able to forge for others!

Strange, too, since the attitude is assumed by a civilization which calls itself Christian and preaches that the old law, with its eye for an eye and its tooth

for a tooth, was done away with and lost in a new and beautiful dispensation. “Neither do I condemn thee; go, and sin no more.” If the world is ever to solve this problem, it must first of all apprehend the spirit of this simple and gracious expression, do away with its old laws, its old cruelties, its old brutalities, its old stupidities, and approach the problem in that human spirit which I suspect is so very near the divine. Once in this attitude, this spirit, society will be in position to learn something from history and from human experience, something from life itself, and what it will learn first is that Puritanical laws, the hounding of the police, and all that sort of thing have never lessened prostitution in the world, but on the contrary have increased it.

What! Let them go and not do anything to them? Well, yes, if we can’t think of anything better to do to them than to hurt them a little more, push them a little farther along the road to that abyss toward which we have been hustling them. Why is it constantly necessary to do something *to* people? If we can’t do anything for them, when are we going to learn to let them alone? Or must this incessant interference, this meddling, this mauling and manhandling, go on in the world forever and ever?

As to what is to be done about it, since all that ever has been attempted has been so much worse in its effect than if we had never done anything, I suppose I need not feel so very much ashamed of confessing my ignorance and saying that I do not know. If it were left to me I think the first thing I should do is to repeal all the criminal laws on the subject, beginning with that most savage enactment the Puritan conscience ever devised, namely, the law declaring certain children “illegitimate,” a piece of stupid brutality and cruelty that would make a gorilla blush with shame if it were even suggested in the African jungle.

Yes, the first thing to do is to repeal all the criminal laws on the subject. They do no good, and even when it is attempted to enforce them, the result is worse than futile. I myself, with my own eyes, in the old police court where I have witnessed so many squalid tragedies, have seen a magistrate fine a street walker and then suspend the fine so that, as he explained to her in all judicial seriousness, she might go out and “earn” enough money to come back and pay it! And not a person in the court room, so habituated and conventionalized are we all, ever cracked a smile or apparently saw anything out of the way—least of all the street walker!

But it would not be enough simply to repeal these laws from the statute books of the state; it will be necessary to accomplish the immensely more difficult task of repealing them from the human heart, where they were written long ago in anger, and hatred, and jealousy and cruelty and fear, that is in the heat of all the baser passions. What I am trying to say is that the first step in any reasonable and effective reform is an entire change of attitude on the subject, and about the only good to be expected from the agitation about white slavery, with all its preposterous exaggeration and absurd sensationalism is that it is perhaps making for a changed attitude, a new conception; if it will accomplish nothing more than to get the public mind—if there is a public mind, and not a mere public passion—to view the prostitute as a human being, very much like all the other human beings in the world, it will have been worth all it has cost in energy and emotion and credulity. If this sort of repeal can be made effective, if the prostitute can be assured of some chance in life outside the dead line which society so long ago drew for her, the first step will have been taken.

The next step possibly will be the erection of a single standard of morals. And this cannot be done by passing a law, or by turning in an alarm for the police. That means thinking, too, and education, and evolution, and all the other slow and toilsome processes of which the off-hand reformers are so impatient. This single standard will have to be raised first in each individual heart; after that it will become the attitude of the general mind.

And then the commerce in vice will have to be stopped. I do not mean prohibited by penal laws alone. Policemen cannot stop it, and policemen should have no more to do with it than firemen. In fact much of the commerce has proceeded from the fact that its regulation has been entrusted to the police. It should be a subject for the fiscal laws. It is, I assume, known by most persons that the owners of the dilapidated tenements in which for the most part prostitution is carried on, because of the “risk,” extort exorbitant rentals for them, and then on the ground that they can rent them to no one of respectability, they hold them to be so worthless that they pay little if any taxes on them. Our present tax laws of course have the effect of rewarding the slothful, the lazy and the idle, and of punishing the energetic and the enterprising producer in business, and it would be quite possible to revise the tax laws so that tenderloins would be economically impossible, because they would cease to be profitable.

In the next place, or some place in the program, there should be some sort of competent and judicious sex education. I do not know just who would impart it, since no one as yet knows very much about it, but with the earnest, sincere and devoted work that is being carried on all over the world by the scientific men and women who are studying eugenics and social hygiene, there is hope in this direction, even if it is probable that the world will not be saved by the new race of athletes that are scientifically to be bred, and may still have some use in its affairs for the minds of its cripples who in all times have contributed so much to its advancement.

The marvelous phenomenon known as the feminist movement which the students and historians of the next two hundred years will be busy elucidating will play its part, too, for in its vast impulse toward the equality of the sexes it must not only bring the single standard of morals, but it should somehow be the means of achieving for women their economic independence. This perhaps would be the most important of all the steps to be taken in the solution of the problem. The economic environment of course is in the lives of many girls a determining factor and in this connection the minimum wage indeed has its bearing. The old Puritan laws were conceived in minds intensely preoccupied with the duty of punishing people for their sins. Prostitutes were prostitutes because they were "bad," and when people were bad they must be punished. But now we see, or begin to see, if vaguely, that, except in metaphysics, there is no such thing in our complex human life as an absolute good or an absolute bad; we begin to discern dimly the causes of some of the conduct called bad, and to the problem of evil we begin to apply the conception of economic influences, social influences, pathological influences, and other influences most of us know little or nothing about.

Thus we begin to see that a girl's wages, for instance, may have something to do with what we call her morals; not everything, but something. The wages of a girl's father have something to do with them, too, and the wages of her great grandfather for the matter of that. So the dividends on which live the delicate and charming ladies she beholds alighting from their motor cars every morning in the shopping district may have something to do with them, though she is as unconscious and as innocent of the relation as they, as ignorant as all of us are. Rents have something to do with them, and so do taxes.

But after the whole economic system has been re-adjusted and perfected and equalized, after we have the minimum wage, and the single tax, and industrial democracy, and every man gets what he produces, and economic pressure has been as scientifically adjusted as the atmospheres in a submarine torpedo boat, there is always the great law of the contrariety of things to be reckoned with, according to which the more carefully planned the event, the less it resembles the original conception. The human vision is so weak, and the great circle of life so prodigious! The solution will come, if it ever comes at all, by slow, patient, laborious, drudging study, far from the midnight session of the legislature, far from the ear and the pencil of the eager reporter, far from the platform of the sweating revivalist, far from the head office of the police. Our fondly perused pornography might expose the whole of the underworld to the light of day, the general assembly might enact successive revisions of the revised statutes for a hundred years, we might develop the most superb police organization in all history, achieving the apotheosis of the Puritan ideal with a dictagraph in every bedroom and closet in the town, and it all would be of no avail. The study must survey the whole field of social and domestic relations, until the vast mystery of life is understood, and the relation between its wide antitheses established as Tolstoy presents them in his story of the poor mother who took her daughter to the public house in the village, and the rich mother who, at the same time, took her daughter to the court at St. Petersburg. It will be found perhaps in the long run, for which so few are ever willing to remain, that the eradicable causes of prostitution are due to involuntary poverty, and the awful task is to get involuntary poverty out of the world. It is a task which has all the tremendous difficulties of constructive social labor and it is as deliberate as evolution itself. And even if it is ever accomplished, there will remain a residuum in the problem inhering in the mysteries of sex, concerning which even the wisest and most devoted of our scientists will confess they know very little as yet and have not much to tell us that will do us any good.

LI

In taking the present occasion to say so much about the work in morals which a mayor is expected to perform, I have a disquieting sense that I have fallen into a tone too querulous for the subject, and perhaps taken a mean advantage of the reader in telling of my troubles. It is rather a troubled life that a mayor leads in one of these turbulent American cities, since so much of his time is taken up by reformers who seem to expect him somehow to do their holy work for them, and yet that is doubtless the business of reformers in this world, and since it is their mission to trouble someone, perhaps it is the business of a mayor to be troubled by them in his vicarious and representative capacity. I should not deny reformers their rights in this respect, or their uses in this world, and I should be the last to question their virtues. John Brown was beyond doubt a strong character and an estimable man, who did a great and heroic work in the world, even if he did do it in opposition to the law, and by the law was killed at last for doing it, but by all accounts he must have been a terrible person to live with, and I have often been glad that I was not mayor of Ossawatimie when he was living and reforming there. I would as soon have had Peter the Hermit for a constituent.

I shall not go quite so far as to admit that our reformers were as strong in character as either of these great models I have mentioned, but they were as persistent, or in combination they were as persistent; when one tired or desisted, another promptly took his place; there were so many that they could spell each other, and work in relays, and thus keep the torch ever alive and brandishing. It was not only the social evil with which they were concerned, but the evil of drink, and the evil of gambling, and the evil of theaters, and the evil of moving pictures, and post cards, and of the nude in art, and of lingerie in show windows, and of boys swimming in the river, and playing in the streets, and scores of other conditions which seemed to inspire in them the fear or the thought of evil.

With the advent of spring, the mayor must put a stop to lovers wandering in the parks; when summer comes he must put an end instantly to baseball; in

the winter he must close the theaters and the dance halls; in short, as I said before, whenever it was reported from any quarter that there were people having fun, the police must instantly be despatched to put a stop to it.

And strangely enough, even when we did succeed in doing away with some of the evils of the town, when we closed the saloons promptly at midnight, the hour fixed by ordinance, when we did away with many evil resorts, when wine rooms were extirpated, and the number of *maisons de tolerance* were reduced by eighty-five per cent., when gambling was stamped out, their complaints did not subside, but went on, unabated, the same as before. They could not be satisfied because the whole of their impossible program was not adopted, and more because there was no public recognition of their infallibility and no admission of their righteousness. What that type of mind desires is not, after all, any reasonable treatment of those conditions, or any honest and sincere endeavor to deal with them. It demands intellectual surrender, the acknowledgment of its infallibility, and a protesting hypocrite can more easily meet its views than anyone else.

No wonder then that even such a strong man as Tom Johnson, one evening, when the day was done, should fling himself back in the motor car, with the dark shadow of utter weariness and despair on his face, and say:

“I wish I could take a train to the end of the longest railway in the world, then go as far as wagons could draw me and then walk and crawl as far as I could, and then in the midst of the farthest forest lie down and rest.”

We all have such moments, of course, but we should have fewer of them if we had a national trait of which I have read, in a book by Mr. Fielding Hall in relation to Burma. He says the Burmese have a vast unwillingness to interfere in other people's affairs.

“A foreigner may go and live in a Burman village,” he says, “may settle down there and live his own life and follow his own customs in perfect freedom; may dress and eat and drink and pray and die as he likes. No one will interfere. No one will try to correct him; no one will be forever insisting to him that he is an outcast, either from civilization or from religion. The people will accept him for what he is and leave the matter there. If he likes to change his ways and conform to Burmese habits and Buddhist forms, so much the better; but if not, never mind.”

What a hell Burma would be for the Puritan! And what a heaven for everybody else! Perhaps we would all better go live there.

These things, however, should be no part of a mayor's business, and perhaps I may justify my speaking of them by saying that I spoke of them principally to make that point clear. They and some other problems that may or may not be foreign to his duties, have the effect of keeping a mayor from his real work which is or should be, the administration of the communal affairs of the city, and not the regulation of the private affairs of the people in it. It is quite impossible to imagine any work more delightful than this administration. Hampered in it as one is by politicians, who regard every question from the viewpoint of the parish pump, it is nevertheless inspiring to be concerned about great works of construction regarding the public comfort and convenience, the public health and the public amenities. It is in such work that one may catch a glimpse of the vast possibilities of our democracy, of which our cities are the models and the hope.

I have observed in Germany that the mayors of the cities there are not burdened by these extraneous issues, and I think that that is the reason the German cities are the most admirably administered in the world. Perhaps I should say governed, too, though that is hardly correct, since the governing there is done by the state through its own officials. I have not been in Germany often enough or remained long enough to be able to assert that government, in its effect for good, is quite as much a superstition as it is everywhere; mere political government, I mean, which seems to be so implicitly for the selfish benefit of those who do the governing. But the administration of public affairs is so entirely another matter, that it is as beautiful, at least in its possibilities as government is ugly in its actualities, and it is precisely because there has been so much insistence on government in our cities that there is as yet so little administration, and that so inefficient.

In Germany the burgomeister is not chosen for his political views, or for his theories of any sort, or for his popularity; he is chosen because of his ability for the work he is to perform, and he is retained in office as long as he performs that work properly. It is so with all municipal departments and the result is order and efficient administration. When a German city wants a mayor, it seeks one by inquiring among other cities; sometimes it advertises for him. It would be quite impossible, of course, for our cities to advertise

for mayors, not that there would be any lack of applicants, since everyone is considered capable of directing the affairs of a city in this country. Of course everyone is not capable; few of the persons chosen are capable at the time they are chosen. Many of them become very capable after they have had experience, but they gain this experience at the expense of the public, and about the time they have gained it, their services are dispensed with, and a new incompetent accidentally succeeds them.

The condition is due partly to the fact that we are of a tradition that is concerned with governing exclusively, and not administering; our conception is of an executive, a kind of lieutenant or subaltern of the sovereign power, and in our proverbial fear and jealousy of kings we see that he does not have too much power or develop those powers he has by a long tenure of office.

The officials of a German city are pure administrators, and nothing else; they are not governors or censors. They are not charged in fact with police powers at all. And if they were, they would not have questions of such delicacy to meet, for the police there are for the purpose of protecting life and property, and they are not expected to regulate the personal conduct and refine the morals of the community, or to rear the young. They have not confused their functions with the *censores mores* of old Rome, or like us, with the beadles of New England villages of colonial times. That is, the Puritan spirit is not known there, at least in the intensified acerbity in which it exists with us; moral problems, oddly enough, are left to parents, teachers or pastors. The police over there are generally a part of the military organizations. It would be better of course, to bear the ills we have than to transplant any military system to our soil, for state police in America would become mere Cossacks employed to keep the laboring population in subjection. But if the state is to undertake to regulate the moral conduct of the inhabitants of cities, it should provide all the means of regulation and take all the responsibility, including the onus of violating the democratic principle. If the state is to regenerate the land by the machinery of morals police, it should have its own morals police, tell them just how to proceed to compel the inhabitants of cities to be moral, and pay them out of the state treasury.

LII

It is, however, a curious characteristic of our people, or of the vocal minority of them, that while they insist on every possible interference with every private and personal right, in the field of moral conduct, they nevertheless will tolerate no interference whatever with property rights. Thus it was precisely as Cossacks that many employers of labor insisted on my using the police to cow their workmen whenever there was a strike.

During my first term it befell that our city was torn by strikes, all the union machinists in town walked out, then the moulders, and at last a great factory wherein automobiles were made was "struck," as the workingmen say. It is impossible to give an idea of the worry such a condition causes officials. It is more than that sensation of weariness, of irritation, even of disgust, which it causes the general public. This is due partly to the resentment created by the interference with physical comfort, and even peace of mind, since there is in us all something more than a fear of disorder and tumult, in that innate love of harmony which exists potentially in humanity. But to the official there is a greater difficulty because of the responsibility to which he is held. People intuitively regard strikers as public enemies, and while the blame for the irritation caused by strikes is visited on the direct and apparent cause, that is, the strikers themselves; it is visited, too, on the official head of the local government, who is supposed to be able somehow to put a stop to such things. The general or mass intelligence will not as yet go much deeper than the superficies of the problem, or seek to understand the causes of economic unrest and disorder; it still thinks in old sequences and puts its trust in the weapons of the flesh.

I think I shall never forget the first call I had from a delegation of manufacturers during the early days of those strikes. They came in not too friendly spirit, but rather in their capacity of "citizens and tax-payers," standing on their rights, as they understood them, though they in common with most of us and with the law as well, had only the most hazy notions as to what those rights were, and perhaps still hazier notions as to their duties.

“We come,” said the spokesman, “representing two millions of dollars’ worth of property.”

They could not have put their case more frankly. But I, as I was able to recall in that moment, represented two hundred thousand people, themselves among them of course. And here at the very outset was the old conflict in its simplest terms, of man against property. Now, in that old struggle, while I had made no sacrifices in the cause and have been of no especial service in it, I had nevertheless given intellectual assent to the general propositions advanced in favor of the human side, the side of man. By prejudice, or perversity, or constitutionally, I considered men of more value than factories. I had perhaps never heard of a strike, for instance, in which my sympathies were not impulsively with the strikers. I could always see that poor foreigner, whose body had lain there on the cold damp rocks at Lemont so many years before, and somehow I could not get out of my mind’s eye the figures of the workmen on strike, many of them hungry and desperate as their wives and children were; they seemed to me to be in straits more dire than their harried and harassed and worried employers, though I could feel sorry for them, too, since even if they were not hungry, they, too, were the victims of the anarchy of our industrial system. They had of course no social conscience whatever, but perhaps they could not help that. But there they were, bringing their troubles to the mayor, whom perhaps they did not wholly regard as their mayor, since they had some prescience of the fact that in that mayor’s mind was always the memory of those throngs of workingmen who had looked up to him with some of the emotions of confidence and hope. There was alas little enough that he could do for those workingmen, but, especially in such an hour, he must at least not forget them. Of the relative rights of their present quarrel he had little knowledge; but he had envisaged enough of life to know, without too much sentimentalizing them, that, while they were often wrong, they were somehow right when they were wrong. That is, their eternal cause was right.

What the manufacturers wanted, as they put it, was “protection,” a term with vague and varying connotations. As was the case in all the strikes of all the years of my experience in the mayoralty, they felt that the police were not sufficiently aggressive, or that the Chief of Police had not detailed sufficient men to afford them protection. I did not raise the question, though

it occurred to me, as to what the police were doing to protect the strikers, who were citizens, too, and tax-payers, or at least rent-payers and so indirect tax-payers, but when I asked the Chief, the big-hearted Perry Knapp reported that the strikers were complaining, too, and out of his collection of works on Lincoln, he brought me one which contained a letter the great president wrote to General John M. Schofield, when he assigned that officer to the command of the Department of the Missouri, in May, 1863, to succeed General Curtis. Curtis had been the head of one party as Governor Gamble had been the head of the other, in what Lincoln called the pestilent factional quarrel into which the Union men had entered. "Now that you are in the position," wrote Lincoln, "I wish you to undo nothing merely because General Curtis or Governor Gamble did it, but to exercise your own judgment, and do right for the public interest. Let your military measures be strong enough to repel the invader and keep the peace, and not so strong as to unnecessarily harass and persecute the people. It is a difficult rôle, and so much the greater will be the honor if you perform it well. If both factions, or neither, shall abuse you, you will probably be about right. Beware of being assailed by one and praised by the other."

How Lincoln knew human nature! It seemed as good a model as one might find, since we, too, were in the midst of a little civil war, and we always tried to pursue that course. What the manufacturing employers wished, of course, was for us to use the police to break the strike; that we did not deem it our duty to do. What we tried to do was to preserve the public peace and—since our industry in its present status is war—to let them fight it out. We tried to see to it that they fought it out along the lines laid down, in fixing the relative rights of the industrial belligerents, by the Courts of Great Britain, and this policy had the virtual approval of our own courts when in an ancillary way it came under discussion there. But we had difficulty in maintaining the peace, not only because the strikers, or more likely their sympathizers, broke it now and then, but because when the strikers were not breaking it, the employers seemed bent on doing something to make them. They did not intend it for that purpose of course; they simply thought in old feudal sequences. They hired mercenaries, bullies provided as "guards" by private detective agencies. It kept the police pretty busy disarming these guards, and greatly added to their labors because the guards were always on the point of hurting some one.

LIII

There was one of the employers, indeed, who grew so alarmed that he came one morning to the office predicting a riot at his plant, that very afternoon at five o'clock, when the works were to shut down for the day. This man was just then operating his factory with strike breakers and he was concerned for their safety. Indeed his concern was expressed in the form of a personal sympathy and love for them which was far more sentimental than any I had ever been accused of showing toward workingmen. He was concerned about their inalienable right to work, and about their wives and little children, and about their comfort and peace of mind; indeed it was such a concern, such a love, that, had he but shown the moiety of it to his former employees, they never could have gone out on strike at all.

At five o'clock that day then, with the Chief of Police, I visited the plant to observe, and if possible to prevent the impending riot. The works had not yet closed for the day, but in the street before the black and haggard and ugly buildings where they had toiled, the strikers were gathered, and with them their wives, with bare and brawny forearms rolled in their aprons, and their children clinging timorously about their skirts. It was a gray and somber afternoon in spring, but there was in the crowd a kind of nervous excitement that might have passed for gayety, a mood that strangely travestied the holiday spirit; perhaps they regarded the strike as an opportunity for the sensation lacking in their monotonous lives. There were several hulking fellows loafing about whom the Chief of Police recognized as private detectives, and as a first step in preventing disorder, he ordered these away. Presently the whistle blew its long, lugubrious blast, the crowd gathered in closer groups, and a silence fell. Sitting there with the Chief in his official buggy, I waited; the great gates of the high stockade swung slowly open, and then there issued forth a vehicle, the like of which I had never seen before, a sort of huge van, made of rough boards, that might have moved the impedimenta of an embassy. In the rear there was a door, fastened with a padlock; the sides were pierced with loop holes, and on the high seat beside the driver sat an enormous guard, with a rifle across his knees. This van, this moving arsenal containing within its mysterious

interior the strike breakers, and I was told other guards ready to thrust rifles through those loop holes, moved slowly out of those high gates, lurched across the gutter into the street, and rumbled away, and as it went it was followed by a shout of such ridicule that even the guard on the front seat lost his menacing gravity and smiled himself, perhaps with some dawning recognition of the absurdity of the whole affair.

There was no riot, though when the employer came to see me the next day I could assure him of my surprise that there had been none, since there was an invitation to disorder almost irresistible in that solemn and absurd vehicle, with its rifles and loop holes and guards and cowering mystery within. And I could urge upon him too a belated recognition of the immutable and unwritten law by which such an invitation to trouble is sure to be accepted. I almost felt, I told him, like heaving a stone after it myself to see what would happen. He finally agreed with me, dismissed his guards, and dismantled his rolling arsenal, and not long afterward was using its gear to haul the commodities they were soon manufacturing in those shops again.

And the strikes in the other plants were settled or compromised, or wore themselves out, or in some way got themselves ended, though not the largest and most ominous of them, that in the automobile works, until my friend Mr. Marshall Sheppey and I had worked seventy-two hours continuously to get the leaders of the opposing sides together. It was an illuminating experience for both of us, and not without its penalties, since thereafter we were called upon to arbitrate a dozen other strikes. We found both sides rather alike in their humanness, and one as unreasonable as the other, but we found too that if we could keep them together long enough, their own reason somehow prevailed and they reached those fragile compromises which are the most we may expect in the present status of productive industry in this world.

The old shop of Golden Rule Jones had its strike with the rest of them, and yet a strange and significant fate befell it. Alone of all the other shops and factories in the city involved in that strike, it was not picketed by the strikers, they did not even visit it, so far as I know. There were no guards and no policemen needed. And when I asked one of the labor leaders to account for this strange oversight, this surprising lack of solidarity and discipline in their ranks, he said, as though he must exculpate himself: "Oh

well, you know—Mayor Jones. We haven't forgotten him and what he was."

LIV

It was because of this attitude toward workingmen, and their cause, that I was accused, now and then, by those who knew nothing about Socialism, of being a Socialist; by those who did know about it I was condemned for not being one. Our movement indeed had no opponents in the town more bitter than the Socialists, that is the authentic and orthodox Socialists of the class-conscious Marxist order, and they opposed me so insistently that I might as well have been the capitalist class and had done with it. I do not intend to confuse myself with the movement of which I, for a while, was but the merest and weakest of human instruments; I speak in that personal sense only because the opposition was of a personal quality so intense that it could hardly have been expected of an attitude that was always insisted upon as so entirely impersonal, the cold and scientific attitude of minds that had comprehended the whole of human history, analyzed the whole amazing complexity of human life, and reduced its problems to that degree in which they were all to be solved by a formula so brief that it could be printed on a visiting card. The complaint these scientists made of our movement was that its ameliorations in city life were retarding that evolution of which they were the inspired custodians and conservators; some of them spoke of it as though it were but a darkling part of that vast conspiracy against mankind in which the capitalists were so shamelessly engaged. If we had only let things alone, it was urged, they might grow so desperate that no one but the Socialists would be capable of dealing with the appalling situation.

But this was the attitude only of that coterie which, unselfishly, no doubt, with the purest of motives, and only until the industrial democracy could be organized and rendered sufficiently class-conscious to take over the work, was directing the destinies of the Socialist party, very much to the fleshly eye in the same manner that the Republican machine controlled that party or the Democratic machine its party, or, before we were done, certain persons attempted to control the Independent movement. So far as I could discern, there was not much difference in them all; the Socialists seemed to rely on all the old weapons that had so long been employed in the world,

and so long failed; they seemed to contemplate nothing more than replacement of old orthodoxies with new, old tyrannies with new tyrannies; in a word, to preserve the old vicious circle in which humanity has been revolving impotently and stupidly down all the grooves of time.

I could not have been a Socialist because life had somehow taught me that this is a world of relativities, in which the absolute is the first impossibility. I could share, of course, their hope, or the hope of some of them in a well ordered society, though with many of them the dream seemed to be beautiful chiefly because they expected to order it themselves; they who felt themselves so long to have been the slaves were to become the masters; their hard and too logical theory of classes circumscribed their vision so that they could imagine nothing more clearly, and possibly nothing more delightful than a bouleversement which would leave them on top.

I could recognize with them the masters under whom we all alike were serving in this land, and respect them as little as we might, or detest them as we would, they presented whatever advantage there is in familiarity; if nothing more inviting than a change in masters were proposed, one would prefer those one had to others whose habits and whims he did not know. One could be pretty sure that the new masters would use the same old whips and scorpions, or if new ones, with a sting more bitter. They proposed as much, indeed, in their rigid form of organization, with a discipline more irksome and relentless, what with their signing of pledges, and their visitations and committees of inspection, and trials for heresy and excommunications. They reminded me of those prosecutors who could behold no defect in the penal machinery save that it had not been sufficiently drastic; they would replace all old intolerances and ancient tyrannies by others no different save that they were employed in the opposing cause, and were to be even more intolerant and tyrannical.

That is, the Socialists provided for everything in the world except liberty, and to one whose dissolving illusions had left nothing but the dream of liberty in a world where liberty was not and probably never was to be, there was no allure in the proposal to take away even the dream of liberty.

None of them of course would be impressed by these objections—was not the great cure for social ill written and printed on a card?—nor would they consider them even until they had been submitted to the prescribed test of a

joint debate, about the most futile device ever adopted by mankind, and a nuisance as offensive as any that ever disturbed society. It was of course the only amusement they had, as popular as running the gauntlet was with the Indians, and they liked to torture a capitalist to make a Socialist holiday. It is of course quite useless to argue with one who is always right, one whose utterances have the authority of revealed truth, but inasmuch as society had not yet been developed to a point of communal efficiency sufficient to keep the streets clean, it seemed idle to undertake the communal control of production and distribution. And however wrong I may be in every other thing, I am quite sure that I am right in this, that in their analysis of society they have failed utterly to take into account that classic of the ironic spirit, the great law of the contrariety of things, according to which the expected never happens, at least in the way it was expected to happen, and nothing ever turns out the way it was planned.

But there is a more fundamental law—that of the destructive power of force, which always defeats itself. For their reliance was on force—and how quietly they, or the most virile of them, entered upon their last phase in their acceptance of the doctrine of force as preached now everywhere by the I. W. W. agitator on the curbstone! Sometimes after all the law does not take a thousand years to work itself out.

It seemed to me that the single-taxers had a scheme far better than that of the Socialists, since they suggested a reliance on the democratic, and not on the authoritarian theory, though in its mysterious progress, in its constant development of new functions, democracy may be expected to modify even that theory. I fear at least that it would not do away with mosquitoes; possibly not even with reformers.

LV

But I would not be unfair, and I counted many friends among the Socialists of my town and time whose best ideals one could gladly share. They were immensely intelligent, or immensely informed; they had made a fairly valid indictment against society as it is organized, or disorganized. But like Mr. H. G. Wells, who calls himself a Socialist, these exceptions, in Mr. Wells's words, were by no means fanatical or uncritical adherents. To them as to him Socialism was a noble, and yet a very human and fallible system of ideas. To them, as, again to him, it was an intellectual process, a project for the reshaping of human society upon new and better lines—the good will of the race struggling to make things better. This broad and tolerant view was the one to which they held, though they seemed too closely to identify all the good will in the race, operating, as I believe it to be, in many ways and through many agencies, as Socialism, and the pontifical Socialism taught in our town, at least, was so explicitly a class hatred that most of the time it was anything in the world rather than good will. Anyone with a good heart could be a Socialist on Mr. Wells's terms, if it were not his inevitable fate to be assured by the orthodox custodians of the party faith, the high priests who alone could enter the holy of holies and bear forth, as occasion required, the ark of the covenant, that Mr. Wells's Socialism is no Socialism at all and that he is no man to consult or accept.

My friends among them were like him in the condemnation they had to hear from the machine, or, perhaps I should say, the governing or directing committee—whatever the euphemism that cloaks the familiar phenomenon with them—they too were said to be no Socialists at all; they were mere “intellectuals” or “sentimentalists,” or easily fell into some other of the categories the Socialists have provided for every manifestation of life. They have doubtless rendered society a service by their minute classification; which seems complete if they would only recognize the order of the sectarian mind, and since the orthodox among them afford so typical an example, include themselves in it. I am not sure that it is not quite as distinct a species as the capitalist class itself, at least it causes as much trouble in the world as the Socialists say the capitalist class creates.

Socialists, at least of the impossibilist wing, evangelists, prohibitionists, Puritans, policemen and most of the rest of the reformers are endowed with this order of mind. While they all form subdivisions of a distinct intellectual class of humanity these are generally the same. That is, they are, all of them, always under all circumstances, right. All of these classes, fundamentally, follow the same sequences of thought. They differ of course in minor details, but they always meet on that narrow strip of ground upon which they have erected their inflexible model for humanity, with just room enough by its side for the scaffold upon which to hang those who do not accept it.

Now, when, by any coincidence, the representatives of any two of these species meet in the mistaken supposition that there is any disagreement between them, there is bound to be trouble of course, and whenever say a Socialist of the impossibilist wing of the party, and a policeman—and all good policemen are impossibilists—meet, we have posited the old problem in physics of an irresistible body meeting an impenetrable substance.

This phenomenon occurred on two or three occasions when policemen interfered with Socialists speaking in the streets. I am sure the Socialists in question could have regretted the circumstance no more than I, for if there was one right which I tried to induce the police to respect, it was the right of free speech. On the whole they did fairly well, and at a time when there seemed to be an epidemic of ferocity among municipal officials in the land that led them to all sorts of unwarranted interferences with human and constitutional rights, we had folk of all sorts preaching their strange doctrines in our streets—Republicans, Democrats, Socialists, of their several sorts, I. W. W.'s, evangelists, anarchists, suffragists, Mormons, Salvationists, to say nothing of all the religious sects; wisdom was veritably crying in the streets. Emma Goldman, during that period of hysteria when the advent of that little woman in a city precipitated a siege of fear, delivered her course of lectures in Toledo to audiences that were very small, since there were no police to insure the attendance of those who were interested more in sensations than in her philosophic discussions of the German drama. And we tried to respect the rights of all.

But it is one thing to give orders, and another to have them implicitly obeyed. Those of the indurated sectarian mind, who would order all life by mechanism, are given to saying that if they were in authority the police

would do so and so, and would not do such and such a thing, that they would have the police see to this and that, etc., etc., etc. After they had been in power a while they would grow humble, if not discouraged, and, like me, be gratified if they succeeded in accomplishing about one-third of what they had hoped and planned to accomplish. Thus I, who had tried to give everybody the right of free speech, was now and then chagrined to find that someone had been interfered with for preaching some new heresy.

The right of free speech cherished by all and exercised by none, since, owing to a disposition on the part of humanity to apply the hemlock or the noose in such cases, few say what they actually think, is one which certain of the Socialists preferred to have honored in the breach rather than in the observance. They would be never so happy, never so much in their element as when their address was interrupted; the greater the interference, the more acute the suffering for the cause, and when a man begins to feel that there is in him the blood of the martyrs, which, as he has heard somewhere, is the seed of the churches, why, of course, he is in such an exalted state of mind that there is no human way of dealing with him.

And then that strange human spark, that mysterious thing we call personality, is always there—that element which makes impossible any perfectly or ideally organized state, social or otherwise. It is assumed by those of the order of mind under notice that it is possible so to organize human affairs that they will work automatically, with the precision of a machine, that they will work just as they are intended to work and in no other way, that it is, indeed, impossible for them to work in any other way, and that it may be predicted long in advance exactly how they will work at any given instant and under any exigency, or circumstance. This, of course, is impossible, as everybody knows, except the impossibilists. That is why they are impossibilists.

These speakers, however, who would dehumanize everything yet cannot after all dehumanize themselves, would frequently court arrest in the belief that the meed of pseudo-martyrdom thereby made possible was an ornament to their cause, and they would often try the patience of officers, who like the speakers themselves and all of us, are unfortunately, or perhaps fortunately, only human. Thus a Socialist speaker standing on his soap box, in the course of his remarks, indulged in certain reflections on the police as an institution. His sentiments in that respect were not perhaps heterodox,

from the standpoint of my own orthodoxy, but we had been trying to create *esprit de corps* in the police department, and the policeman on that beat chancing to arrive at that inauspicious moment, and viewing life from an altitude less lofty and impersonal than the Socialist claimed for his outlook, took the scientific statements of the Socialist not in the academic sense, but as a personal reflection upon the body of which he, it seems, was growing rather proud of being a member, and at the conclusion of the effort he privately informed the speaker that if he said anything more against the Toledo Police Department he would “knock his block off.” He was reprimanded by his lieutenant, even after he had explained that he intended to execute his rude intention in his private and not in his official capacity.

The incident could be represented by the Socialists as a veritable reflection of the views of the administration on the important subject of Socialism, but they could not derive quite the satisfaction from it they had in another incident, or accident, which befell the most prominent and authoritative of their local leaders. He was speaking one evening in a crowded street, when he had the good fortune to be arrested by a captain of police. He made the occasion the opportunity for an edifying debate, and lingered as long as the captain would let him; but, in the end, was led to the police headquarters. This was the irresistible meeting the impenetrable. While everybody had a right to speak his mind in the streets, everybody else, we felt, had an equal right not to listen, even to free speech, and the police had orders to keep the streets and sidewalks clear for traffic. Now this captain was a chap who carried out orders given to him, and, as he was in command of the traffic squad, traffic was his specialty. If streets were to be cleared, then, in his philosophy, they were to be cleared, and no little thing like a constitutional inhibition against the abridgment of human speech would stand in his way. And then, after all, police are more apt to arrest people they do not like than those they do, and no one likes those who disagree with him. But after the arrest, the offender is turned out without chances of reparation. In this instance, feeling that the Socialist had had an indignity put upon him by his arrest, while I could not undo what had been done, I could order his release and tender him an official apology in writing, which was accepted, though not acknowledged. And an order was issued that a policeman who thereafter interfered with any voice crying in the wilderness should be dismissed from the department.

LVI

As a boy, thirty years ago, I used to observe, with a boy's interest, the little bob-tailed street cars that went teetering and tinkling, at intervals of half an hour, out a long street that ran within a block of my home. I watched the cars intently, and so intently that the impressions of their various colors, sounds and smells have remained with me to this day, speaking, in a way, of the conditions of a small American city of that time, and affording a means by which to measure that progress in material efficiency which is so often mistaken for progress in speculative thought.

It may have been that my interest was intensified by the fact that down in Urbana Street cars were unknown, though they were not unimagined, since we used to see them when we went to Cincinnati, and I could then, and I can still, recall, though time has softened the poignancy of that hour, the pain of parting with a certain noble horse which my father sold to a man of dark and hateful aspect, and of the morsel of comfort I derived from the stipulation, invalid enough to be sure, my father made with the dealer, that the horse was not to be put to street-car service. That, by my father, and so by me myself, was held to be the most cruel, degrading and ignoble fate that could befall a horse. But another reason for my interest was the possession of a curiosity to which the passing show has always been novel, generally amusing, sometimes pleasing and often saddening, too—a curiosity in life which I hope will endure fresh and wholesome until life's largest curiosity shall be satisfied at the end of life.

The progress of the little street car under notice was leisurely and deliberate, sometimes it would wait obligingly for a woman, half a block away, who hurried puffing, and fluttering, and waving, to reach the street corner, and when she had clambered aboard, the driver would slowly unwind his brake, cluck to his horse, the rope traces would strain and the car would bowl along. Ten blocks away from the business section, or a few blocks further on, the little car with its five windows and small hooded platform would enter upon a bare, though expectant scene of vacant lots, and about a mile out, where there was some lonely dwelling staring blankly

and reproachfully as though it had been misled, and then abandoned, and further on a few small, expectant cottages, the long, low street-car barn was reached, the car was driven on to a little turntable, slowly turned about and started back. Sometimes, if I was lucky, I had a chance to witness the change of horses, and to experience a nebulous pity for the nag that ambled contentedly into the stable, and did not seem to be very tired after all.

On Summit Street there were grander cars, each drawn by two horses, and there were other lines in town, each with its cars painted a distinguishing color. There was one line that went out Collingwood Avenue, far to the very country itself; its cars bowled under noble trees and even past a stately mansion or two, or what in those days seemed stately mansions, and it was pleasant, it was even musical, to hear the tinkle of the bell on the horse's collar. Then there was still another line that ran down the broad Maumee River, almost to Maumee Bay and the "marsh" where the French *habitants* lived, and spoke delightfully like the people in Dr. Drummond's poems. On Saturday mornings my father was likely to send me on an errand to a superannuated clergyman who lived down there, and this involved a long, irritating journey. The journey occupied the whole morning, and spoiled a holiday. And then it was always cold, for, in the not too clear retrospect, I seem to have been sent on this particular errand only in winter, and the car was the coldest place in the world, especially when it got down where the winds from the icy lake could strike it. Its floor was strewn recklessly with yellow straw, in some ironical pretense of keeping the car warm, and I would sit there with feet slowly freezing in the rustling straw, and after I had inspected the two or three passengers, there was nothing to do but to read the notice over the fare-box in the front end of the car, until I had it quite by heart:

"The driver will furnish change to the amount of Two Dollars, returning the full amount, thus enabling the passenger to put the exact fare in the box."

Then I could peer up toward the fare-box and look at the one nickel stranded half-way down its zig-zag chute, and look at the driver, standing on the front platform, slowly rocking from one foot to the other, bundled up in old overcoats, with his cap pulled down and his throat and chin muffled in a repulsive woolen scarf, hoary with the frost of his breath, and nothing of him visible except the shining red point of his frosted nose. His hands, one holding the reins, the other the brake-handle, were lost in the various

strata of mittens that marked epochs co-extensive with those of the several overcoats. I had read once in a newspaper of a street-car driver in Indianapolis who, at the end of his run, never moved, but kept right on standing there, and when the barn-boss swore at him, it was found that he was dead, frozen at his post. And I sometimes wondered, as I dwelt on that fascinating horror, if it were possible that sometime, when the car reached the bay, this driver would not be found frozen. Sometimes I expected to be found frozen myself, but nothing exciting ever happened on that journey, and so, somehow, the trips out other streets and other avenues in other cars, remain more pleasantly in the memory, associated with the sunshine and the leafy arch of green overhead, with something of the romance and mystery of untraveled roads in the long vista ahead, while the winter trip down to the superannuated clergyman's is cold and bleak and desolate, perhaps because it had no more interesting result than the few minutes I begrudged in that stiff little "parlor," where the preacher received me with the not unkindly regard of eyes that had the dazed expression of the very old. I can expiate the perfectly patent and impolite reluctance with which I visited the aged man, and the thoughtless contempt youth has for age itself, only by the hope that those dim eyes have since brightened at the realization of those glories they had so long foreseen, which formed perhaps the only consolation of a life that must have had little to gladden it on that forbidding spot.

All these lines, and others like them in the sprawling young town, belonged each to different men, and once I happened to hear that the man who owned the line first mentioned say that every new family that moved into that thoroughfare or built a house there, meant \$73.00 a year to him. A good many families moved out into that street, enough indeed to make a settlement that was a town in itself, growing and spreading at the end of the line. Gradually the gaunt vacancies between were built up, though not, it appears, until the man had grown discouraged and sold out, and so suffered the universal fate of the pioneer. One by one the other lines in town were sold, and finally a day came when all the lines were owned by a certain few men, who under our purely individualistic legal system, formed a company and thus could jointly rejoice in all the individual rights and privileges of a person, without any of his embarrassing moral duties and responsibilities.

I ceased to hear of the individual owner any more; I never saw him in his shirt-sleeves in his little office at the end of the line counting up the nickels of those new families which each meant \$73.00 per annum to him, and it must have been about the same time that I began to hear of the traction company. There had been probably intervening experiments with tough mules, whom no one pitied, as everyone had pitied the horses they replaced, and there were, in other cities, astounding miracles of cable cars and elevated railways. And then electricity came as a motive power, and the streets were made hideous by the gaunt poles and makeshifts of wires, and the trolley cars came, and increased in size and numbers, and families swarmed, until out on those streets and avenues the great yellow cars went rushing and clanging by, with multitudes of people clinging to the straps and, toward evening, swarming like flies on the broad rear platforms, and the conductors in their blue uniforms shouting "Step lively!" with a voice as authoritative as that which the company spoke in the city councils. And the families continued to arrive, and to build houses, and to toil and to contribute each its \$73.00 a year, though they did it with human reluctance and complaint, and grew dimly conscious that somewhere in the whole complicated transaction an injustice lurked. And finally this hidden injustice became the chief public concern of the people of the town, and an issue in local politics for more than a decade.

LVII

It had been an issue, as I have more than once said in Jones's time and in his campaigns, though the issues his tremendous personality raised were so vast and so general and so fundamental that they included all issues, as Emerson said his reform included all reforms. It ran like a scarlet thread through the warp and woof of our communal life; it was somehow associated with the ambitions of the meanest politician, it affected the fortunes of every man in business, and it was the means whereby the community came to have an ideal. The long story of it, like the story of the same interest in any town, would include triumphs and tragedies—and the way of politics through the town was strewn with the pitiable wrecks of character and of life itself that had been ruthlessly sacrificed to the insatiable greed of privilege. Only the other day one such wreck, once in a position of honor and trust in the municipality, was waiting in the outer office; he wanted half a dollar and a place to sleep. And another like him, most desperate of all, asked to be committed to a city hospital or even to the asylum for the insane; he had no other refuge, and as for the poorhouse, he said, not yet, not yet! And these were the sacrifices privilege demanded of its parasites; though their case morally, at least, could be no worse than that of privilege's principal beneficiaries; not half so bad indeed, since they had lost the power of appreciation of spiritual values.

I knew a reporter, an Irish lad, whom one of the attorneys of privilege sought to "befriend."

"You work pretty hard, don't you?" asked the attorney.

"Yes," said the Irish lad.

"And your salary is small?"

"Yes."

"And a mortgage on your mother's home?" The agents of privilege always know a man's necessities!

"Yes."

“Well, now, I can tell you how things can be eased up a bit for you. For instance——”

After the proposal had been artfully made, the Irish lad thought a moment, and then he raised those blue eyes to the old lawyer.

“Your wife is prominent socially, isn’t she?”

“Why, yes.”

“President of—this and that, eh?”

“Yes.”

“And your daughters just home from a finishing school in Europe, aren’t they?”

“Yes—but what——?”

“I was wondering,” said the Irish lad, rising, “how you dared go home at night and look ’em in the face.”

Not all men though have the character, the moral resistance of that Irish lad, and the scores of the weak and erring ones are the tragic figures in the long drama of the traction company in the city, in any city—the drama that cannot be written.

LVIII

Meanwhile, the education of the general mind went on, and we were, after all, tending somewhither. Our experience in the greatest of our tasks demonstrated that, and in the change that gradually took place in sentiment concerning the street railway problem, there was an evidence of the development of a mass consciousness, a mass will, which some time in these cities of ours will justify democracy. It is of course the most difficult process in the world, for a mass of two hundred thousand people to unite in the expression of a will concerning a single abstract proposition. The mass to be sure can now and then as it were rear its head and blaze forth wrath and accomplish some instant work of destruction; even if it be nothing more than the destruction of an individual reputation. That is why the recall is so popular and so generously and frequently employed in those cities that have it. In such elections, with their personal and human center of interest, the people all turn out, while in a referendum involving some abstract principle, the vote cast is always small. That is why the referendum is so important, and the recall, relatively, so unimportant; the use of the first in the long run will afford a fine schooling for the people.

The most familiar expression of this rage of course was the clamor for the indictment and imprisonment of someone connected in sinister ways with the company, a demand with which I never had the slightest sympathy, to which I could never yield the slightest acquiescence. What good, though all the poor and miserable servitors of privilege were put in prison, while privilege itself remained? Such clamors have had their results; a few more broken lives, a little more sorrow and shame in the world, and the clamor ceases, and things go on the same as before.

It is this instability, this variableness, this weariness of the public mind, on which privilege depends, with a cynical trust so often justified that it might breed cynicism in all observant and reflective natures. The street railway proprietors in Toledo expected each election to demonstrate this weariness in the people, and to restore them to, or at least confirm them in, the privileges they had enjoyed under the old régime.

For a people to assume and for a decade consistently to maintain an attitude toward a public question therefore was a triumph of the democratic principle. That is what the people of Cleveland did; that is what the people of Detroit did; that is what the people of Toledo did. The successive stages of this process were most interesting to observe, the more especially since they caught in the movement even some of the street railway group and its political confreres themselves.

In its origin the public will was destructive no doubt, that was the inarticulate disgust born of the long endurance of inadequate service, all the miseries of that contemptuous exploitation of the people so familiar in all the cities of America. To this, on the customary revelations of a corrupt domination of the political machinery of the city by the street railway company, there was added a moral rage—the one element needed to provide the spark for the mine. At first this rage against the company was such that any action taken by officials was popular so long as it injured or harassed or was somehow inimical to the company. And in consequence there was developed a kind of local jingoism or chauvinism; whenever popularity slackened or it was felt necessary to remind the electorate back in the ward of the sleepless vigilance of their representative in the council, a councilman had only to introduce some resolution that would be against the company's interest. It was unfortunate, and had its evil phase, as any suggestion of intellectual dishonesty must ever have, and it made serious dealing with the subject extremely difficult and hazardous. It was difficult to recognize any of the company's rights; and it was always at the risk of misunderstanding, and with the certainty of misrepresentation that this was done. But of course it was necessary to do this, in the course of the long and complicated transaction, that constant and inflexible opposition of the public with the private interest which now assumed the aspect of a noisy and furious war, and now the softer phases of diplomatic negotiations. Of course there were always those in town who knew exactly what was to be done; they could settle the vexatious problem with a facile gesture, between the whiffs of a cigarette on the back platform of a street car, or in an after dinner speech between the puffs of a cigar. The one was apt to advise that the "traction company be brought to time at once," the other that an "equitable" settlement be "arranged" by conservative business men. Meanwhile the problem obviously consisted in the necessity of recognizing the private right in the proprietors and of securing the public right to the

people, and to do this it was necessary to search out, and isolate, like some malignant organism, the injustice that somewhere lurked in this complex and irritating association.

In my first campaign we proposed to grant no renewal of franchises at a rate of fare higher than three cents. Jones had advised it, and I had been committed to it long before. It was Tom Johnson's old slogan, and it was popular. I used to explain to the crowds my own conviction that the problem never would be settled until we had municipal ownership, but there was in Toledo in those days very little sentiment for municipal ownership, and my conviction met with no applause, and was received only with mild toleration. In the second campaign, there was more indorsement; in the third there was a certain enthusiasm for the principle, in the fourth it seemed to be almost unanimous, and now the principle has become one of the cardinal articles of faith. I do not wish it to appear that I had converted all these people to my view; I had not tried to do that, and doubtless could not have done so had I tried, but the conviction came by the very necessities of the situation.

LIX

Those men who ventured early into the street-car business were pioneers; they assumed large risks, and they rendered a public service. They had the courage to undertake experiments; they had faith that the town would grow and become in time a city. And they staked all on the chance. They had little difficulty, if they had any at all, in securing franchises from the city to use the streets, for the people of the city were glad to have the convenience of transportation. Indeed many of the lines were community enterprises, organized by the men of a given neighborhood for the sake of the transportation merely, and not with any notion of personal profit.

Franchise ordinances then were loosely drawn; men had no conception of what changes the future was to bring about, they lacked the imagination to prefigure it, the faith to believe it, and so the street-car promoters who came along a little later were the heirs of advantages which otherwise they would not have obtained. Under these advantages, these privileges, they or their immediate grantees were enabled to take over for their own use and profit the enormous social values that were being created in cities, not by them, but by all those families who moved in, and toiled, and wrought and built the modern city.

This was the first phase of the street-car business, its experimental stage, commensurate with the rapid, disordered growth of the city in the middle and western states of America. Few indeed of the pioneers in the business became wealthy; many no doubt lost their money, though they tried in vain to vary or improve their fortunes through the changes that were rapidly developing the mighty problem of transporting the crowded populations of our cities. There were, for instance, the days when mules were substituted for horses, and sacrificed rapidly and ruthlessly on the principle that it was cheaper to replace them than to care for them, a system about as bad in its consuming cruelty as that adopted by some factories with reference to their human employees. Then, in a few of the larger cities, there were the cable cars, but the second phase came with the adoption of electricity as a motive

power, and the coincident development, almost a miracle, of the towns of middle and western America into real cities.

With electricity as a motive power, and the consequent cheapening of operation, the street-car business entered upon its second phase, and it ushered in at once the era of speculation in franchises and social values, watered stocks and bonds. The era of exploitation came upon us, and out of these privileges, out of other privileges to conduct other public utilities, i. e., privileges to absorb social values, enormous fortunes were made, with all the evils that come with a vulgar, newly-rich plutocracy. To keep, and extend, and renew these privileges, they must have their lawyers, and their newspapers to mislead and debauch the public mind; they must go into politics, organize and control the machines of both parties, bribe councilmen and legislators and jurors, and even have judges on the bench subservient to their will, so that the laws of the state and the grants of the municipality might be construed in their favor. The sordid, tragic tale of their domination of municipal politics is now universally known, and in the tale may be read the causes of most of our municipal misrule. It happened in Toledo as it happened everywhere, such is the inexorability of the general law, and the popular reaction was the same.

And so we came upon a new, the third stage, since I have set out to be scientific in analysis of tractions, and the very name by which these big enterprises have latterly been called, that is, public service corporations, suggests the meaning and indicates the significance of that era. Two facts, or principles, had become perfectly apparent; first, that transportation, the primal necessity of a modern city, is a natural monopoly, and must be treated as such. Second, that if these public utility corporations are to continue to hold these monopolies, they must become public service corporations indeed, that is, they must serve the public. No more, then, the old corporation contempt of the people, at least outwardly expressed, but a softer voice in addressing them, and a new respect, perhaps grown sincere. Their old lobbyists disappeared from the council chamber and the city hall—for eight years they were not seen there. The companies had been primarily profit making institutions and only incidentally for public service, they were operated for the private benefit of their owners in contempt of public right; the service was secondary.

We may say that this third era is the era of regulation, or, as it is more apt to be, attempted regulation, by the city, in which the principle of the public interest as paramount to the private interest is to be the basis on which a private company shall be permitted to operate. This era will endure long enough to demonstrate itself a failure, the general mind will continue to learn, to inform itself, democracy will develop new functions, and we shall enter on the fourth, and perhaps the final stage, that of municipal ownership.

LX

We came upon the scene just when the discussion was emerging from the second into the third of those phases into which I have divided the development of the problem. The franchises granted almost a generation before were about to expire, and new arrangements between the city and the traction company, the Big Con, as the newspaper argot would have it. Chicago had already, or almost, gone through her settlement; and though the settlement was pretty bad, it nevertheless recognized the principle that the value of a street railway franchise is a public, social, or communal value, produced by the community, and therefore belonged to the community. In Toledo the company had but about \$5,000,000 of actual investment, while it had a capitalization in stocks and bonds of nearly \$30,000,000, and the difference of \$25,000,000 was the community value which the magnates had been exploiting for their own benefit. We simply proposed that this value should be returned to the people. We proposed, then, that the rate of fare to be charged by the company should be large enough and only large enough to pay a reasonable return on the actual investment and to provide good service, a service that was to be dictated, regulated and controlled by the city. This principle had been established, or at least admitted in the Chicago settlement, and the same thing had been done, though on a sounder and more scientific basis in Cleveland, where Tom Johnson's long and gallant and intelligent contest already in effect had been won. Over in Detroit the same principles had been deduced, though the discussion there was so prolonged, as proved ultimately to be the case in Toledo, that the people demanded municipal ownership, without passing through the intervening experimental stage of regulation and control.

There is of course nothing sacrosanct in three-cent fares. The movement of the people, which at the same time, in the old Russian phrase of Kropotkin, was a movement toward the people, had become an agitation for this rate. It had been begun years before by Mayor Pingree in Detroit, and was taken up in Cleveland by Tom Johnson, whose whole career in a romantic manner, at once embodied and illustrated the history of the street railway problem in the American city. The adoption of the phrase as a shibboleth or slogan of

the progressive forces was simply and easily explained, for in the mind of Johnson and in the minds of those who were like him or were influenced by him, the difference between the prevailing fare of five cents and the proposed fare of three cents somehow measured the franchise value, or that social value which belonged to the people. Tom Johnson, indeed, used often to say that he favored a three-cent fare simply because it was two cents nearer nothing, thereby revealing a glimpse of his dream of a social order in which the municipality would provide transportation just as it provides sidewalks, sewers, bridges, etc., all of which are paid for at the treasury in taxes. It was believed and held by all of us, that this franchise value should be reclaimed or retained by the people in this direct and simple manner of lowering the fare.

There was never any notion, of course, of interfering in any way with the existing rights of the company; it was to have all that to which it was entitled under its old franchises or contracts. But it was proposed that when we came to draw a new contract, the political relations of the city and the company were to be considered as of paramount importance, using the word "political," of course in its old authentic sense, and not as expressing in any wise the sinister thing it has come to connote in the popular mind. We were determined to meet not only the conditions of the present, but to do what our forerunners in office had never done, that is, to protect the interests of the people of the future. I suppose this sounds very much like the trite generalities of the politician, but we sincerely tried to express the theory with definiteness and particularity. We sought not only a reduction of the fare and a regulation of the service in the public interest, but we wished to provide for that future day when, as a result of the certain growth of the city, the sure improvement in transportation facilities, and the inevitable development of the democratic function, the municipality is to undertake these enterprises as a proper public function.

It was these principles we tried to bear in mind in those long negotiations which we held all during the months of one spring and summer over that big table in the council chamber. We were nervous when we entered upon this work, nervous as are those who enter the finals in some tournament of sport; we did not know much about the subject, and we were confronted by the street railway magnates and their clever lawyers. But we could learn as we went along, and we always had to our assistance Newton Baker over in

Cleveland, and Peter Witt, and Carl Nau, whom we had employed as the city's accountant when the time came at last when we could examine the company's books; they had all gone through the long civil war in Cleveland, as had Professor Edward W. Bemis, whom we afterwards engaged in his quality of expert adviser on valuations.

Perhaps at first we laid too great stress on three-cent fares, though I do not know how we could have done otherwise. Dr. Delos F. Wilcox, who has written an excellent work on the whole subject, had advised us indeed that a disproportionate amount of energy and effort had already been expended—not by us, only, but by all those in other cities who were in similar struggles—in the direction of low fares. He pointed out, I remember, that five cents in that day was worth little more than three cents or three and a half cents had been a decade before, according to the scale of prices then current; he thought that in terms of general prices the public had already secured three-cent fares without knowing it. It was a question of some subtlety and some intricacy, to be left to economists; we could not feel that our battle had been won so easily, and we did not undertake to console the people with the recondite theory. We had before us, in vision, and sometimes in their corporeal reality, the weary and exasperated strap-hangers, and the human sardines on the rear platform with their valid complaints; they all wanted low fares, good service, and seats. An old street-car man once said that to provide seats for everybody is an impossibility, and to prove this assertion he humorously classified humanity into three groups: “workers, clerks and shirkers.” Each morning, he said, the workers go down at seven, the clerks at eight, and the shirkers at nine, and that therefore it is easy to provide them all with seats in the morning hours; but that as all three classes wish to go home at the same hour in the evening, it is then physically impossible to provide them all with seats.

But whether or not too great stress was three-cent fares we learned during those months of wearisome and futile negotiations, that the theory was not scientific. The people were entitled to their money's worth in service, the company to adequate pay for the service it rendered, and as the basis of the whole transaction was a public necessity, the city had the right to control the service, to dictate what it should be. The old theory was that the people existed for the street-car company; the new principle was quite the reverse;

the street-car company was but a temporary instrument of social service, and the social right was paramount to all others.

The company therefore was entitled to a fare sufficient to enable it to provide the service thus demanded, and to do this it must charge enough to pay its operating expenses, taxes, and interest, enough to meet the cost of improvements and depreciation, and to pay a reasonable return on its investment. It was not entitled to any speculative return. There was no longer on the company's part that risk its predecessors in interest, the pioneers or promoters or whatever they were, had been compelled to take; its investment was no longer precarious; nothing, indeed, could be more certain than the stability of street railway investments. Their securities, based upon a public necessity, supported by the diurnal comings and goings of all those thousands and hundreds of thousands of people, had become in a certain very real sense, a fixed burden upon the people of the city, a burden as fixed and inevitable as taxes. In the hands of private owners such securities, under a franchise ordinance properly drawn, partake largely of the character of municipal bonds, which indeed they resemble in fundamentals and ends. The issue of securities was therefore to be as jealously guarded as an issue of municipal bonds, and overcapitalization, the prolific source of so much evil, was to be prevented. The enterprise had become as stable as any human institution can be, and with the limited risk there was to be applied the familiar principle of limited profit. The principle was recognized in Cleveland, where the return fixed as reasonable was 6 per cent., which is but little more than municipal bonds pay. And when this principle is established, municipal ownership almost automatically follows; investors used to large speculative profits, are ready to sell out to the municipality; thus, by indirection, democracy comes into her own.

It was easy enough to fix most of the elements of this return; the accountants could do that, in their intricate discussions of car-miles and curves and straight lines of depreciation and points of saturation in traffic, and all that, but the tremendous difficulty was to determine just what the investment was and what was a reasonable return on that investment.

It is this pass to which all such negotiations, conducted in sincerity, come at last; it is this on which the whole question hinges, it is this that might as well be done first as last, namely, to evaluate the property of the company. It is necessary not only to get at the investment and the return thereon, but

to ascertain what the city must pay when it comes to take over the street railway system.

But we did not do it at first, and we did not do it at last. At first it was impossible to get it into the councilmanic head that it was at all necessary, especially since it cost money to retain the “experts,” as they are called, to do the work. They were prone to that old vice of the human mind which leads it to imagine that when it has stated the end to be achieved it has at the same time stated the means of achieving it,—like the advice to the bashful man “to assume an easy and graceful attitude, especially in the presence of ladies”—and when council was finally convinced and had provided the funds for the experts, we could not agree as to who should be employed. That is, the human equation was apparent. There was unhappily nobody but men to make evaluations, and all the engineers who were competent were employed by street railway companies, and expected or hoped to continue to be employed by street railway companies, and they had evolved so many fantastic notions of “intangible” value that they could account for almost any excess in artificial capitalization, and make the grossest exhibition of corporate greed in watering stocks appear like veritable self denial in frugality and economy. We selected Professor Bemis to represent the city, because he was one of the few of the “experts” committed to the people’s cause; he had advised Tom Johnson throughout his long war. But the company never could be brought to select anybody, or to agree upon the third arbiter—even to accept the Judge of the United States Circuit Court when, against the advice of the whole administrative circle, I proposed him.

Again and again in our prolonged negotiations we returned, as in a vicious circle, to this point; again and again we reached this impasse.

LXI

Meanwhile, the franchises were expiring, and the time drew on when the company would have no rights left in the streets. And here was the opportunity for the mind that had the power, or the defect, of isolating propositions, of regarding them as absolute, of ignoring the intricate relativity of life. "Put the company off the streets," was the cry; "make it stop running its cars; bring it to its knees." However, we could not bring the company to its knees without bringing the riders to their feet; we could not put the company off the streets, without at the same time and by the same process, putting the people on the streets; when the cars stopped running the people began walking. The public convenience was paramount.

Then Mr. Cornell Schreiber, the City Solicitor, hit upon a plan. He drew an ordinance providing that the company could use the streets wherein its rights had expired, only on the condition that it carry passengers at a three-cent fare, and the ordinance was at once passed by the council. It was of doubtful legality, but it had its effect in a world of human beings. Before it was effective even, people were tendering three cents as fare; and in the face of the difficulty of dealing with a whole populace in this mood, the company agreed to put in force a temporary rate of three cents during the rush hours of the morning and evening, and it lowered fares in the other hours and made further concessions. And there we let the matter rest.

And, since the education of the general mind never stops, the people were learning. Their patience was time and again exhausted by the unavoidable length of the franchise dispute, for the problem was to them, as to most Americans, new, the legal questions in which the whole subject was prolific had not been settled, there was the interruption of business and convenience and pleasure attending long continued negotiations, and perhaps more than all that irritation of the public temper which proceeds from all communal disputes. The company's representatives counted on all this to tire the people out; and since the controversy assumed a political complexion, and there was as always the difficulty of sustaining the mass will, they had hopes that by delay the people in weariness would surrender. The time came

when the sentiment in favor of municipal ownership was so strong that the Independents adopted the view I had expressed and declared it to be their purpose to grant no renewals of franchises at all, but to let the company operate on sufferance until the city itself could take over the lines.

During the course of the long struggle a change had come over the spirit of the people, and this change had been reflected in the laws. The greatest difficulty had been found in the city's want of autonomy; the cities of Ohio not only lacked the power to own and operate public utilities, but they even had few rights in contracting with the private companies. The street-car companies had always been more ably and assiduously represented in the state legislature than had the people themselves; the people had not had the strength to wrest these powers from the legislature, and indeed, in their patience and toryism, they had not made many efforts to do so. Thus our campaign led us out into the state, and the end, toward which we had to struggle, was the free city; the last of our demands was home rule. In the relations between public utility corporations and the municipality, our cities were a whole generation behind the cities of Great Britain, Germany, France and Belgium. Indeed, in relation to all social functions we were not much further advanced than was Rome in the second century.

As to the medieval cities of Italy, the free cities of Germany and the cities of Great Britain, struggling all of them against some overlord, some king, noble or bishop, so at last there came to our cities a realization of the vassalage they were under. Their destinies were in the hands of the country politicians in the state legislature who had no sympathy with city problems, because they had no understanding of them. Oftenest indeed they had a contempt for them, they all held to the Puritan ideal. But a demand for freedom went up from Cleveland, from Cincinnati, from Columbus, from Toledo. The legislature began to make its reluctant concessions; it gave cities, for instance, the right to have street railway franchises referred to the people for approval or rejection. And at last in the great awakening, the state constitution was ultimately amended and cities were given home rule. It was the irony of life that Golden Rule Jones and Tom Johnson could not have lived to see that day!

LXII

A few weeks after my election to a fourth term I wrote out and gave to the reporters a statement in which I said that I would not be again a candidate for the office of mayor. I had been thinking of my old ambition in letters, and of those novels I had planned to write. Already I had been six years in office and I had not written a novel in all that time. And here I was, just entering upon another term. If ever I were to write those novels I would better be about it, before I grew too old and too tired. The politicians, regarding all such statements as but the professional insincerities of their trade, could not consider my decision seriously of course, or credit its intention. They were somewhat like my friends in the literary world, or like some of them at least, who were unable to understand why I should not continue indefinitely to run for mayor, though the politicians were not so innocent and credulous, since they did not believe that I could as inevitably continue to be elected. I suppose it was the life of action that appealed to my literary friends or to their literary imaginations; they had the human habit of disparaging their own calling, and, if they did not hold my performance in that field as lightly as the politicians held it, they wondered why I did not prefer politics. The politicians in their harangues spoke of my writings bitterly, as though they were a personal affront to their intelligences, and urged the electorate to rebuke me for spending my time upon such nonsense. If I had not known that they had never read my books, or any books, all this might have been chilling to the literary aspiration, but I knew them to their heart's core, where there was nothing but contempt for books, and, as I sometimes thought, yielding too much to cynicism and despair, nothing but contempt for any sort of beauty or goodly impulse. Of course, they were not so bad as that; out of politics they were as good as anyone or as anything; we instinctively recognize the vitiating quality of the political atmosphere in our constant use of the phrase "if it could only be taken out of politics," as with the tariff, the currency, municipal government, etc. But my friends in the political line could join my friends in the literary line in the surprise they felt at my decision to retire at the end of that last term. The politicians did not think I meant what I said, of course;

it is quite impossible for a politician to imagine a man's meaning what he says, since politicians so seldom mean what they say themselves; they considered it merely as bad politics to have said such a thing at all. "It'll embarrass you when you run again," they would warn me in their bland *naïveté*. It did not embarrass me, however, because I would not and did not run again, though I had to decline a nomination or two before they were convinced, but their own lack of faith, those who were still Independents, at least, proved an ultimate embarrassment to them, for they neglected to agree upon a candidate to succeed me, and by the next election they had grouped themselves in factions, each with its own candidate. Perhaps this untoward result came to pass as much because the independent movement by that time had become the Independent party, as for any other reason discernible to the mind of man; at least, it was disparaged by the use of that term, which implied its own reproach in Toledo, and its sponsors conducted themselves so much after the historic precedents of faction in political parties, by separating into the inevitable right and left wing, that they managed to get themselves soundly beaten.

Eight years is a long time to serve in any office. My grandfather had given four years to the Civil War, and I had found the mayor's office as trying, as difficult, and as alien as he had found his martial experience. The truth is, that long before the eight years were over the irritation of constant, persistent, nagging criticism had got on my nerves, and, besides the pain of misunderstanding and misrepresentation, I grew to have a perfect detestation for those manipulations which are the technic of politics. And, then, one cannot be a mayor always, and it were better to retire than to be dismissed.

"But I thought you didn't mind criticism?" a man said to me one day. "I always supposed that after a while one became callous."

My dear friend Bishop Williams of Detroit was at the table, and I shall ever be grateful to him for the smile of instant comprehension and sympathy with which he illuminated the reply he made before I had time to speak.

"Yes, callous," he remarked, "or—raw."

It was precisely that. There were those who were always saying to me: "I know you don't mind what they say about you, but I never could stand it; I'm too sensitive." It was a daily experience, almost as difficult to endure as

the visits of those who came to report the latest ill-natured comment; they did it because they were friends and felt that I should know it. But Bishop Williams knows life and understands human nature more completely and more tolerantly than any clergyman I ever knew.

And then politics have the dreadful effect of beating all the freshness out of a man; if they do not make him timid, they make him hesitant and cautious, provident of his opinion; he goes about with his finger on his lips, fearful of utterance, and, when he does speak, it is in guarded syllables which conceal his true thought; he cultivates solemnity and the meretricious art of posing; humor is to be avoided, since the crowd is perplexed by humor and so resents it, and will have only the stale rudimentary wit of those stories which men, straining to be funny, match at the banquet board. And when he indulges himself in public speech it is to pour forth a tide of words,

Full of sound and fury,
Signifying nothing.

I used to be haunted continually by a horrid fear that I should lose the possibility of ever winning the power of utterance, since no such prudence is at all compatible with the practice of any art. For art must, first of all, be utter sincerity, the artist's business is to think out his thoughts about life to the very end, and to speak them as plainly as the power and the ability to speak them have been given to him; he must not be afraid to offend; indeed, if he succeed at all, he must certainly offend in the beginning. I am quite aware that I may seem inconsistent in this notion, since I have intimated my belief that Jones was an artist; and so he was, in a way, and, if I do not fly to the refuge of trite sayings and allege him as the exception that proves the rule, I am sure that I may say, and, if I have in the least been able to convey any distinct conception of his personality, the reader will agree with me when I say, that he was *sui generis*. And besides it was not as a politician that he won his success. Had he ventured outside the political jurisdiction of his own city the politicians instantly would have torn him asunder because he had not been "regular." And, that, I find, when I set it down, is precisely what I am trying to say about the artist; he must not be regular. Every great artist in the world has been irregular, as irregular as Corot, going forth in the early morning in search of the elusive and ineffable light of dawn as it spread over the earth and stole through the greenwoods at Barbizon, or as Manet, or Monet, or any other man who never knew appreciation in his

lifetime. And Jones and all like him are brothers of those incomparable artists; they are not kin in any way to the world's politicians.

And then so many of the old guard were dead. A strange and tragic fate had pursued us, overtaking, one after another, our very best—Jones, first of all, and then Oren Dunham, E. B. Southard, Dad McCullough, Franklin Macomber, Lyman Wachenheimer, Dr. Donnelly, William H. Maher. These brave, true souls were literally burned out in the fires of that fierce and relentless conflict, and then there came that soft autumn night when seven of our young men in a launch were run down by a freighter on Maumee Bay and drowned, every one of them.

I shall never forget Johnson Thurston as he sat in my office during that last campaign, recalling these men who had been to him as comrades in arms, and, what affected him more sorely, the fact that in our overabundant political success the ideals that had beckoned them on had become blurred in the vision of those who came after them. I detected him in the act of drawing his handkerchief furtively from his pocket, and hastily pressing it to his eyes, as he stammered something in apology for his emotion....

Thus there came the irresistible conviction that the work of the politician was not for me. There was other work I wished to do. I doubt whether the politician's work is ever permanent, though it is too much to say that it lacks real value; I have never been able to think it out. The work of few men, of course, is permanent, sometimes the work of the artist least of any. But, however ephemeral, if the artist's work is done in sincerity, it is of far greater worth than the work of the politician, if for no other reason, than because, to recall again those words of George Moore which can never lose their charm or their consolation, the traffic of the politician is with the affairs of this world, while the artist is concerned with the dreams, the visions, and the aspirations of a world that is beyond this. I have quoted them before in these pages, I know; they cannot be quoted too often, or too often read by us Americans, if, by pondering them, we may plumb their profound depths. For we all read human history too superficially. Kings and emperors, princes and dukes, prime ministers and generals may fascinate the imagination for a while, but if life is ever to unfold its possibilities to the later consciousness, these become but the phantoms of vanished realms, and there emerge more gracious figures, Phidias and Theocritus; Dante, Petrarch, and Boccaccio; Raphael, Leonardo da Vinci, Titian, and

Correggio; Donatello and Michelangelo; Sidney, Spenser, Tyndale, Shakespeare, and Ben Jonson. These and the other artists and humanists of their times are veritable personalities in our world, far more than Elizabeth, or the dukes of the Medici, or even Pericles. For from periods such as these their names made illustrious, from the Revival of Learning, the Renaissance, the Reformation, man emerged as Man, clothed with the beauty and power of an emancipated spirit. In the freedom of the mind, the spontaneous outburst of ecstasy and delight, the new-born possibility of loveliness and harmony and joyous existence, they not only exalted life with art, but gained the courage to undertake sterner examinations of its mystery. And this same perennial spirit of humanism built, not only the proud and voluptuous cities of Tuscany and Lombardy, but the wealthy free cities of Flanders and Germany—and it discovered America, not the America of the senses alone, but the larger, nobler America of the mind.

And, surely, this America is not always to bear the reproach of having no music, and so little painting and literature of her own. Surely the aspirations of this new land, with the irresistible impulse of the democratic spirit and humanistic culture are to find emotional expression in the terms and forms of enduring beauty. It was this sublime adventure that interested me far more than the trivial and repulsive wrangles of the politicians....

Our opponents had never known how wholly right they were in their reiterated charge that I was but a dreamer; incorrigible dreamer indeed, and nothing more!

But in these years I had given my city the best there was in me, little as that was, and when the legislature made provision for the constitutional convention, which met at Columbus, and, after months of deliberation, submitted a long list of amendments to the fundamental law of the state, among them that one which granted home rule to cities, I felt, for it was an emotion deeper than thought, that if the people could only be induced to approve that amendment the long anticipated and happy release was at hand. We had been engaged on an impossible task; we had been trying to regenerate the city by means of electing to office persons who in themselves would reflect the communal aspiration, but this could not be continued indefinitely; the cities could achieve no genuine reform until they were autonomous. With home rule democracy would have the means of development, and the people the opportunity of self-expression; they would

have to depend on themselves; they could no longer, with an Oriental fatalism, neglect their own destiny and then lay the blame for the inevitable catastrophe on the mayor, or the political boss, or the country members of the legislature.

There were, if I remember well, about fifty of these amendments, among them provisions for the initiative and referendum, woman suffrage, and many other progressive and radical doctrines, in addition to our beloved home rule for cities, and, when the campaign opened in behalf of their adoption, Newton Baker, who a year before had been elected mayor of Cleveland, proposed that he and I make a tour of the state in a motor car and speak for the home rule amendment, since all the others had their devoted proponents.

Nothing more delightful than a campaign tour in company with Newton Baker could be imagined, and I had visions of our little caravan, out on the country roads of Ohio, going from town to town, and of our standing up in the car and speaking to the crowds of farmers who had come into the town to hear us, or having come for their Saturday marketing, would pause while we told them of the needs of cities. I had always believed that if the farmers could only be brought to understand the cities they would not be so obdurate with us, but would enlarge our opportunities of self-expression and self-government. I could fancy myself standing up and leaning over the side of the car and talking to them, while they stood there in their drab garments, their faces drawn in mental concentration, looking at us out of eyes around which were little wrinkles of suspicion, wondering what designs we had upon them; at first they would stand afar off, perhaps on the other side of the street, as they used to do when we went out to speak to them in the judicial campaigns; but then presently they would draw a little closer, until at last they crowded about the car, staying on to the end, and then perhaps even vouchsafing us the conservative approval of scattered applause. Or I would dramatize Baker as speaking, while I sat there utterly charmed with his manner, his clear and polished expression, and envied him his ability to speak with such surprising fluency, such ease and grace, as if the fact of putting words together so that they would form clear, logical and related sentences were nothing at all, and wondering why it was that everyone that heard was not instantly converted to his plan, whatever it was.... And then, between times, Baker would not be talking politics at all;

he would not be indulging in politician's low gossip, slandering every one he knew—the ineradicable and, I suppose, inevitable habit of politicians, because in public they are obliged to be so suave in utterance and so smiling and ingratiating in manner. Baker was not like them at all; he knew a vast deal of literature and could talk about books with comprehension; if you mentioned a passage from John Eglinton, or a scene from Tourgenieff, or a poem of Yeats or Masfield, he would know what you were talking about; he is not one of those who, by the little deceit of a thin, factitious smile of appreciation, pretend an acquaintance they have never enjoyed. Baker has been able to keep the habit of reading, even in politics, a singular achievement. Only he would not read novels that were in the somber or tragic manner; I used to tell him that this was a sign he was growing old, since only the buoyancy of youth can risk its spirit in such darkened paths. For instance, he would never read my novel about prisons, “The Turn of the Balance”; he said he knew it was too terrible. But I did not reproach or blame him. I no longer like to read terrible books myself, since life is....

But that pretty scheme fell through, our tour was abandoned, and we went separate ways, though we did have the joy of speaking together on several occasions, once here in Toledo, where we opened the campaign in old Memorial Hall, and again in a town down the state, and at last in two great meetings in Cleveland, where they got out the old tent Johnson had used in his campaigns, and the audiences its canvas walls sheltered, there under the flaring torches, were inspired by his spirit as once they had been by his presence, and with the enthusiasm of them fresh in my heart I set out from Cleveland that last week of the campaign for the long drive to Columbus, where the campaign was to close.

It was a hot day in early September; the clouds were piled high in the west as we started, and the air was suffocating in its dense humidity; plainly it was to be a day of thunder and lightning and tropical showers. My friend, Henry W. Ashley, who understands democracy to the fundamentals (his father was the friend of Lincoln and wrote the Fifteenth Amendment), was with us, for he was ever an interested spectator of our politics. We went by the way of Oberlin because Ashley wished to see the college campus and indulge some sentimental reflections in a scene that had been so vitally associated with the old struggle of the abolitionists. The storm which had been so ominously threatening all the morning broke upon us as we slowly

made our way through the country south of Oberlin, as desolate a tract as one could find, and we were charged as heavily with depression as were the clouds with rain as we thought of the futility of attempting to convince the inhabitants of such a land that they had any responsibility for the problems that were vexing the people in the cities of the state. I remember a village through which we passed; it was about noon, according to our watches, though, since in the country the people reject Standard time and regulate their leisurely affairs by "God's time," noon was half an hour gone, and, after their dinners, they were seeking the relaxation they did not seem to need. The rain had ceased, and on the village green under the clearing sky the old men had come out to pitch horseshoes. Among them was a patriarch whose long white beard, stained with the juice of the tobacco he resolutely chewed, swept the belt of his slack trousers; he was in bare feet. The human foot after it has trod this earth for three score years and ten is not a thing of beauty, and Ashley joked me, as we labored in the mud of those deplorable roads, for my temerity in hoping that we could convert that antediluvian to our way of thinking.

Had the task been wholly mine I should not have undertaken it, and, of course, in that instance I did not attempt it; the old barefoot quoit player stood to us a symbol of the implicit and stubborn conservatism of the rural districts. But there were others in the field, an army of them, indeed; Herbert Bigelow, the radical preacher of Cincinnati, who had been president of the constitutional convention; Henry T. Hunt, Cincinnati's young mayor; and, most influential of all of them perhaps, James M. Cox, destined that autumn to be elected governor of Ohio. And, besides all these, there was the spirit of the times, penetrating at last with its inspiring ideas even the conservatism of the country people. I was confident that the old man could be counted upon to vote for the initiative and referendum at any rate, since one so free and democratic in costume and manner must be of the democratic spirit as well, though I had my doubts of him in that moment when he should put on his spectacles and examine the amendments abolishing capital punishment, and granting home rule to cities.

But the sun came out again as we climbed the hills that overlook Mansfield, to command a lovely scene, broad fertile valleys all renewed by the rain and flooded with sunshine, and I remembered that Altgeld had once lived there, and beheld this same landscape, that he had taught school in that town and

from there had gone away with a regiment to fight in the Civil War. The chauffeur got out and took the chains off the tires, while we sat silent under the influences of the beauty of those little Ohio hills. And then, as we started on, the clouds returned, the scene darkened, and it began to rain again, and, before we knew, the car skidded and we were in the ditch. The wife of the farmer whose garden fence we had broken in our accident revealed all the old rural dislike of the urbanite; she said she was glad of our fate, since motorists were forever racing by and killing her chickens, and with this difficulty I left Ashley to deal, since he had been president of a railroad and was experienced in adjusting claims, and, after he had parleyed a while, I saw him take out his pocketbook, and then the chauffeur got the car out of the ditch and we were on our way again.

The scenes and the experiences of that journey remain with me in a distinctness that is keen in my senses still; because I suppose I felt that in the race with time we were then engaged upon, if we were to reach Columbus that evening for the meeting which was to close the campaign, I was in a symbolic manner racing with my own fate; that campaign a success and I should be free. I should have liked to linger a while in Delaware, where I had spent a portion of my boyhood when my father was a pastor there, and where in the University my uncle William F. Whitlock had been a professor of Latin and literature for half a century, dean of the faculty, and, for a while, president. As we passed by the chapel in the shade of the old elms on the campus I felt that I could still hear the solemn strains of the noble hymn they sang at his funeral, the lusty young voices of a thousand students, united with the quivering trebles of some old clergymen, in "Faith of Our Fathers, Living Still."

My eyes could pierce the walls of the chapel, closed and silent that afternoon for the autumn term had not opened, and I could see myself sitting there in the pew with our family, and looking at the portrait in oil of my uncle on the wall, among the portraits of the other presidents of the University, faintly adumbrating on his great smoothly shaven face the smile of quizzical humor which he wears in my memory. I sat there,

by these tears a little boy again,

and thought of those days so long before when at evening he would come to our house and stand spreading his hands before the fire for a while; he

generally brought under his arm a book for my father to read. I remembered that he used to carry papers in his high hat, and that his coat stood away from his neck, round which he wore a low standing collar, with a black cravat. He seemed to carry in the pocket of his waistcoat an endless succession of eyeglasses; he would use a pair, take them down from his high nose, lay them on the table, forget them, and, when he wished to read again, draw another pair from his waistcoat pocket. And I went on thinking of him as he looked over his glasses on that evening when I had gone late into his study and found him bent over his desk with the "Satires" of Juvenal before him, studying his lesson for the morrow, he said. I thought he knew all the Latin there was left in this world, but, "Oh, no," he said, and added: "If you would sometimes study at this hour of the night perhaps ——" He did not finish his sentence, since it finished itself.... "I don't exactly know how to render that passage, Professor," a student, blundering through an unmastered lesson, said in conciliatory accents one morning. "Ah, that has been evident for some time," my uncle replied.... And now there he lay in his coffin, on the spot in that dim chapel where he had so often stood up to address the students; he was gone with all those others whose portraits hung on the wall, men who had stood to me in my boyhood as the great figures of the world. I should see him walking under those trees no more, his tall form stooped in habitual meditation.... They were all big, those Whitlock forbears of mine, six feet tall every one of them, grim Puritans, I think, when they first came to this country three centuries ago.... And I had a vision of my uncle as walking that afternoon in other groves with all these dark ministerial figures that towered over my boyhood. They were all Puritans, too, strong and rugged men, inflexible, obdurate, much enduring, stern pioneers whose like is known no more. And I, who could join in the lofty strains of that old hymn, as a memorial to my uncle, could find unavailing regret in my reverence.... But all changes, and it was a time of change, one of those periods which make up the whelming tragedy of this life. And, as they had gone, so all the old combinations had disappeared with them, resolved into the elements that make up that shadowy vale we call the past.... But we were driving on, racing away from that past as fast as we could go, on by the cemetery where my uncle lies in his grave, on by the rocky ledges of the Olentangy, the little stream where we boys used to swim, and, just as darkness was falling, besmattered with mud, we drove into Columbus, and along High Street, hideous in the crazy decorations that

were hung out in honor of the State Fair, and up to the Neil House—and across the street on the steps of the old state house four or five thousand people already gathered for the meeting at which I was to be the only speaker. A bath and a bite of supper, and then across the street to the meeting, and I was standing there before that vast crowd, and over us the shadowy mass of the old capitol, in which my grandfather had made the first motion that was ever put in it as a member of the senate half a century before; he told me that his two sons danced all night at the ball with which its opening was celebrated....

And so, on that brilliant Sunday morning in September, as we entered the motor car in Columbus, with the impressions of the great meeting of that Saturday night still fresh and vivid in the mind, I could settle myself for the long drive back to Toledo over the white pikes that wound northward between the fair fields of our beautiful Ohio, and say to myself, over and over, with the delicious sensations of a secret, that the relief had almost come at last, and that now I could do the thing I loved to do—if only the people would approve the constitutional amendments at the election on Tuesday. There were the happiest of auguries in the sky; it was without a cloud to fleck its blue expanse, and the sun blazed and its light sparkled in the fresh air, and as we rode the fields swept by, the pastures still green, the ripening corn tall in maturity, nodding its heavy tassels and waving its broad leaves of dark green, the mown fields yellow with their stubble, and the wide land, somnolent and heavy with fecundity, already rich with the gold of autumn.

And the people did approve, with vast majorities, and among all the principles of democracy they wrote in their fundamental law that day was that of municipal home rule, so that all those cities, undreamed of when the old constitution had been written, and all those little towns, silent and sleepy in the drowse of that Sunday afternoon, might own and operate their public utilities, might draft their own charters, have what form of government they pleased, in short, become free. And so the great dream of Johnson and of Jones came true at last.

LXIII

It was of the Free City they had dreamed and that they had not lived to behold the fulfillment of their dream was, in its way, the final certification of the validity of their services as pioneers. It is an old rule of life, or an old trick of the fates that seem so casually to govern life, that the dreams of mortals are seldom destined to come true, though mortals sometimes thwart the fates by finding their dreams in themselves sufficient. In this sense Jones and Johnson had already been rewarded. It had been a dream of wonder and of beauty, the vision of a city stately with towers, above which there hung the glow which poor Jude used to see at evening when he climbed to the roof of the Brown House on the ridgeway near Marygreen. It was a city in which there were the living conceptions of justice, pity, mercy, consideration, toleration, beauty, art, all those graces which mankind so long has held noblest and most dear. It was a city wherein human life was precious, and therefore gracious, a city which the citizen loved as a graduate loves his alma mater, a city with a communal spirit. There the old ideas of privilege had given way to the ideals of service, public property was held as sacred as private property, power was lightly wielded, the people's voice was intelligent and omnipotent, for they had learned the wisdom that confuses demagogues, and amid the interplay of myriad forces, the democratic spirit was ever at work, performing its noble functions. You might have said that the people were inspired, since they united so readily in great constructive work, reducing to order and scientific arrangement all the manifold needs and expressions of the daily life, conquering in the old struggle against nature, providing against all that casualty and accident which make life to-day such a snarl of squalid tragedies and ridiculous comedies that it well may seem to be ruled by none other than the most whimsical and spiteful of irresponsible spirits. It was more than a city indeed, it was a realm of reason, wherein the people at last in good will were living a social life. The eternal negative, the everlasting no, had given way to a new affirmation; each morning should ordain new emancipations, and each evening behold new reconciliations among men. It was a city wherein the people were achieving more and more of leisure, that life in all

her splendor and her beauty and her glory might not pass by unhailed, unrecognized even, by so many toiling thousands. It was the vision of a city set upon a hill, with happy people singing in the streets.

These words I know but vaguely express the vision that had come to those two men with the unpoetic names of Johnson and Jones. When I speak of a city where people sing in the streets I am perfectly well aware of the smile that touches the lips of sophistication, though the smile would have been none the less cynical had I mentioned merely a city in which there were happy people at all. I am perfectly well aware that such a thing in all literalness is perhaps impossible to the weary, preoccupied crowds in the streets of any of our cities; it would be too absurd, too ridiculous, and probably against the law, if not indeed quite wicked. In Mr. Housman's somber lines:

These are not in plight to bear,
If they would, another's care.
They have enough as 'tis: I see
In many an eye that measures me
The mortal sickness of a mind
Too unhappy to be kind.
Undone with misery, all they can
Is to hate their fellow man;
And till they drop they needs must still
Look at you and wish you ill.

And yet, it is not wholly impossible after all. One evening in Brussels, hearing the strains of a band I looked out of my hotel window, and saw a throng of youth and maidens dancing in a mist of rain down an asphalt pavement that glistened under the electric lights. It was a sight of such innocence, of such simple joy and gayety as one could never behold in our cities, and it occasioned no more remark, was considered no more out of place or unbecoming than it would be for a man to sprawl on one of our sidewalks and look for a dime he had dropped. But I happened to use that phrase about singing in the streets simply because it was one Jones used to employ, just as Johnson used forever to be talking about his city set on a hill. If Johnson's phrase was in an old poetic strain Jones meant literally what he said. He used to talk of the crowds he had seen along the boulevards of Paris, and the gayety, impossible to us, in which they had

celebrated the 14th of July, and he talked of all this to such purpose that Toledo became the first city in America to have a “sane” Fourth of July.

Jones and Johnson, because they had vision, were thinking in sequences far beyond the material conceptions of the communities about them, and utterly impossible to skulking city politicians, with their miserable little treacheries and contemptible and selfish ambitions. They were imagining a spirit which might and perhaps some day will possess a whole people. And when I intimated the pity it was that they had not lived to see that silvery September day when the people of Ohio voted for municipal autonomy, I did not mean in the least to aver that their dream had been realized for us, simply because we had secured an amendment to our fundamental law. Memoranda to this effect had been noted on the roll of the constitution, but these after all were but the cold, formal and unlovely terms that expressed concepts which had been evolving slowly in the public consciousness.

They realized, what all intelligent men must ere long apprehend, that too great stress has been laid on mere political activity. We have counted it as of controlling force in human affairs, the energy behind human activities, the cause, instead of the effect, the motive, instead of a mere expression of our complex life. They saw more deeply than politics, they recognized other and mightier influences at work, affecting the interests and the emotions of men. They knew that there is after all, an unconscious, subtle wisdom in the general neglect of politics by the masses of citizens, who intuitively know that other things are of more importance. They were but seeking to clear the way for the more fundamental expressions of human interest, human emotions, human fervors, human liberties. For of course it is not the city that makes the people free, but the people that make the city free; and the city cannot be free until the people have been freed from all their various bondages, free above all from themselves, from their own ignorances, littlenesses, superstitions, jealousies, envies, suspicions and fears. And it is not laws that can set them free, nor political parties, nor organizations, nor commissions, nor any sort of legalistic machinery. They must themselves set themselves free, and themselves indeed find out the way.

Nor is that freedom to be defined; its chief value lies, as does that of any concept of truth, in the fact that it is largely impressionistic, subject to the alterations and corrections of that mysterious system of incessant change which is life itself. The value and even the permanence of many ideals and

many truths—for truths are not always permanent, but are subject to the flux of life—lie in the fact that they are impressionistic. Reduced to formal lines and hardened into rigid detail they become something quite otherwise than that which they were at first or were intended to be.

No, neither for them, nor for us, had the dream come true. But it had come nearer. It had become possible. Many obstacles had been removed; many purifications had been wrought, many deliverances achieved. To Cleveland and to Toledo, those two cities by the lake, the years had brought their changes. Not objectively, perhaps; outwardly they were much the same—without form, inharmonious, ugly, with the awful antitheses of our economic system, and what is worse, the vast welter of mediocrity and banality between. But there had been ameliorations. In each of them there were plans traced for beautiful civic centers with groups of buildings and other public amenities, which, when realized, would render them comparable in that respect to those old cities of Europe where the benison of art has descended on the people from the hands of kings. And these things were coming up out of the people, despite provincialism and philistinism and politics; there was a new understanding of sovereignty, not as a menace descending from above, but as an aspiration coming up from below. And this new aspiration in the people, pressing with the irresistible urge of moral sentiment against old institutions will renovate the cities and recreate the lives in them.

For after all the world grows better. Not as rapidly as we should like, but yet, in a way, better. The immense sophistication of the modern mood, to be sure, is apt to cast contemporary thought in the mould of multifold negation; and sensibilities, long distressed by the contemplation of life in aspects it would not wear were this more of a realm of reason, find their only solace in that pessimism which makes charming so much of modern poetry. Doubtless this is the mood most congenial to the agnosticism of the reflective, contemplative mind in the present phase of its philosophy. It has its undoubted fascinations, its uses, and, indeed, its truth, part reaction though it be from the excessive strain of contemporary life in cities, and the dull orthodoxies of the Victorian age. To one, indeed, who, in eight years' participation in municipal politics might in that respect have been compared to that character in one of Anatole France's novels who never opened a door without coming upon some hitherto unsuspected depth of infamy in

mankind, it was difficult to avoid that strain. And yet, bad as municipal government has been in this land, it is everywhere better to-day. The level of moral sentiment, like the level of intelligence, mounts slowly, in wide spirals, but it mounts steadily all the time. In not every city has the advance been so marked, for not every city has had such personalities as Johnson and Jones, and without personalities, democracies seem unable to function. The old corruptions, once so flagrant, are growing less and less, and there is left only the residuum of meanness and pettiness and spite, the crimes that require no courage and entail no fear of the law, committed by beings who never could attain the robust stature of the old and brazen and robust offenders. The strain is running out, attenuating, and ere long will be extinct.

Those gentle pessimists of such congenial culture may indeed point to other ages that excel ours, say in speculative thought, and all the five arts, but I think it is demonstrable that upon the whole, and employing long epochs for the comparison, things are growing better. Notwithstanding all the ignorance and all the woe in the world to-night, never before has there been such widespread opportunity for enlightenment, never such widespread comfort, never so much kindness, so much pity for animals, for children, and, above all, never have women been shown such consideration. It needs no very powerful imagination, peering into the shadowy background of human history, to appreciate the tremendous implications of this fact. Indeed the great feminist movement of our time, a movement which in the histories of mankind centuries hence will be given the sectional mark of the beginning of a new age, is in itself the proof of a great advance, in which the ballot will be the very least important of all the liberties to be won.

With all the complications of this vast and confusing interplay of the forces of this age, the city is inextricably bound by its awful responsibility for so much that is bad, for so much that is good, in our time. And in the cities, now as always, the struggle for liberty will go on. The old leaders will pass, and the new will pass, and pass swiftly, for they are quickly consumed in the stress and heat of the passionate and savage struggle. To them must ever come the fatigue of long drawn opposition, of the repeated and unavailing assaults on the cold, solid and impregnable walls of institutions. In this fatigue they may grow conservative after a while, and they should pray to be spared the acquiescence of the middle years, the base capitulation of age.

But always the people remain, pressing onward in a great stream up the slopes, and always somehow toward the light. For the great dream beckons, leads them on, the dream of social harmony always prefigured in human thought as the city. This radiant vision of the city is the oldest dream in the world. All literature is saturated with it. It has been the ideal of human achievement since the day when the men on the plains of Shinar sought to build a city whose towers should reach unto heaven. It was the angelic vision of the mystic on Patmos, the city descending out of heaven, and lying foursquare, the city where there was to be no more sorrow nor crying. It has been the goal of civilization down to this hour of the night, when, however vaguely and dimly, the ideal stirs the thousands in this feverish town going about their strange and various businesses, pleasures, devotions, sacrifices, sins. It has been the everlasting dream of humanity. And humanity will continue to struggle for it, to struggle toward it. And some day, somewhere, to the sons of men the dream will come true.

THE END

FOOTNOTES:

[A] These have been collected and published under the title, “Letters of Labor and Love,” by Samuel M. Jones, The Bobbs-Merrill Co., Indianapolis.

[B] “On the Enforcement of Law in Cities,” Bobbs-Merrill, Indianapolis, 1913.

[C] “The Truth About the White Slave Traffic,” by Teresa Billington-Greig. *The English Review*, June, 1913.

TRANSCRIBER'S NOTES:

Obvious typographical errors have been corrected.

Inconsistencies in hyphenation have been standardized.

Archaic or alternate spelling has been retained from the original.

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